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NEWBORN BABY GUIDE

Imām ibn Qayyim al-Jawziyyah (d. 751H)



بِسْمِ اللَّهِ الرَّحْمَٰنِ الرَّحِيمِ

تحفة المودود
بأحكام المولود

تأليف

الإمام أبي عبد الله محمد بن أبي بكر بن أيوب ابن قيم الجوزية

(٦٩١ - ٧٥١)

al-Ḥāfiẓ Ibn Qayyim al-Jawziyyah (d.751H)

Newborn Baby GUIDE

being a translation of his

'Tuḥfatu'l-Mawdūd bi Aḥkām al-Mawlūd'



Allāh, the Exalted, said:

"He gives to whom He wills female [offspring], and He gives to whom He wills males [offspring]."

[QUR'ĀN 42: 49]

Newborn Baby Guide

by

al-Ḥāfiẓ Ibn Qayyim al-Jawziyyah (d.751H)

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THE AUTHOR

Ḥāfiẓ Ibn Qayyim al-Jawziyyah

May Allāh have mercy upon him

His Name:

HE IS THE IMĀM, THE ḤĀFIẒ, the exegete, the legal jurist, Shaykh al-Islām: Abū 'Abdullāh Shamsu-d-Dīn Muḥammad Ibn Abū Bakr—better known as Ibn Qayyim al-Jawziyyah.

His Birth and Education:

He was born into a noble and knowledgeable family on 7th Safar 691H in the village of Zar', near Damascus, Syria.

From an early age he set about acquiring knowledge of the Islāmic sciences from the scholars of his time. Describing his desire for knowledge, al-Ḥāfiẓ Ibn Rajab, *Dhayl Ṭabaqāt-l-Ḥanābilah* [4/449] said, 'He had an intense love for knowledge, for books, publications and writings.'

Ibn Kathīr, *al-Bidāyah wa-n-Nihāyah* [14/235] said, 'He acquired from such books what others could not acquire, and he developed a deep understanding of the books of the Salaf and of the Khalaf.'

His Teachers and Shaykhs:

They include Shihāb an-Nāblusī, Qāḍī Taqī ad-Dīn ibn Sulaymān, from whom he studied ḥadīth; Qāḍī Badr ad-Dīn ibn Jamā'ah; Ṣafī ad-Dīn al-Hindī; Ismā'īl ibn Muḥammad al-Ḥarrānī, from whom he studied fiqh and usūl; and also his father, from whom he learnt the laws of inheritance.

However, the most notable of his teachers was Shaykh al-lslām Ibn Taymiyyah, whom he accompanied and studied under for sixteen years. Al-Ḥāfiẓ Ibn Kathīr (14/234) said, 'He attained great proficiency in many branches of knowledge; particularly knowledge of tafsīr, ḥadīth, and usūl. When shaykh Taqī ad-Dīn ibn Taymiyyah returned from Egypt in the year 712H, he stayed with the shaykh until he died; learning a great deal of knowledge from him, along with the knowledge that he had already occupied himself in attaining. So he became a unique scholar in many branches of knowledge.'

His Manners and Worship:

Many of his students and contemporaries have born witness to his excellent character and his manners of worship. Ibn Rajab (4/450) said,

> He - may Allāh have mercy on him - was constant in worship and performing the night prayer, reaching the limits in lengthening his prayer and devotion. He was

> constantly in a state of *dhikr* and had an intense love for Allāh. He also had a deep love for turning to Allāh in repentance, humbling himself to Him with a deep sense of humility and helplessness. He would throw himself at the doors of Divine obedience and servitude. Indeed, I have not seen the likes of him with regards to such matters.

Ibn Kathīr (14/234) said,

> He was constant in humbly entreating and calling upon his Lord. He recited well and had fine manners. He had a great deal of love and did not harbour any envy or malice towards anyone, nor did he seek to harm or find fault with them. I was one of those who most often kept company with him and was one of the most beloved of people to him. I do not know of anyone in the world in this time, who is a greater worshipper than him. His prayer used to be very lengthy, with prolonged bowing and prostrations. His colleagues would criticise him for this, yet he never retorted back, nor did he abandon this practice. May Allāh bestow His mercy upon him.

His Students and Works:

Amongst his most prominent students were: Ibn Kathīr (d.774H), adh-Dhahabī (d.748H), Ibn Rajab (d.751H) and Ibn ʿAbdu-l-Hādī (d.744H), as well as two of his sons, Ibrāhīm and Sharafu-d-Dīn ʿAbdullāh.

Ibnu-l-Qayyim authored over sixty works. His books and writings are characterised by their touching address to the heart and soul, as well as their accuracy, precision, strength of argument and

depth of research.

In the field of fiqh and usūl, his writings include: *I'līmu-l-Muwaqqiḥīn; Turuqu-l-Ḥukmiyyah; Ighāthatu-l-Lahfān; Tuḥfatu-l-Mawlūd; Aḥkām Ahlu-l-Dhimmah*; and *al-Furūsiyyah.*

In the field of ḥadīth and sīrah they include: *Tahdhīb Sunan Abī Dāwūd; al-Manāru-l-Munīf; Fawā'id al-Ḥadīthiyyah; Jalā'u-l-Afhām; and Zādu-l-Ma'ād.*

In the field of beliefs: *Ijtimā' al-Juyūsh al-Islāmiyyah; as-Ṣawā'iqu-l-Mursalah; Shifā'u-l-'Alīl; Ḥādiyu-l-Arwāḥ; al-Kāfiyatu-sh-Shāfiyah*; and *Kitāb ar-Rūḥ.*

In the field of akhlāq (morals) and tazkiyah (purification): *Madāriju-s-Sālikīn; ad-Dā' wa-d-Dawā'; al-Wābilu-s-Ṣayyib; al-Fawā'id; Risālatu-t-Tabūkiyyah; Miftāḥ Dār as-Sa'ādah*; and *'Uddatu-s-Ṣābirīn.*

In the sciences of the Qur'ān: *at-Tibyān fi Aqsāmi-l-Qur'ān*; and *Amthāl al-Qur'ān.*

In language and miscellaneous issues: *Badā'i al-Fawā'id.*

Two books have also been written collating the exegetical comments of ibn al-Qayyim from his various works: *Tafsīr al-Qayyim* and *Tafsīr al-Munīr.*

A few of his works have also been translated into the English language.

Statements of the Scholars about him:

Ibn Rajab (4/44) said,

> He had deep knowledge concerning tafsīr and the fundamentals of the religion, reaching the highest degree concerning them both. Similar was the case in the field of ḥadīth, with regards to understanding its meanings, subtleties and deducing rulings from them. Likewise was the case in the field of fiqh and its usūl, as well as the Arabic language. He did a great service to these sciences. He was also knowledgeable about rhetoric, grammar, and *sulūk* as well as the subtleties and details that occur in the speech of the people of *tasawwuf*.

Al-Ḥāfiẓ Ibn Ḥajar, *ad-Dururu-l-Kāminah* (4/21),

> He possessed a courageous spirit as well as vast and comprehensive knowledge. He had deep knowledge concerning the differences of opinions of the Scholars and about the ways of the Salaf.

Ibn Ḥajar also said in his commendation to ar-Raddu-l-Wāfir,

> And if there were no virtues of shaykh Taqī ad-Dīn [Ibn Taymiyyah], except for his famous student, shaykh Shamsu-d-Dīn ibn Qayyim al-Jawziyyah - the author of many works, which both his opponents and supporters benefited from - this would be a sufficient indication of his [Ibn Taymiyyah's] great position.

al-Ḥāfiẓ Ibn Nāṣir ad-Dimishqī, *ar-Raddu-l-Wāfir* [p. 69] said,

> He possessed knowledge of the sciences, especially

tafsīr and usūl.

He also said:

> Abū Bakr Muḥammad Ibn al-Muhib said, as found in his letter, "I said in front of our Shaykh, al-Mizzī, 'Is Ibnu-l-Qayyim at the same level as Ibn Khuzaymah?' He replied, 'He is in this time, what Ibn Khuzaymah was in his time.'"

As-Suyūṭī, *Bughyatu-l-Wi'āt* [1/62] said,

> His books had no equal and he strove and became one of the great Imāms in [the field of] tafsīr, ḥadīth, the Book, the Sunnah, furū', and the Arabic language.

'Alī al-Qārī, *al-Mirqāt* [8/251],

> It will be clear to whoever aspires to read the explanation of *Manāzilu-s-Sā'irīn* [i.e. *Madārij as-Sālikīn*], that they [Ibn Taymiyyah and Ibnu-l-Qayyim] are from the great ones of *Ahlu-s-Sunnah wa-l-Jamā'ah*, and from the *awliyā'* of this Ummah.

Qāḍī Burhān ad-Dīn az-Zur'ā said as quoted from him in *Dhayl Ṭabaqāt al-Ḥanābilah,*

> There is none under the heavens who has greater knowledge than he.

His Death:

Imām Ibnu-l-Qayyim passed away at the age of sixty, on the 13th night of Rajab, 751H, may Allāh shower His Mercy upon him.

Some of his fine works have been translated and published in English under the Dār as-Sunnah Ibn Qayyim series:

- Trials and Tribulations
- Characteristics of the Hypocrites
- Paragons of the Qur'ān
- Inner Dimensions of the Prayer
- Heartfelt Advice to a Friend

INTRODUCTION

With the Name of Allāh, the All-Merciful, the Most Merciful

All praise is due to Allāh, the Most High, the Most Great, the Most Forbearing, the Most Generous, the Most Forgiving and the Most Merciful.

All praise is due to Allāh, Lord of the worlds; the Most Merciful the Most Gracious; Sovereign of the Day of Recompense. He began the creation of man from an extract of clay. Then He placed him as a sperm-drop in a firm lodging. Then He made the sperm-drop into a clinging clot, and He made the clot into a morsel of flesh. He then made from it, bones of different shapes as foundation for this firm construct. Like clothing, He then covered the bones with flesh; thereafter developing him into another creation. So blessed is Allāh, the best of creators!

Glory is to Him, Whose Power covers everything, and Whose Will takes effect over His creation in order to direct its affairs, and Who has the exclusive dominion of the Heavens and Earth; He

creates what He Wills:

يَهَبُ لِمَن يَشَآءُ إِنَٰثًا وَيَهَبُ لِمَن يَشَآءُ ٱلذُّكُورَ ﴿٤٩﴾

"He gives to whom He wills female [offspring], and He gives to whom He wills males [offspring]."

[*al-Shurā* (42): 49]

And blessed is He, the Most High, the Most Great, the Most Forbearing, the Most Generous, the Hearing, and the Knowing:

هُوَ ٱلَّذِى يُصَوِّرُكُمْ
فِى ٱلْأَرْحَامِ كَيْفَ يَشَآءُ ۚ لَآ إِلَٰهَ إِلَّا هُوَ ٱلْعَزِيزُ ٱلْحَكِيمُ ﴿٦﴾

"It is He who forms you in the wombs however He wills. There is no deity except Him, the Exalted in Might, the Wise."

[*Āl-'Imrān* (3): 6]

I bear witness that there is no deity except Allāh alone; having no partner. A deity high above having an equivalent or a match; exalted is He above resembling His creation.

لَيْسَ كَمِثْلِهِۦ شَىْءٌ ۖ وَهُوَ ٱلسَّمِيعُ ٱلْبَصِيرُ ﴿١١﴾

"There is nothing like unto Him, and He is the Hearing, the Seeing."

[*al-Shurā* (42): 11]

And I bear witness that Muḥammad is His servant and Messenger, the best of whom He created and entrusted with His revelation, and made His proof against His servants. He sent him as mercy for all beings, a role model for those who work

righteousness, and set him as a goal aspired by those walking the Straight Path. Through him, He guided people away from error, educated them away from ignorance, increased [provisions] for them after [conditions of] scarcity, honoured them after humility, and enriched them after poverty. Through his Message, he opened eyes that were blind, ears that were deaf and hearts that were covered. He conveyed the Message, fulfilled the duty and gave sincere counsel to the nation until the requirements became clear, the laws of Islām were established, the party of Allāh was honoured, and the party of the devil was humiliated. And thus, the face of time shined with beauty, darkness turned into light, and every lost soul found guidance.

May Allāh bestow His Blessings upon the Prophet (ﷺ), and may His Angels, Prophets, Messengers and believing servants ask of Him to do so, as much as he held onto the *tawḥīd* of Allāh, connected people with Him and invited them towards Him. May the peace and mercy of Allāh be upon him.

Allāh, the Exalted, diversified His provisions for man—from his entering into this wordly life, until he reaches the home of permanent abode in the Hereafter. Even in the three stages of darkness before that; when His Commands took effect for him to come into existence. Thereafter, his detachment from his mother's womb, His subsidiary Commands begin concerning him— addressed primarily to his parents or guardian responsible for raising him and looking after his welfare. Allāh Exalted, has issued exhortation to his caretakers for as long as the child remains under their custody and for which they are accountable rather than the child. Upon reaching puberty, he becomes dispensed of the [divine] Commands and his actions commence being recorded. He becomes subjected to the rules and regulations that govern both, Muslims

and non-Muslims, and his preparations for life begin—a journey that will inevitably lead him either to the home of prosperity [i.e. Paradise] or the house of wretchedness [i.e. Hellfire].

Days and nights pass until he finally reaches the eternal abode he was destined and guided towards throughout his life. When he reaches the final stage, he arrives at the home that was prepared for him before his arrival; either the house of his wretchedness or his prosperity. It is there he puts down the travelling cane and settles down; either the house of justice becomes his shelter, or the house of prosperity becomes his residence.

In this book, we sought to mention the requirements concerning the child after the period of his birth and prior to puberty. This includes his aqīqah and its requirements, shaving of his head, providing him with a name, circumcising him, rules regarding his urine, piercing of his ear, detailed requirements of raising him and the stages of his growth; from being a sperm-drop until his settlement in either Paradise or the fire of Hell. This book turned out to be lengthy and novel in its meaning, containing benefits that are rarely found anywhere else. Unique gems of interpretations, ḥadīths that are necessary to be studied, understood and collected, cases of juristic discourse that are difficult for the student to comprehend, as well as points of wisdom that are essential to be aware of.

It is an enjoyable book to read, fascinating to look through, and bringing benefit for this life and the Hereafter. Its content is necessary for everyone who is granted children. I ask Allāh for correctness and guidance to the way of right conduct, for He is Most Generous and Bountiful.

I entitled it *'[Newborn Baby Guide] A Gift to the Loved One Regarding*

Requirements of the Newborn' and I ask Allāh, the Exalted, to make it sincere for His Honourable Countenance.

I divided it into seventeen chapters [as follows]:

Chapter 1: Desirability of seeking children
Chapter 2: Disapproval of resenting having female children
Chapter 3: Desirability of extending glad tidings to those who are granted children and congratulating them.
Chapter 4: Desirability of uttering the *adhān* and *ʿiqāmah* in the child's ears
Chapter 5: Desirability of *Taḥnik*
Chapter 6: *ʿAqīqah* and its requirements; Difference of views on its obligation and the evidence of each side
Chapter 7: Shaving the child's head, and donating the weight of his hair
Chapter 8: Naming the child, its timing and its requirements
Chapter 9: Requirements of circumcision of the child
Chapter 10: Piercing the ear of the boy and girl
Chapter 11: Urine of young boys and girls prior to weaning
Chapter 12: An infant's saliva and spittle; is it pure or not since infants do not wash their mouths despite frequent vomiting
Chapter 13: Permission to carry children in prayers, even while purity of their clothing is unknown
Chapter 14: Encouraging parents to kiss their children
Chapter 15: Obligation to discipline and educate children, and to treat them fairly
Chapter 16: Useful topics in child education
Chapter 17: The stages of child growth from sperm-drop until entering the final abode.

CHAPTER ONE

Desirability of Seeking Children

Allāh, the Exalted, said:

فَٱلْـَٰٔنَ بَـٰشِرُوهُنَّ وَٱبْتَغُوا۟ مَا كَتَبَ ٱللَّهُ لَكُمْ ۚ

"So now, have relations with them and seek that which Allāh has decreed for you."

[*al-Baqarah* (2): 187]

Shu'bah narrated from Al-Ḥakam from Mujāhid that it [seeking what Allāh has decreed] refers to the child (*walad*).

The same was said by Al-Ḥakam, 'Ikrimah, Al-Ḥasan al-Baṣrī, Al-Suddī and Al-Daḥḥāk.

The strongest among what is narrated is by Muḥammad Ibn Sa'd from his father: 'My uncle told me, narrating from his father that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: "It refers to the child."'[1]

Ibn Zayd said: 'It refers to copulation (*jimā'a*).'

[1] Ibn Jarīr in his *Jāmi' al-Bayān*, 2/98, however it is weak.

Qatādah said: 'Seek the concession (*rukṣah*) that Allāh has decreed for you.'

There is another narration from Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) where he stated: '[It refers to] the Night of Decree (*laylat al-qadr*)."

The truth is: When Allāh lightened [the hardship] for the *ummah*, by allowing allowing martial relations on the night preceding fasting until dawn - and since those engaging in martial relations are overwhelmed by the desire (*shahwa*) for pleasure and fulfilling their needs, so much so that nearly nothing else enters their minds—Allāh the Exalted guided them to seek His satisfaction in such pleasure, rather than merely for the pleasure, but to seek the rewards that Allāh has decreed for them, and the child that comes out of their backbones[2] to worship Allāh alone. In addition, He guided them to seek the seek the exception (*rukṣah*) He allowed for them, for He likes that His concessions are accepted, and Allāh loves those who take to His concessions, just as He hates to be disobeyed. He also decreed *laylat al-qadr* for them, and they were commanded to seek it.

Yet it could be asked: How does *laylat al-qadr* relate to allowing relations with the wife?

The answer is: It guides them not to be distracted by the allowed copulation to seek this night, which is better than a thousand months. It is as if Allāh the Exalted is saying: Fulfil your desire of your wives the night preceding fasting, but do not let that distract you from seeking what Allāh decreed for you of this night, with which He preferred them; and Allāh knows best.[3]

[2] Meaning the semen fluid that proceeds to impregnate.

[3] Muslim scholars usually conclude their speeches with *"Allāh knows best"* or *"Success is from Allāh"*.

Anas (*raḍiyAllāhu ʿanhu*) said: 'The Messenger of Allāh (ﷺ) used to command us to get married, and severely forbade celibacy. He said: "Marry the loving (*al-wudūd*) and the fertile (*al-wulūd*), for I will take pride of your great numbers before the other Prophets on the Day of Resurrection."'[4]

Maʿqil Ibn Yassār (*raḍiyAllāhu ʿanhu*) narrated: 'A man came to the Prophet (ﷺ) and said: "I have found a woman who is of good lineage and beautiful, but she cannot have children. Should I marry her?" He said: "No." Then he came to him a second time, and he told him not [to marry the woman]. He then came to him a third-time and so he was told: "Marry the loving and the fertile, because through you, I will compete with the nations for superiority in numbers."'[5]

'Abdullāh Ibn 'Amr (*raḍiyAllāhu ʿanhu*) narrated that the Messenger of Allāh (ﷺ) said: 'Marry the fertile woman, for I will take pride of your great numbers on the Day of Resurrection.'

'A'ishah (*raḍiyAllāhu ʿanhā*) said, narrating from the Prophet (ﷺ): 'Marriage is part of my Sunnah, and whoever does not follow my Sunnah is not from me. Get married, for I will compete with the nations for superiority in numbers.'[6]

Ḥammād Ibn Salamah narrates from ʿĀṣim, from Abū Ṣāliḥ, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'A servant will have his rank (*darajah*) raised and will say, "O my Lord how has this come about for me?" And it will be

[4] Aḥmad in his *Musnad*, #12202. Ibn Ḥibbān ruled it as ṣaḥīḥ, 3/338, and Al-Haythamī in *'Majmaʿ al-Zawā'id'*, 4/474.

[5] Abū Dāwūd, #250; Al-Nasā'ī, #3227. Ibn Ḥibbān ruled it as ṣaḥīḥ, 9/363 and Al-Albānī in *'Ṣaḥīḥ al-Targhīb'*, #1921.

[6] Ibn Mājah, #1508. Al-Albānī ruled it as ḥasan in his checking of Ibn Mājah.

said: "Through your son after you seeking forgiveness for you.""[7]

Among further motivations in seeking children is what has been recorded by Imām Muslim in his *'Ṣaḥīḥ'*. He narrated from Abū'l-Ḥassān who said: 'My two children died, so I said to Abū Hurayrah: "Would you narrate to me anything from Allāh's Messenger (ﷺ) a ḥadīth that will soothe our hearts in our bereavement?" He said: "Yes. Small children are the *da'āmīs*[8] of Paradise. If one of them meets his father [or he said his parents] he would take hold of his garment, or he said with his hand as I take hold of the hem of your cloth [with my hand]. And the child will not let go of it until Allāh causes him and his father to enter Paradise.""[9]

Mu'āwiyah Ibn Qurrah (*raḍiyAllāhu 'anhu*) narrated on the authority of his father that a man used to come to the Prophet (ﷺ) with his son. The Prophet (ﷺ) asked him: 'Do you love him?' He said: 'O Messenger of Allāh, may Allāh love you like I love him.' Then another time, the Prophet (ﷺ) noticed the child was missing and so he asked: 'Where is the son of so-and-so?' They replied: 'O Messenger of Allāh, he has died.' The Prophet (ﷺ) said to the father: 'Would you not like to come to one of the gates of Paradise and find him there waiting for you?' The man said: 'O Messenger of Allāh is this especially for me or for all of us?' He (ﷺ) said: 'Rather it is for all of you.'[10]

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[7] Ibn Mājah, #3660. Al-Albānī ruled it as ḥasan in his checking of Ibn Mājah, and his *'Silsilat al-Ṣaḥīḥah'*, #1598.

[8] Ibn Athīr said: '*Da'āmīṣ* is the plural of *da'mūṣ*, which refers to a small creature that lives in ponds. *Da'mūṣ* also refers to the one who wanders around (i.e. able to go everywhere in *Jannah*), entering all places and not being barred from any place...' See *Al-Nihāyah*, 2/279.

[9] Muslim, #2635

[10] Aḥmad in his *Musnad*, 3/436. It was ruled as ṣaḥīḥ by Al-Ḥākim, 1/541. See also Al-Albānī, *'Ṣaḥīḥ al-Targhīb'*, #1756.

Imām Aḥmad said that ʿAbdu'l-Ṣamad narrated from ʿAbd Rabbuh Ibn Bāriq Al-Ḥanafī, from Sammāk, from Abū Zumayl Al-Ḥanafī, on the authority of Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) that he heard the Messenger (ﷺ) say: 'Whoever from my *ummah* that loses two infants, then Allāh in return will enter him into Paradise.' 'A'ishah (*raḍiyAllāhu ʿanhā*) asked: 'What about the one who has lost one infant from among your *ummah*?' He replied: 'The one that loses only one infant shall prosper.' 'A'ishah (*raḍiyAllāhu ʿanhā*) then inquired: 'What of those who have not lost any children from among your *ummah*?' He replied: 'I shall be the excess loss for him in the Hereafter, for my loss [i.e. due to my death] will be felt similarly [to losing one's family and children].'[11]

In both Al-Bukhārī and Muslim, it is narrated on the authority of Abū Saʿīd Al-Khudrī (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'Any woman who loses three of her children, they will be a shield for her against the Fire [of Hell].' A woman asked: 'And two?' He replied: 'And two.'[12]

In Muslim, a similar ḥadīth is narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*).[13] The same ḥadīth was also conveyed by Ibn Masʿūd (*raḍiyAllāhu ʿanhu*)[14] and Abū Barazah Al-Aslamī (*raḍiyAllāhu ʿanhu*).

[11] Tirmidhī, 1#062, who said it was ḥasan gharīb. Ibn Rajab said the narration has supporting witness (via another chain), *'Tasliyāt al-Nufūs'*, 2/397; Aḥmad Shākir ruled it ṣaḥīḥ in his checking of Imām Aḥmad's *Musnad*, 5/39. Al-Albānī ruled it weak in his checking of al-Tirmidhī, see also, *'Mukhtasar al-Shamā'il'*, #334. However the full version of *al-Shamā'il* is translated in English, 'The Sublime Beauty of the Prophet (ﷺ)' of Imām Trimidhī published by Dār us-Sunnah Publishers, Birmingham, U.K, 1st ed, 2020.

[12] Bukhārī, #99 and Muslim, #4786

[13] Muslim, #2636

[14] Aḥmad in his *Musnad*, 1/421 and others

Also Al-Bukhārī and Muslim narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'Any Muslim, three of whose children die before puberty, and he resigns himself calmly to the will of Allāh, the Fire will not touch him but for the fulfilment of the oath.'[15]

Al-Bukhārī also narrated on the authority of Anas (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: "Any Muslim who loses three children before they reach the age of maturity, will be granted Paradise by Allāh, the Exalted, out of His mercy for them."[16]

In Muslim, a ḥadīth is narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) who said: 'A woman came to the Messenger of Allāh (ﷺ) with a child [who was sick]. She said: "Make supplication for him, as I have already buried three children [already]." He said: "You have buried three?" She said: "Yes." He said: "You have built a strong barrier against the Fire."'[17]

The child benefits his parents, whether he lives after them or dies before them.

Muslim has also narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Messenger of Allāh (ﷺ) said: 'When a man dies, his deeds come to an end, except for three: An ongoing charity, knowledge by which people derive benefit, a pious child who prays for him.'[18]

[15] Bukhārī, #1251 and Muslim, #2632
[16] Bukhārī, #1248
[17] Muslim, #2636.
[18] Muslim, #1631.

Section One

If someone said: What do you say regarding the saying of Allāh, the Exalted:

وَإِنْ خِفْتُمْ أَلَّا تُقْسِطُوا فِي الْيَتَامَىٰ فَانْكِحُوا
مَا طَابَ لَكُم مِّنَ النِّسَاءِ مَثْنَىٰ وَثُلَاثَ وَرُبَاعَ ۖ فَإِنْ خِفْتُمْ أَلَّا تَعْدِلُوا
فَوَاحِدَةً أَوْ مَا مَلَكَتْ أَيْمَانُكُمْ ۚ ذَٰلِكَ أَدْنَىٰ أَلَّا تَعُولُوا ﴿٣﴾

"And if you fear that you will not deal justly with the orphan girls, then marry those that please you of [other] women, two or three or four. But if you fear that you will not be just, then [marry only] one or those right hand possesses. That is more suitable that you may not incline [to injustice]."

[*al-Nisā'* (4):3]

Al-Shāfi'ī said interpreting the word: 'تَعُولُوا' *'ta'ūlū'* in the above-mentioned verse: 'that your children may not grow in number,' does that not mean that the fewer children you have the better!

The answer is: Al-Shāfi'ī—may Allāh have mercy on his soul—has said that, and he was opposed by the majority of interpreters, both the ancient and the modern. They said that the verse means: 'That is more suitable that you may not incline to injustice.' It also refers to the division of inheritance, because the heirs increase in number. Another derivation of the word is 'to be in need.' Allāh the Exalted said:

وَإِنْ خِفْتُمْ عَيْلَةً فَسَوْفَ يُغْنِيكُمُ اللَّهُ مِن فَضْلِهِ إِن
شَاءَ

"And if you fear poverty, Allāh will enrich you from

His bounty if He wills."

[*Tawbah* (9):28]

In addition, a poet said:

The poor knows not when his richness will be

and the rich knows not when he will be in need.

As for the increase in the number of children, it is derived from a completely different root.[19]

Al-Wāḥidī said in his book *al-Tafsīr al-Basīṭ* that *'taʿūlū'* تَعُوْلُوْا means *to be unfair*, as related by all scholars of interpretation (*ahlu'l-tafsīr*) and linguistics (*lugha*).

This was also narrated from the Prophet (ﷺ). 'A'ishah (*raḍiyAllāhu ʿanhā*) narrated that the Prophet (ﷺ) said: in interpretation of *'taʿūlū'* تَعُوْلُوْا that it means *to be unfair.*[20]

It was also narrated that it means *to incline.*

This is the opinion of Ibn 'Abbās (*raḍiyAllāhu ʿanhumā*), Al-Ḥasan, Qatādah, Al-Rabīʿ, Al-Suddī, Abū Mālik, 'Ikrimah, Al-Farrā', Al-Zajjāj, Ibn Qutaybah and Ibn Al-Anbārī.

In addition, supporting this interpretation of the verse, despite that Al-Shāfiʿī's opinion is seen by Al-Kisā'ī, as narrated by Al-Farrā', as fluent Arabic, the former opinion is preferred for a number of reasons:

1. It is the prevalent interpretation in the language, besides

[19] There were more details on this but they are very difficult to translate and pointless to someone who does not speak Arabic.

[20] Ibn Ḥibbān, #4029 and others, however it is weak

which there is almost no other, except in Al-Kisā'ī's opinion, who was opposed by all the other linguistic scholars.

2. It is narrated from the Prophet (ﷺ), which strengthens this view, even if it were the less common.

3. It is narrated from 'A'ishah (*raḍiyAllāhu 'anhā*) and Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), and no interpreter has ever disagreed with them. Al-Ḥākim Abū 'Abdullāh said: 'We regard the interpretation of the Companion [of the Prophet (ﷺ)] as something narrated from the Prophet (ﷺ) himself.'

4. The aforementioned evidence regarding the desirability of seeking children and the Prophet (ﷺ) boasting of his nation's number on the Day of Judgment refutes this interpretation.

5. The context of the verse is to move people away from where they fear injustice. Allāh said in the beginning of the verse:

وَإِنْ خِفْتُمْ أَلَّا تُقْسِطُوا۟ فِى ٱلْيَتَٰمَىٰ فَٱنكِحُوا۟
مَا طَابَ لَكُم مِّنَ ٱلنِّسَآءِ مَثْنَىٰ وَثُلَٰثَ وَرُبَٰعَ

"And if you fear that you will not deal justly with the orphan girls, then marry those that please you of [other] women, two or three or four."

[*al-Nisā'* (4): 3]

Therefore, Allāh the Exalted guided them away from being unfair to orphan girls to marry what they desire of adult women, and he allowed them up to four wives. Then He guided them away from being unfair and unjust in treating them, He said:

فَإِنْ خِفْتُمْ أَلَّا تَعْدِلُوا۟ فَوَٰحِدَةً أَوْ مَا مَلَكَتْ أَيْمَٰنُكُمْ

> "But if you fear that you will not be just, then [marry only] one or those your right hand possesses."
>
> [*al-Nisā'* (4): 3]

Then He—in His Exaltedness—said that marrying only one or a slave girl is more suitable to avoiding unfairness, which is explicit in the interpretation.

6. It does not fit the meaning to say: If you fear that you will not be just between four wives, and then marry only one as much as you want of those your right hand possesses, for this is more suitable that your children may not grow in number. The latter part does not fit with the former.

7. It is not logical to be told: If you fear that you will not be just between four wives, then you may have a hundred slave girls or more as concubines, for this is more suitable that your children may not grow in number.

8. Allāh's saying:

ذَٰلِكَ أَدْنَىٰٓ أَلَّا تَعُولُوا۟ ﴿٣﴾

> "That will be more suitable, to prevent you from doing injustice."
>
> [*al-Nisā'* (4): 3]

is a justification for each of the preceding provisions, which are moving men away from marrying orphan girls to marrying adult women, and from marrying four wives to marrying just one or slave girls, which is not suitable to be justified by the small number of children.

9. Allāh the Exalted said:

فَإِنْ خِفْتُمْ أَلَّا تَعْدِلُوا۟

"if you fear that you will not be just..."

[*al-Nisa'* (4): 3]

rather than saying: *"if you fear to become poor or needy."* If the intended meaning had been having fewer children, this would have been more suitable.

10. When Allāh the Exalted forbids something, and gives a reason to justify it, that reason must be in contrast with the opposite of the justified requirements. He, the Exalted, justified allowing marriage to non-orphans and marrying only one or having slave concubines that they are more suitable to avoiding unfairness. It is known that having many children is not in contrast with the opposite of the justified provision. Allāh knows best.

CHAPTER TWO

Disapproval of Resenting Getting Female Children

Allāh the Exalted said:

لِلَّهِ مُلْكُ
ٱلسَّمَٰوَٰتِ وَٱلْأَرْضِ ۚ يَخْلُقُ مَا يَشَآءُ ۚ يَهَبُ لِمَن يَشَآءُ إِنَٰثًا
وَيَهَبُ لِمَن يَشَآءُ ٱلذُّكُورَ ﴿٤٩﴾ أَوْ يُزَوِّجُهُمْ ذُكْرَانًا وَإِنَٰثًا ۖ
وَيَجْعَلُ مَن يَشَآءُ عَقِيمًا ۚ إِنَّهُۥ عَلِيمٌ قَدِيرٌ ﴿٥٠﴾

"To Allāh belongs the dominion of the heavens and the earth; He creates what He wills. He gives to whom He wills female [children], and He gives to whom He wills males—Or He makes them [both] males and females, and He renders whom He wills barren. Indeed, He is Knowing and Competent."

[*al-Shurā* (42):49-50]

Therefore, He, the Exalted, divided the states of spouses into four states, and said that whatever children He decreed for them is a gift from Him; it is enough for the servant to be subjected to Allāh's wrath by resenting His gifts.

He, the Exalted, mentioned females first. Some say that it is to make up to them, for being considered burdensome by parents.

Others say which is better, that He mentioned them first, because the context is that He does what He wills, not what the parents will. For parents mostly want but males, while He, the Exalted, said that He creates what He wills. Therefore, He started by mentioning the kind [female] that He wills while the parents do not want it.

I have another view, and it is that He, the Exalted, gave priority to what the pre-Islamic Ignorance used to put down so much so that they were buried alive; like He is saying: "This kind that you put down and humiliate is preferred, in My sight, to males."

And look how He, the Exalted, mentioned females as an indefinite noun, and the males as definite nouns, so he compensated females by giving them precedence, and compensated the delayed by defining them, for in definition is commendation. It is as He is saying: *"And He gives to whom He wills the mentioned, known knights who are not unknown to you!"*

Then, when he mentioned them together, he gave precedence to the males, in order to give each gender their right of advancing and delaying; Allāh knows best His purpose from that.

We mean to say that resenting getting female children is of the manners of pre-Islāmic Ignorance that was put down by Allāh the Exalted when He said:

وَإِذَا بُشِّرَ أَحَدُهُم بِٱلْأُنثَىٰ ظَلَّ وَجْهُهُۥ مُسْوَدًّا وَهُوَ كَظِيمٌ
﴿٥٨﴾ يَتَوَٰرَىٰ مِنَ ٱلْقَوْمِ مِن سُوٓءِ مَا بُشِّرَ بِهِۦٓ ۚ أَيُمْسِكُهُۥ عَلَىٰ هُونٍ

أَمْ يَدُسُّهُۥ فِى ٱلتُّرَابِ ۗ أَلَا سَآءَ مَا يَحْكُمُونَ ﴿٥٩﴾

"And when one of them is informed of [the birth of] a female, his face becomes dark, and he suppresses grief—He hides himself from the people because of the ill of which he has been informed. Should he keep it in humiliation or bury it in the ground? Unquestionably, evil is what they decide."

[*al-Naḥl* (16): 58-59]

And He said:

وَإِذَا بُشِّرَ أَحَدُهُم بِمَا ضَرَبَ لِلرَّحْمَٰنِ مَثَلًا
ظَلَّ وَجْهُهُۥ مُسْوَدًّا وَهُوَ كَظِيمٌ ﴿١٧﴾

"And when one of them is given good tidings of that which he attributes to the Most Merciful in comparison, his face becomes dark, and he suppresses grief."

[*al-Zukhruf* (43): 17]

That is why a fluent man, who was asked by another man: 'I dreamt that my face was dark.' He said: 'Is you wife pregnant?' He said: 'Yes.' He said: 'She will give birth to a female.'

Muslim has narrated on the authority of Anas Ibn Mālik (*raḍiyAllāhu ʿanhu*), that the Messenger of Allāh (ﷺ) said: 'Whoever supports two girls till they attain maturity, he and I will come on the Day of Resurrection like this, and he (ﷺ) joined his fingers illustrating closeness.'[21]

ʿAbdu'l-Razzāq narrates, from Muʿammar, from Al-Zuharī on the authority of ʿUrwah Ibn Al-Zubayr that ʿA'ishah (*raḍiyAllāhu*

[21] Muslim, #2631

ʿanhā) said: 'A woman came to me with her two daughters. She asked me [for charity] but she found nothing with me except one date-fruit, so I gave it to her. She accepted it and then divided it between her two daughters and herself ate nothing out of that. She then got up and went out. When the Messenger of Allāh (ﷺ) came in, and I narrated to him the story, he said: "He who is involved [in the responsibility] of [bringing up] daughters, and he is benevolent towards them, they would become protection for him against Hell-fire."'[22]

It is also narrated from Ibn Al-Mubarak, from Muʿammar, from Al-Zuharī, from ʿAbdullāh Ibn Abū Bakr Ibn Hazm, on the authority of ʿUrwah, which is the correct version.[23]

The ḥadīth is also narrated in *Musnad* Aḥmad.

It also conveys the ḥadīth of Ayyūb Ibn Bashir Al-Anṣārī on the authority of Abū Saʿīd Al-Khudrī (*raḍiyAllāhu ʿanhu*) that the Messenger of Allāh (ﷺ) said: 'Whoever has three daughters, or three sisters, or two daughters, or two sisters and he fears Allāh regarding them and treats them well, then Paradise is for him.'[24]

Al-Ḥumaydī narrates from Sufyān, from Suhayl Ibn Ṣāliḥ, from Ayyūb Ibn Bashir, from Saʿīd Al-Aʿmash on the authority of Abū Saʿīd (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'Whoever has three daughters, or three sisters, or two daughters, or two sisters and he keeps good company with them and fears Allāh regarding them, then he will enter Paradise.'[25]

[22] Aḥmad in his *Musnad*, 6/166 and it is ṣaḥīḥ.
[23] Bukhārī, #1418 and Muslim, #2629
[24] Aḥmad in his *Musnad*, 3/42, 97, Abū Dāwūd, #5157, #5158 and it is ḥasan
[25] Ḥumaydī, #738, Tirmidhī, #1912, Ibn Ḥibbān, #446 and it is weak

Muḥammad Ibn ʿAbdullāh Al-Anṣārī narrates from Ibn Jurayj, from Abū'l-Zubayr, from ʿUmar Ibn Nabhān, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Messenger of Allāh (ﷺ) said: 'Whoever has three daughters, and endures their hardship and their distress will enter Paradise.'[26]

In one narration, a man replied: 'O Messenger of Allāh, what about [he who has] two?' He said: 'Him too.' He said: 'And what about [he who has] one?' He said: 'Him too.'

Al-Bayhaqī said conveying from Aḥmad Ibn Al-Ḥasan, from Al-Aṣamm, from Al-Ḥasan Ibn Makram, from ʿUthmān Ibn ʿAmr, from Al-Nahhās, from Shaddād Abū Ammār, on the authority of ʿAwf Ibn Mālik (*raḍiyAllāhu ʿanhu*) that the Messenger of Allāh (ﷺ) said: 'Whoever has three daughters, on whom he spends until they get married or die, they will shield him from Hell-fire.'[27]

ʿAlī Ibn Al-Madīnī conveys from Yazīd Ibn Zurayʿ, from Al-Nahhās Ibn Qahm, from Shaddād Abū ʿAmmār, on the authority of ʿAwf Ibn Mālik Al-Ashjaʿī, that the Messenger of Allāh (ﷺ) said: 'Any servant [of Allāh] who has three daughters, on whom he spends until they get married or die, they will shield him from Hell-fire.' A woman then asked: 'O Messenger of Allāh, what about [he who has] two?' He said: 'Him as well.'

Abū ʿAmmaar also narrates on the authority of ʿAwf Ibn Mālik (*raḍiyAllāhu ʿanhu*) that the Messenger of Allāh (ﷺ) said: 'I and a woman whose cheeks have become black[28] shall in Paradise be like these two [pointing to the middle and forefinger].'[29]

[26] Aḥmad in his *Musnad*, 2/335 and it is weak

[27] Aḥmad in his *Musnad*, 6/27, 29, Bayhaqī in his *Shuʿub al-Imān*, 6/405-406 and it is weak

[28] A woman of rank and beauty who has been bereft of her husband and devotes herself to her fatherless children till they are married or die

[29] Abū Dāwūd, #5149, Bukhārī in his *Adab al-Mufrad*, #141 and it is weak

Fiṭr Ibn Khalifah narrates from Shurahbīl Ibn Sa'd , on the authority of Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) that the Messenger of Allāh (ﷺ) said: "Any Muslim who has two daughters to whom he is kind as long as they are in each other's company, they will cause him to enter Paradise."[30]

'Abdu'l-Razzāq conveys from Mu'ammar, on the authority of Ibn Al-Munkadir that the Prophet (ﷺ) said: "Whoever has three daughters or three sisters, and provided for them, sheltered them and got them married, will enter Paradise." They said: 'What about [he who has] two.' He said: "Him as well" until they thought that if they asked him, 'What about [he who has] one?' He would respond: "Him as well." The chain of narrators for this ḥadīth is incomplete.[31]

'Abdullāh Ibn Al-Mubārak said: 'Conveying from Ḥarmala Ibn 'Imrān, from Abū 'Ushanah, from 'Uqbah Ibn 'Āmir Al-Juhanī (*raḍiyAllāhu 'anhu*) that the Messenger of Allāh (ﷺ) said: 'Whoever has three daughters and is patient towards them, and feeds them, gives them to drink, and clothes them from his wealth; they will be a shield for him from the Fire on the Day of Resurrection.'[32] It is narrated by Aḥmad in his *Musnad.*

Allāh the Exalted said about women:

فَإِن كَرِهْتُمُوهُنَّ فَعَسَىٰٓ
أَن تَكْرَهُوا۟ شَيْـًٔا وَيَجْعَلَ ٱللَّهُ فِيهِ خَيْرًا كَثِيرًا ﴿١٩﴾

[30] Ibn Abī Shaybah, 8/551, Bukhārī in his *Adab al-Mufrad*, #77 and it is ḥasan
[31] 'Abdu'l-Razzāq, #19697 and it is weak
[32] Aḥmad in his *Musnad*, 4/154, Ibn Mājah, #3669, Bukhārī in his *Adab al-Mufrad*, #76 and it is ṣaḥīḥ.

> "For if you dislike them—perhaps you dislike a thing and Allāh makes therein much good."
>
> [*al-Nisā'* (4):19]

The same applies to daughters as well; there may be good for them in this life and the Hereafter. It is enough to indicate the awfulness of hating them that he who does so hates what Allāh granted him and was satisfied with.

Ṣāliḥ Ibn Aḥmad said "Whenever my father had a female child born, he would say: 'The Prophets were fathers to female children' and would say: 'Allāh and His Messenger said about daughters what you know."

Ya'qūb Ibn Bukhtan said: 'I had seven daughters. Whenever one of them was born, I would enter upon Aḥmad Ibn Ḥanbal, and he would tell me: "O Abū Yūsuf, the Prophets were fathers to female children," and it would drive away my sorrow.' Success is from Allāh.

CHAPTER THREE

Desirability of Bringing Good Tidings to Those Who Receive Children and Congratulating Them

Allāh the Exalted said in the story of Ibrāhīm (*ʿalayhis-salām*):

وَلَقَدْ جَآءَتْ رُسُلُنَآ إِبْرَٰهِيمَ بِٱلْبُشْرَىٰ قَالُوا۟
سَلَٰمًا ۖ قَالَ سَلَٰمٌ ۖ فَمَا لَبِثَ أَن جَآءَ بِعِجْلٍ حَنِيذٍ ﴿٦٩﴾ فَلَمَّا
رَءَآ أَيْدِيَهُمْ لَا تَصِلُ إِلَيْهِ نَكِرَهُمْ وَأَوْجَسَ مِنْهُمْ خِيفَةً ۚ
قَالُوا۟ لَا تَخَفْ إِنَّآ أُرْسِلْنَآ إِلَىٰ قَوْمِ لُوطٍ ﴿٧٠﴾ وَٱمْرَأَتُهُۥ قَآئِمَةٌ
فَضَحِكَتْ فَبَشَّرْنَٰهَا بِإِسْحَٰقَ وَمِن وَرَآءِ إِسْحَٰقَ يَعْقُوبَ ﴿٧١﴾

"And certainly did Our Messengers come to Ibrāhīm with good tidings; they said: "Peace." He said: "Peace" and did not delay in bringing [them] a roasted calf—But when he saw their hands not reaching for it, he distrusted them and felt from them apprehension. They said: "Fear not. We have been sent to the people of Lot."—And his Wife was standing, and she smiled. Then We gave her good tidings of Isḥāq and after Isḥāq,Ya'qūb."

Until He said:

وَبَرَكَٰتُهُۥ عَلَيْكُمْ أَهْلَ ٱلْبَيْتِ ۚ إِنَّهُۥ حَمِيدٌ مَّجِيدٌ ﴿٧٣﴾ فَلَمَّا ذَهَبَ
عَنْ إِبْرَٰهِيمَ ٱلرَّوْعُ وَجَآءَتْهُ ٱلْبُشْرَىٰ يُجَٰدِلُنَا فِى قَوْمِ لُوطٍ ﴿٧٤﴾

"...And when the fright had left Ibrāhīm and the good tidings had reached him, he began to argue with Us concerning the people of Lut."

[*Hūd* (11): 69-74]

He also said:

فَبَشَّرْنَٰهُ بِغُلَٰمٍ حَلِيمٍ ﴿١٠١﴾

"So We gave him good tidings of a forbearing boy."

[*al-Ṣāffāt* (37):101]

And He said:

وَبَشَّرُوهُ بِغُلَٰمٍ عَلِيمٍ

"And gave him good tidings of a learned boy."

[*al-Dhāriyāt* (51): 28]

And He said:

وَنَبِّئْهُمْ عَن ضَيْفِ إِبْرَٰهِيمَ ﴿٥١﴾
إِذْ دَخَلُوا۟ عَلَيْهِ فَقَالُوا۟ سَلَٰمًا ۖ قَالَ إِنَّا مِنكُمْ وَجِلُونَ ﴿٥٢﴾ قَالُوا۟
لَا تَوْجَلْ إِنَّا نُبَشِّرُكَ بِغُلَٰمٍ عَلِيمٍ ﴿٥٣﴾ قَالَ أَبَشَّرْتُمُونِى عَلَىٰٓ أَن
مَّسَّنِىَ ٱلْكِبَرُ فَبِمَ تُبَشِّرُونَ ﴿٥٤﴾ قَالُوا۟ بَشَّرْنَٰكَ بِٱلْحَقِّ
فَلَا تَكُن مِّنَ ٱلْقَٰنِطِينَ ﴿٥٥﴾ قَالَ وَمَن يَقْنَطُ مِن رَّحْمَةِ
رَبِّهِۦٓ إِلَّا ٱلضَّآلُّونَ ﴿٥٦﴾

"And inform them about the guests of Ibrāhīm—When

they entered upon him and said: 'Peace.' [Ibrāhīm] said: 'Indeed, we are fearful of you.'—[The angels] said: 'Fear not. Indeed, we give you good tidings of a learned boy.'—He said: 'Have you given me good tidings although old age has come upon me? Then of what [wonder] do you inform?'—They said: 'We have given you good tidings in truth, so do not be of the despairing.'—He said: 'And who despairs of the mercy of his Lord except for those astray?"

[*al-Ḥijr* (15): 51-56]

Allāh the Exalted also said:

يَٰزَكَرِيَّآ
إِنَّا نُبَشِّرُكَ بِغُلَٰمٍ ٱسْمُهُۥ يَحْيَىٰ لَمْ نَجْعَل لَّهُۥ مِن قَبْلُ سَمِيًّا

"[He was told]: 'O Zakariyyā, indeed We give you good tidings of a boy whose name will be Yaḥyā. We have not assigned to any before [this] name."

[*Maryam* (19): 7]

He, the Exalted, also said:

فَنَادَتْهُ ٱلْمَلَٰٓئِكَةُ وَهُوَ قَآئِمٌ
يُصَلِّى فِى ٱلْمِحْرَابِ أَنَّ ٱللَّهَ يُبَشِّرُكَ بِيَحْيَىٰ مُصَدِّقًۢا

"So the angels called him while he was standing in prayer in the chamber: 'Indeed, Allāh gives you good tidings of Yaḥyā."

[*Āl-'Imrān* (3): 39]

Since the good tidings bring delight and happiness to the person, it is recommended for the Muslim to hurry to bring delight to his brother and inform him of the good news.

When the Prophet (ﷺ) was born, Thuwaybah brought the good tidings to his uncle, Abū Lahab, who was her master. She said: 'Tonight, a boy was born to 'Abdullāh.' He freed her in celebration; Allāh did not let [this action of his] go to waste, and he gave him water to drink, after his death, in the space between his thumb and other fingers.[33]

If one missed the opportunity to bring the good tidings, he should offer congratulations.

The difference is that bringing the glad tidings is informing the Muslim of the good news, while congratulation is to pray for him after knowing the good news.

That is why when Allāh revealed the repentance of Ka'b Ibn Mālik (*raḍiyAllāhu 'anhu*) and his two companions, the news bearer went to him and informed him. Then, when he entered the masjid, people came and congratulated him.[34]

In pre-Islāmic Ignorance, people used to say in marriage congratulation: 'With harmony and boys.'[35]

Harmony, means: 'May your marriage bring you concord and harmony.'

Children: They congratulate for the birth of male children in advance.

A person should not congratulate for the birth of male-children

[33] Bukhārī, 9/140
[34] Bukhārī, #4418 and Muslim, #2769
[35] Nasā'ī, 6/128, Ibn Mājah, 1/614, Dāramī, 2/134 and others.

only and ignore females. He should either congratulate for them both or leave them both, in order to avoid the tradition of the pre-Islāmic Ignorance, since many of them used to congratulate for the birth of a boy and the death of a girl, rather than her birth.

Abū Bakr Al-Mundhir says in *'Al-Awsaṭ'*: It is narrated from Al-Ḥasan Al-Baṣrī that a man entered upon him when another man who had just received a son. He told him: 'Congratulations on [the birth of] the knight.' Al-Ḥasan told him: 'How do you know whether he is a horseman or a donkey-man?' He said: 'What should we say, then?' He said, 'Say: May the gift [you received] be blessed for you, may you be grateful to the Granter, may he or she attain their full strength, and may you enjoy their kindness.'[36]

Allāh knows best.

[36] Ṭabarānī, 2/1243-1244, it is ḥasan and mawqūf to Ḥasan al-Baṣrī.

CHAPTER FOUR

Desirability of Uttering the *Adhān* in the Child's Right Ear, and the *Iqāmah* in his Left Ear

In this regard, there are several traditions:

First: As narrated by Abū ʿAbdullāh Al-Ḥākim from Abū Jaʿfar Muḥammad Ibn Duhaym, from Muḥammad Ibn Ḥāzim Ibn Abū Gharzah, from ʿUbaydullāh Ibn Mūsā, from Sufyān Ibn Saʿīd Al-Thawrī, from ʿĀṣim Ibn ʿUbaydullāh Ibn Rāfiʿ from his father that he said: 'I saw the Messenger of Allāh (ﷺ) uttering the call to prayer (*adhān*) in the ear of Al-Ḥasan Ibn ʿAlī when Fāṭimah gave birth to him.'[37]

Narrated by Abū Dāwūd and Al-Tirmidhī, who said it is a ṣaḥīḥ ḥadīth.

Second: As narrated by Al-Bayhaqī in *'Al-Shuʿab'* on the authority Al-Ḥusayn Ibn ʿAlī (*raḍiyAllāhu ʿanhumā*) that the Prophet (ﷺ) said: 'Whoever begets a child and utters the *adhān* in his right ear and the *iqāmah* in his left ear, the Jinn-companion is driven away

[37] Abū Dāwūd, #5150, Tirmidhī, #1514, Aḥmad, 6/9, 362, 391 and it is weak

from him [the child].'[38]

Third: What he also narrated from Abū Sa'īd, on the authority of Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) that the Prophet (ﷺ) uttered the *adhān* in the right ear of Al-Ḥasan Ibn 'Alī and the *iqāmah* in his left ear on the day he was born. Al-Bayhaqī said that the chains of narrators for both ḥadīths are week.[39]

The reason behind uttering the *adhān*, which Allāh knows best, is to make the first thing a person hears in its words, the glory and might of Allāh, and the creed of Islām which is its first deed. It is as though he or she is inspired by the creed of Islām upon entering this life, just as he or she is inspired by it upon his departure from it.

It is not improbable for the effect of the *adhān* to reach the child's heart and influence it, even if he or she does not feel it at the time. Another benefit of such an act is to repel Satan away with the *adhān's* words; he is waiting for the child to be born in order to accompany him or her throughout the trial, which Allāh had decreed and willed. Therefore, Satan hears what weakens and frustrates him at the first moments of his company.

Another meaning that it entails is to make the invitation to Allāh, His religion of Islām and His worship preceding to the invitation of Satan, just as the nature upon which Allāh created him or her was preceding to Satan's alteration, in addition to other reasons. Allāh knows best.

[38] Abū Ya'lā in his *Musnad*, #6780, Ibn 'Adī in *Kāmil*, 7/2656, al-Bayhaqī in his *Shu'ab al-Imān*, #8619, however it is not established tradition from the Prophet (ﷺ) and therefore should not be attributed to him.

[39] al-Bayhaqī in his *Shu'ab al-Imān*, #8620, however it is also not established tradition from the Prophet (ﷺ) and therefore should not be attributed to him.

CHAPTER FIVE

Desirability of *Taḥnīk*[40]

In both Al-Bukhārī and Muslim, narrated on the authority of Abū Burdah, that Abū Mūsā (*raḍiyAllāhu ʿanhu*) said: 'My wife gave birth to a boy, so I took him to the Prophet (ﷺ), who named him Ibrāhīm and performed *taḥnīk* on him with a date fruit.'

In Al-Bukhārī's version, he added: 'He prayed for him to be blessed, and then gave him back to me'. He was the eldest of Abū Mūsā's children.[41]

Also in both Al-Bukhārī and Muslim, that Anas Ibn Mālik (*raḍiyAllāhu ʿanhu*) said: 'The son of Abū Ṭalḥah had been ailing. Abū Ṭalḥah set out on a journey and his son breathed his last [in his absence]. When Abū Ṭalḥah came back, he said [to his wife Umm Sulaym]: "How is my child?" Umm Sulaym said: "He is now in a more comfortable state than before." She served him dinner and he ate. He then came to her [and had sexual intercourse with her] and when it was all over, she said: "Make arrangements for

[40] *Taḥnīk*: Slightly rubbing a softened date fruit and then rubbing the inside of the newborn's palate with it.

[41] Bukhārī, #5467 and Muslim, #2145

the burial of the child." When it was morning, Abū Ṭalḥah came to Allāh's Messenger (ﷺ) and informed him, whereupon he said: "Did you spend the night with her." He said: "Yes." He then said: "O Allāh, bless both of them." She [later] gave birth to a child. Abū Ṭalḥah told me [Anas] to take the child, [so I took him] and came to Allāh's Messenger (ﷺ). Umm Sulaym also had sent some dates [along with the child]. Allāh's Prophet (ﷺ) took him [the child in his lap] and said: "Is there anything with you [for *taḥnīk*]?" They [the Companions] said: "Yes." Allāh's Prophet (ﷺ) took hold of them and chewed them. He then put them [the chewed dates] in the mouth of the child and then rubbed his palate and gave him the name of ʿAbdullāh.'[42]

Abū Usāmah narrates from Hisham Ibn ʿUrwah, on the authority of Asmā' (*raḍiyAllāhu ʿanhā*) that she was pregnant with ʿAbdullāh Ibn Al-Zubayr (*raḍiyAllāhu ʿanhumā*) in Makkah. She said: 'I set out [for migration to Madīnah] as I was in the advanced stage of pregnancy. I came to Madīnah and got down at the place known as Qubā' and gave birth to a child there. Then I came to Allāh's Messenger (ﷺ). He placed him [the child] in his lap and then asked for dates. He chewed them and then put the saliva in his mouth. The first thing which went into his stomach was the saliva of Allāh's Messenger (ﷺ). He then rubbed his palate with dates and then invoked blessings for him and blessed him. He was the first child who was born in Islām [after migration], therefore they [Muslims] were very happy with his birth, for it had been said to them that the Jews had bewitched them, and so they would not produce any offspring.'[43]

Al-Khallāl conveys from Muḥammad Ibn ʿAlī that he heard the

[42] Bukhārī, #5470 and Muslim, #2144
[43] Bukhārī, #5469 and Muslim, #2146

slave woman[44] of [Imām] Aḥmad Ibn Ḥanbal say: 'When I went into labour, my master was asleep, so I told him: "O Master! I am dying." He merely said: "Allāh will ease [the hardship]." As soon as he said it, I gave birth to Sa'īd. Then, he said: "Bring us those dates [talking about dates that were brought to us from Makkah]." I said to Umm 'Alī: "Chew those dates and perform *taḥnīk* on him and she did."'

Allāh knows best.

[44] Until she gave birth to his child.

CHAPTER SIX

ʿAqīqah and its Requirements

This [chapter] consists of twenty-two sections.

Section 1: Clarifying its legality.

Section 2: The argument of those who discourage it.

Section 3: The evidence of its desirability.

Section 4: Responding to the arguments of those who discourage it.

Section 5: Derivation of its name.

Section 6: Is it disapproved to call it *ʿaqīqah*?

Section 7: The debate over its obligation, and the arguments of each side.

Section 8: The recommended time for it.

Section 9: Indicating that it is better than donating an equivalent amount for charity.

Section 10: Differentiation of males and females with regards to it.

Section 11: The purpose, legality and benefits of *ʿaqīqah* and reviving the Sunnah of the Messenger (ﷺ).

Section 12: Indicating that cooking it is better than donating it as raw meat.

Section 13: Disapproval of breaking its bones.

Section 14: The minimum acceptable age of the *ʿaqīqah*

animal.

Section 15: Clarifying that it is one *ʿaqīqah* per person, seven people cannot participate in a cow or a camel (unlike the *uḍḥīyah*).

Section 16: Is *ʿaqīqah* acceptable with something other than sheep, like cows and camels?

Section 17: Clarifying its recipients; what can be donated and what can be given as a gift, and the desirability of giving a part of it to the delivering doctor/nurse/midwife.

Section 18: Requirements upon the simultaneous arrival of the *ʿaqīqah* and *uḍḥīyah*; does one of them do away with the other?

Section 19: Requirements of those whose parents did not perform *ʿaqīqah*, should they perform it for themselves after maturity?

Section 20: Requirements of the *ʿaqīqah*'s skin and offal; can they be sold or are they treated the same as in the *uḍḥīyah*?

Section 21: What should be said when slaughtering the *ʿaqīqah*.

Section 22: The reason why it should be performed on the 7th, 14th or 21st day [of birth].

Section One:
Clarifying its Legality

[Imām] Mālik said: 'This is a matter over which there is no debate among us [the jurists].'[45]

Yaḥyā Ibn Saʿīd Al-Anṣārī said: 'During my time among people, they never missed out on performing *ʿaqīqah*, whether for the boy or the girl.'

[45] Imām Mālik in his *Al-Muwaṭṭā'*, 2/502

Ibn Al-Mundhir said: 'This is a tradition in Hijāz, both in the past and the present, and it is used by scholars. Mālik said that there is no debate among them [over the legality of *'aqīqah*].'

Among those who believe in its legality are 'Abdullāh Ibn 'Abbās (*radiyAllāhu 'anhumā*), 'Abdullāh Ibn 'Umar (*radiyAllāhu 'anhumā*), and 'A'ishah (*radiyAllāhu 'anhā*).

It was also narrated from Fāṭimah (*radiyAllāhu 'anhā*) [daughter of the Prophet (ﷺ)], Buraydah Al-Aslamī, Al-Qāsim Ibn Muḥammad, 'Urwah Ibn Al-Zubayr, 'Aṭā' Ibn Abī Rabah, Al-Zuharī and Abū'l-Zinād.

This is also the view of Mālik, people of Madīnah, Al-Shāfi'ī and his followers, Aḥmad, Isḥāq, Abū Thawr, and numerous other scholars, all of whom are following, in this regard, the Sunnah of the Prophet (ﷺ). If something was confirmed to be the Sunnah of the Prophet (ﷺ), then it must be accepted as the correct view, and it is not undermined by those who oppose it.

People of Opinion (*ahlu'l-ra'i*)[46] have denied that the *'aqīqah* is Sunnah, and they have hence disagreed with the confirmed reports from the Prophet (ﷺ), his Companions and their followers who were reported to perform it.

Section Two:
The Argument of Those Who Discourage It

They say: 'Amr Ibn Shu'ayb narrated from his father, from his grandfather, that the Messenger of Allāh (ﷺ) was asked about

[46] It refers to some followers of the Hanafi School of Jurisprudence, since they gave precedence to the jurist's opinion over less-common ḥadīths, as opposed to *'People of ḥadith'*, which refers to all the other major schools of Jurisprudence.

ʿaqīqah.' He said: 'I do not like disobedience (*ʿuqūq*).'[47, 48]

They also said it is due to the fact that it was the tradition of *Ahlu'l-Kitāb*.[49] The Prophet (ﷺ) said: "The Jews used to perform ʿaqīqah for the newborn boy, but not for the newborn girl." It is narrated by Al-Bayhaqī.[50]

They said: It was among the kinds of animal sacrifice that was done in the pre-Islāmic Ignorance, and that Islām abolished it, just like *ʿatirah*[51] and *fara*ʿ.[52]

They said: Imām Aḥmad narrated from Abū Rāfiʿ that when Al-Ḥasan Ibn ʿAlī was born, his mother Fāṭimah (*raḍiyAllāhu ʿanhum*) wanted to sacrifice two sheep as an *ʿaqīqah* for him, but the Messenger of Allāh (ﷺ) said: "Do not perform *ʿaqīqah*, but shave his head, then donate the weight of the hair in *dirhams*."[53] Then, when Al-Ḥusayn was born, she did that too.

Section Three:
Evidence of its Desirability

As for all people of ḥadīth (*ahu'l-ḥadīth*), the jurists (*fuqahā'*) and the majority of scholars (*ahlu'l-ʿilm*), have said: 'It [the *ʿaqīqah*] is of the Sunnah of the Messenger of Allāh (ﷺ).'

[47] The rest of the ḥadīth says, "as if he disliked the name."

[48] Abū Dāwūd, #2842, Nasā'ī, 7/162-164, Aḥmad, 2/182, 194 and it is ṣaḥīḥ

[49] It mainly refers to Jews and Christians.

[50] Bazzār, 2/72/1233, Bayhaqī, 9/301-302 and it is weak.

[51] *Al-ʿAtirah*: A sheep that was sacrificed for the idols in the month of Rajab, during the pre-Islāmic Ignorance.

[52] *Al-Fara*ʿ: The first baby for the she-camel, they used to sacrifice it for their gods and seek the blessing from that act.

[53] Aḥmad in his *Musnad*, 6/390-392, Ṭabarānī in his *al-Kabīr*, #917, #6568, Bayhaqī, 9/304 and it is ḥasan

Their evidence includes the ḥadīth narrated by Al-Bukhārī on the authority of Salmān Ibn ʿĀmir Al-Ḍabbī (*raḍiyAllāhu ʿanhu*) that the Messenger of Allāh (ﷺ) said: 'Along with a boy there is an *ʿaqīqah*, so shed blood on his behalf, and remove harm [hair] from him.'[54]

Samrah (*raḍiyAllāhu ʿanhu*) narrated that the Messenger of Allāh (ﷺ) said: 'A boy is in pledge for his *ʿaqīqah*. Sacrifice is made for him on the seventh day, his head is shaved and he is given name therein.'[55] Narrated by the Sunans[56] and Tirmidhī said this ḥadīth is ḥasan ṣaḥīḥ.

'A'ishah (*raḍiyAllāhu ʿanhā*) narrates that the Messenger of Allāh (ﷺ) said: 'For a boy, two sheep equal in age [to him are to be slaughtered], and for a girl, one sheep.'[57]

In another version, she (*raḍiyAllāhu ʿanhā*) said: 'Allāh's Messenger (ﷺ) commanded us to slaughter two sheep equal [in age] for a boy and one for a girl at their birth.'

Umm Karz Al-Kaʿbiyah (*raḍiyAllāhu ʿanhu*) said that she asked the Messenger of Allāh (ﷺ) about the *ʿaqīqah*, and he said: 'For the boy is two sheep, and for the girl is one, it will not matter whether they [the sheep] are male or female.'[58] It is narrated by Imām Aḥmad and Al-Tirmidhī, who said it is a ṣaḥīḥ ḥadīth.

Al-Ḍaḥḥāk Ibn Makhlad said, conveying from Abū Ḥafṣ Salim Ibn Tamīm, from his father, from ʿAbdu'l-Raḥmān Al-Aʿraj, on

[54] Bukhārī, #5472

[55] Abū Dāwūd, #2838, Tirmidhī, #1522, Nasā'ī, 7/166, Ibn Mājah, #3165 and it is ṣaḥīḥ

[56] Refering to the following major ḥadīth books: *'Sunan Abū Dāwūd'*, *'Sunan Al-Tirmidhī'*, *'Sunan Al-Nasā'ī'*, *'Sunan Ibn Mājah'*.

[57] Tirmidhī, #1513, Ibn Mājah, #3165

[58] Abū Dāwūd, #2834, 2836, Tirmidhī, 1516, Nasā'ī, 7/165, Ibn Mājah, #3162

the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'The Jews perform *ʿaqīqah* for the boy, but not for the girl. Therefore, sacrifice two sheep for the boy, and one for the girl.'[59] It is narrated by Al-Bayhaqī.

Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) narrates that the Messenger of Allāh (ﷺ) sacrificed two rams for both Al-Ḥasan and Al-Ḥusayn, one for each.[60] It is narrated by Abū Dāwūd and Al-Nasā'ī, but Al-Nasā'ī's version says: 'two rams each.'

Amr Ibn Shuʿayb narrates from his father, from his grandfather, that the Messenger of Allāh (ﷺ) commanded to name the newborn on his seventh day, remove hair from him and perform *ʿaqīqah*."[61] Al-Tirmidhī said: 'This ḥadīth is ḥasan gharīb.'[62]

Buraydah Al-Aslamī said: 'During the pre-Islāmic Ignorance, when a boy was born to one of us, he would sacrifice a sheep and smear his head with its blood. Then, after Allāh brought Islām to us, we would sacrifice a sheep, shave the newborn's head, and smear him/her with saffron.' It is narrated by Abū Dāwūd.[63]

Ibn Al-Mundhir narrates from Yaḥyā Ibn Yaḥyā, from Hashim, from Ubaynah Ibn 'Abdu'l-Raḥmān, from his father, that Abū Bakrah had a son, 'Abdu'l-Raḥmān', born to him, and he was the first newborn in Baṣrah. He sacrificed a camel and fed it to the people of Baṣrah. Some of them disapproved of this and said: 'The Messenger of Allāh (ﷺ) ordered two sheep to be sacrificed for the boy and one for the girl.'[64]

[59] Bazzār, 2/72/1233, Bayhaqī, 9/301-302 and it is weak.
[60] Abū Dāwūd, #2834
[61] Tirmidhī, #2832 and it is ḥasan
[62] It means that although this ḥadīth is correct, it is narrated by one chain of narrators only.
[63] Abū Dāwūd, 9/615-616
[64] See *al-Ishrāf* of Ibn Mundhir, 3/416

Al-Ḥasan Ibn Samrah narrates that the Prophet (ﷺ) said about the *ʿaqīqah*: 'Every boy is mortgaged by his *ʿaqīqah*, so slaughter for him on the seventh day, and shave his head, and smear it [with the *ʿaqīqah*'s blood].'[65]

Abū Dāwūd says: 'When Qatādah was asked about the blood [of the *ʿaqīqah*] and what should be done with it, he would say: 'If the *ʿaqīqah* is slaughtered, a piece of its wool is taken from it and placed on its neck veins, then placed on the boy's head until a stream of blood as thin as a string flows on his head. His head is then washed and shaved.'"[66]

Abū Dāwūd says, And that is a mistake by Hammām Ibn Yaḥyā, referring to 'and smear it with the [*'aqīqah*'s blood]'[67], then he referred to another version of the ḥadīth that says: 'Every boy is mortgaged by his *ʿaqīqah*, so slaughter for him on the seventh day, and shave his head, and name him.'

Abū Dāwūd says: "and name him" is more correct. It is narrated by Al-Tirmidhī, Al-Nasā'ī and Ibn Mājah; Al-Tirmidhī said: 'This ḥadīth is ṣaḥīḥ.'

Al-Ḥasan had heard this ḥadīth from Samurah; Al-Bukhārī mentioned in his Ṣaḥīḥ,[68] conveying from Ḥabīb Ibn Al-Shahīd that he said: Ibn Sīrīn told me: 'Ask Al-Ḥasan from whom he heard the *ʿaqīqah*'s ḥadīth.' So, I asked him and he said: 'From Samurah Ibn Jundub.'

[65] Abū Dāwūd, #2838, Tirmidhī, #1522, Nasā'ī, 7/166, Ibn Mājah, #3165 and it is saḥīḥ
[66] Abū Dāwūd, 9/608-609, Ibn Mājah, #3156
[67] The phrase written in italic in the previous ḥadīth.
[68] Bukhārī, 9/590

Al-Bayhaqī conveyed from Sulaymān Ibn Shurahbīl, that Yaḥyā Ibn Ḥamzah said to ʿAṭā' Al-Khorasānī: 'What does 'mortgaged by his *ʿaqīqah*' mean?' He said: 'He will be deprived of his son's intercession.'[69]

Isḥāq Ibn Hānī' said: "I asked Abū ʿAbdullāh [Imām Aḥmad] about the saying of the Prophet (ﷺ), 'mortgaged by his *ʿaqīqah*' and what it means. He said: 'Yes, it is the Sunnah of the Prophet (ﷺ) to sacrifice two sheep for the boy and one for the girl. If the parent does not, the child will be restrained by his *ʿaqīqah*, until it is sacrificed for him.'"[70]

Al-Athram conveys from Abū ʿAbdullāh that he said: 'There is no ḥadīth clearer [in the *ʿaqīqah*'s regard] than, "Every boy is mortgaged by his *ʿaqīqah*."'

Yaqʿūb Ibn Bukhtān also said that Abū ʿAbdullāh was asked about the *ʿaqīqah*, and he said: "I know nothing stronger in that regard than this ḥadīth: "Every boy is mortgaged by his *ʿaqīqah*."

Ḥanbal said that Abū ʿAbdullāh said: 'I do not wish for anyone, who is [financially] capable, to not sacrifice for his child, because the Prophet (ﷺ) said: "Every boy is mortgaged by his *ʿaqīqah*, " which is the strongest ḥadīth narrated in that regard. The Prophet (ﷺ) only hated the name (*ʿaqīqah*), but he has performed the sacrifice.'

Aḥmad Ibn Al-Qāsim said that Abū ʿAbdullāh was asked: "Is the *ʿaqīqah* obligatory?" He said: 'I do not know if it is obligatory; I cannot say "obligatory." Then he added: 'The strongest saying

[69] Bayhaqī, 9/299

[70] See *Masā'il Imām Aḥmad*, 2/130

regarding it is that the boy is mortgaged by his *'aqīqah*."

Aḥmad had said in another context: 'mortgaged/restrained from intercession for his parents.'

As for the phrase: "And smear it with the [*'aqīqah*'s blood]," it was debated. It was narrated by Hammām Ibn Yaḥyā from Qatādah, and Qatādah has interpreted it as mentioned above.

However, he was opposed by the majority of scholars, who said that this [smearing the child's head with the blood] is of the acts of pre-Islāmic Ignorance. That deed was hated by Al-Zuhrī, Mālik, Al-Shāfi'ī, Aḥmad and Isḥāq.

[Imām] Aḥmad said: 'I hate smearing the child's head with the blood; this is of the acts of pre-Islāmic Ignorance.'

'Abdullāh Ibn Aḥmad said: 'I asked my father about the *'aqīqah*; after it is sacrificed, should we smear with its blood the head of the boy/girl?' My father said: 'No.'

Al-Khallāl conveyed from Al-'Abbās Ibn Aḥmad that Abū 'Abdullāh was asked about smearing the child's head with the blood, he said: 'I do not approve of it; it is of the acts of pre-Islāmic Ignorance.' He was told: 'Hammām narrated "And smear it with the [*'aqīqah*'s blood]."' Abū 'Abdullāh mentioned another narrator who said, 'And name him' then said: 'I do not approve of Hammām's narration in this regard.'

Aḥmad Ibn Hashim Al-Antakī said, conveying from Aḥmad: 'Hammām and Sa'īd conveyed differently about the *'aqīqah*; one said 'smear his head' while the other said 'bleed him'.

There is another narration from Aḥmad that smearing is Sunnah. Al-Khallāl conveyed from Usmah Ibn 'Isam that Ḥanbal[71] said: 'Did you hear Abū 'Abdullāh's view about smearing the child's head with the blood? That is Sunnah.'

However, his teachings that were reported by all his students are that such an act is hated.

Al-Khallāl also conveyed from 'Usmāh Ibn 'Isām in another instance that Aḥmad Ibn Ḥanbal said: "Did you hear Abū 'Abdullāh's view about shaving the child's head?"

Muḥammad Ibn 'Alī also narrated from Ṣāliḥ, and Aḥmad Ibn Muḥammad Ibn Ḥazim narrated from Isḥāq, both of which are conveying from Abū 'Abdullāh that he said: 'The blood-smearing is hated; it was only reported in Samura's ḥadīth.'

Muḥammad Ibn Al-Ḥusayn reports that Al-Faḍl said to Abū 'Abdullāh: 'Should his head be shaved?' He said: 'Yes.' He said: 'Should it be smeared with the blood?' He said 'No, that is of the acts of pre-Islāmic Ignorance.' Al-Faḍl said: 'What about the ḥadīth narrated by Qatādah from Al-Ḥasan, it says 'smear his head with the ['*aqīqah*'s blood]?' He said: 'Hammām narrates it as 'smear his head', but Sa'īd narrates it as 'name him.'

In the narration of Al-Athram, 'Abū 'Arūba narrates it as name him, and Hammām narrates it as smear his head; and I believe the latter to be wrong.'

Abū 'Abdullāh Ibn Mājah reports in his Sunan from Ya'qūb Ibn Ḥumayd Ibn Kāsib, from 'Abdullāh Ibn Wahb, from 'Amr Ibn Al-

[71] Ḥanbal Ibn Isḥāq is the cousin and student of Imām Aḥmad Ibn Ḥanbal

Ḥārith, from Ayyūb Ibn Mūsā , from Yazīd Ibn ʿAbdu'l-Muznī that the Prophet (ﷺ) said: 'Offer sacrifice for the child, but do not smear his/her head with the blood.'[72]

We have already mentioned Buraydah's ḥadīth: 'In the pre-Islāmic Ignorance, when one of us had a child born, he used to sacrifice a sheep and smear the child's head with it. But after Islām, we sacrifice the sheep, shave the child's head, and smear it with saffron.'[73]

Al-Bayhaqī and others convey from Yaḥyā Ibn Saʿīd, from ʿAmrah from ʿA'ishah (*raḍiyAllāhu ʿanhā*) that she said: 'In pre-Islāmic Ignorance, people used to put a piece of cotton in the *ʿaqīqah*'s blood and place it on the child's head. Then, the Prophet (ﷺ) commanded to put perfume in place of that blood.'[74]

Ibn Al-Mundhir said: 'It was confirmed that the Prophet (ﷺ) said, "Shed blood on his behalf, and remove harm from him". If the Prophet (ﷺ) commanded us to remove harm from the child, and blood is harm, and a great one at that, therefore, it is not permitted to besmear his head with the blood.'

Section Four:
Responding to the Arguments of Those Who Discourage It

Imām Aḥmad, as narrated by Ḥanbal, said when he heard that some of those who discourage the *ʿaqīqah* claimed that it is of the pre-Islāmic Ignorance acts: 'That is due to their lack of knowledge. The Prophet (ﷺ) performed it for Al-Ḥasan and Al-Ḥusayn, but

[72] Ibn Mājah, #3166 and it is ṣaḥīḥ
[73] Reference already mentioned
[74] Reference already mentioned

these people claim it is of the pre-Islāmic Ignorance acts? The *ʿaqīqah* is Sunnah from the Messenger of Allāh (ﷺ), who said: 'Every boy is mortgaged by his *ʿaqīqah*, which has a good chain of narrators, for it is narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) from the Prophet (ﷺ).'"

He also said, as narrated by Al-Athram: 'With regards to the *ʿaqīqah*, there are ḥadīths from the Prophet (ﷺ), and reports from his Companions and their followers, while those people claim it is of the pre-Islāmic Ignorance acts?' And he smiled in astonishment.[75]

Al-Mamūnī said: 'I asked Abū ʿAbdullāh, 'Was something authentic narrated from the Prophet (ﷺ) with regards to *ʿaqīqah*?' He said: 'Yes, by Allāh. More than one ḥadīth were narrated in which the Prophet (ﷺ) said, "Two sheep for the boy and one for the girl."'"[76]

I asked him: 'Then what about these ḥadīths which oppose that?' He said: 'They are nothing; they are not to be cared for.'

As for the ḥadīth narrated by ʿAmr Ibn Shuʿayb from his father, from his grandfather that the Messenger of Allāh (ﷺ) said: 'I do not like disobedience (*ʿuqūq*).'[77] The context of the ḥadīth is an argument for encouraging the *ʿaqīqah*. The ḥadīth says, the Messenger of Allāh (ﷺ) was asked about the *ʿaqīqah*. He said: 'I do not like disobedience (*ʿuqūq*).' As if he disliked the name. People said: 'But one of us may offer a sacrifice when a child is born to him.' He said: 'Whoever wants to offer a sacrifice for his child, let him do so, for a boy; two sheep, [of equal age], and for a girl, one.' As for the ḥadīth of Abū Rāfiʿ, it is not correct.[78]

[75] See *al-Mughnī* of Ibn Qudāmah, 13/395
[76] See *al-Masāʾil Imām Aḥmad* of Abū Yaʿlā, p.55
[77] Reference already mentioned

Imām Aḥmad said about the ḥadīths opposing *ʿaqīqah*: 'They are nothing; they are not to be cared for.'

There are many ḥadīths which state that the Prophet (ﷺ) sacrificed for Al-Ḥasan and Al-Ḥusayn. Ayyūb narrated from 'Ikrimah, on the authority Ibn 'Abbās (*raḍiyAllāhu ʿanhumā*) that the Messenger of Allāh (ﷺ) sacrificed a ram for both Al-Ḥasan and al-Ḥusayn each.[79] It is narrated by Abū Dāwūd.

Jarir Ibn Hazim narrated from Qatādah from on the authority Anas [Ibn Mālik] (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) sacrificed two rams for Al-Ḥasan and Al-Ḥusayn.[80]

Yaḥyā Ibn Sa'īd narrates from 'Amrah on the authority 'A'ishah (*raḍiyAllāhu ʿanhā*) that she said: 'The Messenger of Allāh (ﷺ) performed *ʿaqīqah* for Al-Ḥasan and Al-Ḥusayn on the seventh day [of their birth].'[81]

If it was proven true that he (ﷺ) said [to Fāṭimah (*raḍiyAllāhu ʿanhā*)]: 'Do not sacrifice' that is not evidence against *ʿaqīqah*, but rather he wanted to undertake it himself. He said to her: 'Do not sacrifice' then himself sacrificed and relieved her of that burden.

As for their argument that the *ʿaqīqah* is a tradition of People of the Book, their tradition was to perform it exclusively for the male children without the females, as the ḥadīth indicates. It says: 'The Jews sacrifice two sheep for the boy, and do not sacrifice for

[78] Reference already mentioned
[79] Reference already mentioned
[80] Ibn Abī Shaybah, in his *Musnad*, #6540, Ṭabarānī, #1878 and it is ḥasan
[81] Abū Ya'lā in his *Musnad*, #4521 and it is ḥasan

the girl. Therefore, sacrifice two sheep for the boy and one for the girl.'[82]

Section Five:
Derivation of Its Name

Abū 'Umar said: 'The word *'aqīqah*, it was narrated by Abū 'Ubayd from Al-Aṣma'ī and others that it is derived from the hair on the newborn's head. The lamb that is sacrificed for him is called *'aqīqah*, because that hair is shaved from their head after the sacrifice. That is why that ḥadīth said: '...and remove harm from him' referring to the hair.

Abū 'Ubayd said: 'This falls under what I had said to you, that people may name something after something else, if it was associated with it or caused by it. The lamb was named *'aqīqah* after the hair. Similarly for every newborn animal, the hair on it when it is born is called *'aqīqah* and *'aqqah*.'[83]

Abū 'Ubayd said: 'The *'aqīqah* and *'aqqah* are used for humans and donkeys; they were not used for anything else.'

However, Imām Aḥmad has rejected this interpretation of *'aqīqah* by Abū 'Ubayd, Al-Aṣma'ī and others. He said: 'The *'aqīqah* is the actual process of slaughtering.' He added: 'What Abū 'Ubayd said is not correct at all.'

Abū 'Umar said: 'Some of the later scholars have supported [Imām] Aḥmad's view by saying that it is commonly known in the

[82] Reference already mentioned

[83] The narrator cites several verses of poetry to make his point, but I will skip them because they are extremely difficult to translate and irrelevant to the non-Arabic-speaking reader.

language, because *ʿaqīqah* is derived from the verb 'to cut,' from which the word *ʿuquq al-walidayn* (disobedience of parents) is also derived, because it means separating oneself from them.'[84]

Abū 'Umar said: 'Aḥmad's view in the linguistic meaning of *ʿaqīqah* is better and more correct than Abū 'Ubayd.' Allāh knows best.

Al-Jawharī said: '*ʿAqīqah* means to sacrifice for the child on the seventh day, and also to shave his *ʿaqīqah* hair.'

Therefore, he gave both meanings to the *ʿaqīqah*, which is more correct. Allāh knows best.

As for the ḥadīth, 'I do not like disobedience (*ʿuqūq*): it outlines that hatred of repellent names. The Prophet (ﷺ) was very sensitive to that, so much so that he used to change ugly names to better ones, and avoid stopping in places with ugly names and passing between mountains with ugly names. He loved beautiful names and good omens.'

In *Al-Muwaṭṭā'*, it is narrated that the Messenger of Allāh (ﷺ) asked about a she-camel about to be milked: 'Who will milk this camel?' A man stood up. The Messenger of Allāh (ﷺ) said: 'What is your name?' The man said: '*Murrah* (bitterness).' The Messenger of Allāh (ﷺ) said to him: 'Sit down.' Then he said: 'Who will milk this one?' A man stood up and the Messenger of Allāh (ﷺ) said: 'What is your name?' He said: '*Ḥarb* (war).' The Messenger of Allāh (ﷺ) said: 'Sit down.' Then he said: 'Who will milk this camel?' A man stood up, and the Messenger of Allāh (ﷺ) said to him: 'What is your name?' The man said: '*Yaish* (he lives).' The

[84] Same as above

Messenger of Allāh (ﷺ) said to him: 'Milk!' It is narrated in *al-Muwaṭṭā'* in mursal form.[85]

Another version was narrated by Ibn Wahb in his *Al-Jāmi'*, Ibn Luhay'ah told me, conveying from Al-Ḥārith Ibn Yazīd, from Abdu'l-Raḥmān Ibn Jubayr, from Ya'ish al-Ghifarī (*raḍiyAllāhu 'anhu*), that the Prophet (ﷺ) asked one day for a she-camel, and said: 'Who will milk this camel?' A man stood up. The Messenger of Allāh (ﷺ) said: 'What is your name?' The man said: '*Murrah* (bitterness).' The Messenger of Allāh (ﷺ) said to him: 'Sit down.' Then he said: 'Who will milk this one?' A man stood up and the Messenger of Allāh (ﷺ) said: 'What is your name?' He said: '*Jamrah* (live coal).' The Messenger of Allāh (ﷺ) said: 'Sit down.' Then he said: 'Who will milk this camel?' A man stood up, and the Messenger of Allāh (ﷺ) said to him: 'What is your name?' The man said: '*Ya'ish* (he lives).' The Messenger of Allāh (ﷺ) said to him: 'Milk it!'[86]

Abū 'Umar said: 'This is to seek good omens; it is not pessimism.'[87]

I have another view in that regards: Names and meanings have a relation and correlation, which is not the case. Words and names are vessels for meanings.[88]

An ugly name indicates an ugly meaning, just as an ugly face indicates an ugly inside.

That is why, and Allāh knows best, 'Umar Ibn Al-Khaṭṭāb

[85] Imām Mālik in his *Al-Muwaṭṭā'*, 2/973 and it is *ṣaḥīḥ li-ghayrihī.*

[86] Al-Jāmi' of Ibn Wahb 2/742 no. #654

[87] See Istidhkār, 27/234/40941

[88] The author cites verses of poetry to make his point, but I will skip them as explained before.

(*raḍiyAllāhu ʿanhu*) said what Mālik narrated, when he asked a man: 'What is your name?' He said: '*Jamrah* (live coal).' He said: 'Who is your father?' He said: '*Shihāb* (meteor).' He asked: 'Where do you come from?' He said: '*Al-Ḥaraqah* (the heat).' He asked: 'Where do you live?' He said: '*Ḥarrat al-Nār* (the volcanic stone of fire region).' He said: 'Where therein?' He said: 'In *Dhāt al- Laẓa* (the land of Hell).' 'Umar (*raḍiyAllāhu ʿanhu*) said: 'Go and find your family, for they have burned.' And he found them as 'Umar (*raḍiyAllāhu ʿanhu*) said.[89]

Ibn Abī Khaythamah narrated from Buraydah that he said: 'The Messenger of Allāh (ﷺ) never took ill omens.' Once, Buraydah took off in a caravan of seventy members of his family, of the Aslam tribe. He met the Prophet (ﷺ) at night, who asked him: 'Who are you?' He said: 'I am *Buraydah* (cool).' The Prophet (ﷺ) turned to Abū Bakr and said: 'O Abū Bakr, our affairs have become cool and reformed.' Then he asked: 'Where are you from?' He said: 'From the *Aslam* (to make safe) tribe.' He said to Abū Bakr: 'Now, we have become safe.' Then he said: 'From which family?' He said: 'From *Ṣahm* (Arrow) family.' He said: 'May your arrows get launched.'[90]

When the Messenger (ﷺ) saw *Suhayl* (ease-going) Ibn ʿAmr coming on the day of the Treaty of Ḥudaybiyyah, so he said: "Your affairs have become ease."[91]

He was once walking, and reached two mountains, so he enquired about their names, and people said: 'Disgraceful and Scandalous.' He turned away from them and refused to pass between them.[92]

[89] Imām Mālik in his *Al-Muwaṭṭā'*, 2/973
[90] Ibn 'Adī, 1/401, Abū al-Shaykh in *Akhlāq al-Nabī*, 1/21 and it is weak.
[91] Bukhārī, #2731, #2732

The Prophet (ﷺ) changed the name of a woman called '*Āṣiya* (disobedient)' to '*Jamīlah* (beautiful)',[93] and the name of a man called '*Asram* (to sever)' to '*Zarʿah* (plant)'.[94]

Abū Dāwūd said in his *Al-Sunan*[95]: 'The Prophet (ﷺ) changed the names of *Al-ʿĀṣ* (the disobedient), *ʿAzīz* (mighty), *ʿAtalah* (crow-bar), *Shayṭān* (satan), *Al-Ḥakam* (arbiter) and *Ghurāb* (crow).[96] He changed the name of *Shihāb* (meteor) to *Hishām* (noble),[97] *Ḥarb* (war) to *Silm* (peace), *Al-Muḍṭajiʿ* (the recumbent) to *Al-Munbaʿith* (the revived), the land of *ʿAfirah* (dust) to *Khaḍirah* (green),[98] the people of *Ḍalālah* (aberrance) to *Hudā* (guidance), and the Tribe of *Al-Zinyah* (adultry) to *Al-Rushdah* (guidance).'[99]

This is an amazing part of the religion; to turn away from names that repel the heart and mind to a better one, to whom the hearts are attracted. The Prophet (ﷺ) was very careful about this, so much so that he said: 'None of you should say: "My soul has become evil", but he should say: "My soul has become remorseless."'[100]

Therefore, since the name *ʿaqīqah* was similar to disobedience (*ʿuqūq*) the Prophet (ﷺ) hated it and said: 'Allāh does not like *ʿuquq*'. Then he said: 'If anyone has a child born to him, and wants to sacrifice for his child, and then let him do it.'[101]

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[92] See *Sīrah al-Nabawī* of Ibn Hisham, 2/614
[93] Muslim, #2139
[94] Abū Dāwūd, #4954
[95] Abū Dāwūd, #4956
[96] Bukhārī in his *Adab al-Mufrad*, #724, «ākim in his *al-Mustadrik*, 4/275, Bazzār, 2/415, however it is weak.
[97] Tayālisī, #1501, Bukhārī in his *Adab al-Mufrad*, #725, Ibn Hibbān, 13/138 and others.
[98] Ṭabarānī in his *al-Muʿjam al-Ṣaghīr*, #349 and others
[99] Abū Dāwūd, '4956
[100] Bukhārī, #6179 and Muslim, #2250.

Section Six:
Is it Disapproved to Call it *ʿAqīqah*?

It is debated; a group disapproves of it, and their argument is that the Messenger of Allāh (ﷺ) hated the name, and so it should not be used to name the sacrifice. They say: 'According to the previously mentioned ḥadīth, it should be called "*Nāsikah* (Sacrifice)" instead of *ʿaqīqah*.'

Another group said that it is not disapproved, and believe it is allowed.

They used as evidence the ḥadīth narrated by Samurah 'Every boy is mortgaged by his *ʿaqīqah*,'[102] and the ḥadīth narrated by Salmān Ibn ʿĀmir: 'Along with a boy there is an *ʿaqīqah*.'[103] In both ḥadīths, the word *ʿaqīqah* is mentioned, which indicates allowance, not disapproval.

Abū ʿUmar said: 'This indicates disapproval of the name, and this is what is in the jurists' books in all regions; only the *ʿaqīqah* is mentioned, nothing about the *Nāsikah*.'"[104]

He also said: 'However, the ḥadīth narrated by Mālik does not contain explicit disapproval, and similarly for the ḥadīth narrated by ʿAmr Ibn Shuʿayb from his father from his grandfather. They say: 'As if he disliked the name, and he said: 'Whoever wants to offer a sacrifice for his child, let him do so.'"

[101] Bukhārī, #6180 and Muslim, #2251.
[102] Reference already mentioned
[103] Reference already mentioned
[104] See *Istidhkār*, 15/368 and *al-Tamhīd*, 4/306.

I say, this is similar to the debate surrounding the calling of *al-Ishā'* (night) the *al-'Atma'* (darkness). There are two narrations from Imām Aḥmad in that regard.[105] In both cases, it is disapproved to abandon the lawful name, *al-Ishā'* and *al-Nāsikah*, and replace it with the *al-'atmah* and *'aqīqah*. However, if the lawful name was used, not abandoned, and the other name was sometimes used, then it is fine; this would be a way for the two views to reconcile.[106] Success is from Allāh.

Section Seven:
The Debate Over its Obligation, and the Arguments of Each Side

Ibn Al-Mundhir[107] said: 'They [the jurists] have differed over its obligation. One group said: It is obligatory, because the Prophet (ﷺ) commanded so, and his command is obligatory by default.'[108]

We narrated from Al-Ḥasan Al-Baṣrī that he was asked about a man whose parents did not sacrifice on his behalf, he said: 'He should sacrifice for himself.' However, he did not believe that a woman [in the same situation] is obliged to do this on her own behalf.[109]

It was narrated that Buraydah said: 'People will be held accountable for *'aqīqah* on the Day of Judgment, just as they will be held

[105] See *Masā'il al-Imām Aḥmad*, 1/179-180
[106] *Zād al-Mu'ād*, 2/350
[107] See *al-Ishhrāf 'Ala Madhaab al-'Ulamā'*, 3/416-417
[108] See *al-Muhallā*, 7/523, 526 and *Zād al-Mu'ād*, 4/332
[109] See *Muṣannaf* of 'Abdu'l-Razzāq, 4/332 and Ibn Abī Shaybah, 8/245

accountable for the five daily prayers.'

Isḥāq Ibn Rāhuwiyah narrates from Ya'lā Ibn 'Ubayd, from Ṣāliḥ Ibn Ḥibbān, from Ibn Buraydah, that his father said: 'People will be held accountable for *'aqīqah* on the Day of Judgement, just as they will be held accountable for the five daily prayers.'

I then asked Ibn Buraydah: 'What is *'aqīqah*?" He said: "The newborn in Islām; a sacrifice must be done on his behalf.'[110]

Abū'l-Zannād said: '*'aqīqah* is a matter that Muslims hated to leave.'

We narrated from Al-Ḥasan Al-Baṣrī that he said: 'The *'aqīqah* is obligatory on the newborn's behalf on his seventh day.'

Abū 'Umar said: 'As for the debate over its obligation. People of the *Ẓāhirī* School[111] say that it is obligatory, including Dāwūd and others. They say that it is because the Messenger of Allāh (ﷺ) commanded to do it and did it himself, and that he said "Every boy is mortgaged by his *'aqīqah*" and "Along with a boy there is an 'aqīqah", and "For the boy is two sheep, and for the girl is one" and other similar ḥadīths. Buraydah Al-Aslamī said it is obligatory and likened it to the daily prayers. Al-Ḥasan Al-Baṣrī also said that it is obligatory on behalf of the boy on his seventh day; if his parents did not, he should do it himself.'[112]

Al-Layth Ibn Sa'd said: 'The sacrifice is made on behalf of the

[110] See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/311, *Istidhkār*, 5/368

[111] A school of thought in Islāmic jurisprudence characterized by reliance on the manifest (*ẓāhir*) meaning of expressions, in the Qur'ān and ḥadīth, as well as rejection of analogical deduction (*qiyās*).

[112] See *al-Muhallā* of Ibn Hazm, 7/524

newborn within his first seven days, but if it was not feasible, it is fine to be performed later on. It is not obligatory to be performed on the seventh day in particular.' His view was that it was obligatory within the first seven days.

[Imām] Mālik said that it is an obligatory Sunnah that should be followed, which is the view of Al-Shāfi'ī, Aḥmad Ibn Ḥanbal, Isḥāq, Abū Thawr and Al-Ṭabarī. This is according to Abū 'Umar.[113]

I say: The obligatory Sunnah, according to Mālik's followers, is that which is desirable to do and undesirable to ignore; they call it 'as obligatory as a Sunnah'. That is why they said that Friday bath is an obligatory Sunnah, the *uḍḥiyah* is an obligatory Sunnah, and that the *'aqīqah* is an obligatory Sunnah.

Aḥmad's followers realte two statements about its obligation, but he has no explicit evidence to support obligation.[114] We will state his evidence:

Al-Khallāl said in *Al-Jāmi'* under 'The Desirability of *'aqīqah*' that it is not obligatory.

Sulaymān Ibn Al-Ash'ath narrates that Abū 'Abdullāh was asked what the *'aqīqah* is, he said 'The sacrifice' and he rejected the view that it is 'shaving the head'.[115]

Muḥammad Ibn Al-Ḥusayn told me, conveying from Al-Faḍl that he asked Abū 'Abdullāh whether the *'aqīqah* is obligatory, he

[113] See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/311, *Istidhkār*, 5/550-552

[114] See *Masā'il al-Imām Aḥmad* of Isḥāq, 8/3943-3944, *al-Mughnī* of Ibn Qudāmah, 13/394 and others

[115] See *Masā'il al-Imām Aḥmad* of Abī Dāwūd, p.256.

said: "No, but whoever wanted to sacrifice, let him do so."

He also said: "I asked Abū ʿAbdullāh about the *ʿaqīqah*: 'Do you deem it obligatory?" He said: "No."

He then narrates from Aḥmad Ibn Al-Kassem that Abū ʿAbdullāh was asked whether the *ʿaqīqah* is obligatory, he said: "I do not know if it is obligatory; I cannot say 'obligatory.'" Then he added: "The strongest saying regarding it is that the boy is mortgaged by his *ʿaqīqah*."

Al-Athram said: "I asked Abū ʿAbdullāh, 'Is the *ʿaqīqah* obligatory?' He said: 'No, and the strongest saying[116] regarding it is that the boy is mortgaged by his *ʿaqīqah*."

Ḥanbal said that Abū ʿAbdullāh said: "I do not wish for anyone, who is [financially] capable, to not sacrifice for his child, because the Prophet (ﷺ) said, 'Every boy is mortgaged by his *ʿaqīqah*", which is the strongest ḥadīth narrated in that regard.'

Abū'l-Ḥārith[117] said: I asked Abū ʿAbdullāh about the *ʿaqīqah*: "Is it obligatory, on the rich and the poor, when his or her child is born to sacrifice on his or her behalf?

Abū ʿAbdullāh said: 'Al-Ḥasan narrates from Samurah that the Prophet (ﷺ) said, 'Every boy is mortgaged by his *ʿaqīqah*, so slaughter for him on the seventh day, and shave his head, and name him.' This is the Sunnah of the Messenger (ﷺ), and I prefer it to be kept alive, I have faith that Allāh will compensate him [the poor who performs it].

[116] See *Masā'il al-Imām Aḥmad* of Ṣāliḥ, 2/208
[117] See *Ṭabāqāt al-Ḥanābilah* of Ibn Abī Yaʿlā, 1/74-75

Isḥāq Ibn Ibrāhīm said, "I asked Abū ʿAbdullāh about the meaning of the ḥadīth 'Every boy is mortgaged by his *ʿaqīqah*.' He said, 'Yes, it is the Sunnah of the Prophet (ﷺ) to sacrifice two sheep for the boy and one for the girl. If it is not done, the child is restrained by his *ʿaqīqah*, until it is sacrificed for him.'"[118]

Jaʿfar Ibn Muḥammad said that Abū ʿAbdullāh was asked about the *ʿaqīqah*: "What if he [the parent] did not have the financial means to perform it?" He said, "There is no guilt upon him."

Abū'l-Ḥārith said that Abū ʿAbdullāh was asked about the *ʿaqīqah*: "What if he [the parent] did not have the financial means to perform it?" He said, "If he borrowed [to perform it], I have faith that Allāh will compensate him, because he kept the Sunnah alive."[119]

Ṣāliḥ said that he asked his father: "A child may be born to a man who does not have the financial means to perform *ʿaqīqah*; do you prefer that he borrows to perform it, or delay it until he has the means?"

He said: "The strongest saying regarding it is the ḥadīth narrated by Al-Ḥasan from Samurah that the Prophet (ﷺ) said, 'Every boy is mortgaged by his *ʿaqīqah*'. I have faith that he who borrows [to perform it] will be compensated quickly by Allāh, because he kept the Sunnah of the Prophet (ﷺ) alive, and followed his instruction."[120]

This is the evidence [of Imām Aḥmad] as you see. However, his followers divided the judgment of obligation into three points:

[118] See *Masā'il al-Imām Aḥmad*, of Isḥāq, 2/130
[119] See *al-Mughnī* of Ibn Qudāmah, 13/395
[120] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/208

1. Is it obligatory for the child from his own money, or his father's?
2. How many sheep are obligatory for the boy, one or two?
3. If the parent did not perform it for him; is he exempted from it, or does he have to perform it for himself after maturity?

As for the first point, they are divided into two groups:

The first one: It is compulsory for the father, which is reported from Imām Aḥmad. Ismā'īl Ibn Sa'īd Al-Shālangī said: 'I asked Aḥmad about a man whose father told him that he had not performed *'aqīqah* for him, does he have to perform it for himself? He said: 'It is obligatory for the father.'

The second one: From the child's money.

The evidence of the former team is that the father is the one addressed with the command.

As for the latter team, they cite the ḥadīth: 'Every boy is mortgaged by his *'aqīqah*.'

Both groups cite this ḥadīth as evidence, because it began by stating the child is mortgage by his *'aqīqah*, and ends by the command to shed blood on his behalf.[121]

Those who believe in its obligation cite the ḥadīth, 'For the boy is two sheep, and for the girl is one' which indicates obligation, because it means: Two sheep are sufficient for the boy, and one is sufficient for the girl.

[121] See *al-Mughnī* of Ibn Qudāmah, 13/397

They also cite Al-Bukhārī's ḥadīth that he conveyed from Salmān Ibn ʿĀmir, that the Prophet (ﷺ) said: 'Along with a boy there is an *ʿaqīqah*, so shed blood on his behalf, and remove harm [hair] from him.'

They say that this indicates obligation from two ways, one of which is the phrase, 'Along with a boy there is an *ʿaqīqah*'. This is not a statement of facts, but rather what should be. Then he commanded them to sacrifice on his behalf that which is with him, so he said: "shed blood on his behalf".

They also cite as evidence the ḥadīth narrated by ʿAmr Ibn Shuʿayb narrated from his father, from his grandfather, that the Messenger of Allāh (ﷺ) commanded to name the newborn on his seventh day, remove hair from him and perform *ʿaqīqah*.

They add that Al-Tirmidhī narrated from Yaḥyā Ibn Khalaf, from Bishr Ibn Al-Mufaḍḍal, from ʿAbdullāh Ibn ʿUthmān Ibn Khuthaym, from Yūsuf Ibn Mahik that they entered upon Ḥafṣah bint ʿAbdu'l-Raḥmān to ask her about the *ʿaqīqah*. She informed them that ʿA'ishah had informed her, that the Messenger of Allāh (ﷺ) ordered them that for a boy, two sheep were sufficient, and for a girl one sheep. Al-Tirmidhī said: 'This is a ṣaḥīḥ ḥadīth.'[122]

Abū Bakr Ibn Abū Shaybah narrates from ʿAffān, from Ḥammād Ibn Salamah, from ʿAbdullāh Ibn ʿUthmān Ibn Khuthaym, from Yūsuf Ibn Mahik, from Ḥafṣah bint ʿAbdu'l-Raḥmān, that ʿA'ishah (*raḍiyAllāhu ʿanhā*) said: 'The Messenger of Allāh (ﷺ) commanded us to sacrifice two sheep for a boy's *ʿaqīqah* and one sheep for a girl's.'[123]

[122] Reference already mentioned.
[123] Ibn Abī Shaybah, 8/239

Abū Bakr conveyed from Ya'qūb Ibn Ḥumayd Ibn Kāsib, from 'Abdullāh Ibn Wahb, from 'Amr Ibn Al-Ḥārith, from Ayyūb Ibn Mūsā , from Yazīd Ibn 'Abdu'l-Muzanī, that the Prophet (ﷺ) said: 'Offer sacrifice for the child, but do not smear his/her head with the blood.'[124]

They say: This is a statement, which represents a command.

Abū Bakr reports from Ibn Fuḍayl, from Yaḥyā Ibn Sa'īd, from Muḥammad Ibn Ibrāhīm that he said: 'It is obligatory to sacrifice for the child, even if only a bird.'[125]

Sub-section One:

Those who believe it to be optional say: Had it been obligatory, its obligation would be commonly known, because such a requirements touches everyone in their lives. Had that been the case, the Messenger of Allāh (ﷺ) would have clarified its obligation to the Ummah in an incontrovertible way.

They say: The Prophet (ﷺ) has kept it pending the parent's desire. He said "Whoever wants to offer a sacrifice for his child, let him do so.

They add: The action of the Prophet (ﷺ) does not imply obligation, it implies desirability.

They also cite the ḥadīth narrated by Abū Dāwūd from 'Amr Ibn Shu'ayb, that the Prophet (ﷺ) said: 'Allāh does not like disobedience (*'uqūq*)' as if he disliked the name. Then said: 'If anyone has

[124] Ibn Abī Shaybah, 8/239, Ibn Mājah, 2/1057
[125] Ibn Abī Shaybah, 8/236, Imām Aḥmad, 2/47

a child born to him, and wants to sacrifice for his child, and then let him do it'.[126] This ḥadīth is mursal; Abū Dāwūd once narrated it from 'Amr, from his father, but he said: 'I think it is from his grandfather.'

Mālik narrates from Zayd Ibn Aslam, from a man of the Damrah tribe, from his father, that the Messenger of Allāh (ﷺ) was asked about the *'aqīqah*. He said: 'I do not like disobedience (*'uqūq*)' as if he disliked the name. People said: 'But one of us may offer a sacrifice when a child is born to him.' He said: 'Whoever wants to offer a sacrifice for his child, let him do so, for a boy; two sheep, [of equal age], and for a girl, one.'[127]

Al-Bayhaqī said: 'If you put this ḥadīth beside the previous one, both of them become stronger [in authenticity].'[128]

I say: Besides, the ḥadīth of 'Amr Ibn Shu'ayb was strengthened by 'Abdu'l-Razzāq. He conveyed from Dāwūd Ibn Qays that he heard 'Amr Ibn Shu'ayb narrating from his father, from his grandfather that the Messenger of Allāh (ﷺ) was asked about the *'aqīqah* and he stated the ḥadīth.[129]

Section Eight:
The Recommended Time for It

Abū Dāwūd says in *Kitāb Al-Masā'il*[130] 'I heard Abū 'Abdullāh saying, 'The *'aqīqah* is sacrificed on the seventh day.'[131] Ṣāliḥ Ibn

[126] Abū Dāwūd, #2842
[127] Imām Mālik in *al-Muwaṭṭā'*, 1/418 and others
[128] Bayhaqī in his *Sunan*, 9/300
[129] See *al-Muṣannaf* of 'Abdu'l-Razzāq, 4/329 and *al-Tamhīd*, 10/391
[130] The Book of Problems and Issues.
[131] See *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 256

Aḥmad said: 'My father said about the *'aqīqah*: It is sacrificed on the seventh day; if missed, then on the fourteenth, and if missed, then on the twenty-first.'[132] In addition, Al-Maymūnī said: 'I asked Abū 'Abdullāh: 'When should the sacrifice be made?' He said: "A'ishah says: "After 7, 14 and 21 days [of birth]." Abū Ṭālib also conveys from Aḥmad that he said: 'The *'aqīqah* is sacrificed after 21 days [of birth].'

The argument for this is the previously mentioned ḥadīth narrated by Samurah: 'Every boy is mortgaged by his *'aqīqah*; so slaughter for him on the seventh day, and name him.'[133] Al-Tirmidhī said that it is a ṣaḥīḥ ḥadīth.[134]

'Abdullāh Ibn Wahb narrates from Muḥammad Ibn 'Amr, from Ibn Jurayj, from Yaḥyā Ibn Sa'īd, from Amrah bint 'Abdu'l-Raḥmān, that 'A'ishah said: 'The Messenger of Allāh (ﷺ) sacrificed on behalf of Al-Ḥasan and Al-Ḥusayn on their seventh day, named them, and ordered to remove the harm [hair] from their heads.'[135]

Abū Bakr Al-Mundhir conveys from Muḥammad Ibn Ismā'īl Al-Ṣā'igh, from Abū Ja'far Al-Razī, from Abū Zuhayr 'Abdu'l-Raḥmān Ibn Ma'īn,[136] from Muḥammad Ibn Isḥāq, from 'Amr Ibn Shu'ayb, from his father, from his grandfather who said: 'The Messenger of Allāh (ﷺ) commanded us, on the seventh day of the newborn's birth to name, sacrifice on his behalf, and remove harm [hair] from him.'[137]

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[132] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/210

[133] See *Fath al-Barī*, 9/519

[134] Tirmidhī, 4/101

[135] Ibn Ḥibbān, 12/27, it is authenticated by Ḥākim and Dhahabī, 4/237 agreed and it also related by Bayhaqī in his *Sunan*, 9/299.

[136] See Ibn Ḥajr in *al-Tahdhīb*, 6/246.

[137] See *al-Muṣannaf* of Ibn Abi Shaybah, 8/240

This is the view of Muslim scholars in general; we report what has reached us of their views.

The most prominent narrator in this regard is 'A'ishah, Umm Al-Mu'minīn, as reported by Aḥmad in Al-Maymūni's narration. Similarly, Al-Ḥasan Al-Baṣrī and Qatādah say: 'Sacrifice on his behalf on his seventh day.'[138]

Abū 'Umar also said: 'It was Al-Ḥasan Al-Baṣrī's view that it is obligatory on the newborn's behalf on his seventh day; if sacrifice was not made for him, he ought to do it [after maturity].'[139]

Al-Layth Ibn Sa'd said: 'The sacrifice is made on behalf of the newborn within his first seven days, but if it was not feasible, it is fine to be performed later on. It is not obligatory to be performed on the seventh day in particular.'

Abū 'Umar said: 'Al-Layth's view was that it was obligatory within the first seven days.'

'Aṭā' said: 'If they missed making the sacrifice on the seventh day, I prefer to postpone it to the next seventh day.'

Such was also the view of Aḥmad, Isḥāq and Al-Shāfi'ī. Mālik did not exceed the second seventh day.

Ibn Wahb said: 'There is no problem in performing it on the third seventh day, which is also the view of 'A'ishah, 'Aṭā', Aḥmad and Isḥāq.'

Mālik said: 'The day of his birth is not counted, except if he was

[138] See *al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/418

[139] See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/311-312 and *Istidhkār*, 5/550-551

born before dawn [in the previous night].'[140]

It is apparent that adhering to that is optional, otherwise, sacrificing on the seventh, eighth, tenth or later on would not count. In addition, what matters is the day of sacrifice, not the day of cooking or eating.

Section Nine:
Indicating that it is Better Than Donating an Equivalent Amount for Charity

Al-Khallāl said in Chapter on the recommended *ʿaqīqah* and its preference over charity: Sulaymān Ibn Al-Ashʿāth told us that Abū ʿAbdullāh was asked whether he preferred the *ʿaqīqah* or donating an equivalent amount for the poor. He said: "[I prefer] the *ʿaqīqah*."[141]

He also said, in the narration of Abū'l-Ḥārith, when he was asked about the *ʿaqīqah*: 'If he borrowed [to perform it], I have faith that Allāh will compensate him, because he kept the Sunnah alive.'[142]

Ṣāliḥ said that he asked his father: 'A child may be born to a man who does not have the financial means to perform *ʿaqīqah*; do you prefer that he borrows to perform it, or delay it until he has the means?'

He said: 'The strongest saying regarding it is the ḥadīth narrated

[140] See *al-Tamḥīd* of Ibn ʿAbdu'l-Barr, 4/312-316, *Istidhkār*, 5/551-552, *Muṣannaf* of Ibn Abī Shaybah, 12/326-327, *al-Mughnī* of Ibn Qudāmah, 13/396-327 and others.
[141] See *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 256
[142] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/208 and *al-Mughnī* of Ibn Qudāmah, 13/395.

by Al-Ḥasan from Samurah that the Prophet (ﷺ) said: "Every boy is mortgaged by his *ʿaqīqah*".[143] I have faith that he who borrows [to perform it] will be compensated quickly by Allāh, because he kept the Sunnah of the Prophet (ﷺ) alive, and followed his instruction.'[144]

That is because it is a Sunnah and a legitimate rite of sacrifice, in response to the recent favour of Allāh upon the parents. It contains a wonderful secret regarding the ransom of Ismāʿīl with the ram that was sacrificed on his behalf and used as a ransom for him. Therefore, it became a followed tradition in his descendants; to ransom their children after birth by sacrificing on their behalf.

It is not implausible to think that this protects the child from Satan's harm after birth, just as mentioning the name of Allāh when planting the seed in the womb was to protect him or her from Satan. That is why it is rare to find someone, whose parent neglected the *ʿaqīqah*, who is not under the influence of Satan.

The secrets of the Sharīʿah are greater than this, which is why the *ʿaqīqah* is lawful for both the boy and the girl, even if they differ in its amount.

As for People of the Book, the *ʿaqīqah* is not for the girl, but for the boy exclusively, which is the view of some of the Salaf.[145]

Abū Bakr Ibn Al-Mundhir said: 'In this regard is a third opinion held by Al-Ḥasan and Qatādah; they did not believe in *ʿaqīqah* for

[143] Reference already mentioned.
[144] See *Masāʾil al-Imām Aḥmad*, of Ṣāliḥ, 2/210-212
[145] The early scholars.

the girl.'[146]

That is a weak view that should be ignored; the Sunnah disagrees with it from a number of points, as will come in the next topic.

Therefore, sacrifice for the child is better than donating an equivalent or even a greater amount, such as gifts and *uḍḥīyah*. The sacrifice and spilling blood, in and of itself, is desired, for it is a form of worship coupled with prayers. Allāh the Exalted said:

فَصَلِّ لِرَبِّكَ وَٱنْحَرْ ﴿٢﴾

"So pray to your Lord and sacrifice [to Him alone]."
[*al-Kawthar* (108): 2]

He also said:

قُلْ إِنَّ صَلَاتِي وَنُسُكِي وَمَحْيَايَ وَمَمَاتِي لِلَّهِ
رَبِّ ٱلْعَٰلَمِينَ ﴿١٦٢﴾

"Say: 'Indeed, my prayer, my rites of sacrifice, my living and my dying are for Allāh, Lord of the worlds.'"
[*al-An'ām* (6): 162]

In each religion is a prayer and rite of sacrifice that cannot be replaced. Therefore, if the person donated instead of the sacrifice for the wedding, many times its value, it would not suffice, which is also the case for *uḍḥīyah*.

Allāh knows best.

[146] *Al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/415, See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/317, *Istidhkār*, 5/550-554, *al-Muṣannaf* of Ibn Abī Shaybah, 4/331 and *al-Muhallā*, 7/523.

Section Ten:
Differentiation of Males and Females Regarding it

There are two issues here:

First issue: The *ʿaqīqah* is recommended for the girl just as it is recommended for the boy. That is the view of the majority of scholars from Companions [of the Prophet (ﷺ)], followers (*al-tābʿīn*)[147] and their followers.

We have already stated what Ibn Al-Mundhir conveyed from Al-Ḥasan and Qatādah, that they did not believe in *ʿaqīqah* for the girl.[148]

Perhaps they clung to the Prophet's (ﷺ) saying: 'Along with a boy there is an *ʿaqīqah*' which is narrated by Al-Ḥasan and Qatādah from Samura's ḥadīth, since 'the boy' refers to males only.

However, this is refuted by the ḥadīth of Umm Karz who asked the Messenger of Allāh (ﷺ) about the *ʿaqīqah* and he said: 'For the boy is two sheep, and for the girl is one, it will not matter whether they [the sheep] are male or female.' It is narrated by Al-Tirmidhī and others, who said it is a ṣaḥīḥ ḥadīth.[149]

It is also refuted by the ḥadīth of 'A'ishah (*raḍiyAllāhu ʿanhā*): 'The Messenger of Allāh (ﷺ) commanded us to sacrifice two sheep for a boy's *ʿaqīqah* and one sheep for a girl.' It is narrated by Abū Shaybah and the full list of narrators were previously mentioned.[150]

[147] Followers (*al-tābʿīn*) refers to followers of the Companions—Muslims who have not met with the Messenger (ﷺ) after converting to Islām, but have met with one or more of his Companions.

[148] Reference already mentioned

[149] Reference already mentioned

Abū ʿAṣim said, conveying Sālim Ibn Tamīm, from his father, from Al-Aʿraj, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'The Jews perform *ʿaqīqah* for the boy, but not for the girl. Therefore, sacrifice two sheep for the boy, and one for the girl.' It is narrated by Al-Bayhaqī by this way.[151]

Mālik said: "One sheep is sacrificed for the boy and one for the girl; males and females are equal in that regard."[152]

He cited as evidence what Abū Dāwūd narrated in his *Sunan*: Abū Muʿamar conveys from ʿAbdu'l-Wārith, from Ayyūb, from ʿIkrimah, from Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*), that the Messenger of Allāh (ﷺ) sacrificed a ram for both Al-Ḥasan and Al-Ḥusayn each.[153]

Abū ʿUmar said: 'Jaʿfar Ibn Muḥammad narrates from his father that Fāṭimah sacrificed a ram for both Al-Ḥasan and Al-Ḥusayn each.'

He said: "Abdullāh Ibn ʿUmar used to sacrifice a ram for each of his children, whether boys or girls. The same view is held by Muḥammad Ibn ʿAlī Ibn Al-Ḥusayn Ibn ʿAlī (*raḍiyAllāhu ʿanhum*), just as Mālik said.'[154]

Abū ʿUmar[155] continues: 'However, Ibn ʿAbbās, 'A'ishah and a group of people of ḥadīth (*ahl'ul-ḥadīth*) said that two sheep are to be sacrificed for the boy and one sheep for the girl.' He then

[150] Reference already mentioned
[151] Al-Bayhaqī in his *Sunan*, 9/301-302 and his *Shuʿab al-Imān*, 15/106
[152] See *al-Muwaṭṭā'*, 1/419, *al-Tamḥīd*, 4/314 and *Istidhkār*, 5/555-556
[153] Reference already mentioned
[154] See *al-Tamḥīd*, 4/314 and *Istidhkār*, 5/555-556
[155] See *al-Tamḥīd*, 4/317 and others.

cited the ḥadīth of Umm Karz and the ḥadīth of ʿAmr Ibn Shuʿayb from his father, from his grandfather: 'Whoever wants to offer a sacrifice for his child, let him do so, for a boy; two sheep, and for a girl, one.'

There is no contradiction between the ḥadīths of differentiation between boys and girls and the ḥadīth of Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) in the story of Al-Ḥasan and Al-Ḥusayn. His ḥadīth was narrated in two versions; one says, 'a ram each' and the other says. 'two rams each.' Perhaps the narrator wished to say two rams each, but then narrated the genral sense of it.[156]

However, I have a better explanation here: The Messenger (ﷺ) sacrificed a ram for each, and their mother sacrificed another ram for each. Both ḥadīths were narrated. Therefore, one ram was from the Prophet (ﷺ), and the other was from Fāṭimah (*raḍiyAllāhu ʿanhu*). In this way, all ḥadīths agree.

This is a rule in the Sharīʿah. Allāh the Exalted differentiated the male and the female from each other, and assigned to the female half that of the male in terms of inheritance, blood money, testimony, slave freeing and *ʿaqīqah*. As narrated, and deemed ṣaḥīḥ by Al-Tirmidhī, on the authority of Abū Umāmah (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'Any Muslim man who frees a Muslim man, then it is his salvation from the Fire—each of his limbs suffices for a limb of himself. And any Muslim man that frees two Muslim women, then they are his salvation from the Fire—each of their limbs suffices for a limb of himself.' [157]

[156] This is the best way I could translate it.
[157] Tirmidhī, 5/151

In the *Musnad* of Imām Aḥmad,[158] on the authority of Murrah Ibn Kaʿb Al-Sulamī (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'Any Muslim man who frees a Muslim man, then it is his salvation from the Fire—each of his limbs suffices for a limb of himself. And any Muslim man that frees two Muslim women, and then they are his salvation from the Fire—each of their limbs suffices for a limb of himself. And any Muslim woman that frees a Muslim woman, then she is her salvation from the Fire—each of her limbs suffices for a limb of herself.' It is narrated by Abū Dāwūd in his *Sunan*.[159]

Therefore, differentiation in *ʿaqīqah* would have been applicable even if there were no Sunnah therein. How about when an explicit Sunnah is confirmed regarding differentiation?

Section Eleven:
The Purpose, Legality and Benefits of *ʿAqīqah* and Reviving the Sunnah of the Messenger (ﷺ)

Al-Khallāl wrote a chapter in his *Jāmiʿ* on the purpose of *ʿaqīqah*, and what is hoped to revive the Sunnah by the latecomers. Then he stated the ḥadīth of Abū'l-Ḥārith when he asked Abū ʿAbdullāh about the ʿaqīqah: 'What if he [the parent] did not have the financial means to perform it?' He said: 'If he borrowed [to perform it], I have faith that Allāh will compensate him, because he kept the Sunnah alive.'[160]

He also stated the narration of Ṣāliḥ from his father: 'I have faith that he who borrows [to perform it] will be compensated quickly

[158] Aḥmad in his *Musnad*, 4/235, 236
[159] Abū Dāwūd, 11/702, Ibn Mājah, #2522 and others
[160] See *Masāʾil al-Imām Aḥmad*, of Ṣāliḥ, 2/208

by Allāh, because he kept the Sunnah of the Prophet (ﷺ) alive, and followed his instruction.'

Its benefits include that it is a sacrifice on behalf of the child in his first moments. The newborn benefits from it greatly, just as they benefit from praying for them, bringing them to places of rituals', performing *Iḥrām*[161] for him and so on.

They also include that it absolves the newborn of their mortgage, for they are mortgaged by their *'aqīqah*. Imām Aḥmad said: 'mortgaged from intercession for their parents', while 'Aṭā' Ibn Abī Rabah said it means: 'being deprived from their child's intercession'.

They also include that it is a ransom for the newborn, just like Allāh the Exalted ransomed Ismā'īl with the ram. During the pre-Islāmic Ignorance, people used to perform it, call it *'aqīqah* and smear the newborn's head with is blood. The Messenger (ﷺ) approved of the sacrifice, and abolished the name derived from *'uqūq* and the blood smudging when he said: 'I do not like disobedience (*'uqūq*)' and "... do not smear his or her head with the blood.' He (ﷺ) informed us that what is sacrificed for the newborn should be deemed recommended, like the *uḍḥīyah*, so he said: 'Whoever wants to offer a sacrifice for his child, let him do so.' He treated it the same way as the *uḍḥīyah* that Allāh made a sacrifice and ransom for Ismā'īl (*'alayhis-salām*) and a means of nearness to Him. It is not unlikely for it to be a reason for the decent nurturing, safety, long life and protection of the child from the harm of Satan, and that each limb thereof suffices for a limb of the child. That is why it is recommended to say, upon performing it, what is said when performing *uḍḥīyah*.

[161] *Iḥrām*: The state of devoting [oneself] to a religious pilgrimage

Abū Ṭālib reports that he asked Abū 'Abdullāh: 'If a man wished to perform *uḍḥīyah*, what should he say?'

He said: 'He should say: "In the name of Allāh," and then perform it with the *'aqīqah*'s intention in his heart, just like he does in *uḍḥīyah*. He should say [in his heart]: "This is the *'aqīqah* of such-and-such", that is why he says: 'O Allāh, it [the *'aqīqah*] is from you and to you".'

The recommended acts of *uḍḥīyah* are also recommended here, such as donating and distributing the meat. The sacrifice on behalf of the newborn contains the meanings of sacrifice, gratitude, ransom, charity and feeding people in the happy incidents, to show gratitude to Allāh and acknowledge His blessing that is the purpose of marriage. If feeding people is recommended in marriage, which is means for the production of this human being, it is more appropriate to be recommended upon the arrival of such end.[162]

It was decreed by means of sacrifice that includes the wisdom explained earlier; nothing is better or closer to the hearts than such law, regarding newborns.

This is applicable to the Sunnah of banquets in weddings and such; it displays joy and happiness for establishing the Islāmic Sharī'ah and the emergence of a Muslim soul, with which the Messenger (ﷺ) will boast before the other nations, on the Day of Judgement, and compel the enemies.

When the Messenger (ﷺ) approved and confirmed the *'aqīqah* in Islām, and stated that the newborn is mortgaged by it, he forbade

[162] See *al-Mughnī* of Ibn Qudāmah, 13/399-400

putting blood on the newborn's head, and allowed them to put little saffron. In the pre-Islāmic Ignorance, they used to smear the newborn's head with the blood to seek its blessing, since the sacrifice's blood was sacred for them that they even smear their gods with it, in order to glorify and honour them. Therefore, Muslims were commanded to avoid that, to avoid resemblance to disbelievers, and they were given what is more beneficial to the parents, the newborn and the poor, which is shaving the newborn's head and donating gold or silver equivalent in weight to that hair. The Messenger (ﷺ) also permitted smudging the head with the good-smelling and nice-looking saffron, instead of the bad-smelling and ugly-looking blood. Saffron is among the best, most gentle and best-looking perfumes. Shaving the head removes harm and weak hair from the newborn, and allows stronger, firmer and more beneficial hair to grow in its place. It also lightens [the burden] from the newborn, and opens the head's pores to allow the easy and smooth emergence of steam, which strengthens the senses of sight, smell and hearing.

It was decreed that two sheep be sacrificed on behalf of the boy, to display his preference and outline his status granted by Allāh, compared to the girl, just as He preferred him in inheritance, blood money and testimony.

It was decreed that the two sheep be equal in size to each other. Aḥmad said: in Abū Dāwūd's narration, 'Equal or close'[163] and said in Al-Maymūni's narration, 'Equivalent.'

In the narration of Ja'far Ibn Al-Ḥārith: 'Each resembles the other, since each of them was a ransom for the boy, and each are similar in age and aesthetics, they become like one.'

[163] See *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 256

It means: Had the ransom been achieved with a single sheep, it would have had to be perfect and ideal. However, since it is achieved with two sheep, it may have been possible [for the parent] to be negligent in one of them, as if the ransom was achieved with one, while the other is just an unnecessary compliment. Therefore, it was decreed that they be equal to avoid that illusion.

This includes a warning to rectify the *ʿaqīqah* from defects that are not acceptable in other sacrifices such as *uḍḥīyah*, since it releases the mortgaging of the newborn, as the Prophet (ﷺ) said. The meaning of this mortgaging was debated.

One group said: The newborn is restrained from intercession for their parents, as was the view of ʿAṭā' and Imām Aḥmad.[164]

This view has obvious flaws. The child's intercession for their parents is not more adequate than the opposite. In addition, being a parent does not grant the right for intercession, and neither does any other family relation. Allāh the Exalted said:

يَٰٓأَيُّهَا ٱلنَّاسُ ٱتَّقُوا۟ رَبَّكُمْ وَٱخْشَوْا۟ يَوْمًا لَّا يَجْزِى وَالِدٌ
عَن وَلَدِهِۦ وَلَا مَوْلُودٌ هُوَ جَازٍ عَن وَالِدِهِۦ شَيْـًٔا

"O mankind, fear your Lord and fear a Day when no father will avail his son, nor will a son avail his father at all."

[*Luqmān* (31): 33]

He also said:

[164] See *Zād al-Muʿād*, 2/326 and others.

وَاتَّقُوا يَوْمًا لَّا تَجْزِي نَفْسٌ عَن نَّفْسٍ شَيْئًا وَلَا يُقْبَلُ مِنْهَا شَفَاعَةٌ

"And fear a Day when no soul will suffice for another soul at all, nor will intercession be accepted from it."

[*al-Baqarah* (2): 48]

And said:

مِّن قَبْلِ أَن يَأْتِيَ يَوْمٌ لَّا بَيْعٌ فِيهِ وَلَا خُلَّةٌ وَلَا شَفَاعَةٌ

"...Before there comes a Day in which there is no exchange and no friendship and no intercession."

[*al-Baqarah* (2): 254]

Therefore, no one can intercede for anyone on the Day of Judgment, except only after Allāh has permitted [it] to whom He wills and approves.

The rank of the interceder, regarding closeness to Allāh, is not attained through a family relation, filiation or paternity. The master and most prominent of interceders (ﷺ) said to his uncle, aunt and daughter: 'I cannot avail you at all against Allāh.'[165]

He also said, in another version: "I do not have power to do anything for you against Allāh."[166]

He also said regarding his grand intercession, when he prostrates before Allāh and intercedes: 'He will fix a limit for me [to intercede for] whom I will admit into Paradise.'[167]

[165] Bukhārī, 5/382 and Muslim, 1/192
[166] Muslim, #203, #204
[167] Bukhārī, 8/160 and Muslim, 1/181

Therefore, his intercession is for a limited number of people, set by Allāh the Exalted for him (ﷺ), and his intercession cannot exceed that limit, so how can it be said that the child intercedes for their parents, and that if the parent does not perform the *ʿaqīqah*, the child will be restrained from interceding? The word 'mortgaged' is not used to describe someone who does not intercede for another, neither does the term itself indicate such meaning.

Allāh the Exalted states the mortgaging of the servant by his deeds, as He said:

كُلُّ نَفْسٍۭ بِمَا كَسَبَتْ رَهِينَةٌ ﴿٣٨﴾

"Every soul, for what it has earned, will be retained."
[*al-Mudaththir* (74):38]

He also said:

أُولَٰئِكَ الَّذِينَ أُبْسِلُوا بِمَا كَسَبُوا

"Those are the ones who are given to destruction for what they have earned."
[*al-Anʿām* (6):70]

The mortgaged one is the one who is restrained, either by his actions or by the actions of another. As for whoever does not intercede for another, he is never described as 'mortgaged'. The mortgaged one is the one who is denied something he aimed to attain, not necessarily because of his actions; but sometimes because of the actions of others.

Allāh the Exalted made the sacrifice on behalf of the child a reason for their release from the devil that clings to them upon their emergence in this life, and a stab in his flank. The *ʿaqīqah* is a ransom and a release of Satan's restraining, captivity and hindrance

of pursuing the Hereafter. It is as the newborn is mortgaged for slaughter by the devil with the knife, which he prepared for his followers and allies, and swore to his Lord to destroy the descendants [of Ādam], except for a few. He is on alert for the newborns since they enter this life. When they do, he rushes to them, embraces them and makes sure to keep them in his grasp, under his captivity and among his allies and party. He is most keen on this.

The majority of newborns are among his herd and army, as Allāh the Exalted said:

وَشَارِكْهُمْ فِي ٱلْأَمْوَٰلِ وَٱلْأَوْلَٰدِ

"And become a partner in their wealth and their children."

[*al-Isrā'* (17):64]

He also said:

وَلَقَدْ صَدَّقَ عَلَيْهِمْ إِبْلِيسُ ظَنَّهُۥ

"And Satan had already confirmed through them his assumption."

[*Sabā'* (34):20]

Thus, the newborn was subject to this mortgaging, and Allāh the Exalted allowed the parents to release that mortgage through a sacrifice; but if they do not perform it, the newborn remains mortgaged. That is why the Prophet (ﷺ) said: 'Along with a boy there is an *'aqīqah*, so shed blood on his behalf, and remove harm [hair] from him.'[168]

Therefore, he commanded shedding blood on the child's behalf,

[168] The book begins the ḥadīth with, 'Every boy is mortgaged by his *'aqīqah*', but that is not the correct ḥadīth. The reference already mentioned.

which releases the mortgaging. Had the mortgaging been related to the parents, he would have said: 'shed blood on your behalf so that the intercession of your children can reach you.' However, since he (ﷺ) commanded to remove the apparent harm from him, and shedding blood, which removes the ulterior harm from him, we learn that this *'aqīqah* releases the child from the apparent and ulterior harm. Allāh knows best His intent and the intent of His Messenger.

Section Twelve:
Preference of Cooking it Over Donating it as Raw Meat

Al-Khallāl said in his *Jāmi'*, under Chapter on the recommended acts in 'aqīqah: I was told by 'Abdu'l-Mālik that he asked Abū 'Abdullāh: 'Should the *'aqīqah* be cooked?' He said: 'Yes.'[169]

I was also told by Muḥammad Ibn 'Alī, conveying from Al-Athram, that Abū 'Abdullāh said about the *'aqīqah*: 'It should be cooked, limb by limb.'

Abū Dāwūd reports that he asked Abū 'Abdullāh: 'Should the *'aqīqah* be cooked?' He said: 'Yes.' He was told: 'It is an additional cost for them' and he said, 'They should endure it.'[170]

Muḥammad Ibn Al-Ḥusayn narrates from Al-Faḍl Ibn Ziyād that Abū 'Abdullāh was asked about the *'aqīqah*: 'Should it be cooked in water and salt?' He said: 'Such is recommended.' He was asked: 'What if it was cooked in something else?' He said: 'That would

[169] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/210 and *al-Mughnī* of Ibn Qudāmah, 13/400-401.

[170] See *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 256

not hurt.'

That is because, if cooked, it saves the poor and the neighbours the effort of cooking, which is additional kindness and gratitude. The neighbours, children and the poor enjoy it readily. When one is presented with cooked and prepared meat, they are more happy and pleased than being presented with raw meet that needs effort and cost. That is why Imām Aḥmad said: 'They should endure it.'

Moreover, all traditional banquets that aim to show gratitude [to Allāh] are cooked.

They have different names: *qira* - guests' food, *ma'dubah*, banquet food, *tuḥfah* - visitors' food, *walimah*, -wedding food, *khurs* - child-birth food, *'aqīqah* - sacrifice on the seventh day, upon shaving the child's head, *'adhirah* - circumcision food, *waḍimah* - funeral food, *naqi'ah* - food for the person arriving from travel and *wakirah* - food after construction works are completed.[171]

Feeding people on these occasions is better than distributing the meat and is among the good manners of generosity. Allāh knows best.

Section Thirteen:
Disapproval of Breaking its Bones

Al-Khallāl said in his *Jāmi'*: Chapter on the Disapproval of breaking the *'aqīqah*'s bones and cutting it into pieces:

I was told by 'Abdu'l-Mālik Ibn 'Abdu'l-Ḥāmid that he heard Abū

[171] See *Fiqh al-Lugha wa sir al-'Arabia of Tha'ālabī*, p.264

'Abdullāh say about the *'aqīqah*: 'Its bones should not be broken, but separated from the joints.'

'Abdullāh Ibn [Imām] Aḥmad said that he asked his father: 'What should be done with the *'aqīqah*?' He said: 'Its limbs should be separated, but the bones should not be broken.'[172]

He then narrated from Ṣāliḥ, Ḥanbal, Al-Faḍl Ibn Ziyad, Abū Al-Ḥārith and Abū Ṭālib that Abū 'Abdullāh said about the *'aqīqah*: 'It should be separated thoroughly, limb by limb, but the bones should not be broken.'[173]

Abū Dāwūd stated in *Kitāb al-Murāsīl*,[174] from Ja'far Ibn Muḥammad, from his father, that the Prophet (ﷺ) said, in the *'aqīqah* performed by Fāṭimah on behalf of Al-Ḥasan and Al-Ḥusayn: "Send a leg thereof to the midwife, eat and feed others, and do not break its bones."

Al-Bayhaqī narrated from 'Abdu'l-Wārith, from 'Āmir Al-Aḥwal, from 'Aṭā', from Umm Karz, that the Messenger (ﷺ) said: 'For the boy is two sheep [equal in age], and for the girl is one.'[175] 'Aṭā' said: 'It should be cut, limb by limb, and its bones should not be broken. The narrator thinks that he added: 'And it should be cooked."[176]

The same was narrated by Jurayj from 'Aṭā' with the addition: 'It should be cut into pieces, cooked in water and salt, and given

[172] See *Masā'il al-Imām Aḥmad*, of 'Abdullāh, 3/879

[173] See *al-Mughnī* of Ibn Qudāmah, 13/401.

[174] *Kitāb al-Murāsīl*, pp.278-279 no. 379, Bayhaqī in his *Sunan*, 9/302 and see *Zād al-Mu'ād*, 2/332

[175] See Bayhaqī, 3/302 and *Shu'ab al-Imān*, 15/104.

[176] See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/321, *Istidhkār* of Ibn 'Abdu'l-Barr, 5/559 and *al-Muhallā*, 7/529.

as a present to neighbours.'[177]

In that regard, sayings were narrated from Jābir Ibn ʿAbdullāh (*raḍiyAllāhu ʿanhu*) and from ʿA'ishah (*raḍiyAllāhu ʿanhā*).

Ibn Al-Mundhir narrates from ʿAṭā', from Abū Karz and Umm Karz, from a woman of ʿAbdu'l-Raḥmān Ibn Abī Bakr's household said: 'When ʿAbdu'l-Raḥmān's wife gave birth, we sacrificed a camel.' ʿA'ishah (*raḍiyAllāhu ʿanhā*) said: 'No, the Sunnah is two equivalent sheep, donated on behalf of the boy, and one on behalf of the girl. It should be cooked, but its bones should not be broken. It is then eaten [by the family], fed [to others] and donated. This should take place on the seventh day [of birth]; if not, then on the fourteenth; and if not, then on the twenty-first.' Ibn Al-Mundhir narrates that Al-Shāfiʿī said: 'The *ʿaqīqah* is an obligatory Sunnah. It should be free from defects that are not acceptable in the *uḍḥīyah* as well. Neither its meat nor its skin should be sold, nor should the bones be broken. The [newborn's] family should eat and donate from it, and the child should not be touched with any of its blood.'[179]

Abū ʿAmr says: 'Mālik's view is the same as Al-Shāfiʿī, except that he said: 'Its bones can be broken, and neighbours should be given to eat from it. However, people are not invited over [to eat] as in the banquet.'[180]

He also reported that Ibn Shihāb said: 'It is acceptable to break its bones, which is Mālik's view.'[181]

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[177] See *Istidhkār* of Ibn 'Abdu'l-Barr, 5/559.
[178] See *al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/417-418.
[179] See *al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/418.
[180] See *al-Tamḥīd* of Ibn 'Abdu'l-Barr, 4/321, *Istidhkār*, 5/558-559
[181] See *al-Muhallā* of Ibn Hazm, 7/528-529.

Those who view it alright to break its bones said: 'Nothing 'correct' was narrated in its prohibition, neither is there a Sunnah regarding its disapproval, which should be followed. It is the usual practice to break the meat's bones, to facilitate eating and utilizing it. There is no benefit in preventing that.'

Those who disapprove of breaking the bones cling to the reports we mentioned from Companions and Followers, and to the ḥadīth mursal[182] narrated by Abū Dāwūd.

They stated some of the wisdom behind that view:

First: To highlight the honour and rank of such food, as it is offered to eaters, given as presents to neighbours and fed to the poor. Therefore, it was recommended to be cut to pieces, each piece is complete in itself, none of its bones is broken, and no part of the limb is missing. No doubt that this is better and more generous than smaller pieces.

Second: If a present is significant, it gets a positive reception from the recipient, and indicates the nobility and vigor of the presenter. This carries a good omen for the nobility and vigor of the newborn.

Third: Since it is regarded as a ransom, it is preferred not to break its bones, as a good omen for the safety, strength and healthiness of the newborn's limbs, due to not breaking the bones of the child's ransom. Those who disapprove of breaking the bones follow the same rationale

[182] Ḥadīth mursal: A ḥadīth that is narrated by a Follower (2nd generation narrator) directly from the Messenger (ﷺ), while the companion (1st generation narrator) is not mentioned in the chain of narrators.

as those who disapprove of calling it *'aqīqah'*, This disapproval of breaking the bones is parallel to disapproval of the name. Allāh knows best.

Section Fourteen:
The Minimum Acceptable Age of the Animal

Al-Khallāl said in his *'Jāmi'*, Chapter on the recommended age for *'aqīqah*:

He then cited a question of Abū Ṭālib, when he asked Abū 'Abdullāh whether the *'aqīqah* is acceptable with a ewe or a big lamb, he said: 'A male [lamb] is better, and it was narrated "whether male or female",[183] so a ewe is fine as well.' He asked: 'The lamb then?' He said: 'The older is better.'

When the Prophet (ﷺ) said: 'If anyone has a child born to him, and wants to sacrifice for his child, then let him do it' this is evidence that the acceptable age therein is the same as other sacrifices such as *udḥīyah* and *ḥajj* offerings. Since it is a Sunnah, either obligatory or recommended, it follows the path of *udḥīyah* and *ḥajj* offerings regarding donation, presenting, eating and drawing nearer to Allāh the Exalted. Thus, the accepted age for them is also applicable for the *'aqīqah*. In addition, since it was decreed describing perfection, and therefore was made two sheep for the boy and that both should be equivalent, the regarded acceptable age is that of the obligatory sacrifices. That is why it follows the same path in its requirments in general.

Abū 'Umar Ibn 'Abdu'l-Barr said: 'Scholars have agreed that it is only acceptable in the *'aqīqah* what is acceptable in the *udḥīyah*;

[183] Refernce already mentioned

the eight mates,[184] except those who deviated, whose view are not considered an opposition.'

As for what is narrated by Mālik in *al-Muwaṭṭā'* from Rabi'ah Ibn 'Abdu'l-Raḥmān, from Muḥammad Ibn Ibrāhīm Al-Taymī that his father said: 'The *'aqīqah* is recommended even if by [sacrificing] a bird'[185]—it is a form of exaggeration. It is like when he (ﷺ) said to 'Umar regarding the horse: 'Do not buy it, even if he gave it to you for a *dirham*'[186] and his saying about the slave girl: 'If she committed adultery, sell her even for a hair rope.'[187]

Mālik said: 'The *'aqīqah* is like the sacrifices. It is not acceptable therein to sacrifice an animal that is one-eyed, scrawny, broken or ill. Neither its meat nor its skin should be sold, nor should its bones be broken. The [newborn's] family should eat and donate from it.'[188]

Section Fifteen:
Clarifying that it Cannot Be Shared, and is One *'Aqīqah* per Person

This is one of the differences between *'aqīqah* and *uḍḥīyah* or sacrifice. Al-Khallāl said in his *Jāmi'* in [Chapter on the viability of one camel on behalf of seven children]:

'Abdu'l-Mālik Ibn 'Abdu'l-Ḥamīd said that he asked Abū 'Abdullāh: 'Can you sacrifice a camel as *'aqīqah*?' He said: 'Has it not been done before?' He asked: 'Can you sacrifice a camel on

[184] They are mentioned in the verses [*al-An'ām* (6) :143-144]
[185] Imām Mālik in his *al-Muwaṭṭā'*, 1/419
[186] Bukhārī, 3/352 and Muslim, 3/1620
[187] Bukhārī, 6/421 and Muslim, 3/1329
[188] See *al-Tamḥīd* of Ibn 'Abdu'l-Barr, 4/320, *Istidhkār*, 5/558 and others

behalf of seven people, as *'aqīqah*?' He said: 'I never heard anything in that regard and I sensed he is not keen on the idea of seven people sharing in a camel as *'aqīqah*.'

I say: Since this sacrifice is regarded as a ransom for the child, it should be a complete sacrifice, in order to ransom one soul with another.

In addition, if it were acceptable to share in the *'aqīqah*, the desired blood shedding on behalf of the child would not take place, since the blood shedding happens for just one child, while for the others only distributing the meat is what takes place. The blood shedding itself is desired on behalf of the child.

This meaning is what is cited by those who disapprove of sharing in the *uḍḥīyah* and sacrifice.

However, the Sunnah of the Messenger (ﷺ) is more worthy of following. It was he who allowed sharing in the *uḍḥīyah* and *ḥajj* offerings, and it was he who decreed for the *'aqīqah* two separate animals for the child, which cannot be replaced by a camel or a cow. Allāh knows best.

Section Sixteen:
Is *'Aqīqah* Acceptable with Something Other than Sheep, like Cows and Camels?

Jurists have disagreed whether other animals are acceptable in the *'aqīqah*.

Ibn Al-Mundhir[189] said: 'They disagreed about performing the

[189] See *al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/415-416.

ʿaqīqah with animals other than sheep. We narrated that Anas Ibn Mālik used to sacrifice camels on behalf of his children, and that Abū Bakrah sacrificed a camel on behalf of his son, 'Abdu'l-Raḥmān, and fed with it the people of Baṣrah.'

He then narrated from Al-Ḥasan that he said: 'Anas Ibn Mālik used to sacrifice camels on behalf of his children.'

And then he narrated from Yaḥyā Ibn Yaḥyā, from Hushaym Ibn, from Ubaynah Ibn 'Abdu'l-Raḥmān, from his father, that Abū Bakrah had a son, 'Abdu'l-Raḥmān', born to him, and he was the first newborn in Baṣrah. He sacrificed a camel and fed it to the people of Baṣrah.[190]

Some of them disapproved of this and said: 'The Messenger of Allāh (ﷺ) ordered two sheep to be sacrificed for the boy and one for the girl, and it is not permitted to perform it otherwise.'

We narrated from Yūsuf Ibn Māhik that they entered upon Ḥafṣah bint 'Abdu'l-Raḥmān, who had given birth to a boy of Al-Mundhir Ibn Al-Zubayr, and asked her: 'Did you sacrifice a camel as *ʿaqīqah*?' She replied: '[I seek] the refuge of Allāh. My aunt ['A'ishah] used to say: "For a boy, two sheep were sufficient, and for a girl one sheep."'[191]

Mālik said: 'In *ʿaqīqah*, I prefer goats over cows, and sheep over camels. In *ḥajj* offerings, I prefer cows and camels over sheep, and prefer camels over cows.'[192]

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[190] *ibid*

[191] See *al-Ishrāf ʿalā Madhāhib* of Ibn al-Mundir, 3/416 and Bayhaqī in his *Sunan*, 9/301

[192] *Al-Ishrāf ʿalā Madhāhib* of Ibn al-Mundir, 3/416; see *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/315.

Ibn Al-Mundhir[193] said: 'Perhaps the argument of those who said that the *'aqīqah* is acceptable with camels and cows is the saying of the Prophet (ﷺ), "Along with a boy there is an *'aqīqah*, so shed blood on his behalf" without specifying the type of blood. Therefore, whatever is sacrificed on behalf of the child, according to the literal meaning of this ḥadīth, is acceptable.'

He added: 'Someone might say that this ḥadīth is concise, while the ḥadīth, "For the boy is two sheep, and for the girl is one" is detailed, and the detailed ḥadīth is a better source for legislation than the concise one.'

Section Seventeen:
Clarifying its Recipients

Al-Khallāl said in his *Jāmi'* in Chapter on what is donated and presented of the *'aqīqah*:

'Abdullāh Ibn Aḥmad reported that his father said: 'You can eat and send presents from the *'aqīqah*.'[194]

'Iṣmah Ibn 'Iṣām reports from Ḥanbal that Abū 'Abdullāh was asked what to do with the *'aqīqah*, he said: 'As you wish.'

Ibn Sīrīn used to say: 'Do as you wish.' He was asked: 'Can the family eat it?' He said: 'Yes, but not all of it; they should eat and feed others from it.'[195]

This was also narrated by Al-Athram,[196] but according to the

[193] *Al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/416; see *al-Ḥāwī al-Kabīr* of al-Māwardī, 127-128, and *Fatḥ al-'Azīz* of al-Rāfi'ī, 12/170.
[194] See *Masā'il al-Imām Aḥmad*, of 'Abdullāh, 3/879.
[195] Ibn Abi Shaybah in his *al-Muṣannaf*, 8/241 and Ibn Abī Dunyah in *al-'Iyāl*, 1/214.
[196] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/210

narration of Abū Al-Ḥārith and his son, Ṣāliḥ, he said: 'He should eat and feed his neighbours from it.'

His son, 'Abdullāh, asked him: 'How is the *'aqīqah* divided?" He said: "As he [the parent] likes.'[197]

Al-Maymūnī said that he asked Abū 'Abdullāh: 'Can the family eat from the *'aqīqah*?' He said: 'Yes, they can.' He said: 'How much can they eat?' He said: 'I do not know.' As for the *uḍḥīyah*, however, the ḥadīths narrated by Ibn Mas'ūd and Ibn 'Umar apply. Then he added: 'But the family can eat from the *'aqīqah*.' Al-Maymūnī asked: 'Is it similar to the *'aqīqah*, in that regard?' He said: 'Yes.'

Al-Maymūnī narrates from Abū 'Abdullāh that he said: 'A third of the *uḍḥīyah* is presented to neighbours.' He asked: 'The poor among neighbours?' He said: 'Yes, to poor neighbours.' He asked: 'Can the *'aqīqah* be treated similarly?' He said: 'Yes. Whoever does so is not far from right.'

Al-Khallāl conveys from Muḥammad Ibn 'Alī, from Al-Athram, that Abū 'Abdullāh was asked about the *'aqīqah*: 'Can some of it be saved, like the *uḍḥīyah*?' He said: 'I do not know.'

He also reports from Manṣūr: 'Abū 'Abdullāh was asked: 'Can some of it be sent to the midwife?' And I think he said: 'Yes.'

'Abdu'l-Mālik reports that Abū 'Abdullāh said: 'Some of it should be gifted to the midwife. It is reported that he (ﷺ) gifted some of it to the midwife, when he performed the *'aqīqah* for Al-Ḥusayn.'

[197] See *Masā'il al-Imām Aḥmad*, of his son 'Abdullāh, 3/880

Al-Khallāl conveys from Muḥammad Ibn Aḥmad, from his father, from his father, from Ḥafṣ Ibn Ghayyāth, from Ja'far Ibn Muḥammad, from his father, that the Prophet (ﷺ) commanded them to send a leg of the *'aqīqah* to the midwife.

Al-Bayhaqī narrates from Ḥusayn Ibn Zayd, from Ja'far Ibn Muḥammad, from his father, from his grandfather, from 'Alī, that the Messenger of Allāh (ﷺ) told Fāṭimah: 'Weigh Al-Ḥusayn's hair and donate it in silver, and give the midwife the *'aqīqah*'s leg.'[198]

Al-Ḥumaydī narrates from Ḥusayn Ibn Zayd, from Ja'far Ibn Muḥammad, from his father that 'Alī gave the *'aqīqah*'s leg to the midwife.[199]

People debated whether people should be invited over to eat from it, as in the marriage banquet (*walimah*), or should it be given as a present to people.

Abū 'Umar Ibn 'Abdu'l-Barr reports that Mālik said: 'Its bones can be broken, and neighbours should be given to eat from it. However, people are not invited over [to eat] as in the banquet.' He then adds, 'And I do not know any other jurist who disapproved of that [inviting people over to eat].'[200] Allāh knows best.

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[198] Bayhaqī in his *Sunan*, 9/304 and his *Shu'ab al-Imān*, 15/113, and Ḥākim in his *al-Mustadrik*, 3/179-180

[199] Bayhaqī in his *Sunan*, 9/304 and his *Shu'ab al-Imān*, 15/113,

[200] *Al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/321, *Istidhkār*, 5/559; see *al-Mughnī* of Ibn Qudāmah, 13/395, *al-Ḥāwī al-Kabīr* of al-Māwardī, 127-128, and and *Fatḥ al-'Azīz* of al-Rāfi'ī, 12/170.

Section Eighteen:
Provisions upon the Simultaneous Arrival of the *ʿAqīqah* and *Uḍḥīyah*

Al-Khallāl wrote, [Chapter on the reports that the *uḍḥīyah* does away with the *ʿaqīqah*]:

ʿAbdu'l-Mālik Al-Maymūnī told us that he asked Abū ʿAbdullāh: 'Is it possible to perform *uḍḥīyah* on the child's behalf instead of the *ʿaqīqah*?' He said: 'I do not know' then added: 'More than one hold this view.' He asked: 'From the Followers?' He said: 'Yes.'

ʿAbdu'l-Mālik told me in another instance that Abū ʿAbdullāh reports that some said: 'If the person performed *uḍḥīyah*, they do not have to perform the *ʿaqīqah*.'

ʿUṣmah Ibn ʿIṣām conveys from Ḥanbal, that Abū ʿAbdullāh said: "I have faith that the *uḍḥīyah* does away with the *ʿaqīqah*—by Allāh's will—for those who did not perform it."

ʿUṣmah Ibn ʿIṣām reports, in another instance, from Ḥanbal, that Abū ʿAbdullāh said: 'If a person performs the *uḍḥīyah*, it does away with the *ʿaqīqah*.'

He also said: 'I saw that Abū ʿAbdullāh bought an *uḍḥīyah* and sacrificed it on behalf of himself and his family. His son, ʿAbdullāh, was young, so he sacrificed it, I think, both as *ʿaqīqah* and as *uḍḥīyah*. He divided the meat and ate of it.'

ʿAbdullāh Ibn Aḥmad said[201] that he asked his father about the *ʿaqīqah'* on the day of *al-Aḍḥa*: 'Can it be regarded as *uḍḥīyah* and

[201] See *Masā'il al-Imām Aḥmad*, of his son ʿAbdullāh, 3/880

ʿaqīqah?' He said: 'either *uḍḥīyah* or *ʿaqīqah*, depending on what he says upon sacrificing.'[202]

This entails three views interpreted from Abū ʿAbdullāh:

First: The sacrifice suffices for both of them.
Second: The sacrifice suffices for one of them.
Third: Dependance [on what is said].[203]

The reason for not sufficing for both of them: Because each sacrifice is for a different purpose. Thus, no one sacrifice can suffice for them both, like in the sacrifice of *al-tamatu*ʿ[204] and the sacrifice of ransom.

The reason for sufficing for both of them is because the purpose was achieved with one sacrifice. The *uḍḥīyah* on behalf of the newborn is recommended like the *ʿaqīqah*. If the parent performed the *uḍḥīyah* and intended it as *ʿaqīqah* too, it suffices for both of them. Like if the person prayed two units [of prayer], intended both as *taḥiyyah al-masjid*[205] and as *nawāfil*,[206] or if he/she prayed an obligatory or a recommended prayer after *ṭawāf*, it suffices both for itself and for the *ṭawāf*.[207]

Similarly, if the pilgrim performing *ḥajj al-tamatuʿ* sacrificed a ram on *ʿīd al-aḍḥa*, it suffices for the sacrifice of *al-tamatuʿ* and the sacrifice of *uḍḥīyah*. Allāh knows best.

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[202] See 'Abdu'l-Razzāq in his *al-Jāmiʿ*, #7996, Ibn Abī Shaybah, 12/329

[203] See *al-Insāf* of al-Mardāwī, 4/111

[204] *Al-Tamattuʿ* means performing *ʿumrah* during the *ḥajj* season; and on the day of *tarwiyah* the pilgrim gets into the state of ihrām for *ḥajj*.

[205] *Taḥiyyah al-masjid*: Two units of prayer performed upon entering the *masjid*, to greet the House of Allāh.

[206] *Nawāfil*: Recommended prayers associated with the obligatory prayers.

[207] It is recommended to pray two units after performing tawaf.

Section Nineteen:
Requirments of Those Whose Parents Did Not Perform *ʿAqīqah*, Should They Perform it for Themselves after Maturity?

Al-Khallāl stated in Chapter on the desirability of performing *ʿaqīqah* for oneself after maturity, if not performed on one's behalf after birth one of the questions of Ismāʿīl Ibn Saʿīd Al-Shalanjī, who asked Aḥmad: 'If a man was told by his father that he did not perform *ʿaqīqah* on his behalf; should he perform it for himself?' He said: 'It is the father's responsibility.'[209]

He also stated a question of Al-Maymūnī, who asked Abū 'Abdullāh: 'If the *ʿaqīqah* was not performed on one's behalf at a young age, should it be performed [by the parent] after maturity?' Abū 'Abdullāh reported something he deemed weak in support of that view, and then he recommended performing it after maturity if not performed at a young age, and said: 'If someone did it, I would not disapprove.'

'Abdu'l-Mālik reported in another instance that he asked Abū 'Abdullāh: 'Should the parent perform it after the child's maturity?' He said: 'I did not hear any reports regarding *ʿaqīqah* for a mature person.' He [ʿAbdu'l-Mālik] said: 'His father was poor, and then became rich, and he did not wish to leave his son without *ʿaqīqah*.' He [Abū 'Abdullāh] said: 'I do not know, and I did not hear any reports regarding *ʿaqīqah* for a mature person." He then added: 'Whoever did it, it is fine, and some deem it obligatory.'

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[208] *Al-tamattuʿ* means performing *ʿumrah* during the *ḥajj* season; and on the Day of *Tarwiyah* the pilgrim gets into the state of *iḥrām* for *ḥajj*.

[209] See *Fatḥ al-Barī* of Ibn Ḥajr, 9/595

Al-Khallāl narrates from Abū Al-Muthannā Al-Anbarī, from Abū Dāwūd, from Aḥmad, who was narrating that ḥadīth of Al-Haytham Ibn Jamīl, from 'Abdullāh Ibn Al-Muthannā, from Thumāmah, on the authority Anas (*raḍiyAllāhu 'anhu*) that the Prophet (ﷺ) performed the *'aqīqah* for himself.[210]

Aḥmad said: 'The ḥadīth of 'Abdullāh Ibn Al-Muharrar, on the authority Anas (*raḍiyAllāhu 'anhu*) that the Prophet (ﷺ) performed the *'aqīqah* for himself is *munkar,*[211] and 'Abdullāh Ibn Al-Muharrar is a weak narrator.'

Al-Khallāl narrates from Muḥammad Ibn 'Awf Al-Ḥimṣī, from Al-Haytham Ibn Jamīl, from 'Abdullāh Ibn Al-Muthannā, from a man of Anas' family, that the Prophet (ﷺ) performed the *'aqīqah* for himself after receiving prophethood.[212]

In the *Muṣannaf* of 'Abdu'l-Razzāq: 'Abdullāh Ibn Muharrar narrates, from Qatādah, on the authority Anas (*raḍiyAllāhu 'anhu*) that the Prophet (ﷺ) performed the *'aqīqah* for himself after receiving Prophethood. 'Abdu'l-Razzāq said: 'They deemed Ibn Muharrar a weak narrator because of this ḥadīth.'[213]

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[210] Al-Ṭahāwī in his *Mushkil al-Āthār*, 3/78-79, Ṭabarāni in *al-Awsaṭ*, 1/529 and al-Bayhaqī in his *Sunan*, 9/300

[211] Ḥadīth munkar is a ḥadīth narrated by a weak narrator and possibly contradicts another authentic ḥadīth.

[212] See *al-Mughnī* of Ibn Qudāmah, 13/397; see *al-Ḥāwī al-Kabīr* of al-Māwardī, 15/129

[213] 'Abdu'l-Razzāq in his *al-Muṣannaf*, 4/329 and Bazzār, #7281

Section Twenty:
Requirement of the *ʿAqīqah*'s Skin and Offal

Al-Khallāl reports from ʿAbdu'l-Mālik Al-Maymūnī that Abū ʿAbdullāh was asked: 'The skin, head and offal;[214] should they be sold and donated?' He said: 'Donated.'[215]

ʿAbdullāh Ibn Aḥmad narrates from his father, from Yazīd, from Hisham, that Al-Ḥasan said: 'It is disapproved to give the skin of the *ʿaqīqah* or the *uḍḥīyah* as payment.'[216]

I say: It means that it is not recommended to give it as a fee to the butcher or the cook.[217]

Abū ʿAbdullāh Ibn Ḥamdān says in his book *Al-Riʿāyah*:[218] 'It is permitted to sell its skin, offal and head, and donate their value. That is stipulated by [Imām Aḥmad]. Some say it is prohibited and unacceptable to sell them.[219] Others say that the provisions of the *uḍḥīyah* [in this regard] are transferrable to the *ʿaqīqah*, and vice versa. Therefore, there are two views in this regard. However, differentiation is more common."

I say: The quote he made is the Al-Maymūnī's problem we mentioned earlier. It can be interpreted as he said, and as the opposite meaning as well: To donate it regardless of the price. Therefore,

[214] Offal, also called variety meats, pluck or organ meats, refers to the internal organs and entrails of a butchered animal.
[215] See *al-Tamām* of Ibn Yaʿlā, 2/234
[216] See *Masāʾil al-Imām Aḥmad*, of ʿAbdullāh, 3/880 and *al-Mughnī*, 13/382-383.
[217] We have already mentioned what was narrated from Aḥmad by Ḥanbal: 'Do with it as you please' and by ʿAbdullāh: 'He can divide it as he pleases.' See *Masāʾil al-Imām Aḥmad*, of ʿAbdullāh, 3/880
[218] *Al-Riʿāyah* of Ibn Ḥamdān, 1/257 and *al-Insāf* of al-Mardāwī, 4/113
[219] See *al-Tamām* of Ibn Yaʿlā, 2/233

look at it carefully, unless he reported another explicit quote regarding selling.'

He [Al-Maymūnī's] said: 'As narratedby Ja'far Ibn Muḥammad, when he was asked about the cowhide of the *uḍḥīyah* and said: 'It is narrated that Ibn 'Umar said, "It should be sold and its value be donated." It is unlike the sheepskin that can be used to make a rug for prayers, but this is not useful to the household. The cowhide is worth such-and-such.'

Al-Khallāl conveyed from 'Abdu'l-Mālik Ibn 'Abdu'l-Ḥāmid that Abū 'Abdullāh said: 'Ibn 'Umar sold the cowhide and donated its worth. This should not be sold [for one's gain], because the camel hide and cowhide are not useful for anyone. They are put in the house and sat upon. It is not good for anything in the house. It should be sold and donated. However, the sheepskin has many uses.'[220]

Al-Athram said that he heard Abū 'Abdullāh say—and he mentioned the saying of Ibn 'Umar that the cowhide should be sold and donated—as if he meant it has a significant worth.

Isḥāq Ibn Mansūr[221] reports that he asked Abū 'Abdullāh: 'The skin of the *uḍḥīyah*; what should be done with it?' He said: 'It should be utilised and donated.' He asked: 'Do you mean sold and donated?' He said: 'Yes, [according to] the saying of Ibn Umar.'

Al-Marwāzī said: 'The view of Abū 'Abdullāh is that the *uḍḥīyah*'s skin is not to be sold [for one's gain], but be donated instead.[222] He cited the Prophet's (ﷺ) ḥadīth that he commanded donating

[220] See *al-Tamām* of Ibn Ya'lā, 2/234

[221] See *Masā'il al-Imām Aḥmad*, of Isḥāq, 8/4048

[222] See *al-Insāf* of al-Mardāwī, 4/92-93 and *al-Furū'* of Ibn Mufliḥ, 3/554.

their skin and saddler.'[223]

He said: 'As narrated by Ḥanbal, it is alright to use the *uḍḥīyah*'s skin to make a rug to sit upon, but it should not be sold except only to donate its value. He said, "If this sacrifice was obligatory, to fulfill a vow or the like, he should sell it and donate its value. But if it was voluntary, he can utilise it in his house if he wishes."'

He said: 'As narrated by Ja'far Ibn Muḥammad, "The *uḍḥīyah*'s skin should be donated or utilized in the house as a rug, but not sold."'

He said: 'As narrated by Abū'l-Ḥārith: 'It should be donated or utilized as a rug for sitting or praying in the house."'

As narrated by Ibn Manṣūr : 'He should donate or utilize its skin, but not sell it.'

In Al-Maymūni's narration, he said: 'It should not be sold, but donated.' They said: 'How about selling it and donating its value?' He said: 'No. He should donate it as it is.'

Aḥmad Ibn Al-Qāsim reports that Abū 'Abdullāh said, regarding the *uḍḥīyah*'s skin: 'It is recommended that it is used to buy a sieve or something used in the house, instead of giving it to the butcher."

Abū Ṭālib said that he asked Abū 'Abdullāh about the *uḍḥīyah*'s skin, and he said: 'Al-Sha'bī and Ibrāhīm say that it should be used to buy a sieve or a screen, without selling it and using its value to buy that.' He asked: 'Do you mean barter with it?' He said: 'Yes.' Abū Ṭālib asked: 'Do you support this view?' He said: 'He

[223] Bukhārī, 3/549 and Muslim, 2/954

should offer it to Allāh, and not sell it, because the Prophet (ﷺ) commanded 'Alī to donate the skin and saddler.' He asked: 'Can I give it to the butcher?' He said: 'No' He asked: 'Can I sell it and donate its value?' He said: 'No. Ibn 'Umar used to give it to the poor, for them to sell it themselves.' He asked: 'Can I sell it for three dirhams and give that to three poor people?' He said: 'Bring them together and give it [the skin] to them.'

He also reported that Maṣrūq and Alqamah used to utilize it as a prayer rug or something in the house. That is the cheapest way in that regard, to be utilized at home.

Al-Khallāl then said in Chapter on recommending selling the cowhide and donating its value: 'Manṣūr Ibn Al-Walīd reports from Ja'far Ibn Muḥammad, that Abū 'Abdullāh was asked about the cowhide, and said, 'It was narrated that Ibn 'Umar said, "It should be sold and its value be donated. It is unlike the sheep skin that can be used to make a rug for prayers, but this is not useful to the household. The cowhide is worth such-and-such.' Abū'l-Ḥārith says that Abū 'Abdullāh was asked about the cowhide of the *uḍḥīyah*, and he said: 'It is narrated that Ibn 'Umar said to sell it and donate its value.'"

Muhannā said that he asked Aḥmad: 'The person can buy a cow to sacrifice as *uḍḥīyah*, and sell its hide for twenty *dirhams* and even more, so he buys anther *uḍḥīyah* with that value. What do you think of that?' He said: 'Something similar is narrated from Ibn 'Umar in that regard.'

Isḥāq Ibn Manṣūr[225] reports that he asked Abū 'Abdullāh: 'The skin of the *uḍḥīyah*; what should be done with it?' He said: 'It

[224] See *Masā'il al-Imām Aḥmad*, of Isḥāq, 8/4048.
[225] See *Masā'il al-Imām Aḥmad*, of Isḥāq, 8/4048.

should be utilized and donated' He asked: 'Do you mean sold and donated?' He said: 'Yes, [according to] the saying of Ibn 'Umar.'

These are his citations regarding the hide of the *'aqīqah* and the uḍḥīyah, both in the obligatory and voluntary sacrifices.[226] Allāh knows best.

Section Twenty-One:
What Should Be Said when Slaughtering the *'Aqīqah*

Ibn Al-Mundhir said under Mentioning the name of the child on whose behalf the *'aqīqah* is performed: 'Abdullāh Ibn Muḥammad narrates from his father, from Hisham, from Ibn Jurayj, from Yaḥyā Ibn Sa'īd, from 'Amrah bint 'Abdu'l-Raḥmān that 'A'ishah (*raḍiyAllāhu 'anhā*) said, "The Prophet (ﷺ) said: "Slaughter with the child's name, and say: In the name of Allāh. O Allāh! That is from you and to you, this is the *'aqīqah* of such-and-such.""[227]

Ibn Al-Mundhir said: "This is alright. If he intended the *'aqīqah* but did not utter the name, it also counts, by Allāh's will."[228]

Al-Khallāl said in Chapter on what should be said when slaughtering the *'aqīqah*: Aḥmad Ibn Muḥammad Ibn Maṭar and Zakariyah Ibn Yaḥyā, both, narrate from Abū Ṭālib that he asked Abū

[226] See *al-Mughnī* of Ibn Qudāmah, 13/396, *al-Insāf* of al-Mardāwī, 4/113-114, *Fatḥ al-'Azīz* of al-Rāfi'ī, 12/112-116 and *al-Ḥāwī al-Kabīr* of al-Māwardī, 15/129.

[227] 'Abdu'l-Razzāq, 4/330, Abū Ya'lā, 4/301, al-Bayhaqī in his *Sunan*, 9/304 and it is authenticated by al-Ḥākim, 4/237 and Dhahabī agreed with him.

[228] See *al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/420.

'Abdullāh: 'If a man wished to perform *uḍḥīyah*, what should he say?' He said: 'He should say: "In the name of Allāh," and then perform it with the *'aqīqah* the intention in his heart, just like he does in *uḍḥīyah*. He should say: "This is the *'aqīqah* of such-and-such."'

It is apparent that he considered both the intention and the utterance of the words, just as *talbiyah* and *iḥrām* [in *ḥajj*] on behalf of someone else are done both by the intention and verbally, he says: 'Here I am, O Allāh, on behalf of such-and-such' or 'My *iḥrām* is on behalf of such-and-such.'

We understand from this that if someone wished to grant the reward of his deed to someone, he should make so his intention, and say: 'O Allāh! This is on behalf of so-and-so' or 'give the reward of this deed to so-and-so.'

Some people say: 'It must be conditional and he should say: "O Allāh! If you accept this deed from me, give its reward to such-and-such," for he does not know whether or not it is accepted from him.'

That is not necessary, and is opposed by the ḥadīth, when the Prophet (ﷺ) heard the man saying: 'O Allāh! Here I am in response to Your call on behalf of Shubrumah'[229] he did not say, 'You should say: "O Allāh, if you accept my Ihram, make it on behalf of Shubrumah,"' neither did he say so to the man who asked if he could perform *ḥajj* on behalf of his relative, in any other ḥadīth. The Prophet's (ﷺ) guidance is more worthy to be followed.

[229] Abū Dāwūd, 7/160

It is not reported that any of the early scholars tied the *ḥajj* offerings, *uḍḥīyah* or the *ʿaqīqah* on behalf of others to a condition. Rather what is reported from them is to say: 'O Allāh! This is on behalf of such-and-such' and that is enough. Allāh the Exalted will only give the reward for the deeds he accepts, whether or not it is stated by the person. Allāh knows best.

Section Twenty-Two:
The Reason Why it is Designated for the Seventh Day and its Multiples

There are four matters linked to the seventh day and its multiples: The *ʿaqīqah*, the head shaving, naming and circumcision of the newborn.

The first two are unanimously recommended on the seventh day. As for naming and circumcision, they are debated, as will be mentioned, Allāh willing.

We have already cited the reports on performing the *ʿaqīqah* on the seventh day.

The wisdom behind this—and Allāh knows best—is that when the baby is born, his status regarding soundness and damage is uncertain, and it is still unclear whether he will survive or not, until after a certain period, when his apparent condition demonstrates his soundness, health and viability. This period is set at a week, for it is a cycle of days, just as the year is a cycle of months.

This is the period that Allāh determined upon creating the heavens and the earth. He, the Exalted, designated six days to the creation of the world, gave each day a special name, and linked

each day to a type of creation that He created thereon. He made the day of completing and gathering the creation—which is the day of assembling of the creation —a day of gathering and celebration for the believers. They gather on that day to worship, remember, praise, laud, glorify Him as well as devote themselves to praise and serve Him and remember the beginning of creation and the return to Allāh, designated for that day. This is the day when the Lord, Blessed and Exalted, established Himself above the Throne, when He created our father, Ādam, when He admitted him into Paradise, when He expelled him therefrom, and when this world will end and the Day the Hour appears. It is the day when Allāh the Exalted comes to bring His creation into account, and admits the people of Paradise to their accommodation, and the people of Hell to their destination.[230]

We mean to say that these days are the first stage of life, if the newborn passes it, he/she moves into the second stage—the months, and if they passed it, they move into the third stage—the years. Anything less than these days is of incomplete creation, and anything more is repeated and it will restate what was already mentioned. Therefore, the six was made an end for completing the creation, and the assembly took place at the end of the sixth day. That is why naming, removing harm, ransoming and releasing the mortgage of the newborn were designated to the seventh day. Just as Allāh, the Exalted, made the seventh day of the week a day of celebration for them, to gather and demonstrate His praise and remembrance, rejoicing in what Allāh has bestowed upon them of His bounty of preferring them over the rest of the creatures, that were created on the previous days.

In addition, it is the wisdom of Allāh, the Exalted, to change the

[230] See *Zād al-Mu'ād* of Ibn Qayyim, 1/375-425

state of the servant every seven days and transfer him from one state to another, so that the seven days are a phase and a stage of his. That is why you find the state of the patient changing on the seventh days, and it must do, either for better or for worse.

Since the wisdom of Allāh, the Exalted, determined that, He designated for His servant every seven days one day to be desirous towards Him—humbly supplicating and praying to Him, so that it becomes a major cause of their welfare in this life and the Hereafter, and of driving much evil away from them. Glory is to Him whose wisdom, in creation and legislation, impressed the minds.

Allāh knows best.

[231] See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/318, *Istidhkār*, 5/550-559

CHAPTER SEVEN

Shaving the Child's Head, and Donating the Weight of His Hair

Abū 'Umar Ibn 'Abdu'l-Barr[231] said: 'As for shaving the child's head at the *'aqīqah*, the scholars recommended it, and it is reported from the Prophet (ﷺ) that he said in the ḥadīth of the *'aqīqah*, "And shave his head, and name him."'

Al-Khallāl said in his *al-Jāmi'*: [Clarifying shaving the child's head and donating the weight of his hair.]: Muḥammad Ibn 'Alī narrates from Ṣāliḥ that his father said, 'It is recommended to shave the newborn's head on the seventh day.'[232]

Al-Ḥasan narrated on the authority of Samurah (*raḍiyAllāhu 'anhu*) that the Prophet (ﷺ) said: 'Shave his head.' Salmān Ibn 'Āmir narrated that the Prophet (ﷺ) said: 'Remove harm from him.'[233]

Al-Ḥasan was asked about his saying (ﷺ) 'Remove harm from him,' and he said: 'It means shaving his head.'

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[231] See *al-Tamhīd* of Ibn 'Abdu'l-Barr, 4/318, and his *Istidhkār*, 5/550-559

[232] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ 2/209, *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 256 and *Masā'il al-Imām Aḥmad*, of Isḥāq, 8/3948

[233] Reference already mentioned.

Ḥanbal said conveys that Abū ʿAbdullāh said: 'The child's head should be shaved.'

Al-Faḍl Ibn Ziyād said that he asked Abū ʿAbdullāh: 'Should the child's head be shaved?' He said: 'Yes.' He asked: 'Should it be smeared with the blood?' He said: 'No, that is of the acts of pre-Islāmic Ignorance.'

Ṣāliḥ Ibn Aḥmad conveys that his father said: 'It is said that Fāṭimah (*raḍiyAllāhu ʿanhā*) shaved the heads of Al-Ḥasan and Al-Ḥusayn, and donated the weight of their hair in silver *dirhams*.'[234]

Ḥanbal reports that Abū ʿAbdullāh said: 'It is alright to donate the weight of the child's hair.'

Mālik narrated in his *Al-Muwaṭṭā'* from Jaʿfar Ibn Muḥammad that his father said: 'Fāṭimah weighed the hair of Al-Ḥasan, Al-Ḥusayn, Zaynab and Umm Kulthum, and donated that weight in silver.'[235]

Also in *al-Muwaṭṭā'* from Rabīʿah Ibn Abū ʿAbdu'l-Raḥmān, from Muḥammad Ibn ʿAlī Ibn Al-Ḥusayn that he said: 'Fāṭimah, the daughter of the Messenger (ﷺ), weighed the hair of Al-Ḥasan and Al-Ḥusayn, and donated that weight in silver.'[236]

Yaḥyā Ibn Kathīr narrates from Ibn Luhayʿah, from ʿUmārah Ibn Ghaziyah, from Rabīʿah Ibn Abū ʿAbdu'l-Raḥmān, on the authority of Anas Ibn Mālik (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) commanded the heads of Al-Ḥasan and Al-Ḥusayn to be shaved

[234] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/213
[235] *Al-Muwaṭṭā'* of Imām Mālik, 1/418, *al-Murāsil* of Abū Dāwūd, p.279 no. #380
[236] *ibid*

on their seventh day, and he donated their weight in silver.[237]

'Abdu'l-Razzāq narrates from Ibn Jurayj that Muhamad Ibn 'Alī said: 'Whenever Fāṭimah, the Messenger's (ﷺ) daughter, had a child born, she would order his head to be shaved and donate the hair's weight in silver dirhams.'[238]

Abū 'Umar conveys that 'Aṭā' said: 'Shaving the head should start before the sacrifice.'[239]

I say, and Allāh knows best: It is as if he meant, with that, to differentiate it from the rituals of *ḥajj*, since the Sunnah there is to perform the sacrifice before shaving the head. I know no other reports from 'Aṭā' in that regard.

Ibn Isḥāq narrated from 'Abdullāh Ibn Abū Bakr, from Muḥammad Ibn Al-Ḥusayn, from 'Alī who said: 'The Messenger of Allāh (ﷺ) sacrificed a lamb for Al-Ḥasan and said, "O Fāṭimah! Shave his head and donate his hair's weight in silver." We weighed it and it was equivalent to one *dirham* or a fraction of a *dirham*.'[240]

Al-Bayhaqī narrated from Ibn 'Aqīl, from 'Alī Ibn Abū'l-Ḥusayn, from Abū Rāfi', that when Al-Ḥasan was born, his mother wanted to sacrifice a great ram for him, so she came to the Prophet (ﷺ) and he said: 'Do not sacrifice anything on his behalf. Instead, shave his head and donate the hair's weight for the cause of Allāh and for the stranded traveler.' She gave birth to Al-Ḥusayn in the next year, and she did that as well.[241]

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[237] Al-Bayhaqī, in his *Sunan*, 9/299

[238] See *al-Muṣannaf* of 'Abdu'l-Razzāq, 4/333

[239] See *Istidhkār* of Ibn 'Abdu'l-Barr, 5/550 and Ibn Abī Dunyah in *al-'Iyāl*, 1/222.

[240] Tirmidhī, 4/84, Ḥākim, 4/237, al-Bayhaqī in his *Sunan*, 9/304

Al-Bayhaqī said: 'If that narration proved to be authentic, he wished to perform the *'aqīqah* for them himself, as we already stated.'[242]

Section One:
Al-Qaza' (Partial Shaving)

One of the issues related to shaving is *al-qaza'* (partial shaving), which means, shaving part of the child's head and leaving the rest. Al-Bayhaqī said: 'As narrated in both in al-Bukhārī and Muslim from 'Ubaydullāh Ibn 'Umar, from 'Umar Ibn Nafi', from his father, from Ibn 'Umar (*radiyAllāhu 'anhumā*) who said: "The Messenger (ﷺ) forbade *al-qaza'*."'[243]

Al-Qaza' means to partially shave the head.[244]

It is said: 'This demonstrates the complete love by Allāh and his Messenger for justice. He commanded it even in the one's matters with himself. He forbade him to shave some parts of his head and leave the rest, for this is unfair to his head, since he left some of it covered and the other bare.

Similarly, he forbade sitting with one part in the sun and the other in the shade,[245] for this is unfair to a part of his body. Similarly as well, he forbade walking in one shoe; he should either wear them both or take them both off.'[246]

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[241] Al-Bayhaqī in his *Sunan*, 9/304
[242] Reference already mentioned
[243] Bukhārī, 1/363 and Muslim, 3/1675
[244] See *al-Nihāyah* of Ibn al-Athīr, 4/59
[245] Ibn Mājah, #3722, Imām Aḥmad in his *al-Musnad*, 3/414 and others

There are four types of *al-qaza'*:

1- To shave scattered parts of his head. *Al-qaza'* originally means the separation of a cloud's parts.
2- To shave the middle and leave the sides, as the Christian deacons do.
3- To shave the sides and leave the middle, as many rabble and delinquents do.
4- To shave the front and leave the back.

All these are forms of *al-qaza'*.

Allāh knows best.

[246] Bukhārī, 10/309 and Muslim, 3/1660

CHAPTER EIGHT

Naming the Child, its Timing and its Provisions

This [chapter] consists of ten sections:

Section 1: The time for naming.
Section 2: The desirable, forbidden and disapproved of names.
Section 3: The desirability of changing the name, if beneficial.
Section 4: The permissibility of cognominating the newborn
Section 5: Selecting the name is the father's right, not the mother's.
Section 6: The difference between the name, nickname and *kunyah* (cognomen).
Section 7: The requirements of naming after our Prophet (ﷺ) and sharing his *kunyah*, and the ḥadīths in this regard.
Section 8: The permissibility of having multiple names.
Section 9: The relation between the name's meaning with the person, and the appropriateness therein.
Section 10: Clarifying that people are called, on the Day of Judgment, by their fathers' names, not their mothers'.

Section One:
The Time for Naming

Al-Khallāl said in his *Jāmi'*, [Chapter on Naming the Child]: 'Abdu'l-Mālik Ibn 'Abdu'l-Ḥāmid reports, "We were discussing when the child should be named, and Abū 'Abdullāh told us: "Thābit narrates from Anas that the child should be named after three days. But according to Samurah—referring to his ḥadīth—it should happen on the seventh day.' Therefore, the naming is required on the seventh."

Ja'far Ibn Muḥammad narrates from Yaq'ūb Ibn Bukhtān, that Abū 'Abdullāh said: 'According to Anas' ḥadīth, the child is named on the third day, and according to Samurah's ḥadīth, he should be named on the seventh.' And he stated Samurah's ḥadīth.

Muḥammad Ibn 'Alī conveys from Ṣāliḥ that his father said: 'It is recommended to name the child on the seventh day'... and he stated Samurah's ḥadīth.

Ibn Al-Mundhir said in *Al-Awsaṭ*[247]: [Naming the Child on his Seventh Day]: 'Ḥadīths were reported from the Prophet (ﷺ) that he commanded naming the child on the seventh day. We have mentioned the chain of narrators ending with 'Abdullāh Ibn 'Amr.'

I say: He meant the ḥadīth narrated by Isḥāq Ibn 'Amr Ibn Shu'ayb, from his father, from his grandfather, "The Prophet (ﷺ) ordered naming the child, performing his *'aqīqah* and removing the harm from him on his seventh day.' This ḥadīth was already mentioned, along with Samurah's ḥadīth.

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[247] See *al-Ishrāf 'alā Madhāhib al-'Ulamā'* of Ibn al-Mundhir, 3/421.

Al-Bayhaqī said in his Sunan, [Chapter on naming the child once born]: 'It is stronger than the seventh day.'[248]

He then narrated[249] the ḥadīth of Ḥammād Ibn Salamah, from Thābit, on the authority of Anas (*raḍiyAllāhu ʿanhu*) who said: 'I took ʿAbdullāh Ibn Abū Ṭalḥah when he was born to the Messenger (ﷺ), while the Messenger (ﷺ) was tar-washing a camel of his.[250] He (ﷺ) said: "Do you have dates?" I said: "Yes", and I handed him some dates, which he put in his mouth and chewed, then opened the boy's mouth and put them inside, and the boy kept sucking his lips in relish. The Prophet (ﷺ) said: '*Al-Anṣār*[251] love dates."'

It was narrated in both al-Bukhārī and Muslim from Anas Ibn Sirin on the authority of Anas Ibn Mālik (*raḍiyAllāhu ʿanhu*).[252]

He also stated the ḥadīth of Yazīd Ibn ʿAbdullāh from Abū Burdah, from Abū Mūsā who said: "A boy was born to me, so I brought him to the Prophet (ﷺ) who named him Ibrāhīm, and performed Tahnik to him with a date."[253]

I say: In both al-Bukhārī and Muslim,[254] Sahl Ibn Saʿd Al-Sāʿīdī said: 'Al-Mundhir Ibn Abū Usayd was brought to the Messenger (ﷺ) when he was born. The Prophet (ﷺ) placed him on his thigh, while Abū Usayd was sitting down. Then the Prophet (ﷺ) got distracted with something, so Abū Usayd called for his son, who

[248] He means that reports in that regard are stronger than those which stipulate naming on the seventh day. See al-Bayhaqī in his *Sunan*, 9/305.
[249] *ibid*
[250] To treat the wounds of war.
[251] *Al-Anṣār* (The Supporters): Residents of Medīnah who supported the Prophet (ﷺ) after migrating from Makkah.
[252] Bukhārī, 9/587 and Muslim, 3/1689
[253] See al-Bayhaqī in his *Sunan*, 9/305.
[254] Bukhārī, 10/575 and Muslim, 3/1692

was lifted away from the Prophet's (ﷺ) thigh. The Messenger (ﷺ) asked: 'Where is the boy?' Abū Usayd said: 'We took him away, O Messenger of Allāh!' He said: "What is his name?" He said: 'Such-and-such.' He said: 'No. His name is Al-Mundhir.'[255]

Muslim states the ḥadīth narrated by Sulaymān Ibn Al-Mughīrah, from Thābit, on the authority of Anas (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: "A boy was born to me tonight, and I named him after my grandfather, Ibrāhīm" and he continued the ḥadīth about the story of his death.[256]

Abū 'Umar Ibn 'Abdu'l-Barr said in *Al-Istayʿāb*: Māriyah Al-Qibtiyya, the Prophet's (ﷺ) concubine, gave birth to his boy, Ibrāhīm, in Dhu'l-Hijjah in the eighth year.

Al-Zubayr Ibn Bakkār conveyed from his masters that Ibrāhīm's mother gave birth to him in Al-'Āliyah, the Prophet (ﷺ) performed his *ʿaqīqah* on his seventh day, his head was shaved by Abū Hind, and he (ﷺ) donated the hair's weight in silver to the poor. He ordered the hair to be buried in the ground, and he named him on that day.

That is what Al-Zubayr said: 'He named him on the seventh.' However, the ḥadīth is more authentic and reliable than his saying.[257]

He then stated Anas' ḥadīth: 'Her midwife was Salmah, the Messenger's (ﷺ) freed slave woman. She went to her husband, Abū Rāfiʿ, and told him that Māriyah gave birth to a boy. Abū Rāfiʿ went to the Messenger (ﷺ) and gave him the good news, so he

[255] It means "The Warner".
[256] Muslim, 4/1807
[257] *Al-Istayʿāb* of 'Abdu'l-Barr, 1/54.

(ﷺ) gifted him with a slave boy.'[258]

I say: The story of Māriyah and Ibrāhīm contain a number of Sunnahs:

1- Desirability of accepting the gift (*al-hadiya*).
2- Accepting the gift from People of the Book (*ahlu'l-kitāb*).
3- Accepting slaves as a gift.
4- The permissibility of having a concubine.
5- Delivering the good news to the one who has a child born to him.
6- Desirability of rewarding the bringer of good news.
7- The *'aqīqah* on behalf of the newborn.
8- The *'aqīqah* on the seventh day.
9- Shaving the newborn's head
10- Donating the hair's weight in silver dirhams.
11- Burying the head in the ground, and not throwing it under people's feet.
12- Naming the child on the day of his birth.
13- The permissibility of giving the boy to someone, other than his mother, to breastfeed and nurse him.
14- Desirability of the father visiting his child. When the Prophet (ﷺ) heard about his sons illness, he went to visit him at the house of Abū Sayf, the blacksmith. He called for him and held him close, while the boy breathed his last. The Prophet's (ﷺ) eyes teared and said: 'The eyes shed tears, and the heart is grieved, but we say only that which pleases our Lord. We are grieved over you, O Ibrāhīm.'[259]
15- The permissibility of crying over the dead. Among

[258] *Al-Istay'āb* of 'Abdu'l-Barr, 1/54 and see *al-Ṭabāqāt al-Kubrah* of Ibn Sa'd, 1/135.
[259] Bukhārī, 3/172 and Muslim, 4/1807.

> the virtues that were reported of Al-Fuḍayl Ibn ʿIyād was that he laughed on the day his son died. When he was asked about that, he said: ʿAllāh, the Exalted, has decided a matter [the child's death], and I wanted to demonstrate my acceptance to His decision.'[260]

However, the Messenger's (ﷺ) guidance is better and more perfect; as he combined acceptance with Allāh's decision with mercy for the child. When Saʿd Ibn ʿUbadah (*raḍiyAllāhu ʿanhu*) asked him: 'What is that, O Messenger of Allāh?' He said: 'This is mercy, and Allāh is only merciful to the merciful among his servants.'[261]

Al-Fuḍayl was not able to combine the two, accepting Allāh's will and crying in mercy for the child. That is the answer that I heard from our teacher.[262]

16- The permissibility of grieving over the dead, and that it does not reduce one's reward, unless he/she says or does something that displeases Allāh, or does not say or do something that pleases Him.
17- Giving the child a burial bath. Abū ʿUmar and others stated that his wet nurse, Umm Burdah, Abū Sayf's wife, gave him a burial bath, and carried him from her house to his grave in a small bed.[263]
18- *Janāẓah* Prayer[264] on the child. Abū ʿUmar said: 'The Messenger (ﷺ) prayed *janazah* on him, and did *takbīr*

[260] See *al-Riḍā ʿan Allāh biqaḍā'hi* of Ibn Abī Dunyā, p.108, and *Ḥilyah al-Awliyā'* of Abū Nuʿaym al-Aṣbahānī, 8/100.
[261] Bukhārī, 3/151 and Muslim, 1/636
[262] See *Zād al-Maʿād*, 1/449 and *al-Tufaḥ al-ʿIraqiyah* of Shaykh al-Islām Ibn Taymiyyah, p.37
[263] *Al-Istayʿāb* of ʿAbdu'l-Barr, 1/56; see *al-Tamḥīd* of Ibn ʿAbdu'l-Barr, 6/334
[264] *Ṣalāt Al-Janāẓah*: Funeral Prayer

four times.' This is the view of the majority of scholars, which is based on authentic reports.

Al-Sha'bi also said as much: 'Ibrāhīm, the Prophet's (ﷺ) son passed away at the age of sixteen months, and the Prophet (ﷺ) prayed *janazah* on him.'[265]

Ibn Isḥāq narrates from 'Abdullāh Ibn Abū Bakr, from 'Amrah bint 'Abdu'l-Raḥmān, on the authority of 'A'ishah (*raḍiyAllāhu 'anhā*) that the Messenger (ﷺ) buried his son, Ibrāhīm, but did not pray Janazah on him.

Ibn 'Abdu'l-Barr said: 'That is not true, since it is the majority's consensus to pray *janazah* on the child once he comes to life... I do not know anyone who reported differently except Samurah Ibn Jundub.'

He continues: 'It is possible that 'A'ishah's ḥadīth means that he did not pray on him in congregation, but rather commanded his companions to pray on him, and did not attend. This way, it does not disagree with the scholars' view, which is a better interpretation.'

Others said: He was pre-occupied from the *janāzah* prayer by the solar eclipse and its prayer. A solar eclipse took place on the day of his death, which made the Prophet (ﷺ) pre-occupied. People said: The eclipse happened due to Ibrāhīm's death. The Prophet (ﷺ) delivered the eclipse sermon and said in it: 'The sun and moon are two signs of Allāh, the Most High, and they do not become eclipsed for death or birth of anyone, rather Allāh, the Mighty and Sublime, strikes fear into His slaves through

[265] *Al-Istay'āb* of 'Abdu'l-Barr, 1/58, Ibn Abī Shaybah, 3/379, Ibn Sa'd *al-Ṭabāqāt al-Kubrah*, 1/140 and others

them.'[266]

Abū Dāwūd said in his *Sunan,*[267] [Chapter on Janāzah Prayer on the Child]. The ḥadīth of 'A'ishah as narrated by Muḥammad Ibn Isḥāq who said: 'Ibrāhīm, the Prophet's (ﷺ) son passed away at the age of eighteen months, and the Prophet (ﷺ) did not pray janazah on him.'

He narrated in the same chapter from Al-Bahī who said: 'When Ibrāhīm, the Prophet's (ﷺ) son, passed away, he (ﷺ) prayer *janāẓah* on him in *Al-Maqā'id.*[268,269]

This ḥadīth is mursal, and Al-Bahi is Abū Muḥammad 'Abdullāh Ibn Yasār, the slave of Mus'ab Ibn Al-Zubayr, and he is a *tābi'ī.* He then stated another ḥadīth from 'Aṭā' Ibn Abī Rabah that the Prophet (ﷺ) prayed *janāẓah* on Ibrāhīm, who died at the age of seventy days.[270]

This ḥadīth is also mursal, and I believe that it is wrong. Allāh knows how old he exactly was.

Al-Bayhaqī said: 'These reports, even if they are *mursals* (severed), they resemble, in meaning, a *mawsul* (connected) ḥadīth, they strengthen one another, and they proved that the Messenger (ﷺ) prayed *janāẓah* on his son, Ibrāhīm. This is more reasonable than the reports that state he did not.'[271]

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[266] Bukhārī, 2/536 and Muslim, 2/536

[267] Abū Dāwūd, 10/469-470 and Aḥmad in his *Musnad,* 6/267

[268] A location in Madīnah.

[269] Abū Dāwūd, 10/471 in his *Sunan* and in his *al-Marāsīl,* #431, al-Bayhaqī in his *Sunan,* 4/9

[270] Abū Dāwūd, 10/471 in his *Sunan*; see *Fatḥ al-Barī,* 3/174 and *'Umdah al-Qarī,* 6/141.

[271] See *al-Sunan al-Kubra* of al-Bayhaqī, 4/9

The mawsul ḥadīth he referred to is the ḥadīth narrated by Al-Barā' Ibn 'Āzib, (*raḍiyAllāhu 'anhu*) who said: 'The Messenger (ﷺ) prayed *janāzah* on his son, Ibrāhīm, who died at the age of sixteen months. he said: "There is a wet-nurse for him in Paradise to continue his breastfeeding, and he is a *Ṣiddīq* (a man of truth)."'[272]

This ḥadīth is weak because it is narrated through Jābir Al-Ju'fī, who is a weak narrator. But this ḥadīth with the ḥadīths of Al-Bahī, 'Aṭā' and Al-Sha'bī strengthen one another.

Some people said: He (ﷺ) did not pray on him, because he [Ibrāhīm] is in no need for the prayer, being the son of the Prophet (ﷺ), just as martyrs are in no need for it.

This is among the most corrupt and ignorant views. Allāh, the Exalted, decreed praying *janāzah* on Prophets and people of truth. In addition, *janāzah* prayer is not performed on the martyr because it takes place after the burial bath, and the martyrs do not receive burial baths."

19- The sun was eclipsed on the day of his death, and people said: 'The eclipse happened due to Ibrāhīm's death.' The Prophet (ﷺ) delivered the eclipse sermon and said in it: 'The sun and moon are two signs of Allāh, the Most High, and they do not become eclipsed for death or birth of anyone.'[273]

This refutes the argument of those who claim that Ibrāhīm died on the 10th of Muḥarram [the day of *Āshurā'*]. Allāh, the Exalted, made it the law of nature, as His wisdom necessitated, for the

[272] Aḥmad in his *Musnad*, 4/189 and others

[273] Reference already mentioned

solar eclipse to happen on the new moon nights,[274] like the lunar eclipse takes place on the full-moon nights,[275] and like the moon waxes in the beginning of the month, becomes full in its middle, and wanes towards its end.

20- The Prophet (ﷺ) informed us that there is a wet-nurse for Ibrāhīm in Paradise to continue his breastfeeding. This means that Allāh, Exalted and High, completes the people of Paradise, after their death, the short-comings that were in their worldly lives. It is even said that whoever dies while pursuing knowledge, will fully acquire it after his death, and similarly for whoever dies while learning the Qur'ān. Allāh knows best.

21- The Prophet (ﷺ) instructed to treat the Egyptians kindly, and said: 'For they have a pact and a blood-tie [with you].'[276] Since the concubines of the two honourable friends [of Allāh], Ibrāhīm and Muḥammad (ﷺ) were from Egypt—Hājar and Māriyah. As for Hājar, she was the mother of Ismā'īl (*'alayhis-salām*), the grandfather of Arabs. This is the blood tie.

As for the pact, it stems from the Prophet (ﷺ) having Māriyah as a concubine, and her giving birth to Ibrāhīm. This is a pact the Muslims should preserve, unless abandoned by the Egyptians.

Allāh knows best.

[274] Which take place in the beginning and the end of the Arabic month.
[275] Which take place in the middle of the Arabic month.
[276] Muslim, 4/1970

Al-Bukhārī narrated in his Ṣaḥīḥ[277] from Al-Suddī that he asked Anas Ibn Mālik: 'How old was Ibrāhīm, the Prophet's (ﷺ) son?' He said: 'He was old enough to fill his cradle. Had he lived on, he would have become a prophet, but he was not meant to live on, because your Prophet is the final of [all] Prophets [and Messengers.]'

'Isā Ibn Yūnus narrates from Ibn Abū Khālid that he asked Ibn Abū Awfā: 'Did you ever see Ibrāhīm, the Prophet's (ﷺ) son?' He said: 'He died young. If there was to be a prophet after Muḥammad (ﷺ), he would have lived on, but there is no prophet after Muḥammad (ﷺ).'[278]

Ibn 'Abdu'l-Barr[279] said: 'I don't know what that is! Nūḥ (*'alayhis-salām*) had sons who were not prophets. Just as the Prophet can be born to someone who is not a prophet, it is normal for the Prophet to give birth to someone who is not a prophet. If every prophet only gave birth to prophets, everyone would be a prophet, because we are all descendants of Nūḥ (*'alayhis-salām*). Ādam (*'alayhis-salām*) was a prophet and received revelation from Allāh, yet I do not know any of his children who were prophets except Shayth (Seth).'[280] Allāh knows best.

This is an extraneous section related to the time of newborn naming. We mentioned it digressively. Let us return to the section's core.

The purpose of naming is to identify the particular object,

[277] Aḥmad in his *Musnad*, 3/280 and I searched, and could not find this ḥadīth in Al-Bukhārī.
[278] Bukhārī in his *Adab al-Mufrad*, 10/579
[279] *Al-Istay'āb* of 'Abdu'l-Barr, 1/60.
[280] Shayth (Seth) is the third son of Adam (*'alayhis-salām*) and Eve (*'alayha-salām*).

because if an object existed and had no name, it could not be identified. Therefore, naming is permissible on the day of birth, it could be delayed until the third day, it could be delayed until the day of *ʿaqīqah*, and it could be done earlier or later. The matter is flexible.

Section 2:
The Desirable, Forbidden and Disapproved Names

Abū'l-Dardā' (*raḍiyAllāhu ʿanhu*) narrates that the Messenger (ﷺ) said: "On the Day of Resurrection you will be called by your names and by your father's names, so give yourselves good names." It is narrated by Abū Dāwūd with a ḥasan chain of narration.[281]

Ibn ʿUmar (*raḍiyAllāhu ʿanhumā*) said that the Messenger (ﷺ) said: "The names dearest to Allāh are ʿAbdullāh and ʿAbdu'l-Raḥmān." It is narrated by Muslim in his Ṣaḥīḥ.[282]

Jabir reports, 'A man had a child and named him Al-Qāsim. We said: 'We will not give you the cognomen (*kunyah*) Abū'l-Qāsim nor will we so honour you.[283] The Prophet (ﷺ) was told and said: "Call your son ʿAbdu'l-Raḥmān."'[284]

Abū Wahb Al-Jushamī said that the Messenger (ﷺ) said: 'Call yourselves by the names of the Prophets. The names dearest to Allāh are ʿAbdullāh and ʿAbdu'l-Raḥmān, the truest are Ḥārith

[281] Abū Dāwūd, 13/348-349
[282] Muslim, 3/1682
[283] Abū'l-Qāsim is the *kunyah* of the Prophet (ﷺ), since his eldest child was called *'Al-Qāsim'*.
[284] Bukhārī, 6/217 and Muslim, 3/1682

(Cultivator) and *Hammām* (Courageous), and the worst are *Ḥarb* (War) and *Murrah* (Bitter)."[285]

Abū Muḥammad Ibn Ḥazm said: 'They agreed on the desirability of the names attached to Allāh, such as 'Abdullāh and 'Abdu'l-Raḥmān, and so on.'

Jurists have disagreed about the names dearest to Allāh. The majority said: The dearest names to Allāh are 'Abdullāh and 'Abdu'l-Raḥmān.

Sa'īd Ibn Al-Musayyab said: 'The dearest names to Allāh are the names of the Prophets.'[287]

The authentic ḥadīth testifies that the dearest names to Allāh are 'Abdullāh and 'Abdu'l-Raḥmān.

Sub-section One:

As for the disapproved and the forbidden names, Abū Muḥammad Ibn Ḥazm[288] said: 'They agreed on the prohibition of every name in worship of anyone other than Allāh, such as 'Abd[289] Al-'Uzza, 'Abd Hubal, 'Abd 'Amr, 'Abdu'l-Ka'bah, and so on, with the exception of 'Abdu'l-Muṭṭalib.'

Therefore, it is not acceptable to name someone 'Abd 'Alī, 'Abdu'l-Ḥusayn, or 'Abdu'l-Ka'bah.

Abū Shaybah reports the ḥadīth narrated by Yazīd Ibn Al-

[285] Bukhārī, #813 and Abū Dāwūd, 13/350
[286] See *Marātib al-Ijmā'* of Ibn Ḥazm, p.154
[287] *Al-Muṣannaf* of Ibn Abī Shaybah, 8/667
[288] See *Marātib al-Ijmā'* of Ibn Ḥazm, p.154
[289] The word *"Abd"* in Arabic worshipper.

Muqdam Ibn Shurayh, from his father from his grandfather Hānī' Ibn Yazīd, who said: 'Some people came to the Prophet (ﷺ), and he heard them calling someone 'Abdu'l-Ḥajjar (Worshipper of stone). He asked him: "What is your name?" He said: "'Abdu'l-Ḥajar." The Messenger (ﷺ) said: "No, you are 'Abdullāh."'"[290]

If someone asked, how can they agree to forbid the names in worship of anyone other than Allāh, when the Prophet (ﷺ) said in an authentic ḥadīth: 'May he be miserable, the worshipper of the *dīnar*, the worshipper of the *dirham*, the worshipper of the silk and the worshipper of the velvet.'[291] He said in another authentic ḥadīth: 'I am the Prophet (ﷺ) undoubtedly; I am the son of 'Abdu'l-Muṭṭalib.'[292] In addition, a man once entered upon him while he was sitting amidst his companions, and asked, 'Which of you is the son of 'Abdu'l-Muṭṭalib?' They said: 'That is him' and they pointed to him (ﷺ).[293]

The answer: 'As for his saying, "May he be miserable, the worshipper of the *dīnar*," he (ﷺ) did not mean the name in itself, but meant the description, and to curse the one who worships money, and agreed to be enslaved by it, rather than his Lord, Blessed and Exalted. He mentioned money and clothing, which are the adornment of the apparent and the hidden.

As for his saying: "I am the son of 'Abdu'l-Muṭṭalib," he is not assigning a name, but rather informing of a name with which the object is identified. Informing to identify the object is not forbidden. It is not correct to deem that exclusive for the name 'Abdu'l-Muṭṭalib, as Abū Muḥammad Ibn Hazm said. The Companions

[290] *Al-Muṣannaf* of Ibn Abī Shaybah, 8/665 and Bukhārī in his *Adab al-Mufrad*, #811.
[291] Bukhārī, 11/253
[292] Bukhārī, 6/105 and Muslim, 3/1400
[293] Bukhārī, 1/148

used to call the tribes of 'Abdu'l-Shams and 'Abdu'l-Dar by their names, and nobody objected to that. When it comes to informing of an existing name, things are more flexible than they are when assigning a new name, and there are things, which are not allowed in the latter, that are allowed in the former.

Sub-section Two:

It is forbidden to name someone *'King of kings'*, *'Sultan of sultans'* or *'Shahan shah.'*[294] It is authentically reported in both in Al-Bukhārī and Muslim, as narrated by Abū Hurayrah (*raḍiyAllāhu 'anhu*) that the Prophet (ﷺ) said: 'The most disgraceful name in the sight of Allāh is a man who called himself King of kings.'

In another narration, he said 'The most hated" instead of "The most disgraceful".[295]

In another narration by Muslim: "The most wretched person in the sight of Allāh on the Day of Resurrection and the worst person and target of His wrath would of the person who is called *Mālik al-Amlak* (the King of kings) for there is no king but Allāh."[296]

Some scholars said that this may indicate disapproval to be called *'Judge of judges'* or *'Ruler of rulers'*, because the Ruler of rulers, in truth, is Allāh.

Some people of faith and virtue used to avoid calling someone *'Judge of judges'* or *'Ruler of rulers'*, in analogy to what Allāh and His Messenger disapproved of being called *'King of kings'*. This is a deductive analogy (*qiyās*).

[294] Persian for *'King of Kings'*.
[295] Bukhārī, 10/588 and Muslim, 3/1688
[296] Muslim, #2143

Moreover, it is forbidden to call someone *'Master of people'*, *'Master of all'*, or *'Master of the children of Ādam'*, for that is exclusively for the Messenger (ﷺ); he is the master of the children of Ādam. It is not permitted for anyone else to be called by that name.[297]

Sub-section Three:

Among the disapproved names is what is narrated in Muslim on the authority of Samurah Ibn Jundub (*raḍiyAllāhu ʿanhu*) that he (ﷺ) said: "Do not call your servant *Yasār* (wealth), *Rabāḥ* (profit), *Nijīḥ* (prosperous) and *Aflaḥ* (successful), for you may ask; Is he there? And someone says: No." Samurah said: 'These are four [names], so do not attribute more to me.'[298]

That last sentence is not of the Prophet's (ﷺ) saying but of the narrator's.[299]

Abū Dāwūd narrates in his *Sunan* that Jābir Ibn ʿAbdullāh (*raḍiyAllāhu ʿanhu*) said: 'Allāh's Messenger (ﷺ) wanted to forbid [his followers] to name persons as *Yaʿla* (Elevated), *Barakah* (Blessing), *Aflaḥ* (Successful), *Yasār* (Wealth) and *Nāfiʿ* (beneficial), but I saw that he kept silent after that and he did not say anything. Allāh's Messenger (ﷺ) died without forbidding [his followers to do this]. Then 'Umar decided to prohibit [people] from giving these names, but later on gave up the idea.'[300]

[297] See *Zād al-Muʿād*, 2/240-241
[298] Muslim, #2137
[299] See *Zād al-Muʿād*, 2/342-343
[300] See Abū Dāwūd, #359 and Muslim, #2138

Abū Bakr Ibn Abū Shaybah conveys from Muḥammad Ibn 'Ubayd, from Al-A'mash, from Abū Sufyān, from Jābir (*raḍiyAllāhu 'anhu*) that the Messenger (ﷺ) said: "If I were to live, Allāh willing, I would forbid my *ummah* to name people as *Nāfi'*, *Aflah*, and *Barakah*." Al-A'mash said: 'I am not sure whether or not he mentioned *Nāfi'*.'[301]

In '*Sunan* Ibn Mājah', in the ḥadīth narrated by Abū'l-Zubayr, from Jābir, on the authority of 'Umar Ibn Al-Khaṭṭāb (*raḍiyAllāhu 'anhu*), that the Messenger (ﷺ) said: 'If I were to live, Allāh willing, I would forbid my *ummah* to name people as *Rabāḥ*, *Najīḥ*, *Aflaḥ* and *Yasār*.'[302]

I say: The same foes for similar names such as *Mubārak* (Blessed), *Mufliḥ* (Successful), *Khayr* (Good), *Surūr* (Happiness), *Ni'mah* (Bounty) and so on. The meaning disapproved by the Messenger (ﷺ) is also in these names.' Someone may ask: 'Do you have *Khayr*? Do you have *Surūr*? Do you have *Ni'mah*?' and the person might reply, 'No' which causes repulsion and pessimism in the hearts, and falls within the disapproved speech.

A ḥadīth states that he (ﷺ) disapproved that someone may say: 'He got out from the house of *Barrah* (Righteous woman).'[303]

However, it contains another meaning that necessitates prohibition, which is self-adornment for being blessed and successful, when he/she might not be so. Abū Dāwūd narrated in his '*Sunan*' that the Messenger (ﷺ) forbade naming a woman as *Barrah* and said: 'Don't hold yourself to be pious. It is Allāh alone who knows the people of piety among you.'[304]

[301] *al-Muṣannaf* of Ibn Abī Shaybah, 8/666 and Abū Dāwūd, #359.
[302] Ibn Mājah, #3735; see *Silsilah al-Ṣaḥiḥah*, 5/176-177
[303] *ibid*
[304] Abū Dāwūd. 13/352 and Muslim, #3992

In the Sunan of Ibn Mājah', as narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*), Zainab was called *Barrah* and people said: 'She is adorning her self' so the Prophet (ﷺ) called her Zainab.[305]

Sub-section Four:

In addition, among the disapproved names are the names of devils, such as *Khinẓab*, *Al-Walhān* (The bewitched), *Al-Aʿwar* (The one-eyed) and *Al-Ajdaʿ* (The mutilated).

Al-Shaʿbī narrates that Masrūq said: I met ʿUmar Ibn Al-Khaṭṭāb and he asked me: "Who are you?" I said: "Masrūq Ibn Al-Ajdaʿ." ʿUmar (*raḍiyAllāhu ʿanhu*) said: "I heard the Messenger of Allāh (ﷺ) say: '*Al-Ajdaʿ* is a devil.'"[306]

In the *Sunan* of Ibn Mājah[307] and the additions of ʿAbdullāh to his father's *Musnad*[308], as narrated by Ubay Ibn Kaʿb (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'There is a devil for ablution who is called *Walhān*, so be on guard against the insinuating thoughts [whispers] about water.'

ʿUthmān Ibn Abū'l-ʿĀṣ (*raḍiyAllāhu ʿanhu*) complained to the Prophet (ﷺ) of the distractions in his prayer, he said: 'This is [the doing of] a devil called *'Khinẓab.'*[309]

Abū Bakr Ibn Shaybah narrates from Ḥumayd Ibn ʿAbdu'l-Raḥmān, from Hisham, from his father, that a man was called

[305] Ibn Mājah, 2/1230
[306] Abū Dāwūd. 13/356, Ibn Mājah, 2/1229, Imām Aḥmad in his *Musnad*, 1/13 and others
[307] Ibn Mājah, 2/1229
[308] Imām Aḥmad in his *Musnad*, 5/136, Tirmidhī, 1/52 and others
[309] Muslim, 4/1728-1729

Al-Hubāb, so the Messenger (ﷺ) called him ʿAbdullāh and said: "*Al-Hubāb* is a devil's name."[310]

Sub-section Five:

The disapproved names also include the names of Pharaohs and tyrants, such as *Firown*, *Qārūn*, *Hāmān* and *Al-Walīd*.

ʿAbdu'l-Razzāq conveyed in *Al-Jāmiʿ* from Muʿammar, that Al-Zuhrī said: 'A man among us wanted to name his son as *'Al-Walīd'*, so the Messenger (ﷺ) forbade him and said: "There will be in my *ummah* a man called *'Al-Walīd'*, that will do to my *ummah* what Pharaoh did to his people."'"[311]

Sub-section Six:

They also include the angels' names, such as *Jibrīl* (Gabriel), *Mika'il* (Michael) and *Isrāfīl*. It is disapproved to call humans by these names.

Ashhab said: "Mālik was asked about calling people by angels' names and he disapproved it."

Qāḍī ʿIyāḍ said: 'Some scholars disapproved naming people with angel names, such as Al-Ḥārith Ibn Miskīn.[312] Mālik also disapproved naming people as *Jibrīl* and *Yasīn*, while others allowed it.'[313]

[310] *Al-Muṣannaf* of Ibn Abī Shaybah, 8/664, ʿAbdu'l-Razzāq in his *al-Jāmiʿ* from *al-Muṣannaf*, 11/40 and others.

[311] *Al-Muṣannaf* and *Kitāb al-Jāmiʿ* of Maʿmar Ibn Rashīd, 11/43 in mursal form and Ibn Jawzī mentioned it in his *al-Mudūʿāt*, 2//194.

[312] See *Dhakira al-Ḥuffāẓ* of Dhahabī, 2/514

[313] See *Sharḥ Ṣaḥiḥ Muslim* of Qaḍī ʿIyāḍ, 7/10 and *Sharḥ Ṣaḥiḥ Muslim* of Nawawī, 14/114

'Abdu'l-Razzāq narrates in *Al-Jāmi'* from Mu'ammar who said, I asked Ḥammād Ibn Abū Sulaymān: 'What is your opinion if a man was called Jibril or Mika'īl?' He said: 'Nothing wrong with that.'[314]

Al-Bukhārī said in his *Al-Tārīkh*: 'Aḥmad Ibn Al-Ḥārith narrates from Abū Qatādah Al-Shamī—Not Al-Ḥarrānī, for he died in the year 164H—from 'Abdullāh Ibn Jarad who said: 'A man from Muzayinah accompanied me, and went to the Prophet (ﷺ) while I was with him.' He said: "O Messenger of Allāh! I had a boy; what are the best names?" He said: "The best names for you are *Ḥārith* and *Hammām*. Excellent are the names *'Abdullāh* and *'Abdu'l-Raḥmān*. Call yourselves by the names of the Prophets, and do not call yourselves by the names of the angels." He said: "What about your name?" He said: "You may call yourselves by my name, but do not give yourselves my *Kunyah*."[315]

Al-Bayhaqī said, 'Al-Bukhārī said in another narration: 'Its chain of narration is disputable.'[316]

Sub-section Seven:

Moreover, they include the names whose meanings are disapproved and inappropriate, such as *Ḥarb* (War), *Murrah* (Bitter), *Kalb* (Dog), *Ḥayyah* (Snake) and the like. We have already mentioned the story narrated by Mālik in *Al-Muwaṭṭā'*, that the Messenger of Allāh (ﷺ) said regarding a she-camel about to be milked: 'Who will milk this?' A man stood up. The Messenger of Allāh (ﷺ) said: 'What is your name?' The man said: '*Murra* (bitterness).' The Messenger of Allāh (ﷺ) said to him: 'Sit down.' Then he said: "Who will

[314] *Al-Muṣannaf* and *Kitāb al-Jāmi'* of Ma'mar Ibn Rashīd, 10/40-41
[315] *Al-Tārīkh al-Kabīr* of Imām Bukhārī, 5/35
[316] Imām Bayhaqī in his *Shu'ab al-Imān*, 6/394.

milk this one?' A man stood up and the Messenger of Allāh (ﷺ) said: 'What is your name?' He said: '*Ḥarb* (war).' The Messenger of Allāh (ﷺ) said: 'Sit down.' Then he said: 'Who will milk this camel?' A man stood up, and the Messenger of Allāh (ﷺ) said to him: 'What is your name?' The man said: '*Ya'ish* (he lives).' The Messenger of Allāh (ﷺ) said to him: 'Milk!'[317]

He (ﷺ) hated assigning a man with a disapproved name to milk the sheep.[318]

The Prophet (ﷺ) used to disapprove strongly of the ugly names and dislike it very much, whether for people, places, tribes or mountains. He was once walking, and reached two mountains, so he enquired about their names, and people said: '*Fāḍiḥ* (Disgraceful) and *Mukhẓ* (Scandalous).' He turned away from them and refused to pass between them,[319] and he was very conscious about that.

Whoever looks carefully at the Sunnah will find the names tied to their meanings, as if the names are derived from their meanings, and the meanings derived from the names. Look at his saying (ﷺ): 'The tribe of Aslam (to make safe) is the one which Allāh granted safety, the tribe of *Ghifār* (Oft-forgiving) is the tribe which Allāh granted pardon, and *'Aṣiyyah* (Disobedient) is the tribe that disobeyed Allāh.'[320]

In addition, when the Messenger (ﷺ) saw *Suhayl* (ease-going) Ibn 'Amr coming on the day of the Treaty, he said: 'Your affair

[317] Reference cited many times already
[318] The story in *'Al-Muwaṭṭa'* actually mentions about a she-camel, not a sheep.
[319] Already mentioned previously.
[320] Bukhārī, 2/542 and Muslim, 4/1952

has become ease.'[321]

We also refer to when he (ﷺ) asked Buraydah about his name, he said: 'I am *Buraydah* (cool).' The Prophet (ﷺ) turned to Abū Bakr and said: 'O Abū Bakr, our affairs have become cool and reformed.' Then he asked: 'Where are you from?' He said: 'From the *Aslam* (to make safe) tribe.' He said to Abū Bakr: 'Now, we have become safe.' Then he said: 'From which family?' He said: 'From *Sahm* (Arrow) family.' He said: 'May your arrow be launched.'[322]

He even considered that in dream interpretation. He said (ﷺ): 'I dreamed that we were in the house of 'Uqbah Ibn Rāfi', and we were given dates of Ibn Ṭāb,[323] so I interpreted it that the final victory and uplifting will be ours in this life, and that our religion has become pleasing.'[324]

If you wanted to know the impact of the name on the object, look at the ḥadīth narrated by Sa'īd Ibn Al-Musayyib, from his father that his grandfather said: 'I came to the Prophet (ﷺ) and he said: "What is your name?" I said: *"Ḥazn."* He said: "But you are *Sahl* (Easy)." I said: 'I will not change a name given to me by my father."' Ibn Al-Musayyab said: 'Therefore, roughness remained in our character ever since.'[325]

Moreover, look at what Mālik narrated in *Al-Muwaṭṭā'* from Yaḥyā Ibn Sa'īd that 'Umar Ibn Al-Khaṭṭāb (*raḍiyAllāhu 'anhu*) asked a man: 'What is your name?' He said: '*Jamrah* (Live Coal).' He said: 'Who is your father?' He said: '*Shihāb* (Meteor).' He asked: 'Where

[321] Reference cited many times already

[322] *Istidhkār* of Ibn 'Abdu'l-Barr, 10/270

[320] *'Uqbah* means *'Final'*, *Rāfi'* means *'Uplifter'* and *Ṭāb* means *'to be pleasing'*.

[324] Muslim, 4/1779

[325] Bukhārī in his *Adab al-Mufrad*, 10/574

do you come from?' He said: '*Al-Ḥuraqah* (The Heat).' He asked: 'Where do you live?' He said: '*Ḥarrat Al-Nār* (The Volcanic stone of fire region).' He said: 'Where therein?' He said: 'In *Dhātu Laẓa* (The land of Hell).' 'Umar said: 'Go and find your family, for they have burned.' And he found them as 'Umar (*raḍiyAllāhu 'anhu*) said. This is what is narrated by Mālik.'[326]

Al-Sha'bī narrated that a man from Juhayinah came to 'Umar Ibn Al-Khaṭṭāb (*raḍiyAllāhu 'anhu*) who said: 'What is your name?' He said: '*Shihāb* (Meteor).' He said: 'Who is your father?' He said: '*Ḍhirām* (Ignition).' He asked: 'Where do you come from?' He said: '*Al-Ḥuraqah* (The Heat).' He asked: 'Where do you live?' He said: '*Ḥarrat Al-Nār* (The Volcanic stone of fire region).' 'Umar said: 'Woe to you! Go and find your house and your family, for they have burned.' He found all of them to have burned.[327]

This could pose a problem to whoever does not understand it, but it is not a problem—Praise be to Allāh—The Originator of causes [Allāh], made these occasions requirements of this impact, and made their association in this special manner necessitating of that impact. He delayed that requirement until it was mentioned by he on whose tongue the truth was spoken, and through whom the Sovereign spoke. At that time, their association was completed, and the effect was consequent. Whoever understands this field, will benefit greatly, because adversity is linked to speech.

Abū 'Umar said, 'The Messenger (ﷺ) said: "Adversity is linked to speech."'[328]

[326] Reference cited many times already

[327] See *Miftāḥ Dār al-Sa'ādah*, 2/236

[328] Ibn 'Abdu'l-Barr in his *Istidhkār*, 10/272, Khaṭīb al-Baghdādī in his *Tārīkh*, 7/389, Bayhaqī in his *Shu'ab al-Imān*, 9/222 and others

An example of the adversity occurring by speech is the speech of the ill old man whom the Messenger visited and found him to be feverish, and said: 'Don't worry, Allāh willing, [your sickness will be] an expiation for your sins.' He said: 'No, it is but a fever that is boiling within an old man and will send him to his grave.' The Prophet (ﷺ): 'Then it is so.'[329]

We have witnessed a number of lessons in that regards, both in us and in others, and what we witnessed is like a drop in the ocean. The poet, Al-Mu'ammil[330] said:

The sight has gauzed Al-Mu'ammil on the day of Al-Naqlah

I wish Al-Mu'ammil was never given the sense of sight

Then, he soon turned blind.

In Jāmiʿ Ibn Wahb, it is narrated that a boy was brought to the Messenger (ﷺ), who asked: 'What did you name him?' They said: '*Al-Sā'ib* (The Unrestrained).' He said: 'Do not call him *Al-Sā'ib*, but (call him) *ʿAbdullāh*.' However, they insisted on the name, and he did not die before losing his sanity.[331]

Therefore, paying attention to speech and selecting names is of Allāh's guidance to the person.

The Prophet (ﷺ) commanded the person to make good wishes, and said: 'For verily, he does not know what of his wish shall be recorded'[332] meaning what will come true. The wish becomes the

[329] Bukhārī, 10/121

[330] Al-Mu'ammil Ibn Amīl al-Mahārabī, in *Al-Aghaanī*, 22/250, *Mu'jam al-Adbaa'*, 3/208

[331] See ʿAbdullāh Ibn Wahb in *Al-Jāmiʿ fi'l-Ḥadīth*,1/93

[332] Imām Aḥmad in his *Musnad*, 2/357

reason for the occurrence of what he wished for, or some of it. You have heard of seen the stories of many wishers, whose wishes, or some of them, came true!

Abū Bakr *Al-Ṣiddīq* (*raḍiyAllāhu ʿanhu*) used to say this verse of poetry:

Beware! Your tongue may say something which brings you adversity,
For adversity is linked to speech.[333]

When Al-Ḥusayn and his companions arrive at *Karbala*, he asked about its name, and they said: *'Karbala.'* He said: '*Karb* (Distress) and *Balā'* (Adversity).'[334]

When Ḥalimah Al-Sāʿdiyah came to 'Abdu'l-Muṭṭalib[335] requesting to breastfeed the Messenger (ﷺ), he asked her: 'Who are you?' she said: 'A Woman from the Tribe of *Saʿīd*' He said: 'What is your name?' She said: *'Ḥalimah.'* He said: 'Excellent! Excellent! *Saʿīd* (Happiness) and *Ḥilm* (Patience). These are two traits that suffice for a person throughout his life.'[336]

Sulaymān Ibn Arqam narrates from 'Ubaydullāh Ibn 'Abdullāh, on the authority of Ibn 'Abbās (*raḍiyAllāhu ʿanhumā*) that the Byzantine King sent a messenger to the Prophet (ﷺ) and told him: 'See where he is seated, who is beside him and look at what is between his shoulders.'

Then, when he came, he saw the Messenger (ﷺ) sitting on an elevated place, having his feet in water and Abū Bakr was to his

[333] Ibn 'Abdu'l-Barr in his *Istidhkār*, 10/272,
[334] See Ibn Asākir in *Tārikh Damishk*, 14/220 and others
[335] The grandfather of the Messenger of Allāh (ﷺ).
[336] See *Fayḍ al-Qadīr* of al-Manāwī, 1/705

right. When the Prophet (ﷺ) saw him he said: 'Come and look at what you were commanded' and he looked at the seal [of Prophethood]. When he returned to his master, he told him the story, and he said: 'He will rise, and he will own what is beneath my feet.' He interpreted the elevated place to mean victory, and water to mean life.[337]

'Awānah Ibn Al-Hakam said: 'When Ibn Al-Zubayr claimed himself to be the Caliph, 'Abdullāh Ibn Mutī' came to pledge allegiance, but 'Abdullāh Ibn Al-Zubayr refused to shake his hand, and said to 'Ubaydullāh Ibn 'Alī Ibn Abū Ṭālib, "Stand up and pledge allegiance" and 'Ubaydullāh said, "Stand up, O Muṣ'ab and pledge allegiance." He stood up and pledged allegiance. People then said: "He refused the pledge of son of *Mutī'* (Obedient) and accepted the pledge of *Muṣ'ab* (Difficult). He will surely find difficulty in his affairs."

Salamah Ibn Muhārib said: 'Al-Ḥajjāj arrived at the Monastry of *Qurrah* (Stability), and 'Abdu'l-Raḥmān Ibn Al-Ash'ath arrived at the monastery of *Al-Jamajim* (Skulls), so Al-Ḥajjāj said: 'Victory is mine and death will be his. By Allāh, I will kill him.'"[338]

This a vast and very useful subject, which we touched briefly. The original objective was to state the desirable and undesirable names.

Sub-section Eight:

It is prohibited to name someone after the names of the Lord, Blessed and Exalted is He. It is not acceptable to name someone

[337] It is mentioned by Ibn Ḥamdūn in *al-Tadhkira al-Ḥamdūniyya*, 8/21

[338] See *Tārīkh al-Ṭabari*, 6/347 and *Miftāḥ Dār al-Sa'ādah*, 2/237.

as *Al-Aḥad* (the One), *Al-Ṣamad* (the Eternal Refuge), *Al-Khāliq* (the Creator), *Al-Razzāq* (the Sustainer), or any other name that belong exclusively to the Lord, Blessed and Exalted is He.

It is not permitted to call kings as Al-Qāhir (the Subjugator) or *Al-Ẓāhir* (the Evident). It is also not permitted to call them as *Al-Jabbār* (the Compeller), *Al-Mutakabir* (the Majestic), *Al-Awwāl* (the First), *Al-Ākhir* (the Last), *Al-Bāṭin* (the Immanent) or *ʿAllām Al-Ghuyūb* (Knower of the unseen).

Abū Dāwūd conveyed in his *Sunan*, from Al-Rabīʿ Ibn Nāfiʿ, from Yazīd Ibn Al-Miqdām Ibn Shurayḥ, from his father, from his grandfather Shurayḥ, that when his father, Hānīʾ, came to the Messenger (ﷺ) with his people, he (ﷺ) heard them calling him *Abū'l-Ḥakam* (The Judge), so he (ﷺ) called him and said: 'Allāh is the Judge, and to Him belongs Judgment. Then why are you called Abū'l-Ḥakam?' He said: 'When my people disagree about something, they come to me, I give my judgment and both parties accept it.' The Messenger (ﷺ) said: 'How good is that! What are the names of your children?' He said: 'Shurayḥ Maslamah and 'Abdullāh.' He said: 'Which is the eldest?' He said: 'Shurayḥ.' He said: 'Then you are Abū Shurayḥ.'[339]

We have already stated the authentic ḥadīth that says: 'The most disgraceful name in the sight of Allāh is a man who called himself *'King of kings.'*[340]

Abū Dāwūd narrates from Musaddad, from Bishr Ibn Al-Mufaḍḍal, from Abū Salamah Saʿīd Ibn Yazīd, from Abū Naḍrah, from Muṭrif Ibn ʿAbdullāh Ibn Al-Shikhīr, that his father said:

[339] Abū Dāwūd, 13/354, Nasāʾī, 8/226, Ibn Ḥibbān, #504, Ḥākim, 1/24 and Ṭabarānī in *al-Kabīr*, #465, #466.
[340] Reference already mentioned.

'I went among the delegation of the tribe of 'Āmir to the Messenger (ﷺ), and said: "You are our master." He said: "The Master is Allāh." We said: "And you are the highest of us in excellence and the greatest in generosity." He said: "Say what you like, or a part of what you like, but do not let the devil make you his agents.'"[341]

This does not conflict with his saying: 'I am the master of the children of Ādam'[342] because he informs, in this instance, of what Allāh granted him of pre-eminence and superiority over humanity.

As for describing the Lord, Glorified and Exalted is He, as being the Master, it is because it is in absolute terms. The Master of the creation is The One in control of their affairs, to Who they shall return, Whose command they follow and upon Whose word they shall depart. Since the angels, humanity and Jinn fall under the creation and dominion of Allāh, Blessed and Exalted is He, they cannot do without Him even for as long as a blink of an eye, and all their desires and needs are directed towards Him, then He, Glorified and Exalted is He, is the true Master.

'Alī Ibn Abū Ṭalḥah narrates from Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) in the interpretation of Allāh's saying *Al-Ṣamad* (the Eternal Refuge)[343] that it means: 'The Master whose sovereignty is completed.'[344]

In conclusion, it is not permitted for anyone to be named after the names that are exclusively for Allāh.

[341] Abū Dāwūd, 13/235-236
[342] Muslim, 4/1782
[343] *Sūrah al-Ikhlāṣ* (112) :2
[344] Ibn Abī Ḥātim in his *al-Tafsīr*, 12/467 and Ṭabarī, 24/692

As for the names which are attributed to Him and to others as well, such as *Al-Samīʿ* (the All Hearing), *Al-Bāṣīr* (the All Seeing), *Al-Raʾūf* (the Kind) and *Al-Raḥīm* (the Merciful), it is possible to attribute their meaning to creatures, but cannot be used as names in absolute terms as they are attributed to the Lord, Exalted is He.

Sub-section Nine:

It is also prohibited to name someone after the names of the Qur'ān and its chapters, such as *Ṭaha,*[345] *Yasīn,*[346] or *Hā-Mīm,*[347] Mālik has explicitly stated the undesirability of the name *'Yasīn'*, as reported by Al-Suhaylī.[348]

As for what the common people say, that *Yasīn* and *Ṭaha* are among the Prophet's (ﷺ) names, it is not correct. There is no ḥadīth ṣaḥīḥ, ḥasan or mursal, nor is there a report from a companion in that regard. These letters are the same as *'Alif, Lām, Mīm,'*[349]: *'Hā Mīm,' 'Alif, Lām, Rā.'*[350]... etc.

Sub-section Ten:

It is debated whether it is undesirable to be named after the Prophets' names. One view states that it is not undesirable, which is the majority's view, and the correct one. The other view states that it is undesirable.[351]

[345] The Qur'ān—Chapter 20
[346] The Qur'ān—Chapter 36
[347] The Qur'ān—The first verse of Chapters 40, 41, 42, 43, 44, 45 and 46.
[348] See *al-Rawḍ al-Aunf fī Sharḥ Sīrah Ibn Hishām* of Suhaylī, 2/66
[349] The Qur'ān—The first verse of Chapters 2, 3, 29, 30, 31 and 32.
[350] The Qur'ān—The first verse of Chapters 10, 11, 12, 14 and 15.
[351] See *Zād al-Muʿād*, 2/342.

Abū Bakr Ibn Abū Shaybah conveys in 'Chapter on the undesirable names', from Al-Faḍl Ibn Dukayn, from Abū Khaldah, that Abū'l-'Āliyah said: 'You commit a worse deed! You name your children after the Prophets, and then you curse them.'[352]

A more explicit report is what is conveyed by Abū'l-Qāsim Al-Suhaylī in *'al-Rawḍ'* when he said: 'The undesirability of naming someone after the Prophets' names was in the doctrine of 'Umar Ibn Al-Khaṭṭāb.'[353]

I say: The purpose behind this was to preserve their names from degradation and harsh speech which they may be subjected to upon anger and so on.

Sa'īd Ibn Al-Musayyib said: 'The dearest names to Allāh are the names of Prophets.'[354]

In *al-Tārīkh Ibn Khaythamah*, it is said: Ṭalḥah had ten children, each named after a Prophet, and Al-Zubayr had ten children, each named after a martyr. Ṭalḥah said to him: 'I name them after Prophets' names, and you name them after martyrs' names.' Al-Zubayr said: 'I aspire that my children become martyrs, while you cannot aspire that your children become Prophets.'[355]

It is stated in Muslim that Abū Mūsā (*raḍiyAllāhu 'anhu*) said: 'My wife gave birth to a boy, so I took him to the Prophet (ﷺ), who named him Ibrāhīm and performed *taḥnīk* on him with a date fruit.'[356]

[352] See Ibn Abī Shaybah, 8/667

[353] See *al-Rawḍ al-Aunf fī Sharḥ Sīrah Ibn Hishām* of Suhaylī, 2/66

[354] See Ibn Abi Shaybah, 8/667

[355] See *Tārīkh* Ibn Abī Khaythamah, 2/91 and *al-Rawḍ al-Aunf fī Sharḥ Sīrah Ibn Hishām* of Suhaylī, 2/66.

[356] Muslim, 3/1690.

Al-Bukhārī stated in his *Ṣaḥīḥ,* [Chapter on Naming with the Names of Prophets]: Ibn Numayr narrated from Ibn Bishr, from Ismā'īl that he said to Ibn Awfā: 'Did you ever see Ibrāhīm, the Prophet's (ﷺ) son?' He said: 'He died young. If there was to be a Prophet after Muḥammad (ﷺ), he would have lived on, but there is no Prophet after Muḥammad (ﷺ).'[357]

He then stated the ḥadīth narrated on the authority of Al-Barā' (*raḍiyAllāhu 'anhu*) that when Ibrāhīm [the son of the Prophet (ﷺ)] passed away, the Prophet (ﷺ) said: 'There is a wet-nurse for him in Paradise.'[358]

In Muslim, in Chapter of Naming with the Names of Prophets and Pious People, he stated the ḥadīth narrated by Al-Mughīrah Ibn Shu'bah (*raḍiyAllāhu 'anhu*): When I came to Najrān, they asked me: 'You recite [in the Qur'ān]: "O sister of Aaron"[359] when [Prophet] Mūsā precedes [Prophet] 'Isā by such-and-such years.' When I returned to the Messenger (ﷺ), I asked him about that and he said: 'They used to name with the names of their Prophets and the pious people before them.'[360]

Section Three:
The Desirability of Changing the Name, if Beneficial

Ibn 'Umar (*raḍiyAllāhu 'anhumā*) narrated that the Prophet (ﷺ) changed the name of a woman called *'Āṣiyah* (Disobedient)' to '*Jamīlah* (Beautiful).[361]

[357] Bukhārī, 10/557.
[358] Reference already mentioned
[359] *Surah Maryam* (19): 28
[360] Muslim, 3/1685.
[361] Reference already cited

In *Ṣaḥīḥ* Al-Bukhārī, as narrated on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*), Zainab was called *Barrah*, and people said: 'She is adorning herself' so the Prophet (ﷺ) called her Zainab.[362]

In *Sunan* of Abū Dāwūd, the ḥadīth narrated by Saʿīd Ibn Al-Musayyib, from his father, from his grandfather that the Prophet (ﷺ) said: 'What is your name?' He said: '*Ḥazn* (rough).' He said: 'But you are *Sahl* (Easy).' I said: 'No, the easy person is trampled and degraded.' Ibn Al-Musayyab said: 'Therefore, I thought that roughness will hit us after that.'[363]

In both Al-Bukhārī and Muslim, it is narrated that Al-Mundhir Ibn Abū Usayd was brought to the Messenger (ﷺ) when he was born, and the Prophet (ﷺ) placed him on his thigh, then he was lifted away. The Messenger (ﷺ) asked: 'Where is the boy?' Abū Usayd said: 'We took him away, O Messenger of Allāh!' He said: 'What is his name?' He said: 'Such-and-such.' He (ﷺ) said: 'No. His name is Al-Mundhir.'[364, 365]

Abū Dāwūd narrated in his *Sunan*, on the authority of Usāmah Ibn Akhdarī that a man called Aṣram was among a group of people that came to the Messenger (ﷺ). He said: 'What is your name?' He said: '*Aṣram* (to sever).' He said: 'No. You are *Zurʿah* (Plant).'[366]

Abū Dāwūd said: 'The Prophet (ﷺ) changed the names of *Al-ʿĀṣ* (The Disobedient), *ʿAzīz* (Mighty), ʿAtalah (Crowbar), *Shayṭān*

[362] Bukhārī, 10/575
[363] Abū Dāwūd, 13/354-355
[364] It means "The Warner".
[365] Reference already cited
[366] Abū Dāwūd, 13/353 and Bukhārī in his *Adab al-Mufrad*, p.65

(Satan), *Al-Ḥakam* (Arbiter) and *Ghurāb* (Crow). He changed the name of *Shihāb* (Meteor) to *Hishām* (Noble), *Ḥarb* (War) to *Silm* (Peace), *Al-Muḍṭaji'* (The Recumbent) to *Al-Munba'ith* (The Revived), the land of *'Afirah* (Dust) to *Khaḍirah* (Green), The people of *Ḍalālah* (Aberrance) to *Hudā* (Guidance), and the Tribe of *Al-Zinyah* (Adultry) to *Al-Rushdah* (Guidance), and the Tribe of *Mughwiyyah* (Misleading) to *Rushdah* (Guidance).'[367]

Abū Dāwūd said: 'The chains of narration were omitted for brevity.'

In Sunan Al-Bayhaqī, a ḥadīth is narrated from Al-Layth Ibn Sa'd , from Yazīd Ibn Abū Ḥabīb, from 'Abdullāh Ibn Al-Ḥārith Ibn Jaz' Al-Zubaydī that he said: 'A distant friend of mine passed away, and we were standing by his grave—me, 'Abdullāh Ibn 'Umar and 'Abdullāh Ibn 'Amr Ibn Al-'Āṣ. My name was *Al-'Āṣ* (the Disobedient)', Ibn 'Umar was called *'Al-'Āṣ'*, and Ibn 'Amr was also called *'Al-'Āṣ'*. The Messenger (ﷺ) told us: "Go down and bury him, and each of you is *'Abdullāh* (Servant of Allāh)." So we went down and buried our brother, then we got up and our names had changed.'[368]

The chain of narration of this ḥadīth is good to Al-Layth, which is strange, because it is not known that 'Abdullāh Ibn 'Amr or 'Abdullāh Ibn 'Umar were previously called *'Al-'Āṣ'*.

Ibn Abī Shaybah narrates in his *al-Muṣannaf* from Muḥammad Ibn Bishr, from Zakariyah, that Al-Sha'bī said: 'No one of those from Quraysh whose names meant *'disobedience'* before Islām joined Islām except *'Mutī'*. His name was *Al-'Āṣ*, and the Messenger

[367] Abū Dāwūd, 13/355

[368] Al-Bayhaqī in his *Sunan*, 9/307-308

(ﷺ) changed it to *Muṭīʿ* (Obedient)."[369]

Abū Bakr Al-Mundhir conveys from Muḥammad Ibn Ismāʿīl, from Abū Nuʿaym, from Israʾīl, from Abū Isḥāq, from Hānīʾ Ibn Hānīʾ, that ʿAlī (*raḍiyAllāhu ʿanhu*) said: 'When Al-Ḥasan was born, I called him *Ḥarb* (War), then the Prophet (ﷺ) came and said: "Show me my grandchild; what did you name him?" We said: *Harb*. He said: "No. He is *Ḥasan* (Good)." Then, when Al-Ḥusayn was born, I called him *Ḥarb*, then the Prophet (ﷺ) came and said: "Show me my grandchild; what did you name him?" We said: *Ḥarb*. He said: "No. He is *Ḥusayn* (Good)." When the third was born, I called him *Ḥarb*, and then the Prophet (ﷺ) came and said: "Show me my grandchild; what did you name him?" We said: "*Ḥarb*." He said: 'No. He is *Muḥassin* (Enhancer).' Then he added: "I named them like Hārūn named his children; Shabar, Shubayr, and Mushabbir.'"[370]

It is narrated in the *al-Muṣannaf* of Ibn Abī Shaybah from Muḥammad Ibn Fuḍayl, from Al-ʿAlāʾ Ibn Al-Mussayib, that Khaythama said: 'My father's name in pre-Islāmic Ignorance was *ʿAzīz* (Mighty), so the Messenger (ﷺ) called him *ʿAbdu'l-Raḥmān* (Servant of the Merciful).'[371]

Al-Bukhārī conveys in his *Al-Adab'*from Ibrāhīm Ibn Al-Mundhir, from Yazīd Ibn Al-Ḥabbāb, that Ibn ʿAbdu'l-Raḥmān Ibn Saʿīd Al-Makhzūmī, whose name used to be *Al-Ṣarm* (Severed),

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[369] *Al-Muṣannaf* of Ibn Abī Shaybah, 8/664

[370] Imām Aḥmad in his *Musnad*, 1/98, Bukhārī in his *Adab al-Mufrad*, #823, Ibn Ḥibbān, #6958, Bayhaqī, 6/166; it was authenticated by Ḥākim, 3/165 and Dhahabī agreed. See *Majmaʿ al-Zawā'id*, 8/52.

[371] *Al-Muṣannaf* of Ibn Abi Shaybah, 8/475 and Imām Aḥmad in his *Musnad*, 4/187; it was authenticated by Ibn Ḥibbān, #5828, Ḥākim in his *al-Mustadrik*, 4/276 and Dhahabī agreed.

was named *Sa'īd* (Happy) by the Messenger (ﷺ).[372]

Muḥammad Ibn Sinān narrates from 'Abdullāh Ibn Al-Ḥārith Ibn Abza, from his mother, from her father, that he said: 'I witnessed the Battle of Ḥunayn with the Messenger (ﷺ). He asked me: "What is your name?" I said: "*Ghurāb* (Crow)." He said: "No. You are Muslim."'[373]

Sub-section One:

In addition to changing the name due to its undesirability, it could be changed for another purpose despite its desirability, like when the Prophet changed *Barrah* to *Zainab* to avoid self-adornment or to avoid people saying: 'Left *Barrah*' or ask 'Are you with *Barrah*?' and be answered 'No' as in the ḥadīth.[374]

Sub-section Two:

The Prophet (ﷺ) changed Madīnah's name from *Yathrib* (to reproach) to *Ṭābah* (to be pleasant), as narrated in both Al-Bukhārī and Muslim on the authority of Abū Ḥumayd (*raḍiyAllāhu 'anhu*) who said: 'We came with the Messenger (ﷺ) from Tabūk, until we approached Madīnah, he said: "This is *Ṭābah*."'[375]

It is narrated in Ṣaḥīḥ Muslim on the authority of Jabir Ibn Samurah (*raḍiyAllāhu 'anhu*) that he heard the Messenger (ﷺ) say: 'Allāh named Madīnah as *Ṭābah*.'[376]

[372] Bukhārī in his *Adab al-Mufrad*, p.67

[373] Bukhārī in his *Adab al-Mufrad*, p.68 and it was declared weak by al-Albānī in *al-Jāmi'*, #132 and #134. It is aloss reported by Abū Dāwūd in *ta'liqāt* form, 13/355

[374] Bukhārī, 10/575. See *Zād al-Mu'ād*, 2/244

[375] Bukhārī, #187 and Muslim, 2/1011

[376] Muslim, 2/1007

It is highly undesirable to call it Yathrib. Allāh the Exalted has conveyed that name being designated by the hypocrites, when He said:

وَإِذْ يَقُولُ ٱلْمُنَٰفِقُونَ وَٱلَّذِينَ فِى قُلُوبِهِم
مَّرَضٌ مَّا وَعَدَنَا ٱللَّهُ وَرَسُولُهُۥٓ إِلَّا غُرُورًا ﴿١٢﴾ وَإِذْ قَالَت طَّآئِفَةٌ
مِّنْهُمْ يَٰٓأَهْلَ يَثْرِبَ لَا مُقَامَ لَكُمْ فَٱرْجِعُوا۟ ۚ وَيَسْتَـْٔذِنُ فَرِيقٌ
مِّنْهُمُ ٱلنَّبِىَّ يَقُولُونَ إِنَّ بُيُوتَنَا عَوْرَةٌ ۛ وَمَا هِىَ بِعَوْرَةٍ ۖ إِن يُرِيدُونَ إِلَّا
فِرَارًا ﴿١٣﴾

"And [remember] when the hypocrites and those in whose hearts is disease said: 'Allāh and His Messenger did not promise us except delusion.' And when a faction of them said: 'O People of Yathrib, there is no stability for you [here], so return [home].' And a party of them asked permission of the Prophet, saying: 'Indeed, our houses are unprotected' while they were not exposed. They did not intend except to flee."

[*al-Aḥẓāb* (33):12-13]

It is narrated in *Sunan* Al-Nasā'ī[377] from Mālik, from Yaḥyā Ibn Sa'īd, from Abū'l-Ḥubāb Sa'īd Ibn Yasār, on the authority of Abū Hurayrah (*raḍiyAllāhu 'anhu*) that the Messenger (ﷺ) said: 'I have been commanded [to migrate] to a town [Medīnah] which would overpower other towns. They [the people] call it *Yathrib*; its correct name is [in fact] Madīnah. It eliminates [bad] people just as a furnace removes the alloy of iron.'

[377] *Al-Sunan al-Kubrā* of Nasā'ī, 2/482 and 6/430. The ḥadīth is also related by Bukhārī, 13/174, Muslim, 2/1007 and Imām Mālik in his *al-Muwaṭṭā'*, 2/314

Section Four:
The Permissibility of Cognominating the Newborn

In both Bukhārī and Muslim, it is narrated that Anas said: 'The Prophet (ﷺ) was the best of all the people in character. I had a brother called Abū Umayr. Whenever the Prophet (ﷺ) came, he used to say: "O Abū Umayr! What did Al-Nughayr (nightingale) do?" referring to a nightingale with which he used to play.' The narrator said: 'I think he [Abū Umayr] had been newly weaned.'[378]

Before Anas [Ibn Mālik] (*raḍiyAllāhu ʿanhu*) had children, his cognomen was 'Abū Ḥamzah', and Abū Hurayrah (*raḍiyAllāhu ʿanhu*) was his own cognomen when he did not have children.

The Prophet (ﷺ) permitted 'A'ishah (*raḍiyAllāhu ʿanhā*) to be cognominated *Umm Abdullāh*, after 'Abdullāh Ibn Al-Zubayr who is her nephew—the son of her sister, Asmā' bint Abū Bakr (*raḍiyAllāhu ʿanhu*). This is the authentic narration.[379] As for the ḥadīth that narrates that she and the Prophet (ﷺ) had a stillborn, named him 'Abdullāh and nicknamed her after him, it is not an authentic ḥadīth.[380]

It is possible for a father to have a cognomen after someone who is not his child. Abū Bakr did not have a child called *Bakr*, 'Umar did not have a son called *Ḥafṣ*, Abū Dharr did not have a child called *Dharr*, nor did Khalid have a child called *Sulaymān*, when his cognomen was *Abū Sulaymān*. The same applies for Abū Salamah,

[378] Bukhārī, 10/587 and Muslim, 3/1692

[379] Abū Dāwūd in his *Sunan*, 13/372

[380] Ibn Sunnī in his *ʿAml al-Yawm wa'l-Layl*, p.199 no.#417 on the authority of Hishām Ibn 'Urwā (*raḍiyAllāhu ʿanhu*)

and the examples are too many to be counted. Therefore, it is not necessary for the cognominated person to have a child, or for the cognomen to be after his or her child's name.[381] Allāh knows best.

A cognomen is a kind of glorification and honouring to the person, as the poet said:

When I call him by his cognomen, I honour him

I do not nickname him, for a nickname aims to shame.[382]

Section Five:
Selecting the Name is the Father's Right, and not the Mother's

This is not disputed among people [of knowledge]. When the parents disagree about naming the child, the final say is the fathers. The previously mentioned ḥadīths all indicate as much.

This is similar to being called by the names of their fathers, not their mothers; it is said: Such-and-such, the son of So-and-so. Allāh the Exalted said:

ٱدْعُوهُمْ لِءَابَآئِهِمْ هُوَ أَقْسَطُ عِندَ ٱللَّهِ

"Call them by [the names of] their fathers; it is more just in the sight of Allāh."

[*al-Aḥzāb* (33): 5]

The child follows his mother in freedom and slavery, and follows his father in genealogy, and the name identifies the geneology. He

[381] See *Jāmiʿ Aḥkām al-Ṣighār*, 1/214

[382] See *Sharḥ Dīwān al-Ḥamāsata* of al-Marzūqī, p.1146, *al-Maqāṣid al-Naḥwiyyah*, 2/411 and others.

[the child] follows the best religion amongst his parents'. Identification is similar to education and 'aqīqah, in that it is the father's responsibility, and not the mother's. The Prophet (ﷺ) said: 'A boy was born to me tonight, and I named him after my grandfather, Ibrāhīm.'[383] The father's naming of his child is like naming his slave.

Section Six:
The Difference between the Name (*ism*), Nickname (*laqab*) and Cognomen (*kunyah*)

These three are similar in their purpose to identify the person. However, they differ in another aspect: whether they indicate praise, slander or neither.

If it indicated either, then it is a nickname (*laqab*). It is mostly used in slander. That is why Allāh the Exalted said:

وَلَا تَنَابَزُوا بِالْأَلْقَابِ

"And do not call each other by [offensive] nicknames (*alqāb*)."

[*al-Ḥujarāt* (49):11]

No one disputes the prohibition (*taḥrīm*) of nicknaming a person with something he hates, whether that trait was actually true or not. However, if the person is known by that nickname, such as *Al-A'mash* (The Blear-eyed): *Al-Ashtar* (The Cleft-lipped): *Al-Aṣam* (The Deaf) and *Al-A'raj* (The Limping), it has been frequently used by Scholars of the old and modern days, and Imām Aḥmad was lenient in that regard.

[383] Reference already mentioned.

Abū Dāwūd said in his *Masā'il*: 'I heard Aḥmad Ibn Ḥanbal being asked about a man who has a nickname that he is only known by and does not hate, he said: "Do people not say 'Sulaymān Al-A'mash' and 'Ḥumayd Al-Tawīl'?" as if he saw no problem therein.'

Abū Dāwūd said: 'I asked Aḥmad about it once more, and he permitted it.'

I say: Aḥmad hated to say: *'Al-A'mash'*. Al-Fuḍayl said: 'They claim that he used to say *Sulaymān'*.[384]

If it indicated neither praise (*madḥ*) nor slander (*dhamm*), then if it is begun with *'Abu'* or *'Umm'*, then it is a cognomen (*kunyah*), such as 'Abū Such-and-such', and 'Umm so-and-so'. However, if it is not begun with either, then it is a name, such as Zayd and 'Amr. This is what the Arabs knew, and this is how they addressed each other

As for names ending with *Al-Dīn* (The Religion) and *Al-Dawlah* (The State), such as *'Izz Al-Dīn* (Glory of the Religion): *'Izz Al-Dawlah* (Glory of the State) and *Bahā' Al-Dawlah* (Magnificence of the State), the Arabs did not know that, but it was rather brought in by the non-Arabs.

[384] See *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, pp. 283-284

Section Seven:
The Provisions of Naming after our Prophet (ﷺ) and Sharing his *Kunyah*

It is narrated in both Bukhārī and Muslim from Muḥammad Ibn Sīirīn, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that he said: "Name yourselves after me, but do not call yourselves by my cognomen."[385]

Al-Bukhārī said in his Ṣaḥīḥ, in the chapter of The Prophet's (ﷺ) saying: Name yourselves after me, but do not call yourselves by my cognomen: It was also narrated by Anas (*raḍiyAllāhu ʿanhu*).[386]

Musaddid narrates from Khālid from Ḥusayn, from Sālim, that Jābir (*raḍiyAllāhu ʿanhu*) said: 'A man among us had a boy, and he called him *Al-Qāsim*. People said: 'Do not call him that until you ask the Prophet (ﷺ).' He (ﷺ) said: 'Name yourselves after me, but do not call yourselves by my cognomen.'[387]

'Abdullāh Ibn Muḥammad narrates from Sufyān, from Ibn Al-Munkadir, that Jābir Ibn 'Abdullāh (*raḍiyAllāhu ʿanhu*) said: 'A man among us had a boy, and he called him *Al-Qāsim*. People said: "We will not call you *Abū'l-Qāsim*, nor will we give you that honour." He went to the Prophet (ﷺ) and told him that, so he (ﷺ) said: "Your son's name is 'Abdu'l-Raḥmān."'[388]

It is narrated in Muslim, from Isḥāq Ibn Rāhwayh, from Jarīr,

[385] Bukhārī, 10/571 and Muslim, 3/1684
[386] Bukhārī, 10/571
[387] *Ibid*
[388] Bukhārī, 10/571 and Muslim, 3/1684

from Manṣūr, from Sālim Ibn Abū'l-Jād, that Jābir (*raḍiyAllāhu ʿanhu*) said: 'A man among us had a boy, and he called him *Muḥammad*'. His people told him: "We will not let you name your son after the Messenger's (ﷺ) name." He carried his son on his back and went to the Messenger (ﷺ). He said: "O Messenger of Allāh! I had a son, called him *'Muḥammad'*, and my people told me: 'We will not let you name your son after the Messenger's (ﷺ) name." The Messenger (ﷺ) said: "Name yourselves after me, but do not call yourselves by my cognomen, for I am Qāsim (Distributor) [in the sense] that I distribute amongst you [the spoils of war] and disseminate the knowledge [of revelation]."'[389]

It is also narrated therein from Abū Kurayb, from Marwān Al-Fazārī, from Ḥumayd, on the authority of Anas (*raḍiyAllāhu ʿanhu*), that a man called another in Al-Baqīʿ: 'O Abū'l-Qāsim.' The Messenger (ﷺ) turned to him, so he said: 'O Messenger of Allāh! I was not calling for you, I was calling for Such-and-such.' The Messenger (ﷺ) said: 'Name yourselves after me, but do not call yourselves by my cognomen.'[390]

Scholars disagreed in that regard after agreeing the permissibility of naming after the Messenger's (ﷺ) name. Two views are reported from Aḥmad. One of which is: It is disapproved to give someone both the Prophet's name and cognomen, but if only one of them is given, then it is not disapproved.

The second: It is disapproved to use his cognomen, whether his name was given or not.[391]

Al-Bayhaqī narrates from Abū ʿAbdullāh Al-Ḥāfiẓ, from Abū'l-

[389] Muslim, #3/1682

[390] Muslim, #3/1684

[391] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 3/210 and *Zād al-Mu'ād*, 2/344-348.

ʿAbbās Muḥammad Ibn Yaqʿūb, from Al-Rabīʿ Ibn Sulaymān that Al-Shāfiʿī said: 'No one is permitted to be given the cognomen *'Abū'l-Qāsim*, whether or not his name was Muḥammad.' The essence of what he said is also narrated from Ṭāwūs.

Al-Suhaylī said: 'Ibn Sirin disapproved of using the cognomen *'Abū'l-Qāsim'* whether his name was Muḥammad or not.'[393]

A group said: This lack of permission means disapproval, and not prohibition. Wakīʿ narrates from Ibn ʿAwn that he asked Muḥammad: 'Is it disapproved to use the cognomen *'Abū'l-Qāsim'*, even if the man's name was not Muḥammad?' He said: 'Yes.'

Ibn ʿAwn narrates that Ibn Sīrīn was asked: 'Did they hate to use the cognomen *'Abū'l-Qāsim'* with a man even if his name was not Muḥammad?' He said: 'Yes.'[394]

They said: 'The lack of permission means disapproval when combined with the other ḥadīths that permit it.'

Another group said: 'It is permitted, and the ḥadīths of prohibition are abrogated.'

They cited as evidence what Abū Dāwūd narrated in his Sunan from Al-Nufaylī, from Muḥammad Ibn ʿImrān Al-Ḥajabī, from his grandmother Ṣafiyyah bint Shaybah, on the authority of ʿA'ishah (*raḍiyAllāhu ʿanhā*), that a woman came to the Prophet (ﷺ) and said: 'O Messenger of Allāh! I gave birth to a boy and named him *Muḥammad*, and gave him the cognomen *Abū'l-Qāsim*, then I was

[392] See Al-Bayhaqī in his *Sunan*, 9/309

[393] See *al-Rawḍ al-Aunf fi Sharḥ Sīrah Ibn Hishām* of Suhaylī, 2/66

[394] See *Sharḥ Maʿānī al-Āthār* of Ṭahāwī, 4/338

told that you disapprove of that.' He (ﷺ) said: 'Who was it that allowed [the used of] my name and prohibited my cognomen?" or "Who was it that prohibited my cognomen and allowed [the used of] my name?'[395]

Ibn Abū Shaybah conveys from Muḥammad Ibn Al-Ḥasan, from Abū ʿAwānah, from Mughīrah, from Ibrāhīm that he said: 'Muḥammad Ibn Al-Ashʿath was ʿA'ishah's nephew, and he was given the cognomen *Abū'l-Qāsim*.'

Ibn Abū Khaythama narrates from Al-Zubayr Ibn Bakkār, from ʿAbdu'l-ʿAzīz Ibn ʿAbdullāh Al-Awdī, from Usāmah Ibn Ḥafṣ—who was a freed slave in the house of Hisham Ibn Zahrah, from Rashīd Ibn Ḥafṣ Al-Zahrī that he said: 'I witnessed four of the Companions' sons, each of which was called *Muḥammad* and given the cognomen *Abū'l-Qāsim*: Muḥammad Ibn Ṭalḥah Ibn ʿUbaydullāh, Muḥammad Ibn Abū Bakr Al-Siddiq, Muḥammad Ibn ʿAlī Ibn Abū Ṭālib and Muḥammad Ibn Saʿd Ibn Abī Waqqāṣ.'[397]

He also narrates from his father, from Jarīr, from Mughīrah, that Ibrāhīm said: 'Muḥammad Ibn ʿAlī was given the cognomen *Abū'l-Qāsim*, and so was Muḥammad Ibn Al-Ashʿath, and he used to enter upon ʿA'ishah, and she did not object to that.'[398]

Al-Suhaylī said that Mālik was asked about a person whose name is Muḥammad and who is given the cognomen *Abū'l-Qāsim* and he did not object. He was asked: 'Did you give your son the cognomen *Abū'l-Qāsim*, since his name is Muḥammad?' He said:

[395] Abū Dāwūd, 13/370, Imām Aḥmad in his *Musnad*, 6/135, Bayhaqī, 9/310 and others.
[396] Ibn Abī Shaybah in his *al-Muṣannaf*, 8/480.
[397] Ibn Abī Khaythama in his *Tārīkh*, 2/91
[398] *ibid*

'I did not, but his family did, and I heard no prohibition, and see no issue in that regard.'[399]

Another group said: 'It is not permitted to have both the name and the cognomen, but it is permitted to have each of them individually.'

This group cited as evidence what is narrated by Abū Dāwūd in his *Sunan* from Muslim Ibn Ibrāhīm, from Hishām Ibn Abū'l-Zubayr, on the authority of Jābir (*raḍiyAllāhu ʿanhu*), that the Prophet (ﷺ) said: 'Whoever is named after me should not be given my cognomen, and whoever is given my cognomen should not be named after me.'[400]

Abū Bakr Ibn Abū Shaybah conveys from Wakīʿ, from Sufyān, from ʿAbdu'l-Karīm Al-Jarzī, from ʿAbdu'l-Raḥmān Ibn Abū ʿAmrah, from his uncle, that the Messenger (ﷺ) said: 'Do not combine having my name and my cognomen.'[401]

Ibn Abū Khaythama reports that when Muḥammad Ibn Ṭalḥah was born, Ṭalḥah came to the Prophet (ﷺ) and said: 'His name is Muḥammad; should I give him the cognomen 'Abū'l-Qāsim'?' He (ﷺ) said: 'Do not give him both. His cognomen is Abū Sulaymān.'[402]

Another group said: 'This prohibition is exclusively during his lifetime (ﷺ), for the reason that prompted the prohibition, which is calling for someone else and causing him to think that he is the one being called for.'

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[399] See *al-Rawḍ al-Aunf fi Sharḥ Sīrah Ibn Hishām* of Suhaylī, 2/66

[400] Abū Dāwūd, 13/365 and Tirmidhī, #2842

[401] Ibn Abi Shaybah in his *al-Muṣannaf*, 8/672, Imām Aḥmad in his *Musnad*, 2/433 and Ibn Ḥibbān, #5814.

[402] Ibn Abī Khaythama in his *Tārikh*, 2/91

This group cited as evidence what is narrated by Abū Dāwūd in his *Sunan* from Abū Bakr and ʿUthmān, the sons of Abū Shaybah, from Abū Usāmah, from Fitr, from Mundhir, from Muḥammad Ibn Al-Ḥanafiyah that ʿAlī (*raḍiyAllāhu ʿanhu*) said: 'O Messenger of Allāh! If I had a son after your time, could I give him both your name and cognomen?' He said: 'Yes.'[403]

Ḥumayd Ibn Zangawiya wrote in *Kitāb Al-Adab*: 'I asked Ibn Abū Uways, "What did Mālik say about a man who held both the Prophet's (ﷺ) name and cognomen?" He pointed to an old man sitting with us and said, "This is Muḥammad Ibn Mālik. He named him 'Muḥammad', and gave him the cognomen 'Abū'l-Qāsim." He [Mālik] used to say, "This was prohibited during the Prophet's (ﷺ) lifetime, in order to avoid the situation of someone else being called by both his name and cognomen, causing the Prophet (ﷺ) to wrongly respond to the calling. However, today, it is alright."'[404]

Ḥumayd Ibn Zangawiya said: 'He disapproved of others being called by his cognomen and did not disapprove of them being called by his name, because hardly anyone called him by his name. Therefore, when he passed away, that disapproval was gone. This proven by the fact that he permitted ʿAlī to give his son both his name and cognomen if he was born after his death (ﷺ), and that a number of the Companions' children held both the name and cognomen, including Muḥammad Ibn Abū Bakr, Muḥammad Ibn Jaʿfar Ibn Abū Ṭālib, Muḥammad Ibn Saʿd Ibn Abī Waqqāṣ, Muḥammad Ibn Ḥātib, and Muḥammad Ibn Al-Mundhir.'[405]

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[403] Abū Dāwūd, 13/368-369, Tirmidhī, #2843 and he said: 'This ḥadīth is ḥasan ṣaḥīḥ.' And Bayhaqī in his *Sunan*, 9/309.
[404] Al-Bayhaqī in his *Sunan*, 9/310.
[405] *ibid*

Ibn Abū Khaythama said in his book *Al-Tārikh*: Ibn Al-Aṣbahānī narrates from Fiṭr, from Mundhir, from Ibn Al-Ḥanafiya, that the Messenger (ﷺ) said [to 'Alī], 'You will have a son after my death; call him by my name and give him my cognomen' which was a permit from the Messenger (ﷺ) to 'Alī.[406]

There are three reasons for disapproval:

First: Giving the meaning of the name to someone who is not fit, as mentioned by the Prophet (ﷺ) when he said: 'For I am Qāsim (Distributor) [in the sense] that I distribute amongst you [the spoils of war] and disseminate the knowledge [of revelation].'[407]

He distributes among them what Allāh the Exalted commanded him, not like the distribution of kings who gave and deprived as they willed.

Second: To avoid confusion upon calling, to which he referred in the previously mentioned ḥadīth narrated by Anas (*raḍiyAllāhu 'anhu*) when the caller said: 'I was not calling for you,' So he (ﷺ) said: 'Name yourselves after me, but do not call yourselves by my cognomen.'[408]

Third: Sharing both the name and cognomen abolishes the exclusivity and distinguishability through the name and cognomen, just as he forbade anyone to carve on his seal ring similar to the Prophet's (ﷺ).

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[406] Ibn Abī Khaythama in his *Tārikh*, 2/133, Ibn 'Asākir, 54/330, Ibn Sa'd , 5/45, Al-Khaṭīb in his *al-Tārikh*, 11/218 and others.

[407] Reference already cited

[408] *ibid*

Regarding the first reason: One is forbidden from holding the cognomen whether during the Prophet's lifetime or after his death.

As for the second reason: The forbiddance is exclusive during his lifetime.

As for the third reason: The forbiddance is exclusively for holding both the name and the cognomen.

The ḥadīths in this regard go back and forth between these three points. Allāh knows best.

Section Eight:
The Permissibility of Having Multiple Names

Since the purpose of the name is to identify and distinguish, and a single name is sufficient in this regard, limiting oneself to one name is better.

It is permitted to assign more than one name to the same person, such as having a name, cognomen and nickname.

As for the names of the Lord, Exalted is He, as well as the names of His book and His Messenger, they are attributes indicating praise and tribute, and therefore do not fall under this classification, but rather the multiplication of names to outline the glory, mighty and rank of the named object. Allāh the Exalted said:

وَلِلَّهِ ٱلْأَسْمَآءُ ٱلْحُسْنَىٰ فَٱدْعُوهُ بِهَا

"And to Allāh belong the best names, so invoke Him

by them."

[*al-Aʿrāf* (7):180]

It is narrated in both Bukhārī and Muslim, on the authority of Jābir in Muṭʿim (*raḍiyAllāhu ʿanhu*), that the Messenger (ﷺ) said: 'I have five names: I am *Muḥammad* and *Aḥmad*; I am *Al-Māhī* (The Eliminator) through whom Allāh will eliminate infidelity; I am *Al-Ḥāshir* (The Gatherer) who will be the first to be resurrected, the people being resurrected there after; and I am also Al-*ʿĀqib* (The Last) after whom there will be no prophet.'[409]

Imām Aḥmad conveys from Aswad Ibn ʿĀmir, from Abū Bakr, from ʿĀṣim Ibn Bahdala, from Abū Wā'il, on the authority of Hudayfah (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: 'I am *Muḥammad*, *Aḥmad*, *Al-Muqaffī* (The Last); *Al-Ḥāshir* (The Gatherer), *Nabī Al-Tawbah* (The Prophet of Repentence), and *Nabī Al-Malāhim* (The Prophet of Battles).'[410]

Aḥmad[411] narrates from Yazīd Ibn Harūn, from Al-Masʿūdī, from ʿAmr Ibn Murrah, from Abū ʿUbaydah, on the authority Abū Mūsā (*raḍiyAllāhu ʿanhu*) who said: 'The Messenger (ﷺ) told us his names, some of which we memorised, and some of which we did not.' He (ﷺ) said: 'I am *Muḥammad*, *Aḥmad*, *Al-Muqaffī*, *Al-Ḥāshir*, *Nabī Al-Tawbah* and *Nabī Al-Malāhim*.' It is narrated by Muslim in his Ṣaḥīḥ.[412]

Abū'l-Ḥusayn Ibn Fāris[413] mentioned twenty-three names for the Messenger: *Muḥammad*, *Aḥmad*, *Al-Māhī*, *Al-ʿĀqib*, *Al-Muqaffī*,

[409] Bukhārī, 2/270 and Muslim, 3/1828
[410] Imām Aḥmad in his *Musnad*, 5/405
[411] Imām Aḥmad in his *Musnad*, 4/395
[412] Muslim, 3/1828
[413] Abū'l-Ḥusayn Ibn Fāris in his *Asmā' Rasūlullāh* (ﷺ) *wa Maʿāniyha*, pp.30-39

Nabī Al-Raḥmah (The Prophet of Mercy), *Nabī Al-Tawbah*, *Nabī Al-Malāḥim*, *Al-Shahīd* (The Witness), *Al-Mubasshir* (The Bringer of Good Tidings), *Al-Nadhīr* (The Warner), *Al-Ḍaḥūk* (The Cheerful), *Al-Qattāl* (The Fighter), *Al-Mutawakil* (The Depender [upon Allāh]), *Al-Fātiḥ* (The Conqueror), *Al-Amīn* (The Honest), *Al-Khātam* (The Final [Prophet]), *Al-Muṣṭafā* (The Chosen one), *Al-Rasūl* (The Messenger), *Al-Nabī* (The Prophet), *Al-Ummī* (The Unlettered), *Al-Qāsim* (The Distributor) and *Al-Ḥāshir*.

Section Nine:
The Relation between the Name's Meaning with the Person

We have already mentioned a lot in that regard:[414] including what Sa'īd Ibn Al-Musayyib said: 'Therefore, roughness remained in our character ever since'[415] which resulted from naming the grandfather as *Ḥazn* (Rough).[416]

We have also mentioned what 'Umar told Jamrah Ibn Shihāb: 'Go and find your family, for they have burned.'[417]

We have also mentioned when the Prophet did not allow those whose name was Ḥarb or Murrah to milk the camel[418] that he wished to milk.[419]

There is much evidence for that. It is very rare that you find an ugly name except attached to an ugly object. As the poet said[420]:

[414] See the author's *Zād al-Mu'ād*, 2/336 and *Miftāḥ Dār al-Sa'ādah*, 2/259-260
[415] Reference already cited
[416] *ibid*
[417] *ibid*
[418] Again, the story is talking about a she-camel, not a sheep.
[419] Reference already cited
[420] *ibid*

It is rare that your eye sees an object

to which the meaning of its name does not apply

Allāh the Exalted, with His wisdom in His decree, inspires people to assign names according to the named objects, in order to be consistent with His wisdom between the word and its meaning, just as in the cause and effect.

Abū'l-Fatḥ Ibn Jinnī said: 'I would hear the name for long without knowing its meaning, so I try to deduce the meaning from the word. Then I learn the actual meaning, and find it to be the same, or close [to what I deduced].'

I mentioned this to Shaykh Al-Islām Ibn Taymiyyah (may Allāh have mercy on his soul) and he said: 'This happens a lot to me as well.'[421]

We have already stated his saying (ﷺ): 'The tribe of Aslam (to make safe) is the one which Allāh granted safety, the tribe of *Ghifār* (Oft-forgiving) is the tribe which Allāh granted pardon, and *'Uṣiyyah* (Disobedient) is the tribe that disobeyed Allāh.'[422]

When Waḥshī—the killer of Ḥamzah (*raḍiyAllāhu 'anhu*)[423] embraced Islām, he stood before the Prophet (ﷺ), who hated his name[424] and his deed and said: 'Get out of my face.'[425]

To summarise, ugly manners and deeds necessitate appropriate

[421] See the author's *Badā'i' al-Fawā'id*, 1/166 and *Jalā' al-Afhām*, p.147

[422] Reference already cited

[423] Ḥamzah Ibn 'Abdu'l-Muṭṭalib (*raḍiyAllāhu 'anhu*), the uncle of the Prophet (ﷺ)

[424] Waḥshī in Arabic means savage.

[425] Bukhārī, 7/367

names, and vice versa. While that is the case in attributes' names, it is also the case in proper nouns. The Messenger (ﷺ) was not called Muḥammad and Aḥmad except for the many praiseworthy traits in him.[426] That is why the Banner of Praise is in his hand, his followers are the praise giving, and he is the greatest of Allāh's creation in praising Him. This is why the Messenger commanded the proper selection of names and said: 'Give yourselves good names'[427] for a person with a good name may be encouraged by his name to do what suits his name and refrain from what does not. That is why you see the majority of low people fit for their names, and the majority of honourable people fit for their names. Success is from Allāh.

Section Ten:
Clarifying that People are Called, on the Day of Judgment, by their Fathers' Names, and not their Mothers'

This is the correct thing stated in the explicit authentic Sunnah, and reported by the Imāms, such as Al-Bukhārī and others. He said in his *Ṣaḥīḥ*: Chapter: People are called on the Day of Judgment by their fathers' Names, and not their Mothers'.

Then he narrated the ḥadīth of Ibn 'Umar (*raḍiyAllāhu 'anhumā*) that the Messenger (ﷺ) said: 'When Allāh will gather together, on the Day of Judgment, all the earlier and later generations of mankind, a flag will be raised [to mark off] every person guilty of breach of faith, and it will be announced that this is the deceit of so-and-so, son of so-and-so[428] [to attract the attention of people

[426] Muḥammad means *'The Praised'*, and Aḥmad means *'The Praiseworthy'*

[427] Reference already cited

[428] In Arabic, it is written in the male form, which the English translation cannot clarify.

to his guilt].'[429]

It is narrated in *Sunan* of Abū Dāwūd, with a good chain of narration, on the authority of Abū'l-Dardā' (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: 'On the Day of Resurrection you will be called by your names and by your fathers' names, so give yourselves good names.'[430]

Some people claimed that they would be called by their mothers' names.

They cited as evidence an unauthentic ḥadīth, which is narrated in *Muʿjam* Al-Ṭabarānī, on the authority of Abū Umāmah (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'When one of your brothers dies, and you level dust on his grave, one of you should stand in front of the grave and say: "O such-and-such, son of such-and-such [woman],"[431] for he will hear him but not answer him. Then he should say, "O such-and-such, son of such-and-such" for he will answer: "Guide us, may Allāh be merciful with you..." as the ḥadīth says. Further in the ḥadīth, a man asks: 'O Messenger of Allāh! What if he did not know his [deceased] mother's name?' He (ﷺ) said: 'Call him by the name of his mother, Hawā' (Eve): O such-and-such, son of Hawā'.'[432]

They also said: 'A man's paternity may not be confirmed in cases such as to disavowal due to *liʿān*[433] or illegitimate children, how

[429] Bukhārī, 10/563 and Muslim, 3/1359.

[430] Reference already cited

[431] Similarly, in Arabic, it is written in the female form, which the English translation cannot clarify.

[432] Ṭabarānī in his *al-Muʿjam al-Kabīr*, 8/298 and others

[433] *Liʿān* or *mulaʿanah* (cursing) occurs when a husband accuses his wife of adultery without having four witnesses. Then, the judge asks each of them to swear five times =

then can the child be called by his father's name?'

The answer is: As for the ḥadīth, it is weak according to the consensus of ḥadīth scholars. As for he whose paternity is in doubt, he will be called [in the hereafter] like in this life. A person is called in the hereafter as he is called in this life, whether by his father's name or his mother's.

Allāh knows best.

=

that they are telling the truth or that the other party is lying, and that Allāh's curse and wrath are upon the liar. Then, they are separated for life. If that oath includes disavowal of paternity of a child, the child's paternity is nullified.

CHAPTER NINE

Circumcising the Child and its Requirements

This [chapter] consists of fourteen sections:

Section 1: The meaning, derivation and essence of circumcision.
Section 2: The circumcision of Ibrāhīm and the Prophets after him (*'alayhis-salām*).
Section 3: Its legality and that it is of pure nature.
Section 4: The debate among scholars regarding its obligation.
Section 5: The time of obligation.
Section 6: The debate regarding performing it on the seventh day, whether or not it is disapproved and the argument of each side.
Section 7: The wisdom behind circumcision and its benefits.
Section 8: The depth of circumcision.
Section 9: Its inclusion of the male and the female.
Section 10: Requirements of the circumciser's offense and the circumcision contagion.
Section 11: Requirements of the uncircumcised in his purity, prayers, leadership of prayers and testimony.
Section 12: Removers of its obligation.

Section 13: The circumcision of our Prophet (ﷺ) and the debate surrounding it, whether he was born circumcised, or circumcised after birth, and when he was circumcised.

Section 14: The wisdom behind the resurrection of people on the Day of Judgment uncircumcised.

Section One:
The Meaning, Derivation and Essence of Circumcision

[Some parts of this chapter were not translated because they are speaking about Arabic grammar and vocabulary, which does not concern the English reader.]

The man's foreskin: is the round edge under the glans; requirements originated to remove it from the penis. Over three hundred requirements originated in that regard; some people counted them up to three hundred ninety-two requirements.

As for the woman's foreskin: it is a piece of skin, like a cocks-comb above the vagina. If the glans entered the vagina, the two foreskins align with each other.

The Arabic word *'khitān'* means circumcision, foreskin and also the circumcision banquet.

Section 2:
The Circumcision of Ibrāhīm and the Prophets after him (*'alayhim-salām*)

It is narrated in both Al-Bukhārī and Muslim on the authority of Abū Hurayrah (*raḍiyAllāhu 'anhu*) that the Messenger (ﷺ) said: 'Ibrāhīm (ﷺ) was circumcised at the age of eighty with *al-qadūm* (an adze).'[434]

Al-Bukhārī said: '*Al-Qadūm* is the name of a location.'[435]

Al-Marrūdhī was asked: 'Did Ibrāhīm (*'alayhis-salām*) circumcise himself with an adze?' He said: 'With the adze's edge.'[436] Abū Dāwūd, 'Abdullāh Ibn Aḥmad and Ḥarb said that they asked Aḥmad about the phrase, 'Circumcised in *Al-Qadūm*' and he said: 'That is a location.'[437]

Others said that it is the name of a tool [the adze], and cited as evidence the poet's saying:

I said lend me *al-qadūm* so that I may

carve with it a sheath for a glorious white [sword][438]

Another group said: 'Wherever it is narrated as '*Al-Qadūm*', it means the location, and wherever it is narrated as '*Al-Qaddūm*', it means the tool.'[439]

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[434] Bukhārī, 11/88 and Muslim, 4/1839

[435] The last phrase of the ḥadīth could be translated as '*with Al-Qadūm*' or '*in Al-Qadūm*', depending on the translation of '*Al-Qadūm*'.

[436] See *al-Khallāl fi'l-Tarajl*, p.82 no.169.

[437] See *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 284 and others.

[438] Al-Azharī in *al-Tahdhīb*, 9/47

[439] See *al-Misbāḥ al-Munīr* of Fayawmī, 2/494

The story of Ibrāhīm's circumcision is narrated with words that may give the impression of contradiction, and no contradiction is there, praise be to Allāh, which we will mention.

It is narrated Al-Bukhārī in his Ṣaḥīḥ, from Abū'l-Zināḍ, from Al-Aʿraj, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*), that the Prophet (ﷺ) said: 'Ibrāhīm (*ʿalayhis-salām*) was circumcised at the age of eighty with or in *Al-Qadūm*.'[440]

Similar words are narrated from Yaḥyā Ibn Saʿīd, from Ibn ʿAjlān, from his father, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*). Yaḥyā said: '*Al-Qadūm* means an axe.'[441]

Al-Naḍr Ibn Shumayl said: 'He cut it with *Al-Qadūm*.' He was asked: 'They say that *Al-Qadūm* is a village in the Levant?' But he did not recognise it, and insisted on his view.

Al-Jawharī said: '*Al-Qadūm* is a tool used for carving.' Ibn Al-Sakkīt said: 'Do not say *Al-Qadūm*.' He also said: '*Al-Qadūm* is also the name of a location.'[442]

The correct view is that *Al-Qadūm* in the ḥadīth refers to the tool, because of what Al-Bayhaqī conveyed: Abū ʿAbdullāh Al-Ḥāfiẓ and Abū Saʿīd Ibn Abū ʿAmr narrate from Abū'l-ʿAbbās Muḥammad Ibn Yaʿqūb, from Muḥammad Ibn ʿAbdullāh, from Abū ʿAbdu'l-Raḥmān Al-Maqrī, from Mūsā Ibn ʿAlī, that his father said: 'Allāh commanded Ibrāhīm to be circumcised when he was eighty years of age, so he hastened and circumcised with an adze. When the pain grew intense for him, he prayed to his Lord. Allāh

[440] Bukhārī, 6/388

[441] Ibn Ḥajr said in *Fatḥ al-Barī*, 11/90; see Ibn ʿAbdu'l-Barr in his *Istidhkār*, 10/21

[442] *Al-Ṣaḥāḥ* of Al-Jawharī, 5/2008-2009; see *al-Misbāḥ al-Munīr* of Fayawmī, 2/494 and *Fatḥ al-Barī*, 11/90

inspired him: 'You hastened before We command you with the tool to use.' He said: 'O Lord! I hated to delay your command.' He ['Alī] said: 'Ismā'īl was circumcised at the age of thirteen, and Isḥāq was circumcised when he was seven days old.'

Ḥanbal conveys from 'Āṣim, from Abū Uways, from Abū'l-Zinād, from Al-A'raj, on the authority of Abū Hurayrah (*raḍiyAllāhu 'anhu*) that the Prophet (ﷺ) said: "Ibrāhīm was the first one to be circumcised, when he was a hundred and twenty years of age. He was circumcised with or in *Al-Qadūm*, then lived eighty years after that."[443]

However, this ḥadīth is weak. It was narrated by Yaḥyā Ibn Sa'īd from Sa'īd Ibn Al-Musayyib from Abū Hurayrah's (*raḍiyAllāhu 'anhu*) saying.

Nevertheless, it was also narrated by Abū Uways 'Abdullāh Ibn 'Abdullāh Al-Madanī, from whom Muslim narrated in his *Ṣaḥīḥ*, as well as the four authors of the *Sunan* books.[444]

Abū Dāwūd said: 'His narration is acceptable.'

Different views were narrated from Ibn Ma'īn regarding him. Al-Dowrī narrated: 'There is weakness in his narration' and also narrated certifying his narration.[445]

However, Al-Mughīrah Ibn 'Abdu'l-Raḥmān, Shu'ayb Ibn Abū Ḥamzah and others narrated from Abū'l-Zinād something different than Abū Uways did, which conforms with the authentic

[443] Ibn Ḥajr said in *Fatḥ al-Barī*, 11/90, *Al-Tamhīd* of Ibn 'Abdu'l-Barr, 23/137-138, *Istidhkār*, 10/21 and *Shu'ab al-Imān* of al-Bayhaqī, 15/130.

[444] Referring to the *Sunan* of Al-Tirmidhī, Al-Nasā'ī, Ibn Mājah and Abū Dāwūd.

[445] See *Tārīkh Yaḥyā Ibn Ma'īn*, 2/317 and *Tahdhīb al-Tahdhīb* of Ibn Ḥajr, 5/245-246

narrations, that he (ﷺ) was circumcised at the age of eighty.[446]

This is more entitled to be true, and it indicates the weakness of *marfū'*[447] and *mawqūf*[448].

Some of them said: Both versions are correct, and the way to accommodate both of them is by looking at the duration of Ibrāhīm's (*'alayhis-salām*) life. He lived for two hundred years, uncircumcised for the first eighty, and circumcised for the last hundred and twenty. The first ḥadīth said, 'Circumcised at the age of eighty' and the other said, 'Circumcised for hundred and twenty years' remaining from his life.[449]

However, this accommodation has a clear flaw. The ḥadīth says: "Ibrāhīm was the first one to be circumcised, when he was a hundred and twenty years of age" and not "Circumcised for hundred and twenty years."

We have stated the narration of Yaḥyā Ibn Sa'īd from Sa'īd Ibn Al-Musayyib from Abū Hurayrah (*raḍiyAllāhu 'anhu*), which is *mawqūf* to Abū Hurayrah (*raḍiyAllāhu 'anhu*), that Ibrāhīm (*'alayhis-salām*) was circumcised at the age of hundred and twenty. This is contradicted by the authentic narration from Abū Hurayrah (*raḍiyAllāhu 'anhu*) that is *marfū'*.

Al-Walīd Ibn Muslim narrates from Al-Awzā'ī, from Yaḥyā Ibn Sa'īd, from Sa'īd Ibn Al-Musayyib on the authority of Abū Hurayrah's (*raḍiyAllāhu 'anhu*) saying: 'Ibrāhīm was circumcised

[446] See Ibn Ḥajr said in *Fatḥ al-Barī*, 11/88-89

[447] Ḥadīth *marfū'*: Any ḥadīth attributed to the Prophet (ﷺ), whether authentic or not.

[448] Ḥadīth *mawqūf*: A ḥadīth with a continuous chain of narration that extends to the Companion, not the Prophet (ﷺ).

[449] Ibn Ḥajr said in *Fatḥ al-Barī*, 11/89 and see *Shu'ab al-Imān* of al-Bayhaqī, 15/133

at the age of hundred and twenty, then he lived for eighty years."

This ḥadīth is weak, narrated by Ja'far Ibn 'Awn and 'Ikrimah Ibn Ibrāhīm from Yaḥyā Ibn Sa'īd, from Abū Hurayrah's (*raḍiyAllāhu 'anhu*) saying, when the authentic *marfū'* ḥadīth should prevail. In addition, Al-Walīd Ibn Muslim is known for fraudulent (*tadlīs*) narration.

Haytham Ibn Kharijah[450] said that he told Al-Walīd Ibn Muslim: 'You have corrupted the ḥadīths narrated by Al-Awzā'ī!' He said: 'How so?' He said: 'You narrate from Al-Awzā'ī from Nafi', and narrate from Al-Awzā'ī from Al-Zuharī, and from Al-Awzā'i from Yaḥyā Ibn Sa'īd. Meanwhile, others insert 'Abdullāh Ibn 'Āmir Al-Aslamī between Al-Awzā'ī and Nāfi', and insert Ibrāhīm Ibn Maysarah, Qurrah and others between him and Al-Zuharī. Why do you do this?'

He said: 'I hold him far above narrating from those.'

Haytham said: 'If Al-Awzā'ī narrated from those, when those are weak narrators, whose narrations are not acceptable, then you remove them and attribute Al-Awzā'ī's narration directly to trustworthy narrators, you weaken Al-Awzā'ī's narration.' Haytham adds: 'But he did not listen.'

Abū Mus'hir said: 'Al-Walīd Ibn Muslim used to narrate from Al-Awzā'ī from liars, while removing them from the chain of narration.'[451]

Al-Dāraquṭnī[452] said: 'Al-Walīd Ibn Muslim narrates from Al-

[450] See *Tahdhīb al-Kamāl*, 7/488
[451] *ibid*
[452] *ibid*

Awzā'i some ḥadīths that he narrated from weak narrators, which they narrated from trustworthy narrators, such as Nāfi', 'Aṭā' and Al-Zuharī, and he [al-Walīd] would omit the names of the weak narrators and present them as from Al-Awzā'ī from 'Aṭā'.'

Imām Aḥmad said, as narrated by his son, 'Abdullāh: 'Al-Walīd frequently omits narrators from the chain' and as narrated by Al-Marrūdhī, 'He makes frequent mistakes.'[453]

This ḥadīth was narrated through another narration, from the version of Nubayṭ Ibn Sharīṭ from the Prophet (ﷺ): 'The first to give hospitality to guests was Ibrāhīm (*'alayhis-salām*), the first to wear trousers was Ibrāhīm, and the first to be circumcised was Ibrāhīm, with or in *Al-Qadūm* at the age of hundred and twenty.' This version was weakened by the ḥadīth scholars.[454]

In conclusion: This ḥadīth is weak, and cannot contradict what is stated in the authentic ḥadīth.

It also cannot be interpreted as previously stated for a number of reasons:

1- The wording cannot be interpreted as satated, because it said: "Circumcised at the age of hundred and twenty."
2- It said: "Then he lived for eighty years."
3- It could have been interpreted as such, with difficulty and disapproval, if it had said: "Circumcised for a hundred and twenty years."

Then, it would have meant for the hundred and twenty years

[453] *ibid*
[454] See *Shu'ab al-Imān* of al-Bayhaqī, 15/130

that remained in his life. However, this method is used [by Arabs] if the remainder was less than the past.[455]

Circumcision was among the commands with which Allāh—the Exalted—tried his close friend, Ibrāhīm, which he fulfilled, and so Allāh made him a leader for the people.

It was narrated that he was the first to be circumcised, as mentioned and narrated in the Ṣaḥīḥ: Ibrāhīm was circumcised at the age of eighty, and circumcision continued after him in Messengers and their followers, even in Christ, for he was circumcised. Christians admit that, and do not deny it, just as they admit that he forbade pork and earning on Saturday, prayed [while directed] towards the stone, and did not fast for fifty days, that which they call Lent.

It is narrated in *Jāmiʿ al-Tirmidhī*[456] and *Musnad* of Imām Aḥmad,[457] on the authority of Abū Ayyūb (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: 'Four are of the *Sunan* (traditions) of Messengers: circumcision, perfuming oneself, *siwāk* (tooth stick) and marriage.' Al-Tirmidhī said that this ḥadīth is ḥasan gharīb.[458]

They disagreed about the wording [of the first tradition]. Some said *modesty*, and some said '[the use of] camphire'.[459]

I heard our teacher, Abū'l-Ḥajjāj Al-Ḥāfiẓ Al-Mazzī saying: 'Both of them are wrong; it said *circumcision,* but due to improper

[455] See al-Safdī in *al-Wāfī bi'l-Wafiyāt*, 1/20-21

[456] Tirmidhī, 4/66 and others

[457] Imām Aḥmad in his *Musnad*, 5/421 and others

[458] Ḥasan *gharīb* (strange good): A good ḥadīth that is subjected to a form of uniqueness in its narrators.

[459] See Ibn Ḥajr said in *Fatḥ al-Barī*, 10/415

writing, the word was misread. It is also what was narrated from *Al-Mahāmilī*[460] from the narrator from whom Al-Tirmidhī narrated he said "circumcision." He added: 'This is more entitled to be true than modesty and camphire, because modesty is an attribute, and camphire is not a Sunnah, nor was it mentioned by the Prophet (ﷺ) among the attributes of pure nature, nor recommended by him, unlike circumcision.'[461]

Sub-section One: Self-circumcision

Al-Marāzī states that Abū 'Abdullāh was asked whether a man may perform circumcision on himself, and he said: 'If he was able to, let him do so.'[462]

Al-Khallāl conveys from 'Abdu'l-Karīm Ibn Al-Haytham that he heard Abū 'Abdullāh being asked whether a man may perform circumcision on himself, and he said: 'If he was able to, let him do so.'[463]

He also conveys from Muḥammad Ibn [Abu] Harun, from Isḥāq, that Abū 'Abdullāh was asked about a woman who is to consummate her marriage with her husband while uncircumcised and whether she is obliged to be circumcised. He said: 'It is a good practice.' Then he said something similar to Al-Marāzī's report about self-circumcision. He was asked: 'If she was able to, should she self-circumcise?' He said: 'How good would that be!'

He was asked about a man self-circumcising, he said: 'If he was

[460] See *Amālī al-Mahāmilī*, #431

[461] *Zād al-Mu'ād*, 4/252, *al-Manār al-Munīf*, pp.127-128; see *Fayḍ al-Qadīr* of Manāwī, 1/466

[462] See al-Khallāl in his *Kitāb al-Tarajl*, p.83 no.172.

[463] See al-Khallāl in his *Kitāb al-Tarajl*, p.83 no.173.

able to, that is good, and it is a good practice."[464]

Section Three:
Its Legality and That it is of Pure Nature

It is narrated in both Bukhārī and Muslim, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: "There are five acts which conform to the pure nature: circumcision, removing of the pubic hair, trimming the moustache, clipping the nails and plucking the underarm hair."[465]

He (ﷺ) made circumcision (*khitān*) the headline of the acts of pure nature. These acts are of pure nature (*fitra*) because fitra is the *Ḥanifiyyah*, the religion of Ibrāhīm, who commanded the performance of these acts.

These were among the commands with which Allāh tried him, as ʿAbdu'l-Razzāq narrated from Muʿamar, from Ibn Ṭāwūs, from his father, on the authority Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*), in his interpretation of the verse:

وَإِذِ ٱبْتَلَىٰٓ إِبْرَٰهِـۧمَ رَبُّهُۥ بِكَلِمَٰتٍ

"And [mention, O Muḥammad], when Ibrāhīm was tried by his Lord with commands."

[*al-Baqarah* (2):124]

He [Ibn ʿAbbās] said: 'He tried him with purity; five in the head, and five in the body. In the head: trimming the moustache, gargling, rinsing the nose, *siwāk* and parting one's hair. In the body: clipping nails, shaving pubic hair, circumcision, plucking armpit hair, and

[464] Reference already mentioned

[465] Bukhārī, 10/334 and Muslim, 1/221

cleaning the effect of urine and stool with water.'[466]

There are two types of fitrah. A heart-related *fitrah*, which is to know Allāh, love Him and give Him priority over everything else, and a practical *fitrah*, which consists of the acts.

The former purifies the soul and heart, and the latter purifies the body. Each of them supplies and strengthens the other. The head of bodily *fitrah* is circumcision, for reasons that we will mention in Section Seven, by Allāh's will.

It is narrated in *Musnad* of Imām Aḥmad on the authority of Ammār Ibn Yāsir (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: 'Part of the *fitrah* is gargling, rinsing out the nostrils, using the *siwāk*, trimming the moustache, clipping the nails, washing the joints, plucking the armpit hairs, shaving the pubic hair, washing the private parts and circumcision.'

The acts of *fitrah* are tied together regarding purity, cleanliness and removing the dirty wastes that are familiar and frequented by Satan, and it has a connection and exclusivity with circumcision which we will clarify in Section Seven, by Allāh's will.

A number of the Salaf said: 'Whoever prayed, performed pilgrimage and performed circumcision is a *Ḥanif* (follows the religion of Ibrāhīm). Pilgrimage and circumcision are the banner of *Ḥanifiyyah*, and is the pure nature upon which Allāh created the people.'

[466] See *Tafsīr ʿAbdu'l-Razzāq*, 1/57

[467] Imām Aḥmad in his *Musnad*, 4/264, Abū Dāwūd, 1/342-344, Ibn Mājah, #294 and others

The heardsman[468] said, addressing Abū Bakr (*raḍiyAllāhu ʿanhu*):

O Vicegerent of the Merciful, we are a group of Hanifs;

prostrating morning and afternoon.

Arabs, that see Allāh in our fortune,

the right of *zakāt*, sent down progressively.

Section Four:
The Debate Regarding its Obligation

Jurists debated that. Al-Shaʿbī, Rabīʿah, Al-Awzāʿī, Yaḥyā Ibn Saʿīd Al-Anṣarī, Mālik, Al-Shāfiʿī and Aḥmad said: 'It is obligatory.'[469]

Mālik was adamant therein, he even said: 'Whoever is not circumcised, their leadership and testimony are not accepted.'[470] Many jurists reported from Mālik that it is a Sunnah. Even the judge, 'Iyāḍ, said: 'Circumcision, in Mālik's view as well as the majority of scholars is a Sunnah.'[471]

However, it is a sin, in their view, to leave the Sunnah. They treat it as something between the *farḍ* (obligatory) and the recommended, else why would Mālik say that the testimony and leadership of the uncircumcised are not acceptable.

Al-Ḥasan Al-Baṣrī and Abū Ḥanīfah said: 'It is not obligatory,

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[468] Al-Rāʿī al-Numīrī in his *Diwān*, p.206

[469] See *Nihāya al-Muṭalib* of Juwaynī, 17/354-355, *Biyān* of 'Umarānī. 1/95, *al-Majmūʿ* of Al-Nawāwī, 1/164, *al-Mugnī* of Ibn Qudāmah, 1/115 and others.

[470] See *Ḥāshiya al-Dasūqī ʿala al-Sharḥ al-Kabīr*, 6/87

[471] *Sharḥ Ṣaḥīḥ Muslim* of Qaḍī 'Iyāḍ, 2/65 and Ibn 'Abdu'l-Barr in his *Istidhkār*, 10/20

but it is a Sunnah,'[472] likewise Ibn Abū Mūsā,[473] one of Aḥmad's students said, 'It is an affirmed Sunnah.'[474]

Aḥmad said in one report that it is nor obligatory for women.[475] Those deeming it obligatory cited a number of points as evidence:

First: Allāh the Exalted's saying:

ثُمَّ أَوْحَيْنَآ إِلَيْكَ أَنِ ٱتَّبِعْ مِلَّةَ إِبْرَٰهِيمَ حَنِيفًا

"Then We revealed to you, [O Muḥammad], to follow the religion of Ibrāhīm, inclining toward truth."

[*al-Naḥl* (16):123]

Circumcision was a part of his religion, as stated.

Second: What is narrated by Imām Aḥmad from 'Abdu'l-Razzāq, from Ibn Jurayj, from Uthaym Ibn Kulayb, from his father, from his grandfather, that he came to the Prophet (ﷺ) and said: 'I have accepted Islām.' He (ﷺ) said: 'Remove the hair of the disbelief's from you" meaning to shave. He [the narrator] said that another person with him told him that the Prophet (ﷺ) said to another person: 'Remove the hair of the disbelief's from you and get circumcised.' It is narrated by Abū Dāwūd from Makhalad Ibn Khālid, from 'Abdu'l-Razzāq.[476] Interpreting the removal of hair as optional does not necessitate interpreting the same for circumcision.

[472] See Mullā 'Alī Qarī in his *Fatḥ Bāb al-'Ināyah*, 1/37

[473] In his book *al-Irshād ila Sabīl al-Rishād*, p.391

[474] *Sunnah Mu'akadah* (Affirmed Sunnah): A Sunnah that the Prophet (ﷺ) rarely missed.

[475] See al-Khallāl in his *Kitāb al-Tarajl*, p.86 and *al-Mugnī* of Ibn Qudāmah, 1/115-116

[476] 'Abdu'l-Razzāq, 6/10, Abū Dāwūd, 2/575-577, Imān Aḥmad in his *Musnad*, 3/415, Bayhaqī in his *Sunan*, 1/172 and others

Third: Harb conveyed in his book *'Masā'il'* from Al-Zuharī that the Messenger (ﷺ) said: 'Whoever embraces Islām should get circumcised, even if he was old.'[477]

Even if this ḥadīth is mursal, it is valid as evidence.

Fourth: What Al-Bayhaqī narrated from Mūsā Ibn Ismā'īl Ibn Ja'far Ibn Muḥammad Ibn Ḥusayn Ibn 'Alī, from his grandfathers one after the other, from 'Alī (*raḍiyAllāhu 'anhu*), that the paper they found in the handle of the Messenger's (ﷺ) sword saying: 'The uncircumcised is not left, in Islām, until he gets circumcised, even if he had reached the age of eighty.' Al-Bayhaqī said: 'This ḥadīth is narrated exclusively by *Ahlu'l-Bayt*.'[478,479]

Fifth: What Ibn Al-Mundhir narrated from Abū Burzah from the Prophet (ﷺ) regarding the uncircumcised: 'He must not perform Pilgrimage to the house of Allāh until he gets circumcised.'[480] In another version it said that they asked the Messenger (ﷺ) about an uncircumcised man wanting to perform pilgrimage to the house of Allāh, he said: 'No. Not until he gets circumcised.' Then he said: 'Its authenticity is uncertain, because the chain of narrators is unknown.'[481]

Sixth: What Wakī' narrated from Sālim Abū'l-'Alā' Al-Murādī, from 'Amr Ibn Ḥarām, from Jābir Ibn Zayd, that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: 'The uncircumcised person's prayer is not acceptable, and people should not eat from his sacrifice.'[482]

[477] See *Al-Talkhīṣ al-Ḥabīr* of Ibn Ḥajr, 4/82

[478] *Ahlu'l-Bayt* (People of the house) are the family of Prophet Muḥammad (ﷺ).

[479] Bayhaqī in his *Sunan*, 8/324

[480] It is related by Ibn Mundhir in his *al-Ishrāf*, 3/424 and Bayhaqī, 8/324

[481] See Ibn Mundhir in his *al-Ishrāf*, 3/424

[482] 'Abdu'l-Razzāq, 4/483, Bayhaqī in his *Sunan*, 8/325 and in his *Shu'ab al-Imān*, 6/396; see *Fatḥ al-Barī*, 9/637

Imām Aḥmad conveys from Muḥammad Ibn ʿUbayd, from Sālim Al-Murādī, from ʿAmr Ibn Ḥarām, from Jābir Ibn Zayd that Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) said: 'People should not eat from the uncircumcised person's sacrifice.'[483]

Ḥanbal narrated in his *'Masa'il'* from Abū ʿUmar Al-Ḥawdī, from Hammam, from Qatādah that ʿIkrimah said: 'People should not eat from the uncircumcised person's sacrifice.'[484]

He also said that Al-Ḥasan disagreed with ʿIkrimah in that regard. He added that ʿIkrimah was asked: 'Can he [the uncircumcised] perform pilgrimage?' He said: 'No.'[485]

Ḥanbal said, narrating from Abū ʿAbdullāh: 'His sacrifice should not be eaten, and no prayer or pilgrimage is accepted from him until he is circumcised. Circumcision is among that which completes Islām.'[486]

Ḥanbal also narrates from Abū ʿAbdullāh: 'The uncircumcised should not make a sacrifice, his sacrifice should not be eaten, and his prayer is not accepted.'

ʿAbdullāh Ibn Aḥmad conveys from his father, from Ismāʿīl Ibn Ibrāhīm, from Saʿīd Ibn Abū ʿArūbah, from Qatādah, from Jābir Ibn Zayd, that Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) said: 'The uncircumcised person's prayers are not accepted, his sacrifice should not be eaten, and he is not allowed to testify.'[487]

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[483] See al-Khallāl in his *Kitāb al-Tarajl*, p.86
[484] See *Masā'il al-Imām Aḥmad*, of Isḥāq, 9/4759
[485] See *al-Muṣannaf* of ʿAbdu'l-Razzāq, 11/175
[486] See al-Khallāl in his *Kitāb al-Tarajl*, p.178
[487] See *Masā'il al-Imām Aḥmad*, of ʿAbdullāh, 1/151 and al-Khallāl in his *Kitāb al-Tarajl*, p.84

Qatādah said: 'Al-Ḥasan did not agree with that view.'[488]

Seventh: Circumcision is one of the most apparent rituals that differentiate the Muslim and the Christian.[489] Therefore, its obligation is more important than the obligation of *witr* prayer, *zakat* on horses, redoing ablution for whoever laughs loudly in his prayer or on whoever vomited, bled or received bloodletting, extending tayammum[490] to the elbows, or hitting hands against the ground [in *tayamum*], ... etc. Meanwhile, the obligation of circumcision is clearer and stronger, so much so that Muslims do not consider the uncircumcised to be one of them.

Therefore, a group of jurists believe that the old uncircumcised person should get circumcised even if it lead to its damaging, as we will explain in Section Twelve, by Allāh's will.

Eighth: That it is a severance decreed for the sake of Allāh, the damage due to infection during the course of which is not insured. Therefore, it is obligatory, just like the thief's hand.

Ninth: That it is permitted to show one's *'awrah* (private parts) for its performance. Had it not been obligatory, this would not have been the case, because the forbidden cannot be justifiably done in order to preserve an optional deed.[491]

Tenth: It cannot be performed without leaving two obligatory

[488] See *al-Muṣannaf* of 'Abdu'l-Razzāq, 11/175

[489] See *A'lām al-Ḥadith* of Khaṭṭābī, 3/2154

[490] Ablution with sand in the absence of water. It is performed by placingone's hands on the surface of the ground, rubbing the face with them, and then wiping both hands until the wrists.

[491] See *Nihāya al-Muṭṭalib* of Juwaynī, 17/355, *al-Majmū'* of Al-Nawāwī, 1/164, *Sharḥ Ṣaḥīḥ Muslim* of Qaḍī 'Iyāḍ, 2/65 and others

deeds and committing two forbidden ones. These are uncovering the circumcised person's private parts, and the circumcising person looking at another person's private parts. Had it not been obligatory, it would not have been permitted to leave two compulsory deeds and commit two forbidden ones for its performance.

Eleventh: What is cited as evidence by Al-Khaṭṭābī when he said: 'As for circumcision, even if it was mentioned among the group of Sunan, it is regarded by many scholars as obligatory, and that it is the banner of the religion. It distinguishes the Muslim from the non-believer. If a circumcised person's dead body was found among a group of uncircumcised dead people, he is prayed upon and buried in the graves of Muslims.'[492]

Twelfth: The child's guardian inflicts pain on the child during its performance, exposes him to damage by infection, pays for the circumciser's fees and medication from his [the child's] fortune, and does not guarantee him being held accountable for damage by infection. Had it not been obligatory, that would not have been permitted. The guardian is not permitted to waste the child's fortune, inflict pain on him and expose him to damage for an optional deed. This is apparent, praise be to Allāh.

Thirteenth: Had it not been obligatory, the circumciser would not have been allowed to perform it, even by the circumcised person's permission, or the permission of his guardian. No one is allowed to severe an organ that neither Allāh nor His Messenger commanded severing, nor whose severing became necessary.[493] If he was given permission [by the person or his guardian] to severe

[492] See *Ma'ālim al-Sunan* of al-Khaṭṭābī, 1/42 with *Mukhtaṣar al-Mundhir* and *Sharḥ Ibn al-Qayyim*.

[493] See *Nihāya al-Muṭṭalib* of Juwaynī, 17/355, *al-Majmū'* of Al-Nawāwī, 1/164-165 and others.

an ear or a finger, he would not be allowed to do it, and the permission does not absolve him of the sin involved; in addition, it is debated whether insurance against persecution for damage will apply to him.[494]

Fourteenth: The uncircumcised is subject to the corruption of his purity and prayer. The foreskin covers the entire male private parts, so it is stained with urine, and cannot be purified by stone. Therefore, the validity of purity and prayer depend on circumcision. That is why many scholars, of both old and new, forbade the uncircumcised to lead the prayer, even if he was excused himself, he is treated like someone who has urinary incontinence and so on.

The purpose of circumcision is to avoid the confinement of urine in the foreskin, which corrupts the purity and prayer. That is why Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said, as narrated by Imām Aḥmad and others: 'His prayer is not accepted.' That is also why it lapses with the person's death, since the obligation of purity and prayer is removed.

Fifteenth: That it [not circumcising] is the banner of worshippers of the cross and worshippers of fire with which they distinguished themselves from the Ḥanifs. Circumcision is originally the banner of Ḥanifs, hence the first one to be circumcised was the leader of Ḥanifs. It became the banner of *Ḥanifiyyah*, and it was inherited by the chidren of Ismā'īl and Isra'īl from Ibrāhīm (ﷺ). Therefore, it is not permitted to conform with the uncircumcised worshippers of the cross in the banner of their disbelief and trinity.

[494] See *Majma' al-Damānāt* of Baghdādī, 1/136-137, *Badā'id al-Sanā'i'* of Kāsānī, 7/236-237, *Fatḥ al-Qadīr* of Ibn al-Hamām, 7/206 and others.

Sub-section Two:

Those who deem it optional said [in response]:

The Sunnah has explicitly stated that it is a Sunnah, as in the ḥadīth narrated by Shaddād Ibn Aus that the Prophet (ﷺ) said: 'Circumcision is a Sunnah for men, and a noble deed for women.' It is narrated by Imām Aḥmad.[495]

They said: 'The Prophet (ﷺ) has joined it with other optional Sunan, such as shaving the pubic hair, trimming the moustache, clipping the nails and plucking the armpit hair.'

They also conveyed that Al-Ḥasan Al-Baṣrī that said: "People have joined Islām on the hands of the Prophet (ﷺ). Whether they were Blacks, Whites, Romans, Persians or Abyssinian, he never checked any of them [for circumcision], or I have not heard that he checked any of them."[496]

Imām Aḥmad narrates from Al-Mu'tamir, from Salm Ibn Abū'l-Dhayyāl, that Al-Ḥasan said: 'How strange is that man [referring to the Amir of Baṣrah]! He met some people from Kashkar and asked them: "What is your religion?" They said: "Muslims." He commanded them to be checked, they were found to be uncircumcised, so they were circumcised this winter, and I heard that some of them died [as a result]! People have joined Islām on the hands of the Prophet (ﷺ); blacks, whites, Romans, Persians or Abyssinian, he never checked any of them [for circumcision].'[497]

[495] Imām Aḥmad in his *Musnad*, 5/75, Ibn Abī Shaybah in his *al-Muṣannaf*, 6/223, Ṭabarānī, in *al-Kabīr*, 7/329; Bayhaqī in his *Sunan*, 8/325 and others

[496] Al-Khallāl in his *Kitāb al-Tarajl*, p.182 and Ibn Hānī in *al-Masā'il*. 2/151.

[497] Al-Khallāl in his *Kitāb al-Tarajl*, p.191 and Bukhārī in his *Adab al-Mufrad*, #1251; it is authenticated by al-Albānī in *Ṣaḥīḥ Adab al-Mufrad*, #947.

They said, as for your citing of this verse as evidence:

ثُمَّ أَوْحَيْنَآ إِلَيْكَ أَنِ ٱتَّبِعْ مِلَّةَ إِبْرَٰهِيمَ حَنِيفًا

"Then We revealed to you, [O Muḥammad], to follow the religion of Ibrāhīm, inclining toward truth."

[*al-Naḥl* (16):123]

The religion is *Ḥanifiyyah*, which is *tawḥīd*. That is why Allāh clarified it by saying:

حَنِيفًا وَمَا كَانَ مِنَ ٱلْمُشْرِكِينَ ﴿١٢٣﴾

"Inclining toward truth; and he was not of those who associate with Allāh."

[*al-Naḥl* (16):123]

Yūsuf (*'alayhis-salām*), the man of truth said:

وَٱتَّبَعْتُ مِلَّةَ ءَابَآءِىٓ إِبْرَٰهِيمَ وَإِسْحَٰقَ وَيَعْقُوبَ ۚ مَا كَانَ لَنَآ أَن نُّشْرِكَ بِٱللَّهِ مِن شَىْءٍ ۚ

"And I have followed the religion of my fathers, Ibrāhīm, Isḥāq and Ya'qūb. And it was not for us to associate anything with Allāh."

[*Yūsuf* (12): 38]

Allāh the Exalted said:

قُلْ صَدَقَ ٱللَّهُ ۗ فَٱتَّبِعُوا۟ مِلَّةَ إِبْرَٰهِيمَ حَنِيفًا وَمَا كَانَ مِنَ ٱلْمُشْرِكِينَ ﴿٩٥﴾

"Say: 'Allāh has told the truth. So follow the religion of Ibrāhīm, inclining toward truth; and he was not of

the polytheists."

[*Āl-'Imrān* (3): 95]

The religion in all that is the root of belief (*asl al-īmān*), from believing in the Oneness of God (*tawḥīd*), turning towards Him in repentance, and being sincere to Him in religion.

The Messenger (ﷺ) taught his Companions when they wake up in the morning to say: 'We woke up on the *fitrah* of Islām, the word of sincerity, the religion of our Prophet, Muḥammad, and the religion of our father, Ibrāhīm, a *Ḥanīf*, a Muslim, and he was not of the polytheists.'[499]

They added: 'If an act became a part of the religion, then it must be followed in the same way that he [Ibrāhīm] originally did it; if he did it as an obligation, then it is so for the followers,[500] but if it was optional for him, then it is optional for whoever follows him. You only have the act of Ibrāhīm (*'alayhis-salām*). However, was it obligatory or optional for him? This is the common dilemma. The stronger view here is that it is optional, because there is nothing there to indicate obligation. Therefore, if we did it optionally, we have followed him (*'alayhis-salām*).'

They also said: 'As for the ḥadīth narrated by Uthaym Ibn Kulayb, from his father, from his grandfather, "Remove the hair of disbelief's hair from you and get circumcised."[501] Ibn Jurayj said when he narrated it: "I was told from Uthaym Ibn Kulayb."

Abū Aḥmad Ibn 'Adyy said: 'This ḥadīth where Ibn Jurayj said

[498] Inclining towards the truth is the meaning of the word *'Ḥanīf'*.

[499] Imām Aḥmad in his *Musnad*, 3/406, Daramī in his *Sunan*, 2/292 and others

[500] See *Istidhkār* of Ibn 'Abdu'l-Barr, 10/20

[501] Reference already mentioned

in its narration, "I was told from Uthaym Ibn Kulayb," he was actually told by Ibrāhīm Ibn Abū Yaḥyā, but he did not say his name explicitly. This Ibrāhīm is a weak narrator according to the ḥadīth scholars' consensus, apart from Al-Shafʿī.'[502]

They also said: 'As for the *mursal* ḥadīth narrated by Al-Zuharī that the Prophet (ﷺ) said, "Whoever embraces Islām should get circumcised, even if he was old,"[503] the mursal ḥadīths narrated by Al-Zuharī are among the weakest ḥadīths, and are not valid for citing as evidence.'

Ibn Abū Ḥātim narrates that Aḥmad Ibn Sinān said: 'Yaḥyā Ibn Saʿīd Al-Qaṭṭān used to disregard the *mursal* ḥadīths by Al-Zuharī and Qatādah and say, "They are like wind."[504]

Something was once narrated to ʿAbbās Al-Duwrī from Yaḥyā Ibn Maʿīn and he said: 'The *mursal* ḥadīths narrated by Al-Zuharī have no significance.'[505]

Those who say it is the sunnah also said: 'As for the ḥadīth narrated by Mūsā Ibn Ismāʿīl Ibn Ḥafṣ from his grandfathers, it is not known, and not narrated by ḥadīth scholars. It was uniquely narrated through this route by Mūsā Ibn Ismāʿīl from his grandfathers. Therefore, it is like similar ḥadīths that have been uniquely narrated by people who are not memorisers who are known for narrating ḥadīths.'

They said: 'As for the ḥadīth narrated by Abū Barzah, Ibn Al-Mundhir said: 'I was told by Yaḥyā Ibn Muḥammad, from Aḥmad

[502] *Al-Kāmal* of Ibn ʿAdī, 1/220 and see *Tahdhīd al-Kāmal*, 5/124

[503] Reference already mentioned

[504] See *al-Jarḥ wa'l-Taʿdīl*, p. 246, *Kitāb al-Murāsīl* of Ibn Abī Ḥātim and *Naṣb al-Rāya* of Zalaʿī, 3/422-423

[505] See *Tahdhīb al-Tahdhīb* of Ibn Ḥajr, 9/398

Ibn Yūnus, from Umm Al-Aswad, from Manīyah, from her grandfather, Abū Barzah, that ... [and he stated the ḥadīth].[506]

Ibn Al-Mundhir said: 'This is an unknown chain of narration that is not confirmed.'[507]

They added: 'As for your citing as evidence the saying of Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), "The uncircumcised person's prayer is not acceptable, and people should not eat from his sacrifice", this is the unique saying of a Companion.

Aḥmad said: 'He was adamant therein, and Al-Ḥasan Al-Baṣrī and others disagreed with him there.'

As for your saying that it is among the rituals, that is an undebated fact. However, not all rituals are obligatory.

Rituals are classified into obligatory rituals, such as the five daily prayers, pilgrimage, fasting and ablution; recommended rituals, such as *talbiyah*[508], driving and marking the sacrificed animal [in pilgrimage]; and rituals of debated obligation, such as the *adhān*, the two *'id*s, the *uḍḥīyah* and circumcision.

So, how can you be certain that it is an obligatory ritual?

As for your saying: 'It is a severance decreed for the sake of Allāh, the damage due to infection during the course of which is

[506] Reference already mentioned

[507] See *Al-Ishrāf 'ala Madhāhib Ahlu'l-'Ilm* of Ibn Mundhir, 3/424.

[508] *Talbiyah* means repeating the following sentences during the rituals of pilgrimage, *"Labayk, Allāhumma labayk, la sharikalaka labayk. Inna'l-Ḥamda wa'l-ni'mata lakawa'l-Mulk, la sharīkalak*—I am at Your service, O Allāh, I am at Your service. You have no partner. I am at Your service. Praise and blessing belong to You, and Dominion. You have no partner."

not insured. Therefore, it is obligatory, just like cutting the thief's hand is among the coldest comparisons.

Where does circumcision lie, compared to cutting the thief's hand? How far apart are they!

He has gone too far away, who likens one of them with the other. Circumcision honours the circumcised, and severing the thief's hand is a punishment for him. How far are punishments from cleaning and purification?

As for your saying: 'It is permitted to show one's private parts for its performance not for a necessity or treatment. Therefore, it is obligatory?'

The allowance of uncovering one's private parts for circumcision does not necessitate its obligation. Because, according to scholars' consensus, it is permitted to uncover it for deeds that are not obligatory, such as when visiting the doctor, even if seeking the treatment was not necessary.

In addition, the woman's face is a part of her *'awrah*, yet she can uncover it in non-obligatory dealings, such as identity verification in optional testimony.

Moreover, they permitted the person giving burial bath to shave the pubic hair of the dead body, which requires uncovering the private parts or touching them for a non-obligatory reason.

As for your saying, 'It distinguishes the Muslim from the non-believer, so much so that if a circumcised person was found among a group of uncircumcised dead people, he, alone, is prayed upon.'

This is not true, because some non-believers get circumcised, such as Jews. Circumcision does not distinguish Muslims from non-believers unless they are in a place where only the Muslims get circumcised; then it distinguishes. However, this does not necessitate its obligation, just like it does not necessitate the obligation of all that distinguishes Muslims from non-believers.

As for your saying, 'The child's guardian inflicts pain, during its performance, on the child, exposes him to damage by infection and pays for the circumciser's fees and medication from his fortune.'

This does prove its obligation, for he inflicts pain on him by beating him for a disciplinary purpose, he also pays for an instructor and an educator from the child's fortune, and he performs uḍḥīyah on his behalf.

Al-Khallāl said, [Chapter on *uḍḥīyah* on behalf of the orphan]: Ḥarb Ibn Ismā'īl said that he asked Aḥmad: 'Should I perform *uḍḥīyah* on behalf of the orphan child?' He said: 'Yes. If he has money and Sufyān Al-Thawrī also said the same.'

Ja'far Ibn Muḥammad Al-Naysabūrī said that he heard Abū 'Abdullāh being asked about an orphan girl's guardian buying an *uḍḥīyah* on her behalf, he said: 'Does she have money?' He said: 'Yes.' He said: 'He should buy it on her behalf.'

As for your saying, 'Had it not been obligatory, the circumciser would not have been permitted to sever it ...' and so on.

This is contradicted by the fact that he is allowed to sever goiters and damaged organs, remove teeth, cut blood vessels, and incise skin for bloodletting. Therefore, it is permitted to severe

for reasons that are optional, let alone what is recommended and beneficial.

As for your saying: 'The uncircumcised is subject to the corruption of his purity and prayer.'

He is to blame for that only if it was by choice. However, if it was for factors out of his control, he is not to blame, and his purity is not corrupted, such as urinary incontinence, nosebleeds, and pre-seminal incontinence. If he did what he could of purification by water and stone, he is not to be held accountable for what he is unable to do.

As for your saying: 'It is the banner of the worshippers of the cross and worshippers of the fire, and so, to conform with them therein is to conform with the banner of their religion.'

They did not distinguish themselves from the *Ḥanifs* merely by refraining from circumcision, but rather with the entirety of the false religion that they follow. Conforming with them in leaving circumcision does not necessitate conforming with the banner of their religion, with which they are distinguished from the *Ḥanifs*.

Those who deem it obligatory replied: Circumcision is the mark of *Ḥanifiyyah*, the banner of Islām and the headline of pure nature and the religion. If the Prophet (ﷺ) said, 'Whoever did not trim his moustache is not one of us'[509] what about he who refrained from circumcision, and was satisfied with the banner of the uncircumcised worshippers of the cross?

[509] Tirmidhī, 5/93, Imām Aḥmad in his *Musnad*, 1/15 and others

Among the most apparent differences between worshippers of the cross and worshippers of the Merciful is circumcision. This was the tradition of the *Ḥanifs* since their leader, Ibrāhīm (*ʿalayhis-salām*), until the time of the Seal of Prophets (ﷺ). He was sent to continue and confirm *Ḥanifiyyah*, not to change or transform it.

When Allāh, the Exalted, commanded his close friend to do it, and he [Ibrāhīm] knew that His command is to be obeyed and not delayed or ignored, he hastened to follow the command of the Ever-Living, the Sustainer of existence, and he circumcised himself with the adze, rushing to conform and obey the Owner of Majesty and Honour, and he made it an ever-lasting *fitrah* among his descendants until Allāh inherits the Earth and all those living on it. That is why all prophets from his descendants told their nations to perform it: even the servant, Messenger and word of Allāh, the son of the Virgin Mary [Īsā *ʿalayhis-salām]* was circumcised, taking after Ibrāhīm (*ʿalayhis-salām*). Christians admit this, and confirm that it is among the requirements of the Gospel, but they have followed the inclinations of a people who had gone astray before, misled many and strayed from the correct of the way.

Even, the scholar of the Messenger's (ﷺ) family made an announcement heard by everybody, that the prayer of he who was not circumcised is not acceptable, and his sacrifice should not be eaten.[510] Therefore, he expelled such a man from the domain of Muslims.

Such statement is not given to someone who ignored an optional deed, but rather for something necessarily known to be obligatory. It is enough, to prove its obligation, that it is the headline of the

[510] Reference already cited

traits of *Ḥanifiyyah*, upon which Allāh created His servants, and to which all Messengers called their followers. Thus, he who refrains from it gets out of the pure nature that Allāh sent His Messengers to complete, hastens to prevent it, delays that which deserves hastening, and is averse to the religion of his father, Ibrāhīm:

وَمَن يَرْغَبُ عَن
مِّلَّةِ إِبْرَٰهِـۧمَ إِلَّا مَن سَفِهَ نَفْسَهُۥ ۚ وَلَقَدِ ٱصْطَفَيْنَٰهُ فِى ٱلدُّنْيَا ۖ
وَإِنَّهُۥ فِى ٱلْـَٔاخِرَةِ لَمِنَ ٱلصَّٰلِحِينَ ﴿١٣٠﴾ إِذْ قَالَ لَهُۥ رَبُّهُۥٓ أَسْلِمْ ۖ
قَالَ أَسْلَمْتُ لِرَبِّ ٱلْعَٰلَمِينَ ﴿١٣١﴾

> "And who would be averse to the religion of Ibrāhīm except one who makes a fool of himself. And We had chosen him in this world, and indeed he, in the Hereafter, will be among the righteous. When his Lord said to him: 'Submit', he said: "I have submitted [in Islām] to the Lord of the worlds."
>
> [*al-Baqarah* (2):131-132]

Just as Islām is the head and body of *Ḥanifiyyah*, submitting to His command is its completion and fulfilment.

Sub-Section Three:

As for the ḥadīth, 'Circumcision is a Sunnah for men, and a noble deed for women.'

This ḥadīth is narrated from Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) with a weak chain of narrators. It is known to be mawqūf until him.

It is also narrated by Al-Ḥajjāj Ibn Artāta—who is not a valid narrator, from Abū'l-Maliḥ Ibn Usāmah, from his father, from him [Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*)], and also from him, from Makhūl, from Ibn Ayyūb, from the Prophet (ﷺ).

Al-Bayhaqī stated all the above and then he cited Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) saying, that the sacrifice of he who was not circumcised should not be eaten and that his prayer and testimony are not accepted.

He then said: 'This proves that he deemed it obligatory, and that when he said: "Circumcision is a Sunnah" he meant a Sunnah of the Prophet (ﷺ), introduced commanded by the Messenger (ﷺ), and is therefore obligatory.'[511]

Al-Sunnah means the way. His saying: 'Circumcision is a Sunnah for men' means that it is decreed for them, and not that it is an optional recommended deed.

The Sunnah is the followed practice, whether obligatory or recommended, since he (ﷺ) said, 'Whoever turns away from my Sunnah does not belong to me'[512] and said: "You must keep to my Sunnah and to the Sunnah of the rightly guided caliphs."[513]

Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) said: 'Whoever deviates from the Sunnah has disbelieved.'[514]

Limiting the Sunnah to optional deeds is a modern terminology. The Sunnah is what is decreed by the Messenger (ﷺ) for his

[511] See Bayhaqī in his *Sunan*, 8/325
[512] Bukhārī, 9/104 and Muslim, 2/1020
[513] Abū Dāwūd, 7/11, 12, Tirmidhī, 7/438-441 and others
[514] See *al-Ibānah ʿan Sharīʿah al-Firqa al-Nājiyah* of Ibn Baṭṭah, 1/338 and others

ummah, whether obligatory or recommended. The Sunnah is the way, the law, the method, and the route.[515]

As for your argument: 'The Messenger (ﷺ) joined it with optional deeds.'

The significance of joining is not as strong as the evidence for obligation. In addition, the acts stated in the ḥadīth include obligatory acts, such as gargling, rinsing the nose and purification, and recommended acts such as the use of *siwāk*.

As for nail clipping, if the nail grew long enough to collect dirt underneath it, it must be clipped to preserve the purity [in prayers].

As for trimming the moustache, the evidence points to its obligation if it grew long. This is the correct view due to the Messenger's (ﷺ) command, and his saying: 'Whoever did not trim his moustache is not one of us.'[516]

As for the saying of Al-Ḥasan Al-Baṣrī: 'People have joined Islām on the hands of the Prophet (ﷺ) and he never checked any of them [for circumcision].'

The response here is that they did without checking because circumcision was the norm. All the Arabs had circumcision and all the Jews as well. What remained were the Christians, which were divided into two groups, one that got circumcised, and one that did not.

Everyone who entered Islām, whether or not from them, knew

[515] See *Kashf Istalāhāt al-Funūn* of Al-Tahānuwī, 4/53-57, *Majmū' al-Fatāwa* of Shaikh al-Islām, 18/191,192, *Al-Mawāfaqāt* of Shātabī, 4/ 3-7 and others

[516] Reference already cited

that the banner of Islām is circumcision. They hastened to perform it after Islām, just as they hastened to take the bath. Some of them were old and feared damage from its performance, and they were absolved from it.

Imām Aḥmad was asked about the uncircumcised person's sacrifice, and was told the saying of Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*): 'should not be eaten'. He said: 'In my opinion, that is if he was born to Muslim parents, and he got old without getting circumcised. As for the old person who joins Islām and fears damage from circumcision, he is excused, in my view.'[517]

As for your saying: 'The religion is *tawḥīd*.'

The religion consists words (*aqwāl*), deeds (*afʿāl*) and beliefs (*iʿtiqād*). The inclusion of deeds in the religion is like the inclusion of belief (*īmān*).

The religion is the *fitrah*.[518] It is impossible that Allāh would command following Ibrāhīm in the words and not the deeds and acts of *fitrah*. Allāh commanded following him in his *tawḥīd*, words and deeds. He (ﷺ) got circumcised to obey the command of his Lord who commanded and tried him with it, so he fulfilled it as commanded. Thus, if we do not do as he did, we are not following him.

As for your saying: 'It was found that the ḥadīth narrated by Uthaym Ibn Kulayb, from his father, from his grandfather was narrated by Ibrāhīm Ibn Abū Yaḥyā.'

Al-Shāfiʿī thought positively of him, while others weakened

[517] *Ṭabāqāt al-Ḥanābilah*, 1/206

[518] See *Mufridāt Afāẓ al-Qurʾān* of Rāqib al-Asfahānī, p.373

him. His ḥadīth is good to strengthen one's argument, if it was not cited alone.

Similarly, in the mursal ḥadīths of Al-Zuharī, if not cited alone. These marfūʿ, mawqūf and mursal ḥadīths strengthen one another.

The same goes for the ḥadīth of Mūsā Ibn Ismāʿīl and the like. As for your saying: 'Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) uniquely said about the uncircumcised: His sacrifice should not be eaten, and his prayer is not accepted.'

This is a Companion's statement. The Four Imāms[519] all used the Companions' sayings as evidence[520] and explicitly stated that they are valid arguments. Al-Shāfiʿī was adamant therein and made going against them as an invention in religion (*bidʿah*). How about the fact that nothing against Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*)' saying was narrated from a companion?

Such aggravation (*tashdīd*) and intensification (*taghlīẓ*) is not made by a scholar such as Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) about ignoring an optional deed in which the person is giving the choice of doing or leaving.

As for your saying: 'Rituals are classified into recommended and obligatory.'

That is so, but such a great ritual that distinguishes worshippers of the cross from worshippers of the Merciful, that is necessary

[519] Founders of the four major schools of *Fiqh* (Jurisprudence); Abū Ḥanīfah, Mālik, Al-Shāfiʿī and Aḥmad Ibn Ḥanbal.

[520] See *Usūl al-Sarkhisī*, 2/105, *Iʿlām al-Mawaqiʿīn ʿan Rabb al-ʿĀlamīn* of Ibn Qayyim, 1/29 and others.

for the completion of purity, and that is left by the worshippers of the cross cannot be anywhere less than among the greatest of obligations.

As for your argument: 'Where does punishments rank compared to circumcision?'

We did not use that as proof of the obligation of circumcision. We considered the obligation of one of them with the obligation of the other. The Muslim's organs, back and blood are protected except for a legal punishment (*ḥadd*) or a right; both of which must be performed and cannot be halted.

As for uncovering one's private parts to perform it, if its benefit did not outweigh the harm of uncovering them, looking at them and touching them, it would not have been permitted to commit three grave forbidden deeds for an optional deed that can be done or left.

As for medical treatment, it falls within preserving one's life and its means, which is necessary for the body. If circumcision was optional, uncovering the private parts would be unnecessary, which is not permitted.

As for your saying: 'The guardian pays from the child's fortune the fees of the instructor and educator.'

There is no doubt that the child's education and instruction are an obligation for the guardian. He only used his fortune for what is necessary for his welfare in this life and the next. If circumcision were purely optional, paying for it would be like an optional donation on his behalf, or paying it to whoever performs optional pilgrimage on his behalf, and so on.

As for *uḍḥīyah* on the child's behalf, its obligation is debated. Those who deem it necessary only permit spending the child's money for obligatory purposes, and those who deem it optional say that its out come of heart-mending, kindness and bringing joy to the child is better than its value remaining in his fortune.[521]

Section Five:
The Time of its Obligation

It is obligatory upon puberty, because it is the time of obligation over all acts of worship, and it is not obligatory before that.[522]

It is narrated in Ṣaḥīḥ Al-Bukhārī from Sa'īd Ibn Jubayr, that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) was asked: 'How old were you when the Messenger (ﷺ) passed away?' He said: 'I was circumcised then, for they did not circumcise a man until he reached puberty.'[523]

Ibn 'Abbās' (*raḍiyAllāhu 'anhumā*) age upon the Prophet's (ﷺ) death was debated. Al-Zubayr and Al-Waqidī said: 'He was born in the *Shi'b*[524] before the clan of Hashim left it, three years before the Migration of the Messenger (ﷺ), and the Messenger (ﷺ) passed away when he [Ibn 'Abbās (*raḍiyAllāhu 'anhumā*)] was thirteen years old.'

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[521] See *al-Mughnī* of Ibn Qudaamah, 13/361 and others

[522] See *Fatḥ al-Qadīr* of Kamāl Ibn al-Hamām, 6/46, *Al-Kāfi fi Fiqh Ahlu'l-Madīnah* of Ibn 'Abdu'l-Barr, 2/558, *al-Majmū'* of Al-Nawāwī, 1/166, *Al-Mughnī* of Ibn Qudāmah, 1/115 and others

[523] Bukhārī, 11/88

[524] Shi'b Abū Ṭālib is the valley where The clan of Hashim was forced to migrate after being boycotted by the rest of Quraysh in the 7th year of the Messenger's *bi'thah* (Mission) to put pressure on the clan of Hashim to withdraw its protection from Muḥammad (ﷺ).

Sa'īd Ibn Jubayr said, narrating from Ibn 'Abbās (*raḍiyAllāhu 'anhumā*): 'The Messenger (ﷺ) passed away when I was ten years old, when I had learned *Al-Mufassal*.'[525,526]

Abū 'Umar said, 'We narrated that from him through a number of paths. It is narrated from Ibn Isḥāq, from Sa'īd Ibn Jubayr, that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: "The Messenger (ﷺ) passed away when I was circumcised" which is not authentic.'"[527]

I said: No. It is the most authentic thing in this regard, which is also narrated by Al-Bukhārī in his Ṣaḥīḥ as stated.

'Abdullāh Ibn Imām Aḥmad narrates from his father, from Sulaymān Ibn Dāwūd, from Shu'bah, from Abū Isḥāq, from Sa'īd Ibn Jubayr, that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: 'The Messenger (ﷺ) passed away when I was fifteen years old.'[528]

'Abdullāh says that his father said: 'This is the correct view.'

I say, it is narrated from him in both Bukhārī and Muslim that he said: 'I came riding on a she-ass when I had nearly attained the age of puberty, the Messenger (ﷺ) was leading the prayer in Mina, and there was no wall in front of him. I passed in front of some of the people in the prayer row ...'[529]

The majority of historians believe that his age when the Prophet (ﷺ) died was thirteen years; for he was born in the *Shi'b*, three years before the Migration, the Messenger (ﷺ) lived in Madīnah for ten

[525] The final portion of the Qur'ān, which consists of the shorter chapters, which are usually taught first.
[526] *Al-Istay'āb* of 'Abdu'l-Barr, 3/66
[527] *ibid*
[528] Imām Aḥmad in his *Musnad*, 1/373, Ṭabarānī, 10/235 and others
[529] Bukhārī, 1/171 and Muslim, 1/361

years, and he said that he was circumcised then.

Jurists said: 'Circumcision is not obligatory before puberty, because the child is not equipped for the obligation of body-related acts of worship, so how can the wound-related act of worship be obligatory for him?'[530]

This is not contradicted by the waiting period that is obligatory for the young girl,[531] because no bodily effort is required from her, but rather the passage of time.

They said: 'If a boy or a girl reached puberty uncircumcised, the leader should oblige them to do it.'

In my opinion, the guardian must circumcise the child before puberty so that he reaches it circumcised, for that is considered a requirement of the obligatory.[532]

As for Ibn 'Abbās (*raḍiyAllāhu 'anhumā*)' saying: 'They did not circumcise a man until he reached puberty' he meant 'until he approaches puberty.'

Similarly to what Allāh said:

فَإِذَا بَلَغْنَ أَجَلَهُنَّ فَأَمْسِكُوهُنَّ بِمَعْرُوفٍ

"And when they have [nearly] fulfilled their term, either

[530] See *Fatḥ Bāb al-'Ināyah* of al-Qarī, 1/37, *Jumal al-Aḥkām* of al-Nātifī. p.191, *al-Kāfī* of Ibn 'Abdu'l-Barr and others.

[531] When a woman is divorced or widowed, she is obligated to wait for a certain period before she is allowed to get married to someone else. This period is three months in case of divorce, four months and ten days in case of the husband's death, or until she delivers her baby in case she was pregnant.

[532] Anything required for the performance of an obligatory deed is considered by jurists to be obligatory as well. In this case, in order to be circumcised upon puberty, the guardian must perform it before the child's puberty.

retain them according to acceptable terms ..."
[*al-Ṭalāq* (65) : 2],

When they cannot be retained after fulfilling their term. Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) has stated that he was circumcised when the Prophet (ﷺ) passed away, and that, in the Farewell Pilgrimage,[533] after which the Prophet (ﷺ) lived for eighty-something days, he had approached puberty. The Prophet (ﷺ) commanded parents to teach prayer to their children at the age of seven, and to discipline them for leaving it at the age of ten; how then will he permit them to leave their children's circumcision until they reach puberty? Allāh knows best.

Section Six:
The Debate Regarding its Disapproval on the Seventh Day

There are two views in that regard; both are conveyed from Imām Aḥmad.

Al-Khallāl narrates in Chapter on the child's circumcision, from 'Abdu'l-Mālik Ibn 'Abdu'l-Ḥāmid that he asked Abū 'Abdullāh about the age of circumcision, he said: 'I don't know. I heard nothing in that regard.' He told him: 'It is difficult to perform for the ten-year-old child, for it [the foreskin, presumably] becomes thick.' He also added that his son, Muḥammad is five years old, and that he wishes to perform it then, and he felt that he [Aḥmad, also presumably] wished the same, and hated waiting till the age of ten, due to the thickening [of the foreskin] and the difficulty of removing it. He said: 'I don't think that it will be difficult for the youngster.'

[533] The first and last pilgrimage of the Prophet (ﷺ).

He [ʿAbdu'l-Mālik] adds: 'I did not see him disapproving of performing it for the child who is a few months or a few years old, and he said nothing in that regard, but I found him wondering that it may hurt the youngster.'

ʿAbdu'l-Mālik also said that he heard Aḥmad say: 'Al-Ḥasan disapproved circumcising the child on his seventh day.'

Muḥammad ibn ʿAli, the broker, narrates from Muhanna that he asked Abū ʿAbdullāh about a man who circumcised his child on his seventh day, he disapproved and said: 'This is the Jewish tradition!'[534]

He also narrated that Aḥmad told him: 'Al-Ḥasan disapproved that a man circumcises his child on his seventh day.' I said: 'Who narrated it from Al-Ḥasan.' He said: 'Some narrators from Baṣrah.'

He also narrated that Aḥmad conveyed that Sufyān Al-Thawrī asked Sufyān Ibn ʿUyaynah: 'When should the child be circumcised?' Sufyān said: 'At what age did Ibn ʿUmar circumcise his children?' Aḥmad said: 'How clever was Sufyān Ibn ʿUyaynah!' referring to his reply.

ʿUṣmah Ibn ʿIṣām narrates from Ḥanbal that Abū ʿAbdullāh said: 'If he got circumcised on the seventh day, it is alright. Al-Ḥasan only disapproved of it to avoid resemblance to the Jews, but it is not a problem.'[535]

Muḥammad Ibn ʿAlī narrates from Ṣāliḥ that he asked his

[534] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/206
[535] See *Ṭabāqāt* Ibn Abī Yaʿlā, 3/309

father: 'Can the child be circumcised on his seventh day?' He said: 'It is narrated from Al-Ḥasan that he said that it is the Jews' tradition.'[536]

He added that Wahb Ibn Munabbih was asked about that and he said: 'It is desirable on the seventh day to be less painful for the child, because when the child is born, his body is numbed, and does not feel the pain. If he is not circumcised then, let him wait until he grows strong.'

Ibn Al-Mundhir[537] said in Stating the time of circumcision, 'They have disagreed about the time of circumcision; one side disapproved circumcising on the seventh day. They include Al-Ḥasan Al-Baṣrī and Mālik Ibn Anas, in order to differ from the Jews.

Al-Thawrī said: 'It is dangerous [to perform at that age].'

Mālik said: 'The correct thing to do is to differ from the Jews. It is my view that it should be performed when the child's permanent teeth start to grow.'[538]

Aḥmad Ibn Ḥanbal said: 'I heard nothing in that regard.'

Al-Layth Ibn Sa'd said: 'Circumcision for the boy between the ages of seven and ten years.'

He also reported from Makhūl and others that Ibrāhīm (*'alayhis-salām*)—the intimate friend of the Most Merciful—circumcised his child Isḥāq (*'alayhis-salām*) at the age of seven days, and his son Ismā'īl (*'alayhis-salām*) at the age of thirteen years. He also narrated

[536] See *Masā'il al-Imām Aḥmad*, of Ṣāliḥ, 2/206
[537] See *Ishrāf*, 3/424
[538] It could also be translated to *"when the child's milk teeth fall."*

from Abū Ja'far that Fāṭimah (*raḍiyAllāhu 'anhā*) used to circumcise her children on the seventh day after birth.[539]

Ibn Al-Mundhir added: 'There is nothing confirmed in that regard, and the time of circumcision has neither a report to refer to nor a Sunnah to be followed. Everything is permitted by default, and cannot be prohibited except with evidence. However, we know not of any evidence to prohibit circumcising the child after seven days.'[540]

It is narrated in *Sunan* of Al-Bayhaqī from Zuhayr Ibn Muḥammad, from Muḥammad Ibn Al-Munkadir, that Jābir (*raḍiyAllāhu 'anhu*) said: 'The Messenger (ﷺ) performed *'aqīqah* on behalf of Al-Ḥasan and Al-Ḥusayn, and circumcised them when they were seven days old.'[541]

It is also narrated there from Mūsā Ibn 'Alī Ibn Rabaḥ, from his father that Ibrāhīm (*'alayhis-salām*) circumcised Isḥāq (*'alayhis-salām*) when he was seven days old.[542]

Our Shaykh[543] said: "Ibrāhīm (*'alayhis-salām*) circumcised Isḥāq (*'alayhis-salām*) when he was seven days old, and circumcised Ismā'īl (*'alayhis-salām*) upon reaching puberty. Therefore, the circumcision of Isḥāq (*'alayhis-salām*) became a Sunnah for his descendants, and the circumcision of Ismā'īl (*'alayhis-salām*) became a Sunnah for his descendants.' Allāh knows best.[544]

[539] See *al-Ishrāf* of Ibn Al-Mundhir, 3/424

[540] *Al-Ishrāf* of Ibn Al-Mundhir, 3/425; see *Tafsīr al-Qurtubī*, 2/99 and *Bayān* of Al-'Umarānī, 1/95-96 and others

[541] Al-Bayhaqī in his *Sunan*, 8/324,

[542] *ibid*

[543] Meaning Shaykh Al-Islām, Ibn Taymiyyah. See *Majmū' al-Fatāwa*, 21/113-114

[544] It is not clear whether this last sentence was said by the author or Ibn Taymiyyah.

[545] See *Tafsīr Ibn Abī Ḥātim*, 8/107 and 12/427, *Tafsīr al-Baghwī*, 1/157, *Tafsīr al-Qurtubī*,

Section Seven:
The Wisdom Behind Circumcision and its Benefits

Circumcision is among the beautiful legislations ordained by Allāh [the Exalted] for His servants, with which He adorned their qualities, both hidden and apparent. It completes the pure nature on which He created them, that is why it is an integral part of the Hanifiyya, the religion of Ibrāhīm (*'alayhis-salām*).

The main objective behind circumcision is to complement *Ḥanifiyyah*. When Allāh the Exalted made a covenant with Ibrāhīm (*'alayhis-salām*), He promised to make him a leader for the people, a father for many nations, to make prophets and kings from his progeny, and to multiply his descendants. He told him that he made between him and his descendant the mark of that covenant to circumcise every newborn they have, and to have that covenant marked in their bodies. Circumcision is a mark for entering the religion of Ibrāhīm (*'alayhis-salām*), which conforms to one interpretation of the saying of Allāh [the Exalted]:

صِبْغَةَ ٱللَّهِ ۖ وَمَنْ أَحْسَنُ مِنَ ٱللَّهِ صِبْغَةً ۖ

"[Ours is] the religion of Allāh. And who is better than Allāh in [ordaining] religion?"

[*al-Baqarah* (2):138]

that it refers to circumcision.[545]

Circumcision for Ḥanifs is what is regarded as baptism and christening for the Worshippers of the Cross. They claim purify

2/145 and others.

[546] Part of a lengthy ḥadīth in Bukhārī, 1/31 and Muslm 3/1393.

their children when baptizing them and say: 'Now he or she is a Christian.' Therefore, Allāh ordained for Hanifs the baptism of *Ḥanifiyyah*, and made circumcision as its mark, when he said:

صِبْغَةَ ٱللَّهِ ۖ وَمَنْ أَحْسَنُ مِنَ ٱللَّهِ صِبْغَةً ۖ

"[Ours is] the religion of Allāh. And who is better than Allāh in [ordaining] religion?"

[*al-Baqarah* (2):138]

Allāh [the Exalted] made traits a mark for the object to which they are attributed, like when people name their animals and livestock after their traits, so that the traits attributed to a person identify that person, and that this trait maybe passed down in one nation after another.

Allāh [the Exalted] made circumcision an identifier for the person who performs it as well as for his religion, and it is attributed to him as servitude and *Ḥanifiyyah* [to Allāh], so much so that when a man's religion is unknown, it may be revealed by the trait of circumcision. The Arabs were called *The Circumcision Nation*, which is why it was reported in the story of Heraclius that he said: 'I sense that the king of circumcision has appeared.' His companions told him: 'Do not worry, Jews get circumcised, so kill them.' Then, the messenger sent by the Messenger (ﷺ) arrived delivering his message, so Heraclius commanded to check whether he is circumcised, and he was found to be so. The messenger told him that the Arabs [too] get circumcised, and he said: 'This is the king of that nation.'[546]

When the battle of Ajnadayn took place between the Muslims and the Greeks, Hisham Ibn Al-'Āṣ said: 'O Muslims, these uncir-

[547] *Tafsīr Jāmi' al-Bayān*, 3/117

cumcised people do not endure the sword.' Therefore, he reminded them the mark of the Worshippers of the Cross,' and made it a motive for the Hanifs to engage in fighting them and purifying the Earth of them.

To sum up: The religion of Allāh is the *Ḥanifiyyah*, which imbues the hearts with the knowledge, love, sincerity and worship of Him alone, without having a partner, and imbues the bodies with the traits of pure nature, such as circumcision, shaving the pubic hair, trimming the moustache, clipping the nails, plucking the armpit hair, gargling, rinsing the nose, using the siwak and washing the private parts. Thus, the *fitrah* of Allāh appears on the hearts and bodies of the Ḥanifs.

Muḥammad Ibn Jarīr[547] said in the interpretation of Allāh's saying:

صِبْغَةَ ٱللَّهِ

"[Ours is] the religion of Allāh."[548]

'It means the imbuement of Islām, because when Christians want to christen their children, they put them in water, which they claim to be as sacred as circumcision is for Muslims, and that it imbues them with Christianity.' Therefore, Allāh [the Exalted] said to his Prophet (ﷺ) when the Jews and Christians said:

وَقَالُوا۟ كُونُوا۟ هُودًا أَوْ نَصَٰرَىٰ تَهْتَدُوا۟ ۗ قُلْ بَلْ مِلَّةَ إِبْرَٰهِـۧمَ
حَنِيفًا ۖ وَمَا كَانَ مِنَ ٱلْمُشْرِكِينَ ﴿١٣٥﴾

"'Be Jews or Christians [so] you will be guided.' Say:

[548] The phrase literally means *"The imbuement of Allāh"*
[549] See *Tafsīr Mujāhid*, 1/89

'Rather, [we follow] the religion of Ibrāhīm, inclining toward truth, and he was not of the polytheists.'"

Until He said:

صِبْغَةَ ٱللَّهِ ۖ وَمَنْ أَحْسَنُ مِنَ ٱللَّهِ صِبْغَةً ۖ وَنَحْنُ لَهُۥ
عَٰبِدُونَ ﴿١٣٨﴾

"[And say: 'Ours is] the religion of Allāh. And who is better than Allāh in [ordaining] religion? And we are worshippers of Him."

[*al-Baqarah* (2):135-138]

Qatādah said: 'The Jews imbue their children to be Jews, the Christians baptize their children to be Christians, and the imbuement of Allāh is Islām. Therefore, there is no other imbuement better or purer than that of Islām.'

Mujahid said: 'The imbuement of Allāh means the *fitrah* of Allāh.'[549]

Others said that it means the religion of Allāh.[550]

This is in addition to what circumcision entails of purity, cleanliness, adornment, beautifying the body and regulating the sexual desire, which if became excessive, it makes humans the same as animals, and if it became nonexistent, it makes humans the same as inanimate objects, but circumcision regulates it. That is why you find the uncircumcised man or woman never to have enough of sexual intercourse.

[550] See *Tafsīr al-Qurtubī*, 2/145 and others
[551] See *Al-Talkhīṣ al-Ḥabīr*, 4/83

Thus, a man is insulted and humiliated by being called 'the son of the uncircumcised woman'—in reference to her lust. What adornment is better than removing what exceeded the limit of the foreskin, pubic hair, armpit hair, moustache and nails! Satan hides beneath all that, is acquainted with it, and lives therein. He even blows in the uncircumcised urethra and vagina what he does not in their circumcised counterparts, and he hides in the pubic hair and beneath the nails. The foreskin is uglier than the long nails and the extremely long pubes. Anyone with a common sense will never fail to see the ugliness of the foreskin, and the improvement, cleanliness and adornment of removing it. Therefore, when Allāh tried His friend (*khalīl*), Ibrāhīm (*'alayhis-salām*) with commands to remove these things, and he fulfilled them, he made him a leader for the people. In addition to all that, it causes grace and beauty of one's face, and avoids the shame that appears thereon.

Ḥarb has reported in his *'Masā'il'* from Maymūnah, the wife of the Prophet (ﷺ), that she told the woman who used to perform circumcision, 'When you perform circumcision, go high and do not cut severely, for it is more dignified for the woman and better for her husband.'[551]

Abū Dāwūd narrated from Umm 'Atiyyah (*raḍiyAllāhu 'anhu*) that the Messenger (ﷺ) commanded a woman who used to perform circumcision and said: 'If you perform circumcision, do not cut severely, for this is better for the woman, and more desirable for a husband.'[552]

This means that if the circumcising woman cut the foreskin severely, the woman's sexual drive is weakened, and her desirability

[552] Abū Dāwūd, 13/658 and others

[553] Hajar was the handmaid of Sarah, who gave her to Ibrāhīm (*'alayhis-salām*), her

by her husband is also reduced. Alternatively, if she left it as it is, without removing anything, the drive increased. However, if she took a portion of it and left another, it will moderate the outlook and the sexual drive.

Moreover, it is not unlikely that removing this foreskin is a mark for servitude. You find cutting the edge of the ear, branding the forehead and so on in many slaves, as a mark of their slavery, so that if he/she escaped, they could be returned to their master. Why then could this circumcision not be a mark of the servitude of its doer to Allāh [the Exalted], so that people recognize whoever performs it, as a *Ḥanif* worshipper of Allāh, which makes circumcision a mark of this most honourable Sunnah, in addition to what it contains of purity, cleanliness, adornment and sexual drive regulation!

With regards to the wisdom behind circumcision for women, it was reported than when Hajar[553] was given to Ibrāhīm (*ʿalayhis-salām*), he had intercourse with her, and she became pregnant with his child, so Sarah grew jealous, and swore to cut three of Hajar's limbs. Ibrāhīm (*ʿalayhis-salām*) feared that she might cut her nose and ears, so he commanded piercing her ears and circumcising her, which became a tradition for women afterwards.[554]

This is not unlikely, just like *al-Saʿī*[555] began when Hajar went back and forth between two mountains, to seek food for her child, and just like the throwing of stones in Pilgrimage began when Ismāʿīl stoned Satan when he went with his father. Therefore, Allāh de-

husband, to bear a child.

[554] See *Shuʿab al-Imān* of Bayhaqī, 15/138 and *al-Tamhīd* of Ibn ʿAbdu'l-Barr, 21/59

[555] Travelling back and forth between the mountains of *Al-Ṣafa* and *Al-Marwah*, which is one of the rituals of Pilgrimage and *ʿUmrah*.

[556] See *al-Miṣbāḥ al-Munīr* of Fayawmī, 1/317

creed for his servants a reminder and revival of the Sunnah of his friend, an establishment for his remembrance, and an honour of his servitude. Allāh knows best.

Section Eight:
Clarifying the Depth of Circumcision

Abū'l-Barakāt said in his book *'Al-Ghāyah'*: In the male's circumcision, the foreskin is removed; it is also permitted to only remove the majority of it. As for the female's circumcision, it is desirable not to cut excessively, which was explicitly mentioned. It was reported that 'Umar said to the circumcising woman: 'When you perform circumcision, leave a portion of it.'

Al-Khallāl said in his *Jāmi'*, [Stating the removed portion in circumcision]: Muḥammad Ibn Al-Ḥusayn narrated from Al-Faḍl Ibn Ziyād that Aḥmad was asked: 'How much should be removed in circumcision?' He said: 'Until the glans appears.'

'Abdu'l-Mālik Al-Maymūnī also narrated that he asked: 'O Abū 'Abdullāh! I was asked about a problem: A circumciser circumcised a boy but did not remove the foreskin completely.' He said: 'If the circumcision exceeded halfway through the glans or higher, it is not deemed incomplete, because the glans gets thicker, and the thicker it gets, the higher the circumcision will be.' Then he added: 'If it is below the halfway, I would be reluctant [to accept it].' I told him: 'Redoing it is very difficult, and the circumciser may fear for the child.' He said: 'What would he fear? I believe it would be easy if the former circumcision was done lower than halfway through the glans.' He ['Abdu'l-Mālik] heard him say: 'In this case, circumcision must be easy.'

Ibn Al-Sabbāgh said in *'Al-Shāmil'*: 'What is obligatory for the man is to remove the skin that lies on the glans, until it is revealed completely. As for the woman, she has two virginities: one is her hymen, and the other is the one that must be removed; it is like a cockscomb above the vagina, between the labia. When it is removed, its foundation remains like a nucleus.'[556]

Al-Juwaynī said in *'Nihāyat'*: 'What must be removed for men is the foreskin, which is the skin that covers the glans. The purpose of that is for the glans to appear. If a portion of it remained on the penis that does not extend on the glans surface, it must be removed, in order for it not to remain dangling.'[557]

Ibn Kajj said: 'In my opinion, it is sufficient to remove a portion of the foreskin, even a little one, provided that its round head is included in the removal.'[558]

Al-Juwaynī said: 'What must be removed for women is what the name entails.' He added: 'The ḥadīths include that which indicates demunition. He (ﷺ) told a circumcising woman: "Go high and do not cut severely. This means to leave some length in it."'[559]

Al-Mawardī said: 'The Sunnah is to completely remove the foreskin that covers the glans. The minimum acceptable is not to leave anything thereof covering the glans. As for the woman's foreskin, it is a piece of skin in the vagina above the penis' inlet and the urine's outlet, on a foundation like a nucleus. What should be removed is the upper piece of skin, without its foundation.'[560]

[557] See *Nihāya al-Muṭṭalib* of Imām al-Harmayn al-Juwaynī, 17/354
[558] See *al-Majmū'* of Al-Nawāwī, 1/165
[559] See *Nihāya al-Muṭṭalib* of Imām al-Harmayn al-Juwaynī, 17/354
[560] See *al-Ḥāwī al-Kabīr* of al-Māwardī, 13/433
[561] Al-Khallāl in his *Kitāb al-Tarajl*, p.86 no.#185 and Ibn Hānī in *al-Masā'il al-Imām*

It is clear now that there are three types of removal in circumcision: recommended, obligatory and insufficient. Allāh knows best.

Section Nine:
Its Inclusion of the Male and the Female

Ṣāliḥ Ibn Aḥmad was asked: 'What if a man had intercourse with his wife, but did not ejaculate?' He said: 'If the two circumcisions met, the bath becomes obligatory.' Aḥmad said: 'This proves that women got circumcised.'

He was also asked about a man who finds his wife, upon first having intercourse with her, not to be circumcised: 'Does she have to get circumcised?' He said: 'Circumcision is a Sunnah.'[561]

Al-Khallāl narrates from Abū Bakr Al-Marrūdhī, 'Abdu'l-Karīm Ibn Al-Haytham and Yūssed Ibn Mūsā —the narrations of whom got mixed together—that Abū 'Abdullāh was asked about a woman having intercourse with her husband while she is not circumcised and whether she has to get circumcised, but he did not answer. Instead, he turned to Abū Ḥafṣ and said: 'Do you know something in this regard?' He said: 'No.' He was then told, 'She is in her thirties or forties' but he did not answer. He was told: 'What if she was able to get circumcised?' He said: 'It would be preferred [that she do it].'[562]

He also narrates from Muḥammad Ibn Yaḥyā Al-Kahhal that he asked Abū 'Abdullāh: 'Should the woman get circumcised?' He said: 'There are reports in that regard.' Then he added: 'Look at

Aḥmad, 2/151.

[562] Al-Khallāl in his *Kitāb al-Tarajl*, p.86 no.#184

[563] Al-Khallāl in his *Kitāb al-Tarajl*, p.86 no.#184; see *al-Mughnī* of Ibn Qudāmah, 1/115

the ḥadīth narrated from the Prophet (ﷺ) regarding when the two circumcisions meet, he did not say one; he said two.' Muḥammad asked: 'So, is it obligatory?' He said: 'The command is stronger for men, because if a man is not circumcised, this piece of skin keeps dangling over the glans, which corrupts the purity of such area. However, for women, it is less so.'[563]

I say: There is no debate over its desirability for women, while there is a debate over its obligation.[564] There are two views reported from Aḥmad in that regard. One of them is that it is obligatory for men and women both, while the other is that it is only obligatory for men. The evidence of this latter view is the ḥadīth narrated by Shaddād Ibn Aus (*raḍiyAllāhu ʿanhu*): "Circumcision is a Sunnah for men and a noble deed for women." Therefore, he (ﷺ) differentiated between men and women in this regard.

Another piece of evidence is that the command was directed to men, like when Allāh [the Exalted] commanded His friend (ﷺ), which he obeyed.

As for women's circumcision, it was because of Sarah's oath as mentioned.

Imām Aḥmad said: 'The women circumciser should not cut excessively, because 'Umar said to a female circumciser, "Leave something of it when you perform circumcision."'"[565]

Imām Aḥmad narrated on the authority of Umm ʿAṭiyyah

and *Ḥāshiya al-Rawḍ al-Murabiʿ* of Ibn Qāsim, 1/160-161

[564] See *al-Majmūʿ* of Al-Nawāwī, 1/164

[565] Al-Khallāl in his *Kitāb al-Taraj*, p.87 no.#185

[566] Reference already cited

(*radiyAllāhu ʿanhu*) that the Messenger (ﷺ) commanded a female circumciser and said: "If you perform circumcision, do not cut severely, for this is better for the woman, and more desirable for a husband."[566]

The wisdom behind circumcision, which we stated, is true both for men and for women, even if it is more so for men. Allāh knows best.

Section Ten:
Guidelines of the Circumciser's Offense and Circumcision Contagion

Allāh [the Exalted] said:

مَا عَلَى ٱلْمُحْسِنِينَ مِن سَبِيلٍ

"There is not upon the doers of good any cause [for blame]."

[*al-Tawbah* (9):91]

It is also narrated in *Al-Sunan* from ʿAmr Ibn Shuʿayb, from his father, from his grandfather that the Prophet (ﷺ) said: 'Whoever practices medicine, when he is not known for that, is liable.'[567]

As for the offense of the circumciser's hand, it is his liability or the liability of his *ʿĀqilah*.[568] If it exceeded one third of the full *diyah*, it is the *ʿĀqilah*'s responsibility, and if it is less, then it is paid from his own money.

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[567] Abū Dāwūd, 12/691 and others

[568] *ʿĀqilah* (literally male blood relation) are one's male relatives, from his father's side, who pay the *diyah* (blood money) with or instead of him.

[569] See *al-Mughnī* of Ibn Qudāmah, 12/529

As for what is damaged by contagion, if the circumciser was not an expert in his field, and was not known to be skillful, he is liable, because it is contagion due to a procedure that he should not have been permitted to perform. It is treated like contagion due to a crime; scholars have agreed that contagion due to a crime is the criminal's liability.

However, they disagreed about the other types. Aḥmad and Mālik said: Contagion due to a permitted procedure does not entail liability, whether the procedure was for punishment or discipline, and whether or not it was decreed, such as the contagion due to fulfilling the benefit of marriage, removing a hymen, bloodletting, circumcision, incising an abscess, and the permitted cutting of a goiter by a skilled practitioner who was not excessive.[569]

Al-Shāfiʿī said: 'Contagion due to a decreed procedure, whether a punishment or retribution, does not entail liability. However, if it was not decreed, such as *taʿzīr*[570] and discipline, it entails liability, because damage due to that is evidence for excessiveness and aggression.'[571]

Abū Ḥanīfah said: 'Contagion due to an obligatory deed does not entail liability. However, contagion due to a decreed procedure entails liability, because it is only allowed on the condition of sound performance.'

However, the authentic Sunnah disagrees with that view. If the circumciser was an expert in his field, performed the newborn at

[570] *Taʿzīr*: Punishment for offenses at the discretion of the judge or ruler of the state.
[571] See *Nihāya al-Muṭṭalib* of Imām al-Ḥarmayn al-Juwaynī, 17/356 and *al-Ḥāwī al-Kabīr* of al-Māwardī, 13/434
[572] Al-Khallāl in his *Kitāb al-Tarajl*, p.177, 179

the appropriate age for circumcision and carried it out well, he is not liable for the contagion, according to scholars' consensus, such as if the circumcised person got sick and died because of it.

In case he was permitted to perform it in a time of extreme hot or cold weather, or in a state of weakness that could pose a danger, if he [the circumcised one] was a sane adult, the circumciser is not liable, because the permission relieves him of the liability. However, if he was still young, the permission is not considered legally. If the guardian was the one to give permission, it is debatable whether it is the liability of the guardian or the circumciser.

There is no doubt that the guardian is an inciter, and the circumciser is the performer. The rule is to place the liability on the performer, because he can be referred to, unlike if it became impossible to place the liability on him.

These are the detailed views in the circumciser's offense and the contagion of his circumcision. Allāh knows best.

Section Eleven:
Provisions of the Uncircumcised-His Purity, Prayers, Sacrifice, Testimony and So On

Al-Khallāl narrates from Muḥammad Ibn Ismā'īl, from Wakī' narrated from Sālim Abū'l-'Alā' Al-Murādī, from 'Amr Ibn Ḥarām, from Jābir Ibn Zayd, that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: The uncircumcised person's prayer is not acceptable, and people should not eat from his sacrifice.'[572]

[573] Al-Khallāl in his *Kitāb al-Tarajl*, p.174

Wakīʿ said: 'If the uncircumcised person reached puberty without getting circumcised, his testimony is not acceptable.'

ʿUṣmah Ibn ʿIṣām narrates from Ḥanbal, from Abū ʿAbdullāh, from Muḥammad Ibn ʿUbayd, from Salim Al-Murādī, from ʿAmr Ibn Ḥarām, from Jābir Ibn Zayd that Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) said: 'People should not eat from the uncircumcised person's sacrifice.'[573]

Ḥanbal conveys that Abū ʿAbdullāh said: 'I do not like it when the uncircumcised sacrifices.'

Ḥanbal narrates in another instance from Abū ʿAmr Al-Ḥawdī, from Hammām, from Qatādah, that ʿIkrimah said: 'The uncircumcised person's sacrifice should not be eaten.'

He also said that Al-Ḥasan used to disagree with ʿIkrimah in that regard. ʿIkrimah was asked: 'Is his [the uncircumcised] pilgrimage accepted?' He said: 'No.'

Abū ʿAbdullāh said: 'His sacrifice should not be eaten and his prayer and his pilgrimage are not accepted, until he purifies himself, which is considered a completion of his faith.'[574]

Ḥanbal narrated in another location from Abū ʿAbdullāh said: 'The circumciser should not offer sacrifice, his sacrifice should not be eaten, and his prayer is not accepted.'[575]

ʿAbdullāh Ibn Aḥmad narrates from his father, from Ismāʿīl Ibn Ibrāhīm, from Saʿīd Ibn Abū ʿArūbah, from Qatādah, from

[574] Al-Khallāl in his *Kitāb al-Tarajl*, p.174
[575] Al-Khallāl in his *Kitāb al-Tarajl*, p.178
[576] Al-Khallāl in his *Kitāb al-Tarajl*, p.180

Jābir Ibn Zayd, that Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) said: 'The uncircumcised person's prayer is not accepted, his sacrifice should not be eaten, and his testimony is not accepted.' Qatādah added: 'Al-Ḥasan used to disagree with that.'[576]

Isḥāq Ibn Manṣūr conveys that he asked Abū ʿAbdullāh: 'What about the uncircumcised person's sacrifice?' He said: 'There is nothing wrong with [eating from] it.'

Abū Ṭālib said that he asked Abū ʿAbdullāh about the uncircumcised person's sacrifice, and he said: 'Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) is very adamant in disapproving eating from it.'[577]

Al-Faḍl Ibn Ziyād said that he asked Abū ʿAbdullāh about the uncircumcised person's sacrifice, and he said: 'It is narrated from Ibrāhīm, Al-Ḥasan and others that they did not see a problem in eating from it, except something narrated from Jābir Ibn Zayd from Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) that he disapproved it.'

Abū ʿAbdullāh said: 'This is difficult for people. If a man embraced Islām at an old age where circumcision could be dangerous, can people not eat from his sacrifice?'[578]

Al-Khallāl conveys from Abū Al-Samḥ Aḥmad Ibn ʿAbdullāh Ibn Thābit that Aḥmad Ibn Ḥanbal was asked about the uncircumcised person's sacrifice and the person asking mentioned the saying of Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*): 'his sacrifice should not be eaten.' Aḥmad said: 'In my view, that is if the man grew up with Muslim parents, and reached puberty without getting circumcised. However, if an old man embraced Islām and was afraid to get

[577] Al-Khallāl in his *Kitāb al-Tarajl*, p.177
[578] Al-Khallāl in his *Kitāb al-Tarajl*, p.180
[579] Al-Khallāl in his *Kitāb al-Tarajl*, p.179

circumcised [at that age], he is permitted, in my view.'

Then, he [Al-Khallāl presumably] stated the story of the 'Amir of Baṣrah, who circumcised men in the winter, which caused some of them to die.

Then he added that Aḥmad used to say: 'If an old man embraced Islām and was afraid to get circumcised [at that age], he is excused, in my view.'[579]

Section Twelve:
Removers of its Obligation

These are a number of things:

First: If a man was born without a foreskin, he does not need circumcision, for he was not given that which must be circumcised. This is the scholars' consensus.[580]

Some of the later scholars said: 'It is desirable to rub the razor against it, because it is what he can do of that which he was commanded to do.[581] The Prophet (ﷺ) said: "When I command you to do anything, do it to the best of your capacity."[582] The command was to do two things: to utilize the razor and to remove the foreskin. If removing became unnecessary, the utilization of the razor becomes desirable.'[583]

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[580] See *al-Muqadimāt al-Mumahadāt* of Ibn Rushd, 3/447, *Al-Bayān* of al-'Umrānī, 1/95-96 and *al-Majmū'* of Al-Nawāwī, 1/166.

[581] See *Al-Kāfī* of Ibn Qudāmah, 1/477, *Al-Insāf* of al-Mardāwī, 2/54-55, *Al-Muqadimāt al-Mumahadāt* of Ibn Rushd, 3/448 and *Fatḥ al-Barī* of Ibn Ḥajr, 10/340

[582] Bukhārī, 13/251 and Muslim, 2/975

[583] See *Taqrīr al-Qawā'id wa Tahrīr al-Fawā'id* of Ibn Rajab, 3/240

[584] See *Kashāf al-Qanā'*, 1/181

The correct view is that this is undesirable.[584] It does not bring one closer to Allāh, is not a form of worship, and the *Sharīʿah* is far high above that, for it is a useless futility. The use of the razor is not an end in itself, but rather a means to perform the desirable deed; if the end lapses, the means has no meaning.

This view is similar to what some of them said, that whoever is naturally bald is recommended, during *ḥajj* and *ʿumrah*, to rub the razor against his scalp.[585]

And it is also similar to what some late scholars of the students of Aḥmad and others, that he who cannot read or perform *dhikr* at all, as well as the mute, should just merely move his lips [during prayers].

Imām Ibn Taymiyyah said: 'It is more likely that such thing [merely moving one's lips] would spoil the prayers, because it is a futility that contradicts submissiveness (*khushūʿ*), and an excessive unlawful act.'[586]

In conclusion, he who is born without a foreskin, the Arabs used to claim that whoever is born in a full-moon night, his foreskin shrinks, that is why they say, circumcised by the moon. However, this is not a regular happening, for many people are born in full-moon nights, but those born without foreskins are very rare. In addition, the foreskin is not entirely non-existent; the glans head appears to reveal the urine outlet, which necessitates removing it for the glans to fully appear. What removes the obligation for circumcision is for the glans to be fully apparent.

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[585] See *al-Mubdaʿ* of Ibn Muflih, 3/243

[586] See his *Al-Fatawa al-Kubrā*, 5/336

[587] See *Al-Insāf* of al-Mardāwī, 1/124, *Al-Bayān* of al-ʿUmrānī, 1/95-96, *al-Majmūʿ* of

My companion, Muḥammad Ibn ʿUthmān Al-Khlīlī, the ḥadīth narrator in Jerusalem, told me that he was born like that. Allāh knows best.

Sub-section One:

Second: If the newborn is too weak to endure it, where it is feared to cause damage to him, and that weakness is continuous with him, he is permitted to refrain from it. Circumcision is obligatory, and like other obligatory deeds, if a person is unable to perform it, he is exempted from doing so.[587]

Sub-section Two:

Third: If a man embraced Islām at an old age, and feared for his own health, he is exempted from doing so, according to the majority of scholars.[588]

Imām Aḥmad explicitly stated so as narrated by a group of his companions. He also quoted Al-Ḥasan when he said that a variety of people embraced Islām at the time of the Messenger (ﷺ), including Greeks, Abyssians and Persians, but he never checked them for circumcision.[589]

Sahnūn Ibn Saʿīd deviated from the majority's view, and did not

Al-Nawāwī, 1/166 and *al-Ḥāwī al-Kabīr* of al-Māwardī, 13/434..

[588] See *Jāmiʿ Aḥkām al-Ṣāghīr* of al-Asrūshanī, 1/212-213, *al-Muqadimāt al-Mumahadāt* of Ibn Rushd, 3/447, *Nihāya al-Muṭalib* of Imām al-Harmayn al-Juwaynī, 17/365, *Al-Bayān* of al-ʿUmrānī, 1/95-96 and *al-Ḥāwī al-Kabīr* of al-Māwardī, 13/434, *al-Majmūʿ* of Al-Nawāwī, 1/166 and *Haashiya al-Rawd al-Muraba'*, 1/159.

[589] Reference already mentioned

[590] See *al-Muqadimāt al-Mumahadāt* of Ibn Rushd, 3/447

exempt the old fearful man from performing it,[590] which is one view in Aḥmad's school narrated by Ibn Tamīm and others.[591]

Sub-section Three:

What should be understood from the views of our companions is that the obligation is removed only when damage is feared, which must prevent the performance itself, and not allow it, as explicitly stated in *'Sharḥ Al-Hidāyah'* when the author said: 'He is prohibited to perform it [in this condition].'[592]

This is similar to many other cases, such as taking a bath in cold water in case of extreme cold or sickness, fasting of the sick person, where it is feared to cause him harm, the pregnant woman and so on. All of these excuses prevent the performance of the act, and remove its obligation. Allāh knows best.

Sub-section Four:

Fourth: Death - circumcision of the dead is not obligatory, but is it recommended? The majority of scholars say that it is not, which is the view of the Four Imāms.[593]

Some of the latter scholars say that it is desirable, likening it to shaving the dead man's moustache and removing his armpit hair and pubic hair.

This disagrees with the tradition of the *ummah*, and is a corrupt analogy. Shaving the moustache, clipping nails and shaving the

[591] See *Mukhtaṣar Ibn Tamīm fi Madhab al-Imām Aḥmad*, 1/37-138
[592] See *Al-Insāf* of al-Mardāwī, 1/124 and others
[593] See *Fatḥ al-Qadīr* of Ibn al-Hamām, 1/451, *al-Majmū' Sharḥ al-Madhab* of al-Nawawī, 1/166 and *al-Mughnī* of Ibn Qudāmah, 3/484.
[594] Bukhārī, 11/376-377 and Muslim, 4/2194

pubic hair are to purify and to remove dirt and impurity from oneself.

As for circumcision, it is the removal of an organ, the purpose of which no longer exists after death, so there is no benefit from circumcision then. The Prophet (ﷺ) said that people are resurrected on the Day of Judgement with their foreskin, uncircumcised.[594] Then, what is the benefit of cutting, after death, an organ that will return upon resurrection, and is a part of him in the next life?

Sub-section Five:

Being in the state of *iḥrām*[595] does not prevent circumcision. This was stated by Imām Aḥmad when he was asked: 'Can one who is in the state of *iḥrām* get circumcised?' He said: 'Yes.'

Therefore, he did not treat it like removing hair or clipping nails, whether in life or after death.

Section Thirteen:
The Circumcision of our Prophet (ﷺ)

There are a number of views[596] in this regard:

First: That he was born circumcised.
Second: That Jibrīl circumcised him when he cut his chest open.
Third: That his grandfather, 'Abdu'l-Muṭṭālib, circumcised

[595] *Iḥrām*: a sacred state, which a Muslim must enter in order to perform *ḥajj* or *'umrah*.
[596] See *Zād al-Mu'ād* of Ibn Qayyim, 1/81

him according to the Arabs' tradition in circumcising their children.

Here we will state the holders of these views and their evidence.

Those who said he was born circumcised cited some ḥadīths as evidence:

One of which, what Abū 'Umar Ibn 'Abdu'l-Barr narrated from 'Abdullāh Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), from his father, Al-'Abbās Ibn 'Abdu'l-Muṭṭālib, who said: 'The Messenger (ﷺ) was born circumcised and with his umbilical cord[597] split. His grandfather, 'Abdu'l-Muṭṭālib, admired that and said: This grandson of mine will be of great stature.'[598]

Ibn 'Abdu'l-Barr[599] added: 'The chain of narrators of this ḥadīth is not continuous. It has another chain of narrators that extends to 'Abdullāh Ibn 'Umar, but it is not authentic either.'

I say, we narrated the ḥadīth of Ibn 'Umar (*raḍiyAllāhu 'anhumā*) through the following chain: Abū Na'īm narrated from Abū'l-Ḥasan Muḥammad Ibn Aḥmad Ibn Khālid Al-Khaṭīb, from Muḥammad Ibn Muḥammad Ibn Sulaymān, from 'Abdu'l-Raḥmān Ibn Ayyūb Al-Ḥimṣī, from Mūsā Ibn Abū Mūsā Al-Maqdisī, from Khālid Ibn Salamah, from Nafi', from Ibn 'Umar (*raḍiyAllāhu 'anhu*) that he said, 'The Prophet (ﷺ) was born circumcised and

[597] The original word here is *"al-ṣirrah"* which translates to *"bellybutton"*. However, it can be inferred from context that the author actually means *"umbilical cord"*

[598] See *Al-Tamhīd* of Ibn 'Abdu'l-Barr, 23/140, Ibn 'Asākir in *Tārikh Damashq*, 3/411, Ibn 'Adī in *al-Kamāl*, 2/155, al-Bayhaqī in *Dalā'il al-Nabuwa*, 1/114 and «ākim in his *al-Mustadrik*, 2/602.

[599] See *Al-Tamhīd* of Ibn 'Abdu'l-Barr, 23/140

with his umbilical cord split.'[600]

However, this Muḥammad Ibn Sulaymān is Al-Baghandī, who is deemed weak by ḥadīth scholars. Al-Dāraquṭnī said about him: 'He is known for fraudulent narration, conveying that which he had not heard, and he may have stolen the ḥadīth [from another narrator].'[601]

They also include what Al-Khaṭīb narrated [through his chain] from Sufyān Ibn Muḥammad Al-Massīsī, from Hushaym, from Yūnus Ibn 'Ubayd, from Al-Ḥasan, from Anas Ibn Mālik (*raḍiyAllāhu 'anhu*) that the Messenger (ﷺ) said: "It is a sign of my high rank in the sight of Allāh that I was born circumcised, and no one saw my private parts."[602]

Al-Khaṭīb said: 'No significant narrators narrated it except for Yunus from Hushaym. In addition, Sufyān Ibn Muḥammad Al-Massīsī was the exclusive narrator in his layer, when his ḥadīth is not acceptable.'[603]

Al-Khaṭīb conveys from Al-Azharī that Al-Dāraquṭnī was asked about Sufyān Ibn Muḥammad Al-Massīsī, and he conveys from Abū'l-Ṭayyib Al-Ṭabarī that Al-Dāraquṭnī said: 'There is an old man in Al-Massīsah called Sufyān Ibn Muḥammad Al-Farrazī, he was weak and bad in his narration of ḥadīths.'

Ṣāliḥ Ibn Muḥammad Al-Ḥāfiẓ said: 'Sufyān Ibn Muḥammad

[600] Abū Nu'aym in his *Akhbār Aṣbahān*, 1/156 and Ibn 'Asākir in *Tārīkh Damashq*, 3/414
[601] See *Tārīkh Baghdād* of Khaṭīb, 9/186, *Mīẓān al-'Itidāl* of Dhahabī, 6/175 and *Lisān al-Mīẓān* of Ibn Hajr, 3/173
[602] See *Tārīkh Baghdād* of Khaṭīb, 1/329, Ṭabarānī in his *al-Ṣaghīr*, 2/59 and his *al-Awsaṭ*, #6327, Ibn 'Asākir in *Tārīkh Damashq*, 3/423 and others.
[603] See *Tārīkh Baghdād* of Khaṭīb, 1/329

Al-Massīsī is not noteworthy.'

The same ḥadīth was narrated by Abū'l-Qāsim Ibn ʿAsākir through Al-Ḥasan Ibn ʿArafah, from Hushaym, from Yūnus, from Al-Ḥasan, on the authority of Anas (*raḍiyAllāhu ʿanhu*), that the Messenger (ﷺ) said: "It is a sign of my high rank in the sight of Allāh that I was born circumcised, and no one saw my private parts."[606] However, in the chain of narrators up to Al-Ḥasan are a number of unknown narrators.

Abū'l-Qāsim Ibn ʿAsākir said: 'Ibn Al-Jārūd stole it, and he is a liar, and he narrated it from Al-Ḥasan Ibn ʿArafah.'[607]

Another piece of evidence cited by holders of this view is what Muḥammad Ibn ʿAlī Al-Tirmidhī[608] stated in the miracles of the Prophet (ﷺ). He said: 'Ṣafiyyah bint ʿAbdu'l-Muṭṭalib (*raḍiyAllāhu ʿanhā*) said: 'I wanted to know whether he was a boy or a girl, and I found him to be circumcised.'

This ḥadīth is not authentic, and has no known chain of narrators.

Abū'l-Qāsim ʿUmar Ibn Abū'l-Ḥasan Ibn Hibatullāh Ibn Abū Jaradah said in a book he wrote on the Prophet's (ﷺ) circumcision, to refute a book that Muḥammad Ibn Ṭalḥah wrote where he decided that the Messenger (ﷺ) was born circumcised. He said: 'This is Al-Ḥākim Muḥammad Al-Tirmidhī, he was not a scholar of ḥadīth, and has no knowledge of its ways and methods. It [his

[604] See *Tārīkh Baghdād* of Khaṭīb, 9/185
[605] See *Tārīkh Baghdād* of Khaṭīb, 9/186
[606] Ibn ʿAsākir in *Tārīkh Damashq*, 3/413
[607] *ibid*
[608] Not the same Tirmidhī as the scholar ḥadīth.

book] was filled with the ways of Ṣūfism and other sects, and claims of revealing mysterious matters and facts, until it deviated from the base of scholars, and he deserved slander and disparagement for it. He was opposed by the leading jurists and *Ṣūfīs*, and they deemed him to have left the acceptable realm. They said that he put into the science of Sharīʿah that which expells him from the community [of Muslims], and made him worthy of defamation. He filled his book with fabricated ḥadīths, added to it reports that were neither heard nor narrated [by known narrators], and justified therein hidden legal matters, whose meanings cannot be comprehended, with very weak justifications.'

For example, he stated in a book of his called '*Al-Ihtiyāt* (Precaution)' that one should perform *sujūd sl-sahu*[609] at the end of each prayer, even if no mistakes were committed therein.[610]

This is not permitted, according to the scholars' consensus, and is considered extremism and invention in the religion.

What he conveyed from Ṣafiyyah that she said, 'I found him to be circumcised' contradicts the other ḥadīth when he (ﷺ) said: 'No one saw my private parts.' Therefore, each ḥadīth in this regard contradicts the other, and neither is authentic. Even if he (ﷺ) was born circumcised, it is not something exclusive to him, because many people are born in no need of circumcision.

He [Abū'l-Qāsim ʿUmar] added: The genealogist, Abū'l-Qāsim Al-Zaydī stated that his father, the Judge, Abū Muḥammad Al-

[609] Literally means *"Prostration of forgetfulness"*; it consists of two prostrations performed at the end of a prayer if the person committed an unintentional mistake in the performance of the prayer.

[610] See *Al-Ihtiyātāt* of Ḥākīm al-Tirmidhī, pp.330-331

Ḥasan Ibn Muḥammad Ibn Al-Ḥasan Al-Zaydī, was born in no need of circumcision. That is why he was nicknamed '*Al-Mutahhār* (the Purified)'. He wrote, 'Abū Muḥammad Al-Ḥasan was born purified and did not get circumcised, and he died in the same state.' Jurists said that whoever is born like that is not circumcised, while some of them recommended rubbing the razor on the circumcision location without cutting anything; the public call this lunar circumcision, referring to the belief that human body growth increases in the full moon, and decreases in its incomplete phases, like the tide. Therefore, they attribute the lack of the foreskin to the incomplete moon.

He also added, it was narrated by Ṣayf Ibn Muḥammad, the nephew of Sufyān Al-Thawrī, from Hisham Ibn 'Urwah, from his father on the authority of 'A'ishah (*raḍiyAllāhu 'anhā*) that the Prophet (ﷺ) said: '[I am] the son of a hunter, born circumcised and with a split umbilical cord.'[611] Ṣayf's narration is doubted.

It is said that Caesar, the Roman king, who was visited by Imru' Al-Qays, was born without a foreskin, and Imru' Al-Qays entered the bathroom upon him and found him like that, so he said satirizing him:

I have sworn a truthful oath

that you are uncircumcised, except what the moon reaped[612]

Shaming him that he did not get circumcised, and considering his birth like that a defect. It is said that this verse is one of the reasons that incited Caesar to poison Imru' Al-Qays which led to his death.

[611] See Ibn 'Adī in his *al-Kamāl*, 3/127

[612] The poem of al-Imru' Al-Qays in his *Diwān*, p.280

Ibn Al-A'rabī said, about who was born without a foreskin:[613]

He is uncircumcised, except what the moon took away. He likened his foreskin to the scorpion's pedipalps. The Arabs did not consider the natural circumcision to be honourable, but saw virtue in the act of circumcision itself, and took pride in performing it.

He [Abū'l-Qāsim] said: 'Allāh has sent our Prophet (ﷺ), a genuine Arab, and granted him, exclusively, traits of perfection in his creation and genealogy. How can what he [Al-Tirmidhī] said: about being born circumcised, truly then be an exclusive trait of the Prophet (ﷺ)?'

It is said that circumcision is among the commands with which Allāh tried his friend, Ibrāhīm (*'alayhis-salām*), to fulfil.[614] The most severely tested people are the Prophets, then the next best, and the next best.

The Prophet (ﷺ) considered circumcision an act of pure nature. It is known that being tried and being patient multiplies the reward of the tried person. Therefore, it is more suitable for the Prophet (ﷺ) not to be deprived of such virtue, and to be honoured by Allāh just as He honoured Ibrāhīm, because the traits of the Prophet (ﷺ) are greater and higher than those of the other Prophets.

The circumcision by the angel, as narrated, is more entitled to be a trait of the Prophet (ﷺ). These are all the words of Ibn

[613] [TN]: The language of the verses is very ancient, and difficult to translate. Even the author had to explain them after stating them. Therefore, I will only translate his explanation.

[614] See *Tafsīr al-Ṭabarī*, 7/8 and *Tafsīr al-Baghwī*, 1/144

Al-'Adīm.

When he said 'circumcision by the angel', he meant what is narrated through Al-Khaṭīb, from Abū Bakrah, that Jibril circumcised the Prophet (ﷺ) when he purified his heart.[615]

Despite this being a ḥadīth mawqūf, whose chain of narration is not acceptable, Al-Khaṭīb said about it: 'We were told by Abū'l-Qāsim 'Abdu'l-Wāḥid Ibn Muḥammad Al-Baglī, from Ja'far Ibn Muḥammad Ibn Nusayr, from Muḥammad Ibn 'Abdullāh Ibn Sulaymān, from 'Abdu'l-Raḥmān Ibn 'Uyaynah Al-Baṣrī, from 'Alī Ibn Muḥammad Al-Madā'inī, from Maslamah Ibn Muhārib Ibn Sulaym Ibn Ziyād, from his father, from Abū Bakrah. This chain of narrators is not strong enough to authenticate the ḥadīth.'

The story of the angel cutting the chest of the Prophet (ﷺ) was narrated from many paths with continuous chains of narration up until the Prophet (ﷺ), but none of which stated that Jibrīl circumcised him, except this ḥadīth. It is an irregular and strange ḥadīth.

Ibn Al-'Adīm said: 'Some reports stated that his grandfather, 'Abdu'l-Muṭṭalib, circumcised him on his seventh day.'[616]

He added: 'Despite the weakness of these reports, they are closer to the truth, and more conceivable.'[617]

Then he conveyed the following report through Ibn 'Abdu'l-Barr: 'Abū 'Amr Aḥmad Ibn Muḥammad told us—as he was told

[615] See *Tārīkh Baghdād* of Khaṭīb, 1/347, Ṭabarānī in his *al-Awsaṭ*, #5817, Abū Nu'aym in his *al-Dalā'il*, 1/193, Ibn 'Asākir in *Tārīkh Damashq*, 3/412 and others

[616] *Al-Tamhīd* of Ibn 'Abdu'l-Barr, 23/140 and others

[617] *ibid*

by Mannī—from Muḥammad Ibn ʿIsā, from Yaḥyā Ibn Ayyūb Ibn Zayd Al-Allaf, from Muḥammad Ibn Abū'l-Surri Al-Asqalānī, from Al-Walīd Ibn Muslim, from Shuʿayb Ibn Abū Hamzah, from ʿAtā' Al-Khurasānī, from ʿIkrimah, from Ibn ʿAbbās (*raḍiyAllāhu ʿanhumā*) that ʿAbdu'l-Muṭṭalib circumcised the Prophet (ﷺ) on his seventh day, made a banquet on his behalf, and named him 'Muḥammad'.'

Yaḥyā Ibn Ayyūb said: 'We only found this ḥadīth narrated by Ibn Abū'l-Surrī, who is Muḥammad Ibn Al-Mutawakkil Ibn Abū'l-Surrī.' Allāh knows best.

Section Fourteen:
The Wisdom behind the Resurrection of People Uncircumcised

Allāh [the Exalted], who is true in His promise and never breaks it, promised to return the creation as He originated them the first time. Therefore, to fulfil His promise, He shall return the man to the state in which He created him, with his organs complete.

Allāh [the Exalted] said:

يَوْمَ نَطْوِي ٱلسَّمَآءَ كَطَيِّ ٱلسِّجِلِّ لِلْكُتُبِ ۚ كَمَا
بَدَأْنَآ أَوَّلَ خَلْقٍ نُّعِيدُهُۥ ۚ وَعْدًا عَلَيْنَآ ۚ إِنَّا كُنَّا فَٰعِلِينَ

"The Day when We will fold the heaven like the folding of a [written] sheet for the records. As We began the first creation, We will repeat it. [That is] a promise binding upon Us. Indeed, We will do it."

[*al-Anbiyā'* (21):104]

He also said:

كَمَا بَدَأَكُمْ تَعُودُونَ ﴿٢٩﴾

"Just as He originated you, you will return [to life]."
[*al-A'rāf* (7):29]

Moreover, circumcision was decreed in this life to complete one's purity, and remove the dirt of urine. However, people in Paradise do not urinate or defecate, so there is no impurity reaching the foreskin that need to be removed, nor does the foreskin block or reduce the pleasure of the intercourse. This is in case they were destined to continue in the state on which they were resurrected, for it is not necessary if they were resurrected uncircumcised to continue that way. People are resurrected barefoot, naked and speechless, then they are clothed, their creation extends and later increases. This is true both for the residents of Paradise and for the residents of Hell. Otherwise, upon rising from the grave, they are on the state on which they were in the worldly life as well on their traits, shapes and conditions. Every man is resurrected on the state upon which he died, and then Allāh [the Exalted] forms them as He wills.

Does this foreskin, which returned to them in the grave, remain or go?

Both are possible, and this cannot be decided without an authentic report. Allāh [the Exalted] knows best.

CHAPTER TEN

Piercing the Ears of Boys and Girls

As for the girl's ear, it may be pierced for adornment, as stated by Imām Aḥmad. He also stated disapproving doing it for the boy.[618]

The difference is that the female needs adornment, so piercing her ear is in her interest, unlike the boy.

The Prophet (ﷺ) said to ʿA'ishah in the ḥadīth of Umm Zaraʿ: 'I am for you as Abū Zaraʿ was for Umm Zaraʿ when she said, "He has suspended in my ears heavy ornaments."'

In both Bukhārī and Muslim, when the Prophet (ﷺ) enticed women to donate for charity, women started giving their earrings as the ḥadīth says.[619]

It is enough to prove its allowance for women the knowledge of Allāh and His Messenger (ﷺ) that people are wearing it and

[618] See *Al-Mustawʿab* of al-Sāmirī, 1/267, *al-Adāb al-Sharʿiyah* of Ibn Muflih, 3/356 and *Jāmiʿ Aḥkām al-Ṣaghār* of al-Asrūshanī, 1/215

[619] Part of a from Bukhārī, 9/435 and Muslim, 4/1896

their silent approval of it. Had it been prohibited, the Qur'ān or the Sunnah would have stated so.

If someone claims that Allāh [the Exalted] spoke about His enemy, Iblis, when he said:

وَلَآمُرَنَّهُمْ فَلَيُبَتِّكُنَّ ءَاذَانَ ٱلْأَنْعَٰمِ

"and I will command them so they will slit the ears of cattle"

[*al-Nisā'* (4:)119]

which proves that cutting, slitting and piercing the ear is of Satan's doing, since piercing is a form of cutting, so it follows the provisions of slitting the ears of cattle.

The response is this is a most corrupt analogy, because it was Satan who commanded them, when a she-camel gives birth to five camels, and the sixth turns out to be a male, to slit the she-camel's ear, prohibit riding and benefiting from her, forbid driving her away from water or pasture, and call her 'Bahirah.' Satan gave them such decree of his own.

How can that be likened to piercing the ear of the girl to put the ornament with which Allāh allowed her to be adorned?

As for piercing the boy's ear, there is no benefit therein, so an organ of his is cut without any religious or worldly benefit, which is not permitted.

One of the strangest reports narrated in this regard is what Al-Khaṭīb conveyed in his history book, from Al-Ḥasan Ibn 'Alī Al-Jawharī, from Muḥammad Ibn Al-'Abbās Al-Khazzāz, from

Abū ʿAmr ʿUthmān Ibn Jaʿfar, known as Ibn Al-Labban, that Abū Al-Ḥusayn Ibn ʿAlī Ibn Isḥāq Ibn Rahwayh said: 'My father was born with his ears pierced. So, my grandfather,[620] Rahwayh, went to Al-Faḍl Ibn Mūsā Al-Sinānī and asked him about that and said, "My child was born with his ears pierced." He said: "Your son will be a leader, either in goodness or in evil."[621]

It is as if Al-Faḍl Ibn Mūsā —and Allāh knows best—foresaw that when he was unique among all newborns with this trait, that he will be a unique leader, either in a religious or a worldly fashion.

He (Alī Ibn Isḥāq may Allāh have mercy on his soul) was the leader of his time in knowledge, ḥadīth, Qur'ān interpretation, Sunnah, dignity, commanding right and forbidding wrong, breaking the Jahmis and people of innovation in Khorasan, and he was the one who spread the Sunnah in Khorasan. He had a number of praiseworthy situations in the Sultan's presence, where Allāh gave him victory over his enemies and disgraced them, until the Sultan and those who were present marveled, so much so that Muḥammad Ibn Aslam Al-Tūsī said: 'Had Al-Thawrī been alive, he would have needed Isḥāq.' Aḥmad Ibn Saʿīd Al-Ribātī was told about that, and he said: 'By Allāh, had Al-Thawrī, Ibn ʿUyaynah and Al-Ḥammadān alive, they would have needed Isḥāq.' Muḥammad Ibn ʿAlī Al-Ṣaffār was told about that and he said: 'By Allāh, had Al-Ḥasan Al-Baṣrī been alive, he would have needed Isḥāq in many things.'[622]

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[620] Previously, when he said *'my father'*, he was actually referring to his grandfather, and here, he is referring to his great grandfather.

[621] See *Tārikh Baghdād* of Khaṭīb al-Baghdādī, 6/347

[622] *Tārikh Baghdād* of Khaṭīb al-Baghdādī, 6/349; see *Sīrah A'lām al-Nubalā'* of Dhahabī. 11/371

Imām Aḥmad used to call him 'Amir Al-Mu'minin'. We will state that along with other similar stories in a book that we will dedicate to his virtues, Allāh willing.

We will state a strange story that indicates how he was the leader of his people. Al-Ḥākim Abū 'Abdullāh narrated in '*The History of Nishapur*' from Abū Muḥammad Ibn Ziyād, from Abū'l-'Abbās Al-Azharī, from 'Alī Ibn Salamah, that Isḥāq was in the council of 'Abdullāh Ibn Ṭāhir with Ibrāhīm Ibn Abū Ṣāliḥ. 'Abdullāh asked Isḥāq about a problem, and Isḥāq said: 'The Sunnah here is such and such, but Al-Nu'mān and his followers disagree with that view.'

Ibrāhīm said: 'Al-Nu'mān did not disagree with that.'

Isḥāq said: 'I memorised it from your grandfather's book, me and him in one book.'

Ibrāhīm told the leader: 'May Allāh bless you! Isḥāq told lies upon my grandfather.'

Isḥāq said: 'The leader should send for the such-and-such volume of the book *Al-Jāmi'* and bring it.' The book was brought, and the leader started going through its pages.

Isḥāq said: 'Count from the beginning of the book twenty one pages, then count nine lines' which he did, and found the problem just as Isḥāq said.

'Abdullāh Ibn Ṭāhir said: 'One is not surprised at your strong memorisation, but one marvels at this demonstration.'

Isḥāq said: '[I do it] for a day like this, so that Allāh would disgrace, at my hands, an enemy of the Sunnah such as this.'[623]

'Abdullāh Ibn Ṭāhir said: 'I was told that you memorise one hundred thousand ḥadīths!' He said: 'One hundred thousand; I do not know how many they are, but I never heard anything except memorised it, and I never memorised something and forgot it.'[624]

The moral behind the story is the true foresight of Al-Faḍl Ibn Mūsā about him and that he was a leader in goodness.

Allāh knows best.

[623] See *Tārīkh Baghdād* of Khaṭīb al-Baghdādī, 6/353-354
[624] See *Tārīkh Baghdād* of Khaṭīb al-Baghdādī, 6/354

CHAPTER ELEVEN

Guidelines Over of the Young Boy and Girl's Urine before they Start Eating[625]

It was stated in the *Ṣaḥīḥayn,*[626] the *Sunan,*[627] the *Musānid,*[628] from Umm Qays bint Miḥṣan, that she brought her baby boy, who was still breastfeeding, to the Messenger (ﷺ), and he urinated on the Messenger's (ﷺ) dress, so he asked for water, spilled it on the dress and did not wash it.[629]

Alī Ibn Abū Ṭālib (*raḍiyAllāhu ʿanhu*) narrates that the Prophet (ﷺ) said: 'The urine of the baby boy should be sprinkled with water, while the urine of the baby girl should be washed off.' Qatādah said: 'That is until they start eating, after that; both of them must be washed off.'

This ḥadīth is narrated by Imām Aḥmad and Al-Tirmidhī, who

[625] Meaning while they are still breastfeeding.
[626] Ṣaḥīḥ al-Bukhārī and Ṣaḥīḥ Muslim.
[627] Sunan Abū Dāwūd, Sunan Al-Tirmidhī, Sunan Al-Nasa'ī, Sunan Ibn Mājah.
[628] The most famous of which is Aḥmad in his *Musnad.*
[629] Bukhārī, 1/326, Muslim, 1/238, Abū Dāwūd, #374, Tirmidhī, #71, Nasā'ī, #1.57, Ibn Mājah, #524, Imām Aḥmad in his *Musnad,* 6/355, Darami, #741, Bayhaqī, 2/414, Ibn Khuzaymah, #285, Ibn Ḥibbān, #1373, Ḥākim in his *Mustadrik,* 1/165 and others.

said it is 'ḥasan ḥadīth.' It was deemed authentic by Al-Ḥākim, who said: 'It conforms with the conditions of authenticity set by Al-Bukhārī and Muslim.'[630]

'A'ishah (*raḍiyAllāhu 'anhā*) said: 'A boy was brought to the Prophet (ﷺ) to do *taḥnīk* for him, but the boy urinated on him, where upon the Prophet had water poured on the place of urine." In the version narrated by Muslim, it adds: 'And he did not wash it off.'[631]

Umm Karz Al-Khuzā'iyyah said: 'A boy was brought to the Prophet (ﷺ), but the boy urinated on him, whereupon the Prophet had water poured on the place of urine, and a girl was brought to the Prophet (ﷺ), but she urinated on him, whereupon the Prophet had the place of urine washed off.' It is narrated by Imām Aḥmad.[632]

It is narrated in Sunan Ibn Mājah from 'Amr Ibn Shu'ayb, from Umm Karz (*raḍiyAllāhu 'anhu*), that the Prophet (ﷺ) said: 'The urine of a boy should be sprinkled over and the urine of a girl should be washed.'[633]

Umm Al-Faḍl Lubābah bint Al-Ḥārith said that Al-Ḥusayn Ibn 'Alī was [sitting] in the lap of the Messenger of Allāh (ﷺ) and passed water on him. She said: 'Give me your wrapper and wear another so that I can wash it.' He said: 'The urine of a male child should be sprinkled over and the urine of a female child should be washed [thoroughly].' It is narrated by Imām Aḥmad and Abū

[630] Imām Aḥmad in his *Musnad*, 1/76, Abū Dāwūd, 2/608, Tirmidhī, 2/509, Ibn Mājah, 1/174, Ibn Khuzaymah, #284 and others.
[631] Bukhārī, 1/325 and Muslim, 1/237
[632] Imām Aḥmad in his *Musnad*, 6/422 and #464, Ṭabarānī in his *al-Awsaṭ*, #828 and others.
[633] Ibn Mājah, 1/175

Dāwūd, and Al-Ḥākim said: 'It is authentic.'[634]

It is also narrated in *Ṣaḥīḥ Al-Ḥākim*, from 'Abdu'l-Raḥmān Ibn Mahdī, from Yaḥyā Ibn Al-Walīd, from Muhill Ibn Khalīfah, that Abū'l-Samḥ said: 'I was the servant of the Prophet (ﷺ). Al-Ḥasan and Al-Ḥusayn were brought to him, and they urinated on his chest, so people wanted to wash it and he said, "Sprinkle it [with water], for the urine of a female child should be washed and the urine of a male child should be sprinkled over."' Al-Ḥākim said: 'It is authentic, and it is narrated by authors of the Sunan.'[635]

The majority of ḥadīth scholars and jurists conform with these ḥadīths, so much so that Dāwūd deduced from them the purity of the baby boy's urine. He said: 'That is because the ḥadīth stated sprinkling it with water without washing it, and sprinkling does not remove it.'[636]

Jurists of 'Irāq say: 'Nothing short of washing is sufficient for either of them.' This is the view of Al-Nakh'ī, Al-Thawrī, Abū Ḥanīfah and his followers, due to the general ḥadīths about washing off urine, and by analogy to the rest of impurities, and by analogy to the baby girl's urine.[637]

However, the Sunnah has explicitly differentiated between the

[634] Imām Aḥmad in his *Musnad*, 6/339, Abū Dāwūd, 2/604, Ibn Khuzaymah, #284, Abū Ya'lā, #7074, Bayhaqī in his *Sunan*, 2/414 and Baghwī in his *Sharḥ al-Sunnah*, #295.
[635] Ḥākim in his *al-Mustadrak*, 1/166 and he said the chain is ṣaḥīḥ and Dhahabī agreed with him. Abū Dāwūd, 2/606-607, Nasā'ī, 1/158, Ibn Mājah, 1/174 and Ibn Khuzaymah authenticated it, #283 and Dāraquṭnī narrated it in his *Sunan*,1/13
[636] See *al-Maḥallā* of Ibn Ḥazm, 1/100-102, *Al-Awsaṭ* of Ibn al-Mundhir, 2/142 and *Mukhtaṣar Ikhtilāf al-'Ulamā'* of al-Jaṣāṣ, 1/126-128.
[637] See *Al-Awsaṭ* of Ibn al-Mundhir, 2/142, *Al-Mughnī* of Ibn Qudāmah, 2/495 and it is the saying if Imām Mālik in *al-Maduwana*, 1/4

two urines, so it is wrong to equate that which the Sunnah has explicitly differentiated.

Another group, including Al-Awza'ī and Mālik—as Al-Walīd Ibn Muslim narrates from him, said: 'The urine of the baby boy and girl is sprinkled with water to avoid inconvenience, due to the difficulty of caring for them and carrying them both.'[638]

This view is parallel to that which says 'both must be washed.' The correct view is differentiation, as evidenced by the authentic Sunnah.[639]

Abū'l-Barakat, Ibn Taymiyyah said: 'differentiation between the two urines is the consensus of the Companions. It was narrated by Abū Dāwūd from 'Alī Ibn Abū Ṭālib, and narrated by Sa'īd Ibn Manṣūr from Umm Salamah. Isḥāq Ibn Rahwayh said, "The Sunnah of the Prophet (ﷺ) is to sprinkle the urine of the boy who is still breastfeeding, and to wash the urine of the girl whether or not she is still breastfeeding and this was the view of the scholars from the Companions and their followers. It was not heard from the Prophet (ﷺ) or from those who came after him, until the time of the Followers, that anyone equated the urine of the boy and the girl."

Qiyas that contradicts the Sunnah is unacceptable.

The boy and the girl are differentiated by a number of factors:

First: The boy's urine disperses and scatters here and there, so it is difficult to wash off, while the girl's urine falls in one location, so it is not difficult to wash off.

[638] See *al-Mahallā* of Ibn Hazm, 1/102, and *Mukhtaṣar Ikhtilāf al-'Ulamā'* of al-Jaṣāṣ, 1/126.
[639] See *Al-Awsaṭ* of bn al-Mundhir, 2/144 and *Fatḥ al-'Azīz* of al-Rāfi'ī, 1/64-66

Second: The baby girl's urine is filthier than that of the baby boy, because the temperature of the male's private parts are higher, and they help ripen the urine and alleviate its smell.

Third: The baby boy is more frequently carried than the baby girl, due to the hearts' attachment to him, as the observation suggests.

If these differences do not turn out to be true, we trust in the Sunnah's differentiation.

Some of our companions said: 'Sprinkling here means to drown it in water, even if it [urine] was not removed.'[640]

However, this is not necessary. As the terms suggests, merely sprinkling is enough, so that water exceeds the urine in quantity.

The guideline for sprinkling [water] is not suspended by getting the baby boy to lick honey, syrup, dates and whatnot, in order not to paralyze the permission, for this takes place with almost every baby boy. In addition, it was the tradition of the Prophet (ﷺ), to do tahnik to babies with dates upon their birth. The sprinkling provision is suspended if the boy ate food and desired it for nutrition.

Allāh knows best.

[640] See *al-Mughni* of Ibn Qudāmah, 2/495 and others

CHAPTER TWELVE

Guidelines Over the Infant's Saliva and Spittle

This matter is very widespread. The Lawgiver[641] knew that the infant vomits frequently, his mouth cannot be washed, and his saliva and spittle keeps falling on whoever is carrying him and caring for him. Yet, the Lawgiver did not command washing that off the clothes, prevent praying in them, or command watching out for the child's saliva.[642]

A group of jurists said: 'This is considered an impurity of which people are exempted due to difficulty and need, similar to the mud on the streets, impurity that remains after stone-purification and the impurity that remains on the bottom of the shoes after rubbing them against the ground.'

Our Shaykh and others of our companions[643] said: 'No! The child's saliva is deemed to purify his mouth for the need,[644] just as

[641] Allāh [the Almighty].

[642] See *al-Mughnī* of Ibn Qudāmah, 1/113

[643] See Ibn Taymiyyah in his *Majmū' al-Fatawa*, 21/474

[644] It means that it does not fully purify it, but is considered so because of the difficulty posed otherwise.

the cat's saliva purifies its mouth. The Prophet (ﷺ) has informed us that it (the cat's saliva) is not impure, despite knowing that it feeds on mice and what not. Abū Qatādah understood from that the purity of its mouth and saliva, that is why he (ﷺ) tilted the bowl for it to drink."[645]

'A'ishah (*raḍiyAllāhu 'anhā*) said that the Prophet (ﷺ) used to tilt the bowl for the cat to drink,[646] and then perform ablution with the remaining water. The probability that its saliva would come into plenty of water, above two jarfuls,[647] in Madīnah is very remote. Even if it came into a mass of water, it would not have counted due to the impurity of its mouth but for its purification by the saliva. Therefore, saliva is deemed to purify the cat's mouth, and the infant's mouth for the need. Furthermore, it is more entitled as a purifier than the stone in stone-purification, or the dust on the bottom of the shoe and the barefoot, according to one view of Aḥmad and Mālik schools. It is also more entitled than the sun, the wind, vinegar and other fluids in some views, or than wiping the sword, the mirror, the knife and other polished surfaces with a piece of cloth. The Companions used to wipe their swords without washing them, and used to pray while wearing them. If swords were washed, they would rust and become useless.[648] The Prophet (ﷺ) looked at the swords of the two sons of 'Afrā', and deducted from the traces on them that they participated in the killing of Abū Jahl (may Allāh curse him), but he did not order them to wash their swords, when he knew that they pray while wearing them.[649] Allāh knows best.

[645] Imām Mālik in his *al-Muwaṭṭā'*, 1/24 and others

[646] Reference already mentioned

[647] If water was contaminated with impurity that did not change its color, taste or smell, and the water was two jarfuls or more, then it is still considered pure.

[648] See *Al-Awsaṭ* of Ibn al-Mundhir, 2/167 and *Majma' l-Anhar Sharḥ Multaqa al-Abḥar* of Shaikh Dāmād, 1/59

[649] Bukhārī, 6/246 and Muslim, #1752

CHAPTER THIRTEEN

The Authorisation to Carry Children in Prayers even if the Purity of their Clothes is Unknown

It was stated in both Bukhārī and Muslim, on the authority of Abū Qatādah (*raḍiyAllāhu ʿanhu*), that the Messenger (ﷺ) used to pray while carrying Umāmah, his granddaughter from his daughter Zaynab, and the daughter of Abū'l-ʿĀṣ Ibn Al-Rabīʿ (*raḍiyAllāhu ʿanhu*). He carried her as he stood up, and put her down as he prostrated.[650]

In Muslim's version, it says: 'He carried her on his neck'[651] In Abū Dāwūd's version, the narrator says: 'While we were waiting the Messenger (ﷺ) in *ẓuhr* or *ʿaṣr*,[652] after Bilal called him for prayers, he came outside to us, while Umāmah bint Abū'l-ʿĀṣ, his granddaughter, was on his neck. He stood in his Mihrāb, and we stood behind him, while she was still in her place. He began praying, and we followed. When he (ﷺ) wanted to bow down, he placed her

[650] Bukhārī, 1/590 and Muslim, 1/385

[651] *ibid*

[652] Noon and dusk prayers, respectively.

on the ground, then bowed and prostrated, and after he finished prostration and stood up, he picked her up and returned her to where she was. The Messenger (ﷺ) kept doing that in each *rak'ah* until he finished his prayers."[653]

This explicitly states that this took place in an obligatory prayer, it refutes people of obsession, it proves that occasional acts in the prayer do not nullify it, if they were necessary, it includes being merciful to children, it teaches modesty and good manners, and it proves that holding the young girl does not nullify one's purity.[654]

[653] Abū Dāwūd, 4/404-405

[654] See *al-Mughnī* of Ibn Qudāmah, 1/112-113 and *Fatḥ al-Barī* of Ibn Ḥajr, 1/590-591

CHAPTER FOURTEEN

Desirability of Kissing Children

In both Bukhārī and Muslim, on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*): 'The Prophet (ﷺ) kissed his grandson, Al-Ḥasan Ibn ʿAlī in the presence of Al-Aqrāʿ Ibn Hābis al-Tamīmī. Thereupon he remarked, "I have ten children and I have never kissed any one of them." The Messenger (ﷺ) looked at him and said, "He who does not show mercy to others will not be shown mercy.'"[655]

Also both Bukhārī and Muslim, on the authority ʿA'ishah (*raḍiyAllāhu ʿanhā*), that she said: 'Some Bedouin people came to the Prophet (ﷺ) and said, "Do you kiss your children?" He said: "Yes." They said: "But we, by Allāh, never kiss [our children]." The Prophet (ﷺ) said: "What can I do if Allāh has deprived your hearts of mercy?'"[656]

In *Musnad Aḥmad* on the authority of Umm Salāmah (*raḍiyAllāhu ʿanhā*), she said: 'While the Messenger (ﷺ) was in my house one day, the servant said that Fāṭimah and ʿAlī (*raḍiyAllāhu ʿanhumā*) are at the door. He told me, "Make way for my family," so I went to

[655] Bukhārī, 10/426 and Muslim, 4/1809
[656] Bukhārī, 10/426 and Muslim, 4/1808

another side of the house. ʿAlī and Fāṭimah entered with Al-Ḥasan and Al-Ḥusayn, while they were young boys. He took the boys, sat them on his lap and kissed them. He then embraced ʿAlī with one arm and Fāṭimah with the other, kissed them both, threw a black piece of cloth over them and said, "O Allāh, [bring us] to You, and save us from Hell, me and my family." I said, 'What about me, O Allāh's Messenger?' He said, "And you as well."'"[657] In another version, he said, 'You are destined for good."[658]

[657] Imām Aḥmad in his *Musnad*, 6/296, Ibn Ḥibbān, #6936, Ibn Abī Shaybah, 12/73

[658] Imām Aḥmad in his *Musnad*, 6/292, with a ṣaḥīḥ chain; see the author's [Ibn Qayyim] *Ighātha al-Lahafān*, 1/102, 107

CHAPTER FIFTEEN

The Obligation of Disciplining, Educating and Fairly Treating Children

Allāh [the Exalted] said:

يَٰٓأَيُّهَا ٱلَّذِينَ ءَامَنُواْ قُوٓاْ أَنفُسَكُمۡ وَأَهۡلِيكُمۡ نَارٗا وَقُودُهَا ٱلنَّاسُ وَٱلۡحِجَارَةُ

"O you who have believed! Protect yourselves and your families from a Fire whose fuel is people and stones."
[*al-Taḥrīm* (66):6]

ʿAlī (*raḍiyAllāhu ʿanhu*) said: '[It means] to teach and discipline them.'[659] While Al-Ḥasan said: '[It means] to command them to obey Allāh and teach them goodness.'[660]

It is narrated in the *Musnad* and *Sunan* Abū Dāwūd, from ʿAmr Ibn Shuʿayb, from his father, from his grandfather, that the Mes-

[659] Ṭabarī, 23/492, Bayhaqī in his *Shuʿab al-Imān*, 15/144, al-Baghwī in *al-Tafsīr*, 8/169 and Al-Asamʿānī in *Adab al-Imlāʾ waʾl-Istimlāʾ*, p.2

[660] Ṭabarī, 23/491-492, ʿAbduʾl-Razzāq, 3/49, al-Baghwī in *al-Tafsīr*, 8/169 and Bayhaqī in his *Shuʿab al-Imān*, 15/144

senger (ﷺ) said: 'Command your children to pray when they become seven years old, and discipline them for it [prayer] when they become ten years old; and arrange their beds [to sleep] separately.'[661]

This ḥadīth contains three points: commanding children to pray, discipline them for [not performing] it at the age of ten, and separating their beds.

Al-Ḥākim narrated from Abū'l-Naḍr Al-Faqīh, from Muḥammad Ibn Mahmūwiyah, from his father, from Al-Naḍr Ibn Muḥammad, from Al-Thawrī, from Ibrāhīm Ibn Muhājir, from 'Ikrimah, on the authority of Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), that the Prophet (ﷺ) said: 'Make the first thing your children hear [upon birth] '*lā ilaha illAllāh* (There is no deity [worthy of worship] except Allāh)," and inspire them upon death "*lā ilaha illAllāh* (There is no deity [worthy of worship] except Allāh).'"[662]

It is narrated in *Tārīkh Al-Bukhārī*, from Bishr Ibn Yūsuf, from 'Āmir Ibn Abū 'Āmir, from Ayyūb Ibn Mūsā Al-Qurashī, from his father, from his grandfather, that the Prophet (ﷺ) said: 'There is no gift that a father gives his son more virtuous than good manners.' Al-Bukhārī said: 'His grandfather is not proven to have heard from the Prophet (ﷺ).'[663]

In *Mu'jam Al-Ṭabarānī*, it is narrated from Sammāk, on the authority of Jābir Ibn Samurah (*raḍiyAllāhu 'anhu)*, that the Messenger (

[661] Imām Aḥmad in his *Musnad*, 2/180 and its chain is ḥasan; Abū Dāwūd, 1/270, Tirmidhī, 2/245 and he said the ḥadīth is ḥasan ṣaḥīḥ.

[662] Ḥākim in his *Tārīkh Nasābūrī* like what is mentioned in *Jam' al-Jawāmi'* of al-Suyutī, 1/126, Bayhaqī in his *Shu'ab al-Imān*, 6/397 and others

[663] See *Al-Tārīkh al-Kabīr* of Imām Al-Bukhārī, 1/422, Tirmidhī, 4/338 and said that this ḥadīth is gharīb. Also see *Majma' al-Zawā'id*, 9/54.

ﷺ) said: 'It is better for one of you to discipline his child than to donate half a *sā'*[664] every day to the poor.'[665]

Al-Bayhaqī conveyed from Muḥammad Ibn Al-Faḍl Ibn 'Aṭiyyah—who is a weak narrator—from his father, from 'Aṭā', from Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), that people asked: "O Allāh's Messenger! We have learned the rights of the father, so what are the rights of the child [upon his father]?" He said, "To give him a good name and teach him good manners."[666]

Sufyān Al-Thawrī said: 'The father should force his son to learn [the science of] ḥadīth, for he is responsible for him.'

He also said: 'This [science of] ḥadīth holds eminence. Whoever wanted the worldly life will find it through it, and whoever wanted the Hereafter will find it through it.'[667]

'Abdullāh Ibn 'Umar (*raḍiyAllāhu 'anhumā*) said: 'Discipline your child, for you will be held to account for him; how did you discipline him? What did you teach him? While he will be held to account for his kindness and obedience towards you.'[668]

Al-Bayhaqī narrated from Muslim Ibn Ibrāhīm, from Shaddād Ibn Sa'īd, from Al-Jarīrī, from Abū Sa'īd and Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), that the Messenger (ﷺ) said: 'Whoever has a child born, should give him a good name and teach him good manners, and when he reaches puberty, he should get him married. So, if he reached puberty and did not get married and committed a sin, the

[664] *Sā'* is a weight measure that equals around three kilograms.

[665] *Al-Mu'jam al-Kabīr* of Ṭabarānī, 2/246, Tirmidhī, 4/338 and others; see *Silsilah al-Aḥādīth al-Ḍa'īfah* of al-Albānī, 4/362.

[666] Bayhaqī in his *Shu'ab al-Imān*, 6/401 and others

[667] Bayhaqī in his *Shu'ab al-Imān*, 15/157

[668] Bayhaqī in his *Sunan*, 3/84 and in his *Shu'ab al-Imān*, 15/161

father bears responsibility for that sin.'[669]

Sa'īd Ibn Manṣūr reports from Ḥazm, that Kathīr Ibn Ziyād asked Al-Ḥasan about Allāh's saying:

رَبَّنَا
هَبْ لَنَا مِنْ أَزْوَاجِنَا وَذُرِّيَّاتِنَا قُرَّةَ أَعْيُنٍ وَاجْعَلْنَا
لِلْمُتَّقِينَ إِمَامًا ﴿٧٤﴾

"'Our Lord, grant us from among our wives and offspring comfort to our eyes and make us an example for the righteous."

[*al-Furqān* (25):74]

He [Kathīr Ibn Ziyād] asked: "O Abū Sa'īd! What is this 'comfort to the eyes'; is it in this life or the Hereafter?"

He [Al-Ḥasan] said: 'No. By Allāh, it is in this life.'

He [Kathīr Ibn Ziyād] said: 'Then what is it?'

He [Al-Ḥasan] said: 'It is when Allāh shows the man, in his wife, brother and close friend, the obedience for Allāh. By Allāh, there is nothing dearer to the Muslim than to find his child, father, brother or friend an obedient servant of Allāh [the Exalted].'[670]

Al-Bukhārī narrated in his *Ṣaḥīḥ*, from Nāfi', on the authority of Ibn 'Umar (*raḍiyAllāhu 'anhumā*) that the Messenger (ﷺ) said: 'Beware! Every one of you is a shepherd and every one of you shall be held to account for his flock. The Caliph is a shepherd over the people and is held to account for his subjects. A man is

[669] Bayhaqī in his *Sunan*, 3/84 and it is weak; see *Silsilah al-Aḥādīth al-Ḍa'īfah* of al-Albānī, 2/163.

[670] It is related by Sa'īd Ibn Manṣūr—like what is mentioned in *Fatḥ al-Barī*, 8/491, Ṭabarī in his *al-Tafsīr*, 19/318, Ibn Abī Hātim, 8/2742, al-Baghwī in his *al-Tafsīr*, 6/99, Bayhaqī in his *Shu'ab al-Imān*, 15/167-168 and others.

a guardian over his family members and shall be held to account for them. A woman is a guardian over the household of her husband and his children and shall be held to account for them. A slave is a guardian over the property of his master and shall be held to account for it. Beware! Every one of you is a guardian and every one of you shall be questioned with regard to his trust.'[671]

Section One:
Among the Rights of Children is Fairness in Giving and Depriving

It is narrated in the *Sunan*, *Musnad Aḥmad* and *Ṣaḥīḥ Ibn Ḥibbān*, from Al-Nuʿmān Ibn Bashīr (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: "Treat your children fairly, treat your children fairly, treat your children fairly."[672]

It is narrated in Ṣaḥīḥ Muslim that Bashīr's wife said [to her husband]: 'Give my son your slave [as a gift], and call the Messenger (ﷺ) as witness for me.' So he came to the Messenger (ﷺ) and said, 'The daughter of so-and-so has asked me to give her son my slave.' He asked, 'Does he have brothers?' He replied, 'Yes.' He again asked, 'Did you give them all the same as you have given him?' He replied, 'No.' He said: 'This is not acceptable, and I will be a witness only to what it right.'[673]

Imām Aḥmad narrated another version of this ḥadīth where the Messenger (ﷺ) said: 'Do not make me a witness for unfairness.

[671] Bukhārī, 1/304 and Muslim, 3/1459

[672] Abū Dāwūd, 11/273, Nasā'ī, 6/262 and in his *al-Sunan al-Kubrā*, #6481, Imām Aḥmad in his *Musnad*, 4/275, Ibn Ḥibbān, #2046 and others

[673] Muslim, 3/1233

Your children have a right upon you to treat them fairly.'[674]

It is also narrated in both Bukhārī and Muslim from Al-Nu'mān Ibn Bashir that his father took him to the Messenger (ﷺ) and said: 'I have given this son of mine a slave.' The Prophet (ﷺ) asked, 'Have you given all your sons the like?' He replied in the negative. The Prophet (ﷺ) said: 'Take back your gift then.'[675]

In a version narrated by Muslim, the Prophet (ﷺ) said: 'Did you do this with all your sons?' He said, 'No.' He said, 'Fear Allāh and be just to your children.' Al-Nu'mān said, 'So my father took his gift back.'[676]

And in another version by Muslim, he said: 'Let someone else be a witness to that.'[677]

This command is a threat, not permission, for that gift was unjust, according to the ḥadīth, and the Messenger (ﷺ) does not permit anyone to be a witness to the validity of an unjust transaction. Who would be a witness to a gift, when the Messenger (ﷺ) refused to do it and stated that it is unacceptable, unjust and unfair!

It is astonishing to interpret his saying, "treat your children fairly" not to entail obligation, when it is an absolute command repeated three times, when the commander informed that deviating from it is unjust, unacceptable, and not right. What can be beyond right, except wrong?

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[674] Imām Aḥmad in his *Musnad*, 4/269
[675] Bukhārī, 5/211 and Muslim, 3/1241-1242
[676] Muslim, 3/1241-1242
[677] *ibid*

Moreover, justice is obligatory in any case. If the command to do it was absolute, it had to be taken as an obligation. So what about when it was accompanied by ten things, all of which confirm its obligation? Observe them in the words of the story![678]

Al-Bayhaqī narrated from Abū Aḥmad Ibn ʿAdi, from Al-Qāsim Ibn Mahdī, from Yaʿqūb Ibn Kāsib, from ʿAbdullāh Ibn Muʿādh, from Maʿmar, from Al-Zuharī, on the authority of Anas (*raḍiyAllāhu ʿanhu*), that a man was sitting with the Prophet (ﷺ), and a son of his came, so he kissed him and sat him on his lap. Then, a daughter of his came, so he took her and sat her down beside him. The Prophet (ﷺ) said: 'You have not been just with them.'[679]

The early Muslims liked to be just with their children in kissing.

Some scholars said: On the day of Judgment, Allāh [the Exalted] will hold the father to account for his child before he holds the child to account for his father. Just as the father has rights upon his child, the child has rights upon his father. Because just as Allāh [the Exalted] said:

وَوَصَّيْنَا ٱلْإِنسَٰنَ بِوَٰلِدَيْهِ حُسْنًا

"And We have enjoined upon man goodness to parents."

[*al-ʿAnkabūt* (29):8],

He also said:

قُوٓا۟ أَنفُسَكُمْ وَأَهْلِيكُمْ نَارًا وَقُودُهَا ٱلنَّاسُ وَٱلْحِجَارَةُ

"Protect yourselves and your families from a Fire whose

[678] See *Fatḥ al-Barī* of Ibn Ḥajr, 5/214-216

[679] Bayhaqī in his *Shuʿab al-Imān*, 12/526 and others.

fuel is people and stones."

[*al-Taḥrīm* (66):6]

'Alī Ibn Abū Ṭālib (*raḍiyAllāhu 'anhu*) said: '[It means] to teach and discipline them.'[680]

Allāh the Exalted also said:

وَٱعْبُدُوا۟ ٱللَّهَ وَلَا تُشْرِكُوا۟ بِهِۦ شَيْـًٔا ۖ وَبِٱلْوَٰلِدَيْنِ إِحْسَٰنًا وَبِذِى ٱلْقُرْبَىٰ

"Worship Allāh and associate nothing with Him, and to parents do good, and to relatives."

[*al-Nisā'* (4): 36]

The Prophet (ﷺ) also said: 'Treat your children fairly.'[681] Therefore, Allāh's commandment to the parents regarding their children precedes His commandment to children regarding their parents.

Allāh the Exalted said:

وَلَا تَقْتُلُوٓا۟ أَوْلَٰدَكُمْ خَشْيَةَ إِمْلَٰقٍ ۖ

"And do not kill your children for fear of poverty."

[*al-Isrā'* (17):31]

Whoever ignored teaching his child what is beneficial to him, and neglected him, have wronged him greatly.

For most children, their corruption is a result of their parents, their negligence, and not teaching them the obligations and recom-

[680] Reference already mentioned.

[681] Reference already mentioned.

mended deeds of the religion. They have ruined them at a young age, so they [the children] did not benefit from themselves, and could not benefit their parents when they grow old.

When someone admonished his son for his lack of dutifulness, he told him: 'Father, you have been unkind to me when I was young, so I became unkind to you when you became old, and you neglected me in my early years, so I neglected you in your late years.'

CHAPTER SIXTEEN

Useful Topics in Child Education whose Rewards are Reaped at Old Age

The newborn's breastfeeding should be carried by someone other than his mother, two or three days after his birth, which is better, because of the roughness of her breast milk during that time, unlike the breast milk of she whose job is breastfeeding. All the Arabs care for that, and have their children nursed by Bedouin women, just as the Prophet (ﷺ) was nursed in the clan of Sa'd.[682]

Sub-section One:

They should not be carried around until they reach three months of age or more, due to their recent emergence of their mothers' wombs and their weak bodies.

Sub-section Two:

They should only consume milk until their teeth grow, because of the weakness of their stomachs and their digestive capabilities.

[682] See *Sīrah Ibn Isḥāq*, pp. 25-27 with Muḥammad Ḥamīdullāh checking.

When the teeth grow, the stomach strengthens and then he can eat food. Allāh [the Exalted] delayed the growth of teeth to the time when he needs food, in His wisdom and kindness, and His mercy for the mother and her breast nipples, so that the newborn does not bite them with his teeth.

Sub-section Three:

Food should be gradually introduced to them. The first thing they eat should be tender food. They should be fed hot-water-soaked bread, milk, and then cooked vegetables, soup devoid of meat, and then very tender meat after being thoroughly chewed or broken to soft pieces.

Sub-section Four:

If they are close to the speaking time, and parents wished to facilitate the process for them, they should rub their tongues with honey and rock salt, because they expel the heavy moistness that hinder speaking. When they start speaking, they should be inspired '*Lā ilahailla illAllāh, Muḥammad al-rasūlullāh* (There is no deity [worthy of worship] except Allāh, Muḥammad is the Messenger of Allāh).' Let the first thing they hear be the knowledge of Allāh [the Exalted] and His unity, that He is above His throne, looking at them and hearing them, and that He is with them [in knowledge] wherever they are.

The Jews frequently called their children 'Amanuel (Emanuel)', which means 'Our Lord is with us'.[683] That is why the dearest names to Allāh are 'Abdullāh and 'Abdu'l-Raḥmān, so that when the child began to comprehend, he knew that he is 'Abdullāh (the

[683] See Qāmūs *al-Kitāb al-Muqadis*, p.69

servant of Allāh), and that Allāh is his Lord and Master.

Sub-section Five:

When teeth start to grow, their gums should be rubbed with butter, and the neck beads should be oiled a lot. Parents must be very cautious, during the teeth growth period, of solid matter, and they should absolutely keep them away from their children, as it may cause the corruption, irregularity or disorder of the teeth.

Sub-section Six:

Parents must not be overburdened by the crying and yelling of their child, particularly when he feels hungry for the breast milk, for he benefits from that crying greatly. It trains the organs, widens the intestines, expands the chest, heats the head, preserves the temper, instigates the instinctive temperature, drives the child's nature to satisfy his curiosity, and pushes away the wastes of the head, such as mucus.[684]

Sub-section Seven:

The matters of the child's diapers should not be neglected, even if it was a burden, until his body and organs strengthen, and he can sit on the ground. Then, he can be trained to move and stand up bit by bit until he has the strength to go and do it himself.

[684] See *Miftāḥ Dār al-Sa'ādah* of Ibn Qayyim, 1/273

Sub-section Eight:

The child must be protected from anything that can scare him, such as terrible and loud sounds, horrible scenes and disturbing movements, as they may harm his intellectual capabilities that are weak at this point, which would prevent him from utilizing them when he grows. If he was subjected to such thing, parents must hasten to counter its effects, entertain him with what makes him forget, give him his mother's breast immediately, so that this disturbance goes away and not get imprinted in his memory making it difficult to remove, and he should be cradled until he falls asleep and forgets about it. This matter should not be treated lightly, for to neglect it is to instill panic and fear in his heart, which will cause him to grow up like this, and make it very difficult to get rid of that.

Sub-section Nine:

The newborn's state changes upon the growth of his teeth, and it instigates vomiting, fever and bad temper, particularly if it was in wintertime of extreme cold, or in summertime of extreme heat. The best times for teeth growth are in the spring or autumn. The time of its growth is at the age of seven months; it may start growing in the fifth month, and it may also be delayed to the tenth month. Upon its growth, he should be treated gently, be taken to the toilet frequently and be given light amount of food, so as not to fill his stomach causing him to have diarrhea. His head should be bound a band containing what is sufficient for him, such as a wool band containing soft cumin, celery and anise, and his gum should be rubbed with what was previously mentioned. Yet, diarrhea at this stage is better than constipation. If he became constipated during his teeth growth, parents should hasten to mitigate

that, for nothing is more harmful for the child when his teeth are growing than constipation, and nothing is more beneficial than having moderately easy bowel movements.

The best thing to ease bowel movements is cooked honey made into wicks, with which he is carried, or ground Artemisia, mixed with honey and made into wicks as well. The wet-nurse should soften the food and give drinks, and avoid harmful food.

Section One:
Weaning Time

Allāh [the Exalted] said:

وَٱلْوَٰلِدَٰتُ يُرْضِعْنَ أَوْلَٰدَهُنَّ
حَوْلَيْنِ كَامِلَيْنِ ۖ لِمَنْ أَرَادَ أَن يُتِمَّ ٱلرَّضَاعَةَ ۚ وَعَلَى ٱلْمَوْلُودِ لَهُۥ رِزْقُهُنَّ
وَكِسْوَتُهُنَّ بِٱلْمَعْرُوفِ ۚ لَا تُكَلَّفُ نَفْسٌ إِلَّا وُسْعَهَا ۚ لَا تُضَآرَّ
وَٰلِدَةٌۢ بِوَلَدِهَا وَلَا مَوْلُودٌ لَّهُۥ بِوَلَدِهِۦ ۚ وَعَلَى ٱلْوَارِثِ مِثْلُ ذَٰلِكَ ۗ
فَإِنْ أَرَادَا فِصَالًا عَن تَرَاضٍ مِّنْهُمَا وَتَشَاوُرٍ فَلَا جُنَاحَ عَلَيْهِمَا ۗ وَإِنْ
أَرَدتُّمْ أَن تَسْتَرْضِعُوٓا۟ أَوْلَٰدَكُمْ فَلَا جُنَاحَ عَلَيْكُمْ إِذَا سَلَّمْتُم مَّآ
ءَاتَيْتُم بِٱلْمَعْرُوفِ ۗ

"Mothers may breastfeed their children two complete years for whoever wishes to complete the nursing [period]. Upon the father is the mothers' provision and their clothing according to what is acceptable. No person is charged with more than his capacity. No mother should be harmed through her child, and no father through his child. And upon the [father's] heir is [a duty] like that [of the father]. And if they both

> desire weaning through mutual consent from both of them and consultation, there is no blame upon either of them. And if you wish to have your children nursed by a substitute, there is no blame upon you as long as you give payment according to what is acceptable."
>
> [*al-Baqarah* (2):233]

The verse indicated a number of provisions:

1- The full breastfeeding period is two years, which is the infant's right if he needed it and could not do without it. Allāh [the Exalted] affirmed it with the word '*kāmil*' [complete], so that no one interprets that as one year and a few months.

2- If the parents desired to wean the child earlier than that, with their mutual consent and consultation without harming the child, they may do so.

3- If the father wished to use a substitute nurse for his child, he may do so, even if the mother objected, unless it would cause her or the child harm, then he may not do so. It is permitted for the mother to continue breastfeeding the child beyond two years, to half of the third year or beyond.

The best time for weaning is when the weather is moderate, after the child's teeth and molars have completely grown, and became able to cut and crush food, then weening is best for him. The moderate whether of the autumn is more beneficial to the child than that of the spring, because autumn precedes winter, and the air starts to cool, and the instinctive temperature begins and grows therein, digestion strengthens, and so does the desire.

Sub-section One:

When the nurse wishes to wean the child, she should do it gradually, and not shock the child with it abruptly. She must train him and get him used to it, due to the damage of a sudden shift away from the habit and tradition. Like what Hippocrates said in his book *Aphorisms*: 'The sudden use of a large amount of that which fills the body, empties it, heats it, cools it, or changes it in any way is dangerous, and the more it is, the more unnatural it becomes, and the less it is, the safer.'

Sub-section Two:

An example of bad care for children is to be allowed to fill on food and drinks. The best practice is to be given below the fullness of their stomachs, so that their digestion improves, the chemistry of their bodies regulates, the excess food therein decreases, their bodies become healthier, and their illnesses decrease due to the reduction of wastes in food.

One doctor said: 'I am praising certain people, who only feed their boys below their full stomachs. That is why their figures are upright, their bodies are straight, and they are less exposed than their counterparts to tetanus, heart and chest pain and so on.' He added: 'So if you wished your boy to be in a good shape, with an upright figure and not arched, make him avoid being full. If the boy became full, he will sleep a lot and relax; his stomach will be flatulent with repulsive gases.'

Sub-section Three:

Galen said: 'I do not prevent these boys from drinking cold water, but I allow them a mouthful that mostly follows the meal, and in

the hot times during the summer, if they yearned for it.'

I say, This is due to the strong instinctive temperature within them, and drinking cold water will not harm them at these times, particularly after the meal, because they have to be allowed it to a certain extent, since it would be difficult for them to endure thirst in the hot weather.

Sub-section Four:

Another thing to be avoided is to force the child to walk before its appropriate time, because it exposes his legs to arching and twisting, as they are still too weak to endure such activity. Beware to prevent him from doing or getting what he needs, such as vomiting, sleeping, food, drink, sneezing, urinating or bleeding, because hindering that will have grave consequences both for the young and for the old.

Section Two:

Marital Relations with the Breastfeeding Woman[685]

Judāmah bint Wahb Al-Asadiyyah (*raḍiyAllāhu ʿanhā*) said that she witnessed the Messenger (ﷺ) among people saying: 'I intended to prohibit *ghīla* [a man having intercourse with a woman who is breastfeeding a child] but I remembered that the Greeks and Persians do that without it causing any injury to their children.' Then they asked him about coitus interruptus,[686] and he said: "That is hidden infanticide," as Allāh said:

[685] See *Zād al-Muʿād*, 5/147-148

[686] Coitus interruptus withdrawal or pull-out method, is a method of birth control in which a man, during sexual intercourse, withdraws his penis from a woman's vagina prior to orgasm (and ejaculation), and then directs his ejaculate (semen) away from the vagina in an effort to avoid insemination.

وَإِذَا ٱلْمَوْءُۥدَةُ سُئِلَتْ ﴿٨﴾

"And when the girl [who was] buried alive is asked."
[al-Takwīr (81):8]

It is narrated by Muslim in his *'Ṣaḥīḥ'*.[687]

He also narrated in his *Saḥīḥ* from Usāmah Ibn Zayd (*raḍiyAllāhu 'anhumā*) that a man came to the Messenger (ﷺ) and said: 'I do coitus interruptus with my wife.' The Messenger (ﷺ) said: 'Why do you do so?' He said: 'I fear harm for her child, or her children.' The Messenger (ﷺ) said: 'If that were harmful, it would harm the Persians and the Greeks.'[688]

Asmā' bint Yazīd (*raḍiyAllāhu 'anhu*) conveys that she heard the Messenger (ﷺ) say: 'Do not kill your children in secret, for I swear, by He in whose hand is my soul, that the milk with which a child is suckled, while his mother is pregnant, overtakes the horseman and throws him from his horse.' It is narrated by Imām Aḥmad and Abū Dāwūd.[689]

Combining these ḥadīths proved difficult for many scholars. A group of them said: 'The Prophet's (ﷺ) saying, "I intended to prohibit *ghīla*" does not contradict his saying in the other ḥadīth, "Do not kill your children in secret," for this prohibition is like advice and guidance to them to refrain from what weakens the child and kills him.'[690]

They added: 'The evidence about that is that when a man has

[687] Muslim, 2/1067
[688] Muslim, 2/1076
[689] Imām Aḥmad in his *Musnad*, 6/453, Abū Dāwūd, 5/361, Ibn Mājah, 1/648 and others
[690] See *Zād al-Mu'ād*, 5/147 and others

intercourse with a woman who is breastfeeding, he triggers the menstrual blood and instigates it to go out of the body, so the woman's breast milk does not remain as pleasant and good smelling as it was. It is also possible for the woman to become pregnant as a result of that intercourse, which is most harmful and foul to her breastfeeding baby, because the good blood is directed to nurture the fetus in the womb and is consumed by it. When the fetus gets and attracts that which it does not need, it is suitable because it is connected to its mother like roots to the ground, and it is not separated from it day or night. Therefore, the pregnant woman's blood decreases and becomes bad, so the milk in her breasts also gets decreased and becomes bad. So, whenever the breastfeeding woman becomes pregnant, it is wise to prevent the infant from breastfeeding from her, because if he drank that bad milk, it may kill him, or contribute to his weakness with an impact that he will find when he grows up, which is what is referred to by the saying: "throws him from his horse." This is the essence of the advice [and guidance to refrain from it, without prohibiting it], because it does not happen for each infant, even if a number of children were exposed to it. The majority of men have intercourse with their wives while they are breastfeeding, and were this damage to happen to each infant [exposed to these circumstances], the majority of people would have been affected. However, these two large nations-the Persians and the Greeks- do it, and no damage happens to their children.'

In any case, it is better, as a precaution, if a breastfeeding woman became pregnant, that her child is prevented from breastfeeding from her, and that another wet nurse is sought.[691] Allāh knows best.

[691] See *Ḥujjatullāh al-Bāligha* of Imām Shahwalīullāh Dhilavwī, 2/992-993

Sub-section One:

One thing that the child highly needs is to look after his manners. The child grows up with the traits on which he was made accustomed by his educator, such as sullenness, anger, stubbornness, rashness, moodiness, recklessness, violence and greed, and it becomes very difficult for him to avoid these traits as an adult, and they become deeply rooted characteristics in him. Even if he tried so hard to suppress them, inevitably they will slip away from him one day.

That is why when the child starts to mature, he must avoid the gatherings of banter and falsehood, singing, hearing profanities, inventions in religion, and ill-speech, because if that stuck to his hearing, it will be difficult to get rid of after growing up, and difficult for his guardian to rescue him from. Changing habits is a most difficult matter, because the person needs to invoke a second nature, and escaping one's nature is very challenging.

The guardian must prevent him strongly from taking from others, for if he got used to taking, it will become his nature, and he will grow to take and not give. Instead, he must teach him generosity and openhandedness, and when he [the guardian] wished to donate something, he should do it through the child, to give him a taste of the pleasure of giving. He must be more protective of him against lying and betrayal than he is against poison, because if he facilitated lying and betrayal to him, he would spoil for him the happiness of this life and the Hereafter, and deprive him of every goodness.

The guardian must protect him from laziness, idleness, and excessive luxury and comfort. On the contrary, he should encourage him

in the opposite direction, and only allow him comfort as much as lets his body and soul recover, for laziness and idleness have poor and regrettable consequences, while hard work and diligence have their good rewards, both in this life and in the next. In both of them, the most comfortable is the most tired, and the most tired is the most comfortable. Prevalence in this life and happiness in the next cannot be attained except through a bridge of hard work. Yaḥyā Ibn Abū Kathīr said: 'Knowledge is not attained through the bodily comfort.'[692]

The guardian must also teach the child to pay attention to the end of the night, for it is the time of dividing the spoils and distributing the rewards. People are divided therein into those who gain much, those who gain little, and those who gain nothing, and whoever is accustomed to it at a young age, will find it easy at old age.

Sub-section Two:

He must keep him away from the excessiveness in eating, talking, sleeping and being acquainted with sins, for in that excessiveness lays loss, and these things cause one to miss the goodness of this life and the Hereafter.

He must also protect him from the harms of the desires related to the stomach and the private parts as much as possible. Making their means accessible and being permissive in that regard will corrupt him to a degree that will be difficult to fix. Many have caused their children wretchedness in this life and the next, by neglecting them, not disciplining them and enabling them in their desires. These parents claim to honour their children when they have

[692] Muslim, 1/428

humiliated them, and to be merciful with them when they have oppressed and deprived them. They missed the chance to benefit from their children, and made them miss their share of this life and the Hereafter. Therefore, if you consider corruption among children, you find its major cause among the parents.

Sub-section Three:

Be absolutely careful not to allow him to take in that which hinders his mind, such as intoxicants or others, or associating with who are potentially corrupt, talking with them or befriending them, for in that is total destruction. Whoever is permissive herein will find it easy to be a cuckold, and 'No cuckold shall enter Paradise.'[693] Nothing corrupts children more than the carelessness and negligence of their parents and their dismissiveness of the fire sparks among clothes.[694]

Most parents, unknowingly, harm their children more than one does to his enemy. Many parents have deprived their children from the goodness of this life and the next and exposed them to the destruction of this life and the next. All these are the consequences of parents' negligence of the rights of Allāh, their failure to fulfill them, their deviance from what Allāh made obligatory for them of useful knowledge and good deeds, which prevented them from benefiting from their children, and their children from benefitting from them, which is a part of the parents' punishment.

[693] Ṭayālisī, #642, Nasā'ī, #2354, 'Abdu'l-Razzāq in his *al-Muṣannaf*, 11/226, Ḥākim in his *al-Mustadrik*, 1/72 and Bayhaqī in his *Sunan*, 10/226. It is authenticated by al-Albānī in his *Ṣaḥīḥ Sunan al-Nasā'ī*, #2562. See *al-Targhīb wa'l-Tarhīb* of Ḥāfiẓ al-Mundhirī, 5/1

[694] This refers to a famous Arabic poem, which says in one part: "Most fires start from sparks that are considered small."

Sub-section Four:

He must prevent him[695] from wearing silk, for it corrupts him and effeminates his nature, just as he keeps him away from sodomy, alcoholism, thievery and lying. The Prophet (ﷺ) said: 'Wearing of silk and gold has been made unlawful for males and lawful for the females of my *ummah*.'[696]

Even if the boy was not accountable yet, the guardian is, and he may not enable him to do a forbidden deed, because he will get used to it and find it difficult to stop doing it. This is the more correct view among scholars.

Those who do not deem it forbidden [to do so] say that the boy is not yet accountable, and therefore it is not forbidden for him to wear silk, just as in animals.[697]

However, this is a most corrupt analogy, because a child, though not accountable, is ready to be so. That is why he is not permitted to pray without ablution, naked or in an impure state, to imbibe alcohol, to gamble or to commit sodomy.

Sub-section Five:

Another thing to be considered is the child's nature and what the line of work for which he is equipped and ready. The guardian must know that this child was created for that purpose, and must not force him in a way that is not lawfully permitted. If he forces him in a field for which he is not prepared, he will not be success-

[695] This paragraph is exclusively for boys.
[696] Tirmidhī, 4/217 and he said: 'This ḥadīth is ḥasan ṣaḥīḥ
[697] See *al-Mughnī* of Ibn Qudāmah, 2/310-311, *Rawḍah al-Ṭālibīn*, 2/67 and others

ful therein, and he will miss that for which he is prepared. If he finds him to have a good understanding, a decent perception and a good memory, these are the signs of being equipped for knowledge; therefore, he should carve knowledge on the stone of his heart while it is still vacant,[698] for he will be ready for it and able to grow therein. If he found him not to be like that but equipped for horsemanship and its means, such as riding, archery and using spears, he should enable him to learn and train in the ways of horsemanship. If he found him not to be like that but equipped for a certain craft and accepting of it, while such craft is a lawful and beneficial craft, he should enable him to pursue it.

All this follows teaching him what he needs of his religion, because this is feasible for everyone, so that Allāh's argument against servant is established, for with Allāh is the far-reaching argument against his servant, just as he has the bestowed favours upon them.

Allāh knows best.

[698] This is inspired by an Arabic saying: Learning at a young age is like carving on stone, while learning at an old age is like drawing on water.

CHAPTER SEVENTEEN

The Stages of Human Growth since Being a Sperm-drop until Entering Paradise or Hell[699]

Allāh the Exalted said:

وَلَقَدْ خَلَقْنَا ٱلْإِنسَٰنَ مِن
سُلَٰلَةٍ مِّن طِينٍ ﴿١٢﴾ ثُمَّ جَعَلْنَٰهُ نُطْفَةً فِى قَرَارٍ مَّكِينٍ ﴿١٣﴾ ثُمَّ
خَلَقْنَا ٱلنُّطْفَةَ عَلَقَةً فَخَلَقْنَا ٱلْعَلَقَةَ مُضْغَةً فَخَلَقْنَا
ٱلْمُضْغَةَ عِظَٰمًا فَكَسَوْنَا ٱلْعِظَٰمَ لَحْمًا ثُمَّ أَنشَأْنَٰهُ خَلْقًا
ءَاخَرَ ۚ فَتَبَارَكَ ٱللَّهُ أَحْسَنُ ٱلْخَٰلِقِينَ ﴿١٤﴾ ثُمَّ إِنَّكُم بَعْدَ ذَٰلِكَ
لَمَيِّتُونَ ﴿١٥﴾ ثُمَّ إِنَّكُمْ يَوْمَ ٱلْقِيَٰمَةِ تُبْعَثُونَ ﴿١٦﴾

"And certainly did We create man from an extract of clay. Then We placed him as a sperm-drop in a firm lodging. Then We made the sperm-drop into a clinging clot, and We made the clot into a lump [of flesh], and We made [from] the lump, bones, and We covered the

[699] It is necessary to point out that this book was written around seven centuries ago, so some of the scientific information may not be accurate or correct.

> bones with flesh; then We developed him into another creation. So blessed is Allāh, the best of creators. Then indeed, after that you are to die. Then indeed you, on the Day of Resurrection, will be resurrected."
>
> [*al-Mu'minūn* (23): 12-16]

So He [the Exalted] enclosed the stages of human life since even before he was a sperm-drop, when he was dust and water, until his resurrection on the Day of Judgment. The first stage of his creation is being an extract of clay, and then afterwards an extract of a liquid disdained, which is the sperm-drop that was drawn from the entire body. It remains like this for forty days, then Allāh [the Exalted] transforms this sperm-drop into a clinging clot, which is a black mass of blood, and it remains like this for another forty days until He [the Exalted] transforms it into a lump of flesh for another forty days. During this stage, the organs, image shape and form are determined.

Scholars debated over the first organ to be formed:[700]

Some said it is the heart (*qalb*), others said it is the brain (*damāgh*), a third group said it is the liver (*kabd*), while others said they are the Vertebrae (*zahr*).

The first group argued that the heart is the organ and the basis that is the essence of instinctive temperature, which is the vessel of life. Therefore, it must take precedence in creation. Anatomist said that they found in the clinging clot—upon its completion—a black dot.

The second group said that the animal's brain is the primary

[700] See *Al-Ṭibyān fi Imān al-Qur'ān* of the author [Ibn Qayyim], pp.525-528 and *Miftāḥ Dār al-Sa'ādah* of Ibn Qayyim, 2/19.

organ, and the assembly point of the senses. The distinctive features of animals are sensing and voluntary movement, the origin of which is the brain. Since these distinctive features result from that organ, it should take precedence in creation.

Those who said it is the liver argued that it is the liver, because it is the organ responsible for growth and nutrition, which is the foundation of the animal. They said: 'The natural order necessitates that the first organs to be formed are the liver, then the heart, then the brain, because the first stage of the animal's life is growth. During that time, it has no need for sensing or voluntary movement; it is like a plant at this stage—it only needs to grow. The senses and [ability to] will only come to it with the soul's attachment to the body, which takes place in the fourth stage. Therefore, the first organ to be created is the growth machine, which is the liver.' What the anatomists witnessed, and agree upon, is that the first thing to appear in the animal fetus' body is three close dots, which are thought to be the liver, the heart and the brain. They grow further apart as the pregnancy proceeds. This is as much as is clear to anatomists. As for which of these dots is the precedent, they have no evidence in that regard except appropriateness, entitlement and analogy. Allāh knows best.

Sub-section One:

Then his joints, bones, blood vessels and nerves are created, his hearing, sight and mouth are made, his throat is separated after it was joined and the tongue is attached and shaped therein, his bones are covered with flesh and tied together in the firmest way, which is what Allāh referred to as *'al-asīr'* (chains)' when He said:

نَّحْنُ خَلَقْنَٰهُمْ وَشَدَدْنَآ أَسْرَهُمْ

"We have created them and strengthened their chains [joints]."

[*al-Insān* (76): 28],

which means the chain with which the captive is tied; the word *captive* is also derived from it.

Imām Aḥmad narrates from Rūḥ Ibn 'Ubadah, from Abū Hilāl, from Thābit, that Ṣafwān Ibn Muḥriz said: 'When Allāh's Prophet Dāwūd (*'alayhis-salām*) mentioned Allāh's punishment, his limbs are almost torn apart so that only his chains [joints] hold them together, and when he mentioned Allāh's mercy, they return to normality.'[701]

Sub-section Two:

Hippocrates said in the third article of *The Book of Fetuses*: I will tell you how I saw sperm forming.

A woman of my relatives had a precious slave girl. She did not like her to get pregnant in order not to let her price go down. The slave girl heard women say, "If a woman wants to get pregnant, she does not let the man's sperm leave her body, but keep it in." She understood that and paid attention to it in herself. One time, she felt that the sperm did not leave her body, and news of that reached me. I commanded her to hop backwards. She hopped seven times, and sperm fell out of her looking like an uncooked egg whose outer crust fell off and whose moisture remained inside

[701] Ibn Abī Shaybah in his *al-Muṣannaf*, 13/202, Abū Nu'aym in his *al-Ḥilyah*, 2/328, Ḥunnād in his *al-Zuhd*, 1/545 and others. See *Al-Ṭibyān fi Imān al-Qur'ān* of the author [Ibn Qayyim], pp.55-57

the membrane.'

He added: 'It absorbs the womb's secretions for the fetus' nutrition.' He said: 'What appear are the tiny white nerves, which I saw in the middle of the umbilical cord, and nowhere else, because the soul makes an airway through it.'

Then he said: 'I will say something else known to everyone who seeks science, and I will clarify it with measurements. The sperm is in the membrane, and it feeds on the blood that is drawn from the woman's body and descended to the womb.'

He said: 'Sperm attracts air, and breathes it inside these membranes that we stated, and it grows on the blood that descends off the woman.'

He added: 'Menstrual blood does not come out during pregnancy if the fetus is healthy, throughout the nine months of pregnancy, but all the blood that comes from the whole body gathers around the fetus on the upper membrane with breathing. Umbilical cord is its way to the fetus, where nutrition enters to it to nurture and nourish it.'

He said: 'After semen stays for a while, other membranes are formed for it, and they extend inwards from the first one. They are of diverse types, but their form is like the first one.'

He added: 'Some membranes are created first, others are created after the second month, and others in the third month. The benefits of any of them does not become clear initially, but some of them extend around the sperm, and their benefits appear first, while for others, benefits only appear later. That is why some

of them are created in the first month, some in the second, and some in the third. The belly button looks as if it is tied together; amidst the membranes lays the umbilical cord from which the fetus breathes and feeds.'

If the blood comes down and the fetus feeds from it, the membranes come between it and the fetus. That is why Allāh [the Exalted] said:

يَخْلُقُكُمْ فِي
بُطُونِ أُمَّهَٰتِكُمْ خَلْقًا مِّن بَعْدِ خَلْقٍ فِي ظُلُمَاتٍ ثَلَاثٍ

"He creates you in the wombs of your mothers, creation after creation, within three darknesses."

[*al-Zumar* (39): 6]

Each of these membranes has its own darkness, so Allāh [the Exalted] stated the stages of his creation, his passing from one to the next, and the darknesses of membranes upon the fetus. Most interpreters[702] said: 'They are the belly's darkness, the womb's darkness, and the placenta's darkness; each of these is a membrane upon the fetus.'

Others said: 'They are the father's backbone darkness, the mother's womb darkness and the placenta's darkness.'

However, weaker than that view is the view that said: 'The night's darkness, the belly's darkness, and the womb's darkness, because the night and the day are the same to the fetus.

The Physician said: 'When the woman gets pregnant, it is not

[702] See these sayings are in *Tafsīr al-Ṭabarī*, 23/196, 'Abdu'l-Razzāq, 2/171, *Zād al-Musīr*, 7/163-164, *Al-Durr al-Munthūr*, 12/635 and others

hurt by the blood that descends and gathers around its womb, nor does she feel weakness like she does during menstruation, because her blood is not agitated every month, but rather descends to the womb every day little by little, steadily and without pain. When it reaches the womb, the fetus is nourished by it and grows.'

He added: 'Similarly, when the fetus has flesh and body, membranes are formed, and they grow with the fetus' growth. When blood descends from the mother, the fetus absorbs it and gets nourished by it, causing his flesh to grow. The bad blood that is not valid for nourishment goes down to the membranes' drains. When the membranes have a cavity that takes in blood, they are called *the Placenta.*'

He added: 'When the fetus and its form are complete and it starts to attract blood for its nutrition, the membranes become wider and the placenta appears, which consists of the instruments that we stated. If its interior widens, its exterior also widens, because it is more entitled to do so, because it has a location to extend to.'

I say: That is why the pregnant woman does not menstruate. Rather the blood she sees is a bad blood, and not the usual menstruation blood.[703] This is one of the two reports conveyed from 'A'ishah (*raḍiyAllāhu 'anhā*), it is the well-known view of Aḥmad, which is the only one known to his companions, and it is the view of Abū Ḥanīfah.[704]

[703] See *Al-Ṭibyān fi Imān al-Qur'ān* of the author [Ibn Qayyim], p..539 and *Zād al-Mu'ād* of Ibn Qayyim, 5/731-739

[704] See *Al-Awsat* of Ibn al-Mundhir, 2/238-241, *Mukhtaṣar Ikhtilāf al-'Ulamā'* of al-Jaṣāṣ, 1/171, *Fatḥ al-Qadīr* of Ibn al-Hamām, 3/280, *al-Mughnī* of Ibn Qudāmah, 1/443-445 and *Tanqīh al-Taḥqīq* of Ibn Jawzī, 1/243-244.

It is the view of Al-Shāfi'ī, 'A'ishah (*raḍiyAllāhu 'anhā*)—in a report conveyed from her - and Imām Aḥmad, in a report conveyed from him and chosen by our Shaikh,[705] that the blood she sees in her usual menstruation time is menstruation blood.

The argument for this view is apparent, which is the prevalent evidence that the woman should refrain from prayer and fasting when she sees the usual blood in menstruation time, and neither Allāh nor His Messenger excluded any cases from this requirement.

As for the fact that the blood is directed to the fetus' nutrition, it is known that this does not prevent a part of it, excess to the fetus' nutrition, to leave her body during her period. Therefore, there is no contradiction between the fetus' nutrition and the mother's menstruation.

Those with the other view cite the Prophet's (ﷺ) saying: 'There must be no intercourse with a pregnant woman till she gives birth to her child or with the one who is not pregnant till she has had one menstrual period as proof [of not being pregnant].'[706] Therefore, he regarded menstruation as evidence of not being pregnant. If the pregnant woman could menstruate, menstruation could not indicate lack of pregnancy.

The others reply to this by saying: 'Menstruation is an apparent sign, but if pregnancy appeared, it becomes apparent that it was not a proof. That is why the end of the waiting period [of a divorced or widowed woman] is decided by the apparent sign of menstruation, then by checking the woman's pregnancy. The Prophet (ﷺ) divided women into two types: A woman who is known to

[705] See *Majmū' al-Fatawa*, 19/239 and *Al-Ikhtiyārāt al-Fiqhiyyah*, p.59

[706] Abū Dāwūd, 3/74, 175, Imām Aḥmad in his *Musnad*, 3/62, Bayhaqī in his *Sunan*, 5/359 and others

be pregnant, and a woman who is suspected to be pregnant. The former is cleared by delivering the baby, and the latter is cleared by menstruation. That is what the ḥadīth indicates; it does not indicate that a pregnant woman is allowed to pray and fast when she sees blood in her usual period time.'

Sub-section Three:

The physician said: 'Bones grow stronger from heat, because heat hardens bones and ties them together, like the tree.'

He also said: 'Nerves are made inside and outside, the head is placed between the shoulders, the upper arms and the forearms are placed on each side, the legs are also separated, and in each joint a nerve is made to strengthen and tie it.'

I say: That is the chain with which the man is strengthened.

He added: 'The mouth is made to open on its own, the nose and ears [of flesh] are attached, the ears are punctured, then the eyes afterwards and they are filled with pure moisture.'

The Prophet (ﷺ) used to say in his prostration: 'I have prostrated my face to the One Who created it, and made its hearing and vision.'[707] Even if the Arabic word for 'and' does not necessitate order, stating the hearing first is appropriate with its precedence in existence. After that, intestines grow wider and have a cavity, joints are linked, breath rises to the mouth and nose from which inhalation begins to enter, the stomach and intestines are opened, and inhalation occurs through the mouth instead of the umbilical cord. When the aforementioned takes place, the time for the fetus

[707] Muslim, 1/535

to emerge arrives, wastes from its stomach and intestines descend to its bladder and have a route from there to the urethra. All these open up and become wider with inhalation, and through that they grow apart according to their forms.

He added: 'When the belly becomes wider, and the intestinal cavity becomes clear, it must have a route to the bladder and the urethra.'

He added: 'When the semen and the ovule are combined, each part of the former gets joined with its counterpart in the latter; bones with bones, nerves with nerves, and so on for all organs, and then the fetus is composed.'

He then said: 'We have seen many women in whom the fetuses became corrupted and were aborted after thirty days.'

He added: 'Do you not see that if the fetus gets aborted after thirty days, you see its joints formed.'

He said: 'This is realized by looking at the stillborn, because it is not aborted by our doing, but rather on its own.' Then he added: 'When the fetus is formed, its joints are harmonious, its organs grow bigger, its bones grow firmer and start to move, it attracts rich blood from the [mother's] body. This blood is retained and moves in the bone heads like leaves in a tree.'

He said: 'And so, the fetus moves and rolls over [in the womb].'

Sub-section Four:

He said in the second article of this book of his: 'Then the fetus is formed. The male is completed in thirty-two days, and the female is completed in forty-two days, give or take a few days.'

He said: 'The fetus is completed and formed in thirty-two days if it was a male and in forty-two days if it was a female.'

He said: 'The menstrual blood comes out of the place where the fetus comes out. Just as the male is formed in thirty-two days, his mother's purity after his birth also happens in thirty-two days, and the woman becomes pure, if she gave birth to a female, in forty-two days, the same number of days in which she was formed.'

He added: 'Blood comes out of the confined woman after giving birth for many days. That is because when she is pregnant, the fetus does not need much nutrition initially until it is completely formed. After forty-two days, it is nourished properly. The accumulated blood in these forty days remains until the time of birth. When she gives birth, the blood comes out for forty days.'

I say: In this regard, there are two authentic ḥadīths from the Messenger (ﷺ). We will state them and clarify their affirmation for one another, and then we will follow physician's words and clarify it by the power, help and guidance of Allāh.

It is narrated In both Bukhārī and Muslim, on thr authority of Ibn Mas'ūd (*raḍiyAllāhu 'anhu*), that the Messenger (ﷺ), the truthful and the receiver of the truth, said: 'The creation of you [humans] is gathered in the form of semen in the womb of your mother

for forty days, then it becomes a clinging clot in similar [period], then it becomes a lump of flesh like that, then Allāh sends an angel who breathes the life into it; and [the angel] is commanded to record four things about it:

Its provision, its term of life [in this world], its conduct; and whether it will be happy or miserable. By the One besides Whom there is no true god! Verily, one of you would perform the actions of the dwellers of Paradise until there is only one cubit between him and it [Paradise], when what is foreordained would come to pass and he would perform the actions of the inmates of Hell until he enter it. And one of you would perform the actions of the inmates of Hell, until there is only one cubit between him and Hell. Then he would perform the acts of the dwellers of *Jannah* until he would enter it.'[708]

In another narration: 'The creation of each son of Ādam is gathered in his mother's womb for forty.'[709]

In another version: 'forty nights.'[710] Al-Bukhārī said: 'forty days, or forty nights.'[711]

And in one version, it says: 'Then Allāh sends an angel with four words: He writes its conduct, its term of life, its provision, and whether it will be happy or miserable, then he breathes the life into it' the rest of the ḥadīth is the same.[712]

It is narrated in Ṣaḥīḥ Muslim on the authority of Hudayfah

[708] Bukhārī, 6/303 and Muslim, 4/2036
[709] Reference already mentioned
[710] Muslim, 4/2036
[711] Bukhārī,13/440
[712] Bukhārī, 6/363

Ibn Usayd (*raḍiyAllāhu ʿanhu*) that the Prophet (ﷺ) said: 'When the drop of [semen] remains in the womb for forty or fifty [days] or forty nights, the angel comes and says, "My Lord, will he be good or evil?" And both these things would be written. Then the angel says, "My Lord, would he be male or female?" And both these things are written. And his deeds and actions, his death, his livelihood; these are also recorded. Then his document of destiny is rolled and there is neither addition to nor subtraction from it.'[713]

Imām Aḥmad narrates from Sufyān, from ʿAmr, from Abū'l-Ṭufayl, from Hudayfah Ibn Usayd Al-Ghaffarī (*raḍiyAllāhu ʿanhu*), that he heard the Messenger (ﷺ) say: 'When the drop of [semen] remains in the womb for forty or fifty [days] or forty nights, the angel comes and says, "My Lord, will he be good or evil?" And both these things would be written. Then the angel says, "My Lord, would he be male or female?" And both these things are written. And his deeds and actions, his death, his livelihood; these are also recorded. Then his document of destiny is rolled and there is neither addition to nor subtraction from it.'[714]

It is narrated by Musim in his *Ṣaḥīḥ* from ʿĀmir Ibn Wathilah that he heard ʿAbdullāh Ibn Masʿūd (*raḍiyAllāhu ʿanhu*) say: 'The miserable is who is determined to be miserable in his mother's womb, and the happy is who learns from others' mistakes.' Then he came to another of the Messenger's companions called Hudayfah Ibn Usayd Al-Ghaffarī, told him of what Ibn Masʿūd said and asked: 'How can someone be miserable without committing any [evil] deeds?' The man said: 'Are you surprised at this? I heard the Messenger (ﷺ) say, "When forty-two nights pass after the semen gets into the womb, Allāh sends the angel and gives him shape. Then

[713] Muslim, 4/2037

[714] Imām Aḥmad in his *Musnad*, 4/7, Muslim, 4/2036-2037

he creates his sense of hearing, sense of sight, his skin, his flesh, his bones, and then says, "My Lord, would it be male or female?" And your Lord decides as He desires and the angel then puts down that also and then says, "My Lord, what about it age?" And your Lord decides as He likes it and the angel puts it down. Then he says: My Lord, what about it livelihood? And then the Lord decides as He likes and the angel writes it down, and then the angel gets out with his scroll of destiny in his hand and nothing is added to it and nothing is subtracted from it.'"[715]

In another version: 'I heard the Messenger (ﷺ) with my own ears say, "The semen remains in the womb for forty nights, then the angel [who creates it][716] climbs unto it and says, "My Lord, would it be male or female?" And Allāh makes him as He desires. Then he asks, 'My Lord, is he upright or not?' And Allāh makes him as He desires. Then he asks, 'My Lord, what is his provision? What is his term of life? What is his form?' Then Allāh makes him happy or miserable."'[717]

In another version: 'There is an angel who looks after the womb when Allāh decides to create anything after more than forty nights are over' the rest of the ḥadīth is the same.[718]

Ibn Mas'ūd's ḥadīth and Hudayfah's ḥadīth agree that the semen's event takes place after forty days, and Hudayfah's ḥadīth is explicit and clear that this is written after forty days, before the life is breathed in the fetus, as previously mentioned in Al-Bukhārī's version.

[715] Muslim, #2645
[716] The narrator is not certain about this part in brackets.
[717] Muslim, #2645
[718] Reference already mentioned

As for Ibn Mas'ūd's ḥadīth, one of its versions conform with Hudayfah's ḥadīth, even if the deciding and writing takes place after forty days before breathing life into it, as previously mentioned in Al-Bukhārī's version, which says: 'Then Allāh sends an angel with four words: He writes its conduct, its term of life, its provision, and whether it will be happy or miserable, then he breathes the life into it.' This explicitly states that the angel's writing and questions are before breathing life into it,[719] which agrees with Hudayfah's ḥadīth in this regard.

As for its other version: 'who breathes the life into it; and [the angel] is commanded to record four things about it,' it is not explicit, because the Arabic word for 'and' here is the letter '*wā*', which does not necessitate order, it could be used to couple the sentence with the following sentence, or with the previous ones. Therefore, there is no contradiction in this regard.

It remains to say that Hudayfah's ḥadīth indicates the beginning of creation after the first forty days, while Ibn Mas'ūd's ḥadīth indicates that it is after the third forty days. So how can they be joined together?[720]

It is said: As for Hudayfah's ḥadīth, it is explicit that it takes place after forty days. As for Ibn Mas'ūd's ḥadīth, it does not discuss the time of creating and formation, but clarifies the stages of semen and its transformation every forty days, and that after the third [set of] forty days, life is breathed into it. This is not discussed by Hudayfah's ḥadīth, but is exclusive for Ibn Mas'ūd's ḥadīth. Therefore, both ḥadīths state that something happens after the first forty.

[719] The Arabic word for 'and' here is '*thumma*', which indicates order, meaning what preceded it happened before what came after it.

[720] See *Tariq al-Ḥijratayn*, 1/106-162, *Al-Ṭibyān fi Imān al-Qur'ān*, p.517 and *Shifa' al-'Alīl*, pp. 39-44

Hudayfah's ḥadīth exclusively stated that the beginning of its formation and creation happens after the first forty, while Ibn Masʿūd's ḥadīth exclusively stated that breathing life into it happens after the third forty. Both ḥadīths mention the angel asking permission from the Sovereign, his Lord [the Exalted], in deciding the fetus' affairs through that. Therefore, the Messenger's (ﷺ) words conform and validate each other.

Ibn Masʿūd's ḥadīth contains two points: The stage of semen growth and the angel's writing what Allāh decides therein. The Prophet (ﷺ) stated the two points in the ḥadīth.

Imām Aḥmad narrates from Hushaym, from ʿAlī Ibn Zayd, from Abū ʿUtbah Ibn ʿAbdullāh, on the authority of Ibn Masʿūd (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) said: "The semen remains in the womb for forty days without changing, and when forty days pass, it becomes a clinging clot, then becomes a lump of flesh after a similar period, and bones like that. When Allāh decides to finalise its creation, He sends the angel to it, so the angel says, "O my Lord, is it a male or a female? Is it happy or miserable? Is it short or tall? Is it lacking or exceeding? What is its provision and term of life? Is it healthy or ill?"" He added: 'All that is written.'[721]

This ḥadīth is the decisive, that what takes place after the third forty days is finalising creation upon breathing life into the fetus.

There is no doubt that upon breathing life into the fetus and attaching the soul to it, some things happen in its creation excess to the creation that was after the first forty. After the first forty days was the beginning of its creation, but this is its finalisation

[721] Imām Aḥmad in his *Musnad*, 1/375 and its isnad is weak. See *Fatḥ al-Barī*, 11/481

and completion of what is decreed for it. Just as Allāh [the Exalted] created the earth before heaven, then created the heaven, then proportioned, paved and flattened the earth, and finalised its creation, this is His system for the residence, and this is his system for the resident. Moreover, creation and shaping takes place in the semen after forty days and gradually, like the plant grows. This is evident in animals and plants, as you can see by carefully examining the state of a chick in the egg. Confusion results from not understanding the words of Allāh [the Exalted] and His Messenger (ﷺ); the problem lies in our understanding, and not the words of the Protected (ﷺ). Allāh knows best.

This spares you—Praise be to Allāh—the mannerism of explainers. Look at it closely, and compare it with this adaptation. Success is from Allāh.

Sub-section Five:

Physicians said in *The Book of Nutrition*: 'Formation of the fetus takes place in thirty-five days, its movement in seventy days, and its completion in a hundred and ten days.

Some fetuses get formed in fifty days, make their first movement after a hundred days and are completed in three hundred days. Other fetuses get formed in forty days, make their first movement after eighty days and are born after two hundred and forty days, while others get formed in forty-five days, move after ninety days and are born after two hundred and seventy days.'

He added: 'As for birth, it takes place in the seventh, eighth, ninth and tenth months.'

I say: There are two types of movement. Natural involuntary

movement, which may take place before the soul's attachment to the body, and voluntary movement, which only occurs after breathing life into it.

This is why Hippocrates differentiated between the two types of movement.

I say: What the truthful revelation from the Creator of mankind indicates that creation moves to another stage every forty days; it is a sperm-drop for forty days, then it becomes a clinging clot for a similar period, then a lump of flesh for another similar period, and then life is breathed into it after a hundred and twenty days. You can almost see this with your own eyes. Anything that contradicts this [truthful sequence outlined in the revelation] is not witnessed. It mostly cite corrupt evidence analogy, dissection that does not encompass what it witness in knowledge, or imitation of an unprotected, followed by whoever comes after him, so that the believer believes that this is a consensus among all naturalists, when its origin is just one person, who was mistaken, then imitated by those who came after him, when they did not see what they were told therein.

The only thing they have is that they dissected the alive and... dead, and found the fetus in the womb in the state that they were told, but they have no knowledge of what preceded that of the beginning of pregnancy and the transformations of the semen.

If those who imitated [such theories] narrowed the assumption and said they considered a virgin upon having intercourse, and then counted the days until she reached the stage they mentioned, then dissected her and found her in the state that they mentioned, then this is absolute lying and fabrication. They did not claim that, and how could they when they say that such-and-such period after

that the pregnancy reaches so-and-so state! These people have analogies, that such-and-such should happen, and that the natural system necessitates so-and-so.

Many of them derived that from the movement and phases of the moon, the movements of the sun, and from tripling, quadrupling, sextupling and comparison.

Other people from the same group have refuted these views, and sided with what is more appropriate and entitled.

Others have linked it to the movement of stars, while others have linked it to nautical days and the natural changes therein. These people refuted one anothers points with arguments that we will ignore to avoid prolixity.

The strongest argument that they have is dissection and thorough examination. We do not deny that, but it does not have what contradicts the revelation regarding the creation of fetuses. One thing that proves that the views of these people are not based on eye witnessing is when they said that fetus born after seven months became a sperm-drop in nine days, a bloody-thing in another eight days, a fleshy-thing in another nine days and takes form in another twelve days. If you add these days up they amount to thirty-five days, so they made it a lump of flesh in the first forty days, which a definitely clear lie. It only becomes a fleshy-thing after eighty days, and such is only realized through revelation or eye witnessing, both of which they lack. What they have is an analogy with which they considered the states of fetuses during pregnancy. They decided that each fetus born in a certain month of pregnancy must have been a sperm-drop for such-and-such days, a bloody-thing, meaning a clinging clot for such-and-such days, a fleshy-thing, meaning a lump of flesh, for such-and-such days, and then they multiplied

this number and said it is when the fetus starts to move. As such, they have lied upon the Knowing Creator in His creation, as they have lied upon Him in His attributes and names. These people did not have a share of the knowledge that the Messengers brought. On the contrary, they were as Allāh [the Exalted] said:

فَلَمَّا جَآءَتْهُمْ رُسُلُهُم بِٱلْبَيِّنَٰتِ فَرِحُوا۟ بِمَا عِندَهُم مِّنَ ٱلْعِلْمِ

"And when their Messengers came to them with clear proofs, they [merely] rejoiced in what they had of knowledge."

[*Ghāfir* (40):83]

The extent of reach of the denier and the ignorer of what the Messengers brought is knowledge of natural matters that are a mixture of truth and falsehood, and knowledge of mathematical matters that are of much pain and little gain. With regards to the form [of the fetus], falsehood is manyfold more than the truth. Therefore, how does the knowledge obtained from revelation compare to assumption derived from an evanescent opinion? How does knowledge taken from the Messenger (ﷺ), from Jibrīl, from Allāh [the Exalted] compare to assumption taken from the opinion of a man whose heart was not lit by revelation even for a moment, but only has his own intuition and guessing? The difference between what all the wise perceive with their intellect to what the Messengers brought is like the difference between a weak lamp and the sun. You will not find, even if you lived as long as Nūḥ (*ʿalayhis-salām*) did, a single subject where all the wise unanimously agree on something that contradicts what the Messengers brought. The Prophets (*ʿalayhum-salām*) did not bring that which contradicts the sound intellect, but rather that which the intellects

cannot perceive. What the Messengers brought, with regards to intellect, is classified into three types: That to which the intellect and pure nature testify, that to which they testify in general but have no knowledge of the details, and that which the intellect cannot comprehend. As for the fourth type, which the sound intellect rejects and testifies to its falsehood, Messengers are innocent of it. Even if some of the ignorant who claim knowledge thought that some of what the Messengers brought fall under this type, this is either due to ignorance of what the Messengers brought, lack of sound intellect, or both.

Section One
The Duration of Pregnancy and its Difference for Different Fetuses

Allāh [the Exalted] said:

وَوَصَّيْنَا الْإِنسَانَ بِوَالِدَيْهِ إِحْسَانًا حَمَلَتْهُ أُمُّهُ كُرْهًا وَوَضَعَتْهُ كُرْهًا وَحَمْلُهُ وَفِصَالُهُ ثَلَاثُونَ شَهْرًا

"And We have enjoined upon man, to his parents, good treatment. His mother carried him with hardship and gave birth to him with hardship, and his gestation and weaning [period] is thirty months."

[*al-Aḥqāf* (46):15]

Allāh [the Exalted] informed us here that the duration of pregnancy and weaning are thirty months, and he said in the verse of *Surah al-Baqarah* that the duration of complete breast-feeding is "two complete years,"[722] from that we deduce that the remainder is a valid period for pregnancy, which is six months.

[722] *al-Baqarah* (2): 233

Jurists unanimously agree that no woman gives birth before six months unless it is a stillborn. This is something which jurists got from the Companions (*radiyAllāhu ʿanhum*).[723]

Al-Bayhaqī and others report from Ḥarb Ibn Al-Aswad Al-Daylī that a woman was brought to ʿUmar (*radiyAllāhu ʿanhu*) because she gave birth after six months of marriage, and ʿUmar intended to stone her.[724] ʿAlī (*radiyAllāhu ʿanhu*) heard of this and said: 'She must not be stoned.' ʿUmar heard this, so he called for him and asked him. He cited:

وَٱلْوَٰلِدَٰتُ
يُرْضِعْنَ أَوْلَٰدَهُنَّ حَوْلَيْنِ كَامِلَيْنِ ۖ لِمَنْ أَرَادَ أَن يُتِمَّ ٱلرَّضَاعَةَ ۚ

"Mothers may breastfeed their children two complete years for whoever wishes to complete the nursing [period]."

[*al-Baqarah* (2):233],

and cited:

وَحَمْلُهُۥ وَفِصَٰلُهُۥ ثَلَٰثُونَ شَهْرًا ۚ

"And his gestation and weaning [period] is thirty months."

[*al-Aḥqāf* (46):15]

He reasoned: 'Pregnancy for six months, and complete breast-feeding for two years, which merit no punishment.' Therefore, she was released.[725]

It is narrated in *Muwaṭṭā'* of [Imām] Mālik that ʿAlī (*radiyAllāhu*

[723] See *Al-Ṭibyān fi Imān al-Qur'ān* of the author [Ibn Qayyim], pp.509-510

[724] On the grounds that she committed adultury.

[725] Bayhaqī in his *Sunan*, 7/442 and also ʿAbdu'l-Razzāq in his *al-Muṣannaf*, 7/279

'anhu) heard that a woman was brought to 'Uthmān Ibn 'Affān (*radiyAllāhu 'anhu*) because she gave birth after six months of marriage, and 'Uthmān commanded to stone her, so 'Alī (*radiyAllāhu 'anhu*) said: She must not be stoned. Allāh the Exalted said:

وَحَمْلُهُۥ وَفِصَٰلُهُۥ ثَلَٰثُونَ شَهْرًا

"And his gestation and weaning [period] is thirty months."

[*al-Aḥqāf* (46):15]

And said:

وَفِصَٰلُهُۥ فِى عَامَيْنِ

"and his weaning is in two years."

[*Luqmān* (31):14].'

Therefore, 'Uthmān (*radiyAllāhu 'anhu*) commanded to release her but she had already been stoned.[726]

Dāwūd Ibn Abū Hind narrated from 'Ikrimah that Ibn 'Abbās (*radiyAllāhu 'anhumā*) used to say: 'If a woman gave birth after nine months of pregnancy, twenty-one months of breastfeeding are sufficient, if she gave birth after seven months, twenty-three months of breastfeeding are sufficient, and if she gave birth after six months, twenty-four months of breastfeeding are sufficient.' As Allāh said:

وَحَمْلُهُۥ وَفِصَٰلُهُۥ ثَلَٰثُونَ شَهْرًا

"And his gestation and weaning [period] is thirty months.'"

[*al-Aḥqāf* (46):15] [727]

[726] Imām Mālik in his *al-Muwaṭṭā'*, 2/255; see Ibn 'Abdu'l-Barr in his *Istidhkār*, 9/53 and 'Abdu'l-Razzāq in his *al-Muṣannaf*, 7/280-281.

[727] Bayhaqī in his *Sunan*, 7/442

Allāh [the Exalted] said:

اللَّهُ يَعْلَمُ مَا تَحْمِلُ كُلُّ أُنثَىٰ وَمَا تَغِيضُ الْأَرْحَامُ وَمَا تَزْدَادُ

"Allāh knows what every female carries and by how much the wombs fall short or exceed."

[al-Ra'd (13):8]

Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: "'By how much the wombs fall short or exceed" means compared to nine months.' His companions, such as Mujahid and Sa'īd Ibn Jubayr agreed with him on that.[728]

Mujahid also said: 'If a woman menstruated while pregnant, that is falling short, and if she exceeded nine months, this completes the aforementioned shortcoming.'

He also said: "'Falling short" is the blood that comes out of her during pregnancy, as it is a shortcoming of the fetus' nutrition, and the excess refers to exceeding the standard nine months of pregnancy, which completes the shortcoming.'[729]

Al-Ḥasan said: "'By how much the wombs fall short" refers to the premature loss of fetus, and "or exceed" refers to giving birth after ten months of pregnancy.'[730]

'Ikrimah said: "'By how much the wombs fall short' mean menstruation during pregnancy. For each day she bleeds during

[728] See *Tafsīr al-Ṭabarī*, 16/359-365, *Tafsīr Abī Ḥātim*, 9/1-3, *Tafsīr al-Baghwī*, 4/297-298, *Zād al-Masīr*, 4/308 and *al-Durr al-Manthūr*, 8/377.

[729] See *Tafsīr al-Ṭabarī*, 16/360-361 and *Zād al-Masīr*, 4/308

[730] See *Tafsīr al-Ṭabarī*, 16/361-362 and *Zād al-Masīr*, 4/308

pregnancy, a day of purity is added. Therefore, for each day of menstruation, pregnancy extends another day.'[731]

Qatādah said: "'Falling short" means abortion and "exceeding" means exceeding nine months.'[732]

Sa'īd Ibn Jubayr said: 'If a woman menstruated during pregnancy, this is shortcoming for the fetus, because its nutrition decreases, and its pregnancy extends.'[733]

The object of each of the two verbs "fall short" and "exceed" is omitted, and they are antonyms of each other.

Careful examination of the verse yields the following interpretation: He [the Exalted] knows the duration of pregnancy and what happens therein of increase and decrease. He knows that, and you do not, just as he knows what every female carries, and whether it is a male or a female.

This is one type of the unseen that none knows except Allāh, as is narrated in the *Ṣaḥīḥ* that he (ﷺ) said: 'The keys of Unseen are five which none knows but Allāh. None knows what will happen tomorrow but Allāh; none knows what is in the wombs [a male child or a female] but Allāh; none knows when it will rain but Allāh; none knows at what place one will die; none knows when the Hour will be established but Allāh.'[734]

He [the Exalted] is unique in knowledge of what is in the womb, the time of its establishment, what increases and decreases of its

[731] See *Tafsīr al-Ṭabarī*, 16/362-363
[732] See *Tafsīr al-Ṭabarī*, 16/359
[733] See *Zād al-Masīr*, 4/308
[734] Bukhārī, 2/524

body. Anything else follows and stems from these things, such as full abortion, bleeding and stopping of the blood.

The purpose of this section is to state the duration of pregnancy and the increase and decrease related to it.

Sub-section One:

Concerning the maximum period of pregnancy, Ibn Al-Mundhir[735] said: Scholars disagreed in this regard. A group said: 'The maximum period is two years. This view is reported from 'A'ishah (*raḍiyAllāhu 'anhā*).'

It was narrated from Al-Ḍaḥḥāk and Ḥarām Ibn Ḥibbān that each of them remained in his mother's womb for two years. This is also Sufyān Al-Thawrī's view.[736]

Another view is that the maximum period of pregnancy could be three years. We narrated from Al-Layth Ibn Sa'd that he said: 'A slave woman of 'Umar Ibn 'Abdullāh carried a baby for three years.'

A third view is that the maximum period of pregnancy is four years, that is Al-Shāfi'ī's view (may Allāh have mercy on his soul).[737]

I say: Two reports are narrated from Imām Aḥmad (may Allāh have mercy on his soul); one says four years, and the other says two years.[738]

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[735] See *al-Ishrāf 'alā Madāhib* of Ibn al-Mundir, 5/347

[736] See *al-Mughnī* of Ibn Qudāmah, 11/232-233 and *Fatḥ Bāb al-'Ināyyah* of Mullā 'Alī al-Qarī, 2/188-189

[737] See *al-Ishrāf 'alā Madāhib* of Ibn al-Mundir, 5/347

[738] See *al-Mughnī* of Ibn Qudāmah, 11/232

Ibn Al-Mundhir[739] adds: Mālik's view is debated. His well-known view according to his companions is the same as Al-Shāfiʿī. Ibn Al-Mājashūn narrates that from him, then he changed his mind when he heard the story of the woman who gave birth after five years of pregnancy.

Another view is that pregnancy could extend for five years. It was narrated from ʿAbbād Ibn Al-ʿAwwām that he said: 'A woman who lived with us gave birth after five years of pregnancy. She gave birth to him when his hair had reached here—and he pointed to his neck—and a bird once passed by him and he shooed it.' It was narrated from Ibn ʿAjlān that his wife used to get pregnant for five years.

A fifth view is what Al-Zuharī said: that a woman could get pregnant for six and seven years, and her baby grows firmer inside her belly. He also said: 'A woman who was pregnant for seven years was brought to Saʿīd Ibn Mālik.'

Another group said: 'We should not, in this regard, use our opinion to determine and time the duration, because we have found an origin in the Qur'ān's interpretation for the minimum duration of pregnancy—the six months, which we adhere and follow. However, there is nothing there about the maximum period.'

This is the view of Abū ʿUbayd, with which he refuted ʿA'ishah's ḥadīth, and he said: 'The woman who narrated it from her is unknown.'

All his followers unanimously agree that if a woman gave birth

[739] See *al-Ishrāf ʿalā Madāhib* of Ibn al-Mundir, 5/347-348

after less than six months of marrying a man, the child is not attributed to him, but if it was exactly after six month, the child is his.

This example and others indicate that nature, which is the origin of the way of Naturalists, has a Compelling and Capable Lord that acts therein as He wills, and He varies His creation as He pleases, to prove to those with an intellect His existence, oneness, attributes of perfection and glory. Otherwise, where does this great variation and explicit contrast originate in this abstract nature?

In addition, how, in this nature, were humanity created in one of these four ways?

1- With neither a male nor a female origin, such as Ādam (*'alayhis-salām*).
2- With a male origin without a female, such as Hawā' (*'alayha-salām*).
3- With a female origin without a male, such as *al-Masīḥ* ['Isa Ibn Maryam] (*'alayha-salām*).
4- With a male and a female origins, such as the rest of mankind.

How, in this nature, were these compositions, formation, organs, joints, forces, outlets and wonders embedded in this disdained sperm-drop?

Had it not been for the magnificence of Allāh's creation

These wonders would not have existed in this cloudy water.[740]

[740] The poet refers to semen.
[741] Reference already mentioned

يَٰٓأَيُّهَا ٱلْإِنسَٰنُ مَا غَرَّكَ بِرَبِّكَ ٱلْكَرِيمِ ﴿٦﴾
خَلَقَكَ فَسَوَّىٰكَ فَعَدَلَكَ ﴿٧﴾ فِىٓ أَىِّ صُورَةٍ مَّا شَآءَ رَكَّبَكَ ﴿٨﴾

"O mankind, what has deceived you concerning your Lord, the Generous, Who created you, proportioned you, and balanced you? In whatever form He willed has He assembled you."

[*al-Infiṭār* (82):6-8]

And

إِنَّ ٱللَّهَ لَا يَخْفَىٰ عَلَيْهِ
شَىْءٌ فِى ٱلْأَرْضِ وَلَا فِى ٱلسَّمَآءِ ﴿٥﴾ هُوَ ٱلَّذِى يُصَوِّرُكُمْ
فِى ٱلْأَرْحَامِ كَيْفَ يَشَآءُ ۚ لَآ إِلَٰهَ إِلَّا هُوَ ٱلْعَزِيزُ ٱلْحَكِيمُ ﴿٦﴾

"Indeed, from Allāh nothing is hidden in the earth nor in the heaven. It is He who forms you in the wombs however He wills. There is no deity except Him, the Exalted in Might, the Wise."

[*Āl-'Imrān* (3):5-6]

He [the Exalted] has demonstrated His existence in the clearest way with what He made each of them testify of himself of his own state, existence, perfection of his making, wonders of his creation, and the signs of His [Allāh's] power and wisdom in him [man].

He [the Exalted] invited man to observe his origin when he said:

فَلْيَنظُرِ ٱلْإِنسَٰنُ مِمَّ خُلِقَ ﴿٥﴾ خُلِقَ مِن مَّآءٍ دَافِقٍ ﴿٦﴾ يَخْرُجُ مِنۢ بَيْنِ
ٱلصُّلْبِ وَٱلتَّرَآئِبِ ﴿٧﴾

"So let man observe from what he was created. He was

created from a fluid, ejected. Emerging from between the backbone and the ribs."

[*al-Ṭāriq* (86):5-7]

And He said:

يَٰٓأَيُّهَا ٱلنَّاسُ إِن كُنتُمْ فِى
رَيْبٍ مِّنَ ٱلْبَعْثِ فَإِنَّا خَلَقْنَٰكُم مِّن تُرَابٍ ثُمَّ مِن نُّطْفَةٍ ثُمَّ
مِنْ عَلَقَةٍ ثُمَّ مِن مُّضْغَةٍ مُّخَلَّقَةٍ وَغَيْرِ مُخَلَّقَةٍ لِّنُبَيِّنَ لَكُمْ ۚ
وَنُقِرُّ فِى ٱلْأَرْحَامِ مَا نَشَآءُ إِلَىٰٓ أَجَلٍ مُّسَمًّى ثُمَّ نُخْرِجُكُمْ
طِفْلًا ثُمَّ لِتَبْلُغُوٓا۟ أَشُدَّكُمْ ۖ وَمِنكُم مَّن يُتَوَفَّىٰ
وَمِنكُم مَّن يُرَدُّ إِلَىٰٓ أَرْذَلِ ٱلْعُمُرِ لِكَيْلَا يَعْلَمَ مِنۢ
بَعْدِ عِلْمٍ شَيْـًٔا ۚ

"O People, if you should be in doubt about the Resurrection, then [consider that] indeed, We created you from dust, then from a sperm-drop, then from a clinging clot, and then from a lump of flesh, formed and unformed—that We may show you. And We settle in the wombs whom We will for a specified term, then We bring you out as a child, and then [We develop you] that you may reach your [time of] maturity. And among you is he who is taken in [early] death, and among you is he who is returned to the most decrepit [old] age so that he knows, after [once having] knowledge, they then know nothing at all." [*al-Ḥajj* (22):5]

He [the Exalted] also said:

وَفِى ٱلْأَرْضِ ءَايَٰتٌ
لِّلْمُوقِنِينَ ﴿٢٠﴾ وَفِىٓ أَنفُسِكُمْ ۚ أَفَلَا تُبْصِرُونَ ﴿٢١﴾

"And on the earth are signs for the certain [in faith].
And in yourselves. Then will you not see?"
[*al-Dhāriyāt* (51):20-21]

This is frequent in the Qur'ān to him who reflects and ponders upon it. It is a witness from you, against you. How could the nature and limited force be capable of such creation, perfection and ingenuity? How could they be capable of detailing these bones, and having them strengthen each other, despite their different shapes, sizes, uses and attributes? Who made in the sperm-drop these veins, flesh and nerves?

Who opened for it these doors and outlets? Who made its sight and hearing? Who attached therein a tongue to speak with, eyes to see with, ears to listen with, and two lips?

Who gave it the chest and the equipment and utilities it contains, which will cause you to wonder upon seeing?

Who placed therein a basin and a tank to collect food and water, and made for it drains and ways in order to nourishe every part of the body, each part receiving nourishment from its own drain without exceeding it?

قَدْ عَلِمَ كُلُّ أُنَاسٍ مَّشْرَبَهُمْ

"Every people knew its watering place."
[*al-Baqarah* (2):60]

Who took from it these forces with which its interests and benefits were accomplished?

Who gave it these minute sciences and wonderful works, taught it what it did not know, inspired it with discernment of its wicked-

ness and its righteousness, and transformed it through the stages of creation stage after stage, and state after state, until it became a person who is alive, talking, hearing, seeing, knowing, commanding, forbidding, given power over birds in the sky, fish in the see and creatures of the desert, and knowing what no other creature knows?

قُتِلَ ٱلْإِنسَٰنُ
مَآ أَكْفَرَهُۥ ﴿١٧﴾ مِنْ أَىِّ شَىْءٍ خَلَقَهُۥ ﴿١٨﴾ مِن نُّطْفَةٍ خَلَقَهُۥ فَقَدَّرَهُۥ ﴿١٩﴾ ثُمَّ
ٱلسَّبِيلَ يَسَّرَهُۥ ﴿٢٠﴾ ثُمَّ أَمَاتَهُۥ فَأَقْبَرَهُۥ ﴿٢١﴾ ثُمَّ إِذَا شَآءَ أَنشَرَهُۥ ﴿٢٢﴾

"Cursed is man; how disbelieving is he. From what substance did He create him? From a sperm-drop He created him and destined for him; Then He eased the way for him; Then He caused his death and provided a grave for him. Then when He wills, He will resurrect him."

[*'Abasa* (80):17-22]

Sub-Section Two:

A group who talked about the creation of man claimed that he is only given sight and hearing after his birth and emergence from his mother's womb. They cited Allāh's saying:

وَٱللَّهُ
أَخْرَجَكُم مِّنۢ بُطُونِ أُمَّهَٰتِكُمْ لَا تَعْلَمُونَ شَيْـًٔا وَجَعَلَ
لَكُمُ ٱلسَّمْعَ وَٱلْأَبْصَٰرَ وَٱلْأَفْـِٔدَةَ ۙ لَعَلَّكُمْ تَشْكُرُونَ

"And Allāh has extracted you from the wombs of your mothers not knowing a thing, and He made for you hearing and vision and heart that perhaps you would

be grateful."

[*al-Naḥl* (16):78]

They also claimed that inside the mother's womb, the fetus does not hear or see anything, so there is no use of giving him sight or hearing there!

This is not true, and the verse does not provide evidence to such view, because coupling with the letter *'waw'* does not entail order. On the contrary, the verse provides evidence against them, because his heart is created while the fetus is in the womb.

We have already stated the authentic ḥadīth narrated by Hudayfah Ibn Usayd (*raḍiyAllāhu 'anhū*): "When forty-two nights pass after the semen gets into the womb, Allāh sends the angel and gives him shape. Then he creates his sense of hearing, sense of sight, his skin, his flesh..."[741]

Even if this refers to the eye and ear, the hearing and seeing capabilities are deposited therein. As for perception, it depends on the removal of the membrane that prevent it, so when it is removed upon emergence from the womb, the organs perform their function. Allāh knows best.

Section Two:
States of the Fetus after its Movement and Overturn after Six Months

At that time, the fetus is subject to having its membrane and membranes ripped, and to move towards the uterine neck. If the fetus was strong, and the membranes surrounding it as well as its

[742] Bukhārī, 1/228 and Muslim, 1/250

belly button weaker, the baby is born. If it was weak and its membranes and umbilical cord were stronger, they are either partially ripped and birth does not take place, in which case it remains sick for forty days until the end of the eighth month; if it is born in these forty days, it will die, and cannot be nurtured or kept.

If it tore its membranes completely in a manner that could not be avoided, without being born, it will die, and if it is not aborted, it will cause the death of its mother. However, if it tore its membranes in a manner that could be avoided, it survives and remains in the location towards which it moved and overturned, at the uterine neck. It is exposed to sickness in these forty days if it was not born after moving because it turns away from the place where it grew, and changes its position and dislocate their umbilical cord. The mother is exposed to sickness due to the expansion of membranes, dislocation of the umbilical cord attached to their womb, and because when the fetus is unattached, it becomes more of a burden to the mother.

Section Three:
Reasons for resemblance of One or Both Parents, Reasons for the Child's Sex, and whether there are Signs thereof during Pregnancy

We have already stated Allāh's [the Exalted] saying:

هُوَ ٱلَّذِى يُصَوِّرُكُمْ
فِى ٱلْأَرْحَامِ كَيْفَ يَشَآءُ ۚ لَآ إِلَٰهَ إِلَّا هُوَ ٱلْعَزِيزُ ٱلْحَكِيمُ ﴿٦﴾

"It is He who forms you in the wombs however He wills. There is no deity except Him, the Exalted in

Might, the Wise."

[*Āl-ʿImrān* (3): 6]

It was authentically narrated in both Bukhārī and Muslim on the authority of Anas Ibn Mālik (*raḍiyAllāhu ʿanhu*) that Umm Sulaym (*raḍiyAllāhu ʿanhu*) asked the Prophet (ﷺ) about a woman who sees in her dream something like that which a man sees. The Messenger of Allāh (ﷺ) said: 'If she sees that and has a discharge, then she should perform a bath.' Umm Sulaym said: 'O Messenger of Allāh, does that really happen?' He said: 'Yes, the water of the man is thick and white and the water of a woman is thin and yellow. Whichever of them precedes or predominates, the child will resemble [that parent].'[742]

It is narrated in Muslim in his *Ṣaḥīḥ*'on the authority of 'A'ishah (*raḍiyAllāhu ʿanhā*) that a woman said to the Messenger (ﷺ): 'Should a woman wash herself when she sees a sexual dream and sees [the marks] of liquid?' He (ﷺ) said: 'Yes.' 'A'ishah (*raḍiyAllāhu ʿanhā*) said to her: 'May your hand be covered with dust.' The Messenger of Allāh (ﷺ) said: 'Leave her alone. In what way does the child resemble her but for the fact that when the genes contributed by woman prevail upon those of man, the child resembles the maternal family, and when the genes of man prevail upon those of woman the child resembles the paternal family.'[743]

It is also narrated in Muslim in his *Ṣaḥīḥ*' on the authority of Thawban (*raḍiyAllāhu ʿanhu*) that he said: 'While I was standing beside the Messenger of Allāh (ﷺ) one of the rabbis of the Jews came and said, "Peace be upon you, O Muḥammad." I pushed him back with a push that he was going to fall. Upon this he said:

[743] Muslim, #314

"Why do you push me?" I said: "Why don't you say: 'O Messenger of Allāh?" The Jew said: "We call him by the name by which he was named by his family." The Messenger of Allāh (ﷺ) said: "My name is Muḥammad with which I was named by my family." The Jew said: "I have come to ask you [something]." The Messenger of Allāh (ﷺ) said: "Should that thing be of any benefit to you, if I tell you that?" He [the Jew] said: "I will lend my ears to it." The Messenger of Allāh (ﷺ) drew a line with the help of the stick that he had with him and then said: "Ask [whatever you like]." Then the Jew said: "Where would the human beings be on the Day when the earth would change into another earth and the heavens too [would change into other heavens]?" The Messenger of Allāh (ﷺ) said: "They would be in darkness beside the Bridge." He [the Jew] again said: "Who amongst people would be the first to cross [this bridge]?" He (ﷺ) said: "They would be the poor amongst the refugees." The Jew said: "What would constitute their breakfast when they would enter Paradise?" He (ﷺ) replied: "A caul of the fish-liver." He [the Jew] said: "What would be their food after this?" He (ﷺ) said: "A bullock which was fed in the different quarters of Paradise would be slaughtered for them." He [the Jew] said: "What would be their drink?" He (ﷺ) said: "They would be given drink from the fountain which is named 'Salsabil.'" He [the Jew] said: 'Correct!'

Then he [the Jew] added: "I have come to ask you about a thing which no one amongst the people on the earth knows except a Prophet or one or two men besides him." He (ﷺ) said: "Would it benefit you if I tell you that?" He [the Jew] said: "I would lend ears to that." He then said: "I have come to ask you about the child." He (ﷺ) said: "The reproductive substance of man is white and that of woman is [i.e. ovum central portion] yellow. When they have sexual intercourse and the male's substance [chromosomes

and genes] prevails upon the female's substance, it is the male child that is created by Allāh's Decree, and when the substance of the female prevails upon the substance contributed by the male, a female child is formed by the Decree of Allāh." The Jew said: "What you have said is true; verily you are a Prophet." He then returned and went away. The Messenger of Allāh (ﷺ) said: "He asked me about such and such things of which I have had no knowledge till Allāh gave me that.""[744]

In Aḥmad in his *Musnad*, from Al-Qāsim Ibn ʿAbdu'l-Raḥmān, from his father, ʿAbdullāh Ibn Masʿūd (*raḍiyAllāhu ʿanhu*) said: 'A Jewish man passed by the Messenger (ﷺ) while he was speaking to his Companions. A man of Quraysh said: "O Jewish man! This man claims to be a prophet!" He said: "I will ask him about something which no one knows except a Prophet." He came and sat down, then said: "O Muḥammad! From what is man created?" He said, "O Jewish man! He is created from both; from the man's sperm and from the woman's water. As for the man's sperm, it is a thick substance, from which bones and nerves are made, and as for the woman's water, it is a light substance, from which flesh and blood are created." The Jew stood up and said: "This it what was said by those who came before you.'[745] [referring to previous Prophets]."'

These ḥadīths include a number of points:

First: The fetus is created from the male's sperm and the female's water, unlike what some naturalists claim that it is created from the male's sperm only. Allāh [the Exalted] said:

[744] Muslim, 1/252

[745] Imām Aḥmad in his *Musnad*,1/465, Bazzār, #2377, Ṭabarānī in his *al-Kabīr*, #10360 and others

فَلْيَنظُرِ ٱلْإِنسَٰنُ مِمَّ خُلِقَ ۝٥ خُلِقَ مِن مَّآءٍ دَافِقٍ ۝٦ يَخْرُجُ مِنۢ بَيْنِ ٱلصُّلْبِ وَٱلتَّرَآئِبِ ۝٧

"So let man observe from what he was created.He was created from a fluid, ejected. Emerging from between the backbone and the ribs."

[*al-Ṭāriq* (86):5-7]

Al-Zajjāj conveys linguists interpretation of the word *'Al-Tarā'ib'*, and translated here as 'the ribs'[746] that it means the location of the chest where the necklace rests.[747]

Abū 'Ubaydah said: *'"Al-Tarā'ib"* is the location of the chest where the necklace is hanged.'[748]

This is the view of all linguists.

'Aṭā' narrates that Ibn 'Abbās (*raḍiyAllāhu 'anhumā*) said: 'The verse refers to the male's backbone, and the female's breastbone, where her necklace hangs.' This is the view of Al-Kalbī, Muqatil, Sufyān and the majority of Qur'ān interpreters , which is the view that conforms to these ḥadīths.

This way, Allāh followed His tradition of bringing existence of something from between two origins, such as animals, plants and other creatures. An animal comes into existence through a male and a female, and a plant comes to existence through water, dust and air. That is why Allāh [the Exalted] said:

[746] The word *'Al-Tarā'ib'* is translated here as 'the ribs' according to all the major translations of the Qur'ān.

[747] *Ma'āni al-Qur'ān* of Al-Zajjāj, 5/312

[748] *Majāz al-Qur'ān*, 2/292

بَدِيعُ ٱلسَّمَٰوَٰتِ وَٱلْأَرْضِ أَنَّىٰ يَكُونُ لَهُۥ وَلَدٌ وَلَمْ تَكُن لَّهُۥ صَٰحِبَةٌ

"[He is] Originator of the heavens and the earth. How could He have a son when He does not have a companion?"

[*al-An'ām* (6):101]

Therefore, a son is only formed through a male and a female. This is not refuted by the cases of Ādam and Hawā' (*'alayhumā-salām*) or *al-Masīḥ* (*'alayhis-salām*); Allāh [the Exalted] mixed the dust of Ādam with water until it became clay, then exposed it to air and sunlight until it became like pottery, and then He breathed life into it. Hawā' was derived from him and a part of his, and al-Maseeh was created from Maryam's water and the angel's blow; the blow from him was as the father is to others.

Sub-section one:

Second: The precedence of one of the two waters is a reason for the child's resemblance to the owner of this water, and the prevalence of one water is a reason for the child's sex being the same as its owner.[750]

Here there are two aspects: Precedence and prevalence. They could meet and they could part. If the male's water preceded and prevailed, the child is a boy who resembles his father. If the female's water preceded and prevailed, the child is a girl who resembles her mother. If one of them preceded while the other

[749] See *Ma'ānī al-Qur'ān* of Al-Firaa', 3/255, *Tafsīr al-Ṭabarī*, 24/354 and *Tafsīr al-Baghwī*, 8/324

[750] See *al-Masā'il* in *Al-Ṭibyān fi Imān al-Qur'ān*, pp.510-517, *al-Ṭuraq al-Ḥikmiyyah*, 2/583-588 and *Miftāḥ Dār al-Sa'ādah* of the author [Ibn Qayyim], 1/258-260.

prevailed, resemblance is to the owner of the preceding water, and the child's sex is the same as the owner of the prevailing one.

There are two issues here:

First: The child's sex has no natural cause; it is only dependent on the will of the Creator [the Exalted]. That is why the Prophet (ﷺ) said in the authentic ḥadīth: "So the angel says, "O my Lord, is it a male or a female? What is its provision and term of life? Is it happy or miserable?" And then the Lord decides as He likes and the angel writes it down.' Therefore, the child's sex depends on the decision of the Knowing Creator, just as happiness and misery, and provision and term of life. As for Thawbān's ḥadīth, it was only narrated by Muslim. The ḥadīth narrated in Al-Bukhārī only mentions resemblance. That is why it said: 'Whichever of them precedes or predominates, the child will resemble [that parent].'[751]

Second: *Al-Qāfah*[752] is based on resemblance to the father, not the mother.[753] That is why the Prophet (ﷺ) said in the case of the child whose father accused his wife of adultery: 'Wait and see. If she gives birth to a child with such-and-such characteristics, the child belongs to Shurayk Ibn Al-Sahmā'—meaning the man with whom she was accused of committing adultery—and if the child had so-and-so characteristics, the child belongs to Hilāl Ibn Umayyah.'[754] Therefore, he considered resemblance to the father, and not the mother.

[751] Reference already mentioned

[752] *Al-Qāfah*: The art of determining a child's father in case of a dispute. The person who performs it is called *'Al-Qāfī'*.

[753] See *al-Ṭuraq al-Ḥikmiyyah* of the author [Ibn Qayyim], 2/573.

[754] Muslim, 2/1134

To address these two issues:

For the first issue: Allāh [the Exalted] decided the affairs of the sperm-drop since He placed it in the womb, until its final states with purposes that He decided [for it]. Even misery and happiness, provision, term of life and death, all these are linked to causes that He decided. It is not improbable for the child's sex to be linked to causes, just as resemblance has its causes, merely because the cause does not necessitate the effect. If Allāh wills, the cause has its effects, if He wills, He deprives the cause of its effect, and if He wills, He causes through it the opposite effect. He [the Exalted] does this sometimes and that sometimes. The real cause is the will of Allāh, alone, and the causes are governed, not governing. Therefore, there is no contradiction between the establishment of the cause for the child's sex and the angel asking his Lord which one He decides for the child. He [the Exalted] informed that having a male or a female child is a pure gift from Him, based on His will, knowledge and power.

If it was said: The angel's saying, 'O my Lord, is it a male or a female?' is the same as his saying, 'What is its provision and term of life?' which does not depend on a cause from the father, and happens through other causes.

The answer is: Yes, the child's gender does not depend on a necessary cause related to the sexual intercourse itself. All there is that a tiny proportion of the cause is established, and it is completed by matters outside the spouses' control. It suffices here to say that if Allāh does not allow the cause to yield the effect, it does not happen. Therefore, the child's gender dependence on the will of Allāh does not contradict their happening due to a cause, and vice versa, but the cause alone is not sufficient.

As for the exclusivity of Thawban's ḥadīth in ṣaḥīḥ Muslim, it is so, and the ḥadīth is authentic, which is not contested, but its addressing of the child's sex makes one uncomfortable. Was this word properly memorised or not? What is stated is resemblance, as in all the other authentic ḥadīths. Therefore, this is an issue. Allāh knows best.

Sub-section Two:

As for the other issue: that *Al-Qā'if* considers the father's resemblance and not the mother's, this is because the child's belonging to the mother is a verified matter and not under suspicion, whether or not the child resembled her. *Al-Qā'if* is needed in determining the father.

That is why a child can be attributed to two fathers, according to the Companions and the majority of jurists among people of ḥadīth, but he/she cannot be attributed to two mothers. If two men claim the child to be their own, he or she is attributed to the one they resemble, if there is no contradicting evidence of sexual intercourse. If there is, resemblance is ignored. Therefore, resemblance is regarded as evidence when it does not contradict stronger evidence, such as evidence of sexual intercourse and eyewitnesses.

Yes, if two women claimed the child to be their own, the child is shown to *al-Qāfah* and is attributed to the one they resemble. Therefore, we used resemblance in both cases.

Imām Aḥmad explicitly stated considering *al-Qāfah* in the case of two mothers. He was asked about a situation where a Muslim woman and a Jewish woman both gave birth, and the Jewish woman claimed the Muslim woman's child to be her own. He was

asked: 'Can *Al-Qāfah* be used here?' He expressed admiration for that idea.[755]

This is also the more authentic view of the Shāfiʿī school.

The other view says: '*Al-Qāfah* is not valid here because it is possible to determine the mother with certainty, unlike the father.'

The correct view is to consider *Al-Qāfah* in the case of two women because it takes resemblance to the mother into consideration. A child resembles his father in some cases and his mother in others. This can be proved by the aforementioned ḥadīths from ʿA'ishah, Umm Salamah, ʿAbdullāh Ibn Salam, Anas Ibn Mālik and Thawbān (*raḍiyAllāhu ʿanhum*). The possibility to determine the mother with certainty does not prevent considering *Al-Qāfah* in case of uncertainty, just as it is considered with men in case of no clear evidence of sexual intercourse.

Sulaymān Ibn Ḥarb narrated from Ḥammād, from Hisham Ibn Ḥassān, that Muḥammad Ibn Sīrīn said: 'Al-Walīd took us to pilgrimage, and we were seven sons of Sīrīn. He took us to Madīnah, and when we entered upon Zayd Ibn Thābit (*raḍiyAllāhu ʿanhu*) he was told: 'These are the sons of Sīrīn.' He said: "These two are from one mother, these two are from another mother, and these two are from a third mother," and he was not wrong.'[756]

The physician says in *the Book of Fetuses*: 'If the father's water was more than the mother's, the child resembled him, and if the mother's water was more than the father's, the child resembles her.'

[755] See *al-Mughnī* of Ibn Qudāmah, 8/381

[756] See *Tārīkh Damshaq* of Ibn ʿAsākir, 19/330 and *Siyār Aʿlām al-Nubalā'* of Dhahabī, 2/438

He added: 'The sperm is drawn from all bodily organs, the parts drawn from sound organs are sound, and the parts drawn from sick organs are sick.' He added: 'Bald people give birth to bald children, the blue-eyed gives birth to blue-eyed children, and the cockeyed gives birth to cockeyed children.'

He also said: 'As for the flesh, it increases with the flesh, and joints are created therein, and each part of the fetus resembles that from which it originates.'

He added: 'Frequently, blind people, and people who have a mole or a certain mark give birth to children with the same marks, and in many cases, children resemble their grandparents or their relatives.'

He also said: 'Male children, mostly, resemble their fathers, and the females resemble their mothers.'

Sub-section Three:

The newborn's ugliness or beauty may result from other factors:

Including the parents' ideas, particularly the mother, if she was thinking, during the sexual intercourse and after it until the fetus is created, about someone that she sees, remembers or long for because she loves and is fond of them. As long as she is thinking about and longing for them, the fetus resembles them and takes after them. Nature is a carrier, and its readiness and acceptance are known to everyone.

The chief doctor in Cairo told me: 'I assigned my nephew to paint people's eyes with kohl. After a short while, he came to me

with conjunctivitis. When he was healed, he went back, so conjunctivitis came back to him. I realized that it is due to him opening his eyes to the eyes of conjunctivitis patients, and nature is a carrier.'

Doctors said that the pregnant woman's addiction to eat quince and apples is among that which beautifies the newborn's face and purifies its color. The hated for the pregnant woman to see horrible pictures, opaque colors, narrow and lonely houses, because all that affects the fetus.

Sub-section Four:

The physician said in *The Book of Fetuses*: If the male's sperm entered the uterus during the intercourse and did not leave it, but stayed in the uterine neck, and the neck shuts, the woman conceives. If the uterine neck shuts, the sperm and the embryo are united, and pregnancy occurs. If the male and the female's ejaculation occurred simultaneously, they were mixed together, settled in the uterus, became enclosed by it, and the uterine neck shut, the woman conceives.

Contributing to that occurs in three times: before, during and after the intercourse. Before, by preparing the womb to receive the sperm: during, by delivering the sperm to its residence in the womb and coinciding both ejaculations: and after, by the sperm's stability in the womb, being enclosed by it and protected from leaving or corruption.

I say: The aforementioned cause does not necessitate the result, only Allāh's will necessitates that as clarified earlier. Allāh knows best.

Sub-section Five:

When the fetus is formed and shaped by the Creator, the Inventor, the Fashioner, it is positioned with its head up and his legs down. When Allāh permits his emergence, his is turned so that his head is down and his legs are up, and his head precedes the rest of his body. All doctors and anatomists unanimously agree on that.

This is a form of the Divine mercy for the fetus and his mother, because if the head emerges first, the emergence of the rest of the body is easier, without the need for anything else. Were its legs to emerge first, it could not be guaranteed not to get its hands stuck.

If one leg emerged, it could not be guaranteed not to have the other leg stuck.

If the hands emerged, it could not be guaranteed not to have the head stuck, because it could twist backwards, the umbilical cord may twist at its neck or its shoulder, because if it descends with the umbilical cord extended, it may be twisted on the neck and shoulders, which could result in: pulling the umbilical cord and causing great pain to the mother, the fetus' death or difficulty in emergence and illness and swelling afterwards. Therefore, the wisdom the Most Just of judges necessitates turning the fetus inside the womb, so that its head emerges first, followed by the rest of the body.

Section Four

The Reason Why the Newborn Does Not Survive If Born After Eight Months But Survives If Born After Seven, Nine or Ten Months

When the fetus reaches seven months, it undergoes a strong movement that it does naturally to turn around and emerge. If the fetus is strong, and is a child who is naturally of strong build and able to rip apart the surrounding membranes connected to the uterus in order to cut through and emerge, it emerges in the seventh month not pained by the movement and not sickened by the turnaround.

If it is not that strong, either it is impaired by the pain to which it is exposed, by movement causing it to emerge dead, or it remains in the belly, becomes sick and remains so around forty days until it is healed, invigorated and strengthened. If it is born in the eighth month, it is born sick, is not healed; remains impaired and cannot be brought up.

If it remains in the womb until these forty days pass, until the ninth month, until it is healed, strengthened and invigorated, and remain a while after that, it should be sound. The most entitled to be sound are those that stay the longest in the womb after turning around, meaning those born in the tenth month. As for those born between the ninth and the tenth month, they are in-between depending on how far they are.

Others said: The reason why the fetus born after eight months does not survive: is that it is exposed to two kinds of harm successively:

First: Turing around in the seventh month inside the uterus for emergence.

Second: Changing its condition between its position in the uterus and its position in the air. Even if all fetuses are exposed to that change, the fetus born in the seventh month escapes before damage and illness befall it. As for the fetus born after ten months, it remains in the womb until it recovers and heals from those illnesses. Therefore, he is not exposed to both harms successively. However, the baby born in the eighth month is exposed to both harms successively, and it cannot survive. All fetuses are exposed to illness at the eighth month.

You can confirm that by observing pregnant women and seeing how they are, in the eighth month, in a worse condition and with a heavier burden than they are in all months before and after it. The condition of the mother is linked to the condition of the fetus.

Sub-section One:

The newborn's crying upon its birth indicates its health, strength and power. When the baby puts its hand, thumb or any finger on one of its organs, it indicates feeling pain in that organ. All animals naturally point to the painful part of their body, using either their hand, mouth, head or tail. Since the newborn is unable to speak, it points to the painful part with its finger or hand just as the animal does.

Sub-section Two:

Children are stronger and more enduring in the womb than they are after birth. Therefore, care for them and attention to them is

greater after birth. As long as the branches are attached to the tree, strong wind cannot destabilize or pluck them away. However, when they are separated and planted elsewhere, illness can reach them and the weakest wind can pluck them away.

Similarly, as long as the fetus is in the womb, it can endure what it is exposed to, such as harm and malnutrition, which it cannot endure after birth and separation from the womb, just like the fruit in the tree, which is stronger and firmer than it is after plucking.

Breaking the habit and changing the familiar routine are tough on whoever experiences them, particularly when they happen suddenly. When the fetus emerges from the womb, it moves away from what it was used to and acquainted with in all its affairs all of a sudden; this is tougher for him than if it was done gradually.

That is why Hippocrates said: It is easily known that if malnutrition, despite its badness, was uniform and almost in a similar condition, it is safer, more reassuring and less dangerous concerning health than for the person suddenly to change to better nutrition. The fetus moves away from what it was acquainted to in its nutrition, breathing, inlets, outlets and surroundings all of a sudden.

This is the first hardship that the person faces in this life, then hardships follow in succession, until the person reaches the greatest calamity, above which there is no hardship, or the greatest comfort, below which there is no discomfort. That is why the baby cries when it reaches this hardship, along with Satan's poking and stabbing of his waist.

Sub-section Three:

In the womb, the fetus was nourished with what suits it, and it naturally absorbed the appropriate amount of its mother's blood. After emerging, it also absorbs the appropriate amount of milk, but it absorbs it with its desire and will, absorbing more than it needs, which, along with instances of bad or poor milk, causes him vomiting and nausea, attracts the mixtures of his belly, exposes him to pains and illnesses that he was not used to in the womb. He had been protected from harm by membranes and veils, but when he was born, new membranes and veils were given to him that he was not acquainted with, and he may start to be exposed to heat, coldness and air. It used to pull him by the bellybutton, which is the gentlest thing.[757] It is similar to someone who was in the bath with gentle moderate weather, then he goes out, all of a sudden, naked to the harmful windy weather.

In summary, he moves from his routine and habit, suddenly, to what is tougher and more difficult for him. This is a display of the wisdom of the Knowing Creator, to train His servant on breaking his habit and routine to what is better, more beneficial and more suitable.

Allāh [the Exalted] referred to that by saying:

لَتَرْكَبُنَّ طَبَقًا عَن طَبَقٍ ﴿١٩﴾

"[That] you will surely experience state after state."

[*al-Inshiqāq* (84):19]

His first state[758] is being a sperm-drop, then a clinging clot, then a lump of flesh, then a fetus, then a newborn, then a suckling, then

[757] See *Qāmūs al-Itbā'* of al-Qawsūnī, 1/308-309

[758] See Bukhārī, 8/698

a weanling, then healthy or ill, rich or poor, sound or suffering, to all the different states of humans, until he dies, resurrected, then made to stand before Allāh [the Exalted], and then he is led either to Paradise or to Hell.

The meaning is: You will experience one state after another, one destination after another, and one affair after another.

Sa'īd Ibn Jubayr and Ibn Zayd say: 'You will be the latter after you were the former, and you will be rich after poverty, and poor after wealth.'

'Aṭā' said: 'One hardship after the other.'

We have stated some of the fetus' states in the womb since being a sperm-drop until its birth. We will now outline its states after birth until their end: The fetus in the womb is like the fruit on the tree, in terms of strong connection to its origin. If it reached its final stage, it must be separated because of its heaviness, completion and severance of the connected blood vessels. Thus, the membranes surrounding the fetus are ripped, and the vessels holding him between the placenta and the womb are severed, and these slippery moistures are made. The slipperiness, the fetus' heaviness, the ripping of the membranes and the severance of blood vessels help the fetus to emerge, so the womb opens greatly, and some great joints split then heal very quickly.

The skilled doctors and anatomists acknowledge that and say: 'This cannot happen without divine care and planning, the manner of which cannot be perceived by people's minds.

فَتَبَارَكَ ٱللَّهُ أَحْسَنُ ٱلْخَٰلِقِينَ ﴿١٤﴾

"So blessed is Allāh, the best of creators."
[*al-Mu'minūn* (23):14]

When the fetus is separated, it cries for a normal reason, which is leaving the place where it resided and to which it was acquainted, as well as for a different reason, which is Satan stabbing its waist. When it is completely separated, it extends its arm to its mouth. When forty days pass, it moves to a different state, just like in the womb, so he starts to laugh, which is the beginning of his perception. At the age of two months, the baby starts to have dreams and his perception and awareness are gradually established until the age of consciousness. There is no certain age for that; some people reach consciousness at the age of five, like Maḥmūd Ibn Al-Rabīʿ said: 'I remember that the Prophet (ﷺ) threw water in my face from a bucket [used to get water from a well] with his mouth when I was five years old.[759] That is why I made the age of five the minimum age for accepting the child's hearing.'

Some children are conscious before that, and remember things that happened before that age. We have narrated from Iyās Ibn Muʿāwiyah that he said: 'I remember the day when my mother delivered me, because I went from darkness to light, and then to darkness.' His mother was asked about that and said: 'He is saying the truth. When he was separated from me, I had nothing to wrap him in, so I put a bowl on him.'[760]

This is a most amazing and rare incident.

When the child reaches the age of seven, he enters the age of consciousness, and is commanded to pray, just as is narrated in

[759] Bukhārī,1/172 and Muslim,1/456

[760] See Ibn ʿAsākir in his *Tārīkh al-Damishq*, 10/14, Al-Aṣbahānī in his *Ṭabāqāt al-Muḥadathīn bi Aṣbahān*, 2/88 and his *Al-Tārīkh*,1/270

'Al-Musnad' and *'Al-Sunan'* from 'Amr Ibn Shu'ayb, from his father, from his grandfather, that the Messenger (ﷺ) said: 'Command your children to pray when they become seven years old, and discipline them for it [prayer] when they become ten years old; and arrange their beds [to sleep] separately.'[761]

The Prophet (ﷺ) allowed a weaned girl to choose between her parents, as Abū Dāwūd narrated in his *Sunan*, from 'Abdu'l-Ḥāmid Ibn Ja'far Ibn 'Abdullāh Ibn Rāfi' Ibn Sinān Al-Anṣarī, from his father, from his grandfather Rāfi' Ibn Sinān (*raḍiyAllāhu 'anhu*), that he embraced Islām, but his wife refused to do so. She came to the Prophet (ﷺ) and said: 'My daughter; she is weaned or about to wean.' Rāfi' said: 'My daughter.' The Prophet (ﷺ) said to him: 'Be seated on one side' and he said to her, 'Be seated on the other side.' He then seated the girl between them, and said to them: 'Call her.' The girl inclined to her mother. The Prophet (ﷺ) said: 'O Allāh! Guide her.' The daughter then inclined to her father, and he took her.[762]

There is no judgment better or closer to pure nature and justice than this.

It was narrated by Al-Nasā'ī, from 'Abdu'l-Ḥāmid Ibn Salamah Al-Anṣarī, from his father, from his grandfather, that he embraced Islām, but his wife refused to do so. A young son of theirs, who had not yet reached puberty, came, and the Prophet seated the father on one side and the mother on the other side, and he gave him the choice. He said: 'O Allāh, guide him' and [the child] went

[761] Reference already incited

[762] Abū Dāwūd, 8/280-281, Ibn Mājah, 2/782, Aḥmad in his *Musnad*, 2/246 and it was authenticated by Ḥākim, 2/206

to his father.[763]

It is also narrated in *Al-Musnad* from Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that the Messenger (ﷺ) gave a boy the choice between his father and his mother.[764]

As for restricting choice to the age of seven, there is nothing supporting that in the continuous ḥadīths, but it was reported from ʿAlī (*raḍiyAllāhu ʿanhu*) and Abū Hurayrah (*raḍiyAllāhu ʿanhu*).

ʿAmarah Al-Jarmī said: "Alī gave me the choice between my mother and my uncle, and I was seven or eight years old."[765]

This does not imply that whoever is younger than this must not be given the choice, it merely says that this was his age when he was given the choice.

It is narrated in the *Sunan* on the authority of Abū Hurayrah (*raḍiyAllāhu ʿanhu*) that a woman came to the Prophet (ﷺ) and said: 'O Allāh's Messenger! My husband wants to take my son away from me, when he [the son] brings me water from the well of Abū Inābah and helps me.' The Prophet (ﷺ) said: 'This is your father, and this is your mother; take the hand of whichever of them you want.' He took his mother's hand, and she went away with him.[766] The Messenger (ﷺ) did not ask about his age.

What is apparent is that what the Messenger (ﷺ) knew that he brought her water from the well. There is no age-restriction in

[763] Nasāʾī, 6/185

[764] Aḥmad in his *Musnad*, 2/246

[765] Bayhaqī in *Sunan*, 8/4; see *Irwāʾ al-Ghalīl* of al-Albānī, 7/251-252

[766] Abū Dāwūd, 8/342-343, Tirmidhī, 4/589 and he said: '[This] ḥadīth is ḥasan ṣaḥīḥ.' Nasāʾī, 6/185-186, Ibn Mājah, 2/782, Imām Aḥmad in his *Musnad*, 2/246 and others.

the ḥadīths of choice, whether the continuous or the severed. They indicate that whenever he is able to distinguish between his father and his mother, he is given the choice. Allāh knows best.

Similarly, the validity of his Islām is not restricted to the age of seven. Whenever he understands Islām and is able to describe it, it is valid. Al-Khiraqī insisted that he be ten years old.[767]

Aḥmad explicitly stated that regarding the will. He said, as narrated by his sons, Ṣāliḥ and Abdullāh, his uncle Abū Ṭālib, Isḥāq Ibn Ibrāhīm, Abū Dāwūd, and Abū Mansūr that reaching the age of ten is a condition for the will's validity.

Abū Ṭālib asked him: 'What if he was younger than ten?' He said: 'No.'

He cited, in Isḥāq Ibn Ibrāhīm's narration, that the child is disciplinned for the prayer at the age of ten.[768]

As for the child's Islām, he said in *Al-Mughnī*:

Most scholars who accepted the child's Islām did insist on a minimum age of ten, and did not put a minimum age. It was narrated by Ibn Al-Mundhir from Aḥmad, because the purpose was achieved, and there is no need for anything else.

It was narrated that Aḥmad said: 'If he was seven years old, his Islām is valid, because the Prophet (ﷺ) said: "Command your

[767] See *Mukhtaṣar al-Kharqī* with *al-Mughnī* of Ibnn Qudāmah, 12/278

[768] See the statements of Imām Aḥmad in *Masā'il al-Imām Aḥmad*, of 'Abdullāh, 1/188-189 and 3/1170, Ibn Hānī, 2/39, *Masā'il al-Imām Aḥmad*, of Abū Dāwūd, p. 214 and *al-Mughnī* of Ibn Qudāmah, 12/278-280

children to pray when they become seven years old" which proves that this age is the limit for commanding them and the validity of their worship, so it is a limit for the validity of their faith.'[769]

Ibn Abū Shaybah said: 'If he embraced Islām at the age of five, it is considered valid, because 'Alī embraced Islām at the age of five.'

Abū Ayyūb said: 'The Islām of a three-year-old is accepted. Whoever arrives at the truth, whether young or old, is accepted. A child this young cannot nearly comprehend Islām or understand what he is saying, and his word is not taken into consideration. However, if he was found to have arrived at the truth and his words and actions indicated knowledge and understanding of Islām, it is accepted from him, like anyone else.'[770]

Therefore, the Shaikh stated the validity of a three-year-old's Islām if he understood it.

Al-Maymūnī reports that he asked Abū 'Abdullāh: 'What about a boy who embraced Islām at the age of ten, before reaching the age of puberty?'

He said: 'I accept his Islām.'

He asked: 'What is your evidence for such view?'

He said: 'I discipline him for the prayer at the age of ten and separate his bed from other children's beds [at that age].'[771]

Al-Faḍl Ibn Ziyād said that he asked Aḥmad: 'What about a Christian boy who embraced Islām, what do you do with him?'[772]

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[769] See *al-Jāmi'* of Khallāl, p.40-41

[770] See *al-Mughnī* of Ibn Qudāmah, 12/280

[771] See *Aḥkām Ahl'ul-Malal of Khallāl*, p.41-42

[772] *ibid*

He said: 'If he reached the age of ten, I would encourage him to remain a Muslim, because the Prophet (ﷺ) said: "Command your children to pray when they become seven years old, and discipline them for it [prayer] when they become ten years old."'[773]

This is one report from him; another report is narrated where he said: 'The Islām of a seven-year-old is accepted.'

Abū'l-Ḥārith narrates that Abū 'Abdullāh was asked: 'A young boy declared Islām, and testified that there is no deity [worthy of worship] except Allāh and that Muḥammad is His Messenger, and prayed when he was still young, not conscious yet, then he reverted, does his declaration of Islām count, when he was still young?'

He said: 'Yes; if he was seven years old, he should be forced to remain a Muslim, because the Prophet (ﷺ) said: "Command your children to pray when they become seven years old," so the prayer became obligatory.'[774]

Ṣāliḥ conveys that his father said: 'If the Jew or the Christian reached the age of seven and then converted to Islām, they are forced to remain in Islām, because at the age of seven, they are commanded to pray.'

Ṣāliḥ then asked: 'What if he was six years old?' He said: 'Then no.'[775]

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[773] *ibid*
[774] *ibid*
[775] *ibid*

Sub-section Four:

When he reaches the age of ten, his strength, mental capacities and endurance of obligations increase. Therefore, he is reprimanded for skipping prayer, as the Prophet (ﷺ) commanded, this reprimand is for disciplining and training. Upon reaching the age of ten, he moves to another stage where his consciousness and knowledge increase. That is why many jurists believe that he is obligated to believe at this stage, and that he will be punished for lack thereof. This is the view of Abū'l-Khaṭṭāb and others, and it is a very strong view. Even if he is exempted from secondary obligations, he is given the instrument that enables him to know the Creator, acknowledge His oneness and the truthfulness of His Messengers, and he is able to comprehend the analogies and deductions, just as he is capable of understanding the sciences, crafts and the interests of his life. Therefore, there is no excuse for disbelief in Allāh and His Messenger, let alone that the evidence for belief in Allāh and His Messenger is clearer than each science or craft that he learns.

Allāh [the Exalted] said:

وَأُوحِيَ إِلَيَّ هَٰذَا ٱلْقُرْءَانُ لِأُنذِرَكُم بِهِۦ وَمَنۢ بَلَغَ

"And this Qur'ān was revealed to me that I may warn you thereby and whomever it reaches."

[*al-An'ām* (6):19]

Therefore, everyone who is reached by the Qur'ān and able to understand it is warned by it.

The ḥadīths narrated about the trial of children, fools and people of *al-Fatrah* [those who died without being reached by

a Messenger's message] indicate the trial of those who did not comprehend Islām. Those present the argument that they were not reached by the message and were not able to understand Islām. However, he who understands the details of crafts and sciences cannot present this argument before Allāh.

Being exempted from provisions in this life before puberty does not indicate being accounted for them in the Hereafter.

This view is the one reported from Abū Ḥanīfah and his companions, and it is immensely strong.[776]

Sub-section Five:

From the age of ten until puberty, he is called a teenager and approaching puberty. When he reaches the age of fifteen, he is transformed to another state, where sexual maturity occurs, hair grows around the genitals, voice becomes deep and the nose tip separates.

What the Sharī'ah considered among these are sexual maturity and hair growth.

As for sexual maturity, Allāh [the Exalted] said:

يَٰٓأَيُّهَا ٱلَّذِينَ ءَامَنُوا۟
لِيَسْتَـْٔذِنكُمُ ٱلَّذِينَ مَلَكَتْ أَيْمَٰنُكُمْ وَٱلَّذِينَ لَمْ يَبْلُغُوا۟ ٱلْحُلُمَ مِنكُمْ
ثَلَٰثَ مَرَّٰتٍ ۚ

[776] See *Ṭarīq al-Ḥijratayn* of the author [Ibn Qayyim], 2/842-877, *Aḥkām al-Dhimma*, 2/609, *Al-Jawāb al-Ṣaḥīḥ* of Ibn Taymiyyah, 1/310 and *Mukhtaṣar al-Fatāwa al-Miṣriyyah* of al-Ba'lī, pp. 642-643.

"O you who have believed, let those whom your right hands possess and those who have not [yet] reached puberty among you ask permission of you [before they come to your presence] on three occasions"

And said:

وَإِذَا بَلَغَ ٱلْأَطْفَٰلُ مِنكُمُ ٱلْحُلُمَ فَلْيَسْتَـْٔذِنُوا۟ كَمَا ٱسْتَـْٔذَنَ ٱلَّذِينَ مِن قَبْلِهِمْ ۚ كَذَٰلِكَ يُبَيِّنُ ٱللَّهُ لَكُمْ ءَايَٰتِهِۦ ۗ وَٱللَّهُ عَلِيمٌ حَكِيمٌ ﴿٥٩﴾

"And when the children among you reach puberty, let them ask permission [at all times] as those before them have done. Thus does Allāh make clear to you His verses; and Allāh is Knowing and Wise."

[*al-Nūr* (24): 58-59]

The Prophet (ﷺ) said: 'There are three [persons] whose actions are not recorded: the sleeping person until he awakens, the minor until he reaches puberty, and the insane person until he comes to his senses.'[777]

He (ﷺ) said to Mu'ādh (*raḍiyAllāhu 'anhu*): 'Take [the *jizyah*] from everyone who has reached the age of puberty [the amount of] one *dinār*.'[778]

Puberty does not have a certain age. Some children reach it at the age of twelve, while others reach the age of fifteen, sixteen and more before reaching it.

[777] Bukhārī, 9/388, Abū Dāwūd, 6/229-230, Tirmidhī, 4/685, Ibn Mājah, 1/658 and others.

[778] Abū Dāwūd, 2/195, Tirmidhī, 3/257, Nasā'ī, 5/26, Ḥākim, 5/230 and it is authenticated by him and Dhahabī agreed. Aḥmad in his *Musnad*, 5/230 and Baghwī in his *Sharḥ al-Sunnah*, 6/19; see *Al-Talkhīṣ al-Ḥabīr* of Ibn Ḥajr, 4/122

Jurists debate the age of puberty. Al-Awzā'ī, Aḥmad, Al-Shāfi'ī, Abū Yūsuf and Muḥammad said: 'Whenever he becomes fifteen years old, he is deemed to have reached puberty.'

Mālik's followers have three views: one says seventeen, the other says eighteen, and the third says fifteen, which is the one narrated from Mālik.

There are two views reported from Abū Ḥanīfah: one is seventeen and the other is eighteen for the boy, and seventeen for the girl.[779]

Dāwūd and his companions say: 'There is no age limit, the criterion is sexual maturity.' This is a strong view, and there is no ḥadīth narrated from the Messenger (ﷺ) regarding an age limit for puberty. The only thing narrated in this regard is the ḥadīth narrated by Ibn 'Umar (*raḍiyAllāhu 'anhumā*) when he was presented to the Prophet (ﷺ) to fight in battle when he was fourteen years old, and he (ﷺ) did not accept him, then he was presented when he was fifteen years old, so he (ﷺ) accepted him.[780]

This ḥadīth, despite being authentic according to the consensus, carries no evidence that the Prophet (ﷺ) accepted him because he reached puberty. Perhaps he deemed him too young the first time or did not think he would endure fighting, but when he reached the age of fifteen, he estimated that he would endure fighting and accepted him. That is why he (ﷺ) did not ask him whether he had reached puberty. Allāh [the Exalted] made requirements pending puberty, and so did the Prophet (ﷺ). Nothing was narrated from him regarding the age of puberty except what Ibn Umar's conveyed

[779] See *Takmila Fatḥ al-Qadīr* of Ibn Al-Hamām.7/323 and *Jāmi' Aḥkām al-Ṣaghār* of Asrūshanī, 1/34-35

[780] Bukhārī, 7/392 and Muslim, 3/1490

about rejecting and accepting him.

Therefore, the jurists differed in opinion about the age where the boy's puberty is determined. Imām Aḥmad insisted that the boy cannot be a *mahram* (unmarriageable person) to a woman until he reaches puberty. Therefore, he regarded sexual maturity as a condition.

Sub-section Six:

As for hair growth, it is the growth of hair around the genitals of the boy and the girl. The weak pubic hair does not count.[782]

This is the view of Aḥmad, Mālik and one of the views of Al-Shāfi'ī. He said in the other view: 'It is a sign [of puberty] among disbelievers, and not Muslims, because for Muslim children, evidence proves when they reach puberty, and the words of their adults are accepted, unlike the disbeliever.'[783] Abū Ḥanīfah said: 'It is not considered a proof at all; just as voice hoarseness and nose separation are not.'[784]

Whoever regarded it as a proof cited the ḥadīths narrated in both Bukhārī and Muslim that when the Prophet (ﷺ) made Sa'd Ibn Mu'ādh (*raḍiyAllāhu 'anhu*) a judge in the case of Banu Qurayzah.[785] He judged that their warriors should be killed and their women and children should be taken as captives. The Messenger (ﷺ) commanded to check them, whoever had his pubic hair grown

[781] See *al-Mughnī* of Ibn Qudāmah, 5/34

[782] See *al-Misbāḥ al-Munīr* of Fayawmī, 1/253

[783] See *al-Mughnī* of Ibn Qudāmah, 6/597-598, *Al-Sharḥ al-Kabīr ma'a Ḥāshiya* of al-Dasūqī, 3/293, *Mughnī al-Muhtāj* of al-Khaṭīb al-Sharibīnī, 2/166

[784] See *Multaqa al-Abḥar* of Shaikh Damād al-Ḥanafī, 1/127

[785] The Jewish tribe of Qurayzah who used to live in Madīnah.

was determined to be a warrior, and the others were determined to be of children.[786]

'Aṭiyah said: 'They doubted my status, so the Prophet (ﷺ) commanded to check whether my pubic hair had grown. They checked and it had not grown, so I was joined with children.'[787]

The Companions continued to use this criterion after the Prophet (ﷺ). 'Umar (*raḍiyAllāhu 'anhu*) wrote to one of his appointed officials: 'Do not collect tax (*jizyah*) except from whom was touched by a razor [has pubic hair].'[788]

Al-Bayhaqī[789] narrated from Ibn 'Uliyah, from Ismā'īl Ibn Umayah, from Muḥammad Ibn Yaḥyā Ibn Ḥibbān, that 'Umar (*raḍiyAllāhu 'anhu*) was brought a boy who falsely claimed, in his poetry, to have committed adultery with a girl. He said: 'Look at him' and they found his pubic hair to not have grown yet, so he was spared the punishment (*ḥadd*).

It was narrated that 'Uthmān Ibn 'Affān (*raḍiyAllāhu 'anhu*) was brought a boy who stole something. He said: 'Look at his private place' and they found no pubic hair, so his hand was spared.[790] It was narrated that Ibn 'Umar (*raḍiyAllāhu 'anhumā*) said: 'If a boy committed a punishable act, and his puberty was in doubt, look at his pubis.'[791]

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[786] Bukhārī, 6/165 and Mulsim, 3/1388-1389

[787] Abū Dāwūd, 12/477, Tirmidhī, 4/144, Nasā'ī, 6/155, Ibn Mājah, 2/849, Dāramī, #2467, Imām Aḥmad in his *Musnad*, 4/310 and it is authenticated by Tirmidhī, Ḥākim and Ibn Ḥibbān; see *Al-Talkhīṣ al-Ḥabīr* of Ibn Ḥajr, 3/42

[788] See Abū 'Ubayd al-Qāsim Ibn Sallām's *Al-Amwāl*, p.47 on the authority of Aslam Mawlā 'Umar Ibn al-Khaṭṭāb (*raḍiyAllāhu 'anhu*).

[789] Bayhaqī in his *Sunan*, 6/58

[790] Bayhaqī in his *Sunan*, 6/58

[791] Bayhaqī in his *Sunan*, 6/58

This clarifies that the pubic hair growth is a sign of puberty, and that it is so for both Muslim and non-Muslim children. It also shows that it is permitted to look at the stranger's private place when it is necessary to determine his puberty.

As for what some of the latter scholars said, that he [the person whose puberty is doubted] uncovers his private place, but the examiner looks away, and both of them face a mirror, through which the examiner looks to determine pubic hair growth, that is something they said of their own. Neither did the Messenger (ﷺ) nor his Companions do it, nor did any of the former scholars consider it.

Sub-section Seven:

If his puberty is ascertained, obligations apply to him, and all the provisions of adults take hold, then he starts to reach maturity.

Al-Zajjāj said: 'Maturity is from the age of seventeen until around forty.'[792]

Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), as narrated by 'Aṭā', said: 'Maturity is puberty.' This is the choice of Yaḥyā Ibn Ya'mur and Al-Suddī. Mujāhid narrated another view from him where he said: 'Thirty-three years of age, and he was also narrated to have said, 'Thirty [years].'

Al-Ḍaḥḥāk said: 'The age of twenty' and Muqātil said: 'Eighteen.'[793]

[792] See *Ma'ānī al-Qur'ān wa I'rābahu* of Zajjāj, 4/442

[793] See *Tafsīr al-Ṭabarī*, 12/23, *Tafsīr al-Baghwī*, 3/204, 4/226 and 6/195, *Tafsīr Ibn Abī Ḥātim*, 5/439 and 8/319-320 and *Ma'ānī al-Qur'ān* of al-Naḥās, 5/164.

Al-Azharī[794] has explained the term properly, he said: 'Reaching maturity occurs between puberty and reaching the age of manhood—forty years old. Reaching maturity has a lower age limit and a higher age limit, but does not have a specific age. It is a stage between puberty and reaching the age of forty.'

Sub-section Eight:

After forty, he starts do decline and weaken gradually, just as he was improving gradually.

Allāh [the Exalted] said:

اللَّهُ الَّذِي خَلَقَكُم
مِّن ضَعْفٍ ثُمَّ جَعَلَ مِن بَعْدِ ضَعْفٍ قُوَّةً ثُمَّ جَعَلَ مِن بَعْدِ
قُوَّةٍ ضَعْفًا وَشَيْبَةً

"Allāh is the one who created you from weakness, then made after weakness strength, then made after strength weakness and white hair."

[*al-Rūm* (30):54]

Therefore, his strength lies between two weaknesses, and his life lies between two deaths.[795]

[794] See *Tahdhīb al-Lugha* of al-Azharī, 11/266

[795] [TN]: Until the end of this topic, the author speaks about the Arabic names of different stages of human life, some of which have already been translated, and many of which have no translation in English, so I have skipped the remainder of this topic.

Sub-section Nine:

When he reaches his decreed time that was for him, and he fulfils his term of life, the Messengers [angels] of his Lord [the Exalted] come and transport him from the home of perishing to the home of [eternal] settlement.

They stand as far from him as he can see, then the angel authorised to withdraw the soul comes closer and extracts the soul.

If the soul was a good soul, he [the angel] says: 'Come out, O good soul that was in a good body, come out praiseworthy and receive glad tidings of mercy and fragrance and a Lord Who is not angry." The soul departs the body as easily as a water drop from the bottle. When he takes it, the angels do not leave it in his hands for a moment; they embalm it, wrap it with embalming scent and a grave cloth from Paradise, and pray upon it. It comes out like the best fragrance of musk on earth. Then, it is ascended for the first presentation before the Swiftest of Accountants [Allāh, the Exalted], and it reaches the lowest heaven. Permission is asked for it, the heaven doors are opened, its angels pray upon it, and it is escorted by the close angels to the second heaven, where the same is done for it, then the third, then the fourth, until it is brought to the heaven above which is Allāh. It greets its Lord [blessed and exalted] with the Lordship greeting:

اللهم أنت السلام،
ومنك السلام، تباركت يا ذا الجلال والإكرام.

"AllāhummaAnta as-Salām, wa minka as-salām, tābarakta yā Dhāl-Jalāl wa'l-Ikrām"—"O Allāh, You are the Peace, and peace comes from You. Blessed are you, O Owner of Majesty and Honour."

If Allāh wills, He permits it to prostrate, then it is shown its location in Paradise. The Lord [in His Glory] says: 'Preserve the record of My servant in *'illiyīn* [the most sacred place], and return him to Earth, because from it I created them and into it I shall send them back and from it will I raise them a second time.'

His soul returns to Earth, and witnesses him being given the burial bath, covered in grave cloth, carried and prepared. He says: 'Take me quickly, take me quickly.'

When he is placed in the grave, and his companions forsake him, the souls enters with him, so that hears their footsteps on the ground, whereupon the two angels of the grave come to him, make him sit up and ask him: "Who is your Lord? What is your religion? Who is your Prophet?" He says: "My Lord is Allāh, my religion is Islām, and my Prophet is Muḥammad (ﷺ)." They believe him and bring him glad tidings that this is the state [of faith] in which he lived, in which he died, and in which he is resurrected.

A space is made for him in his grave as far as the eye can see, it is furnished with green, and good-looking and smelling young man is appointed for him who says: 'Rejoice at that which will please you.'

He will say: 'Who are you? Your face is one that brings good.'
He will reply: 'I am your good deeds.'

Then a window is opened to Hell, and it will be said: 'Look what Allāh protected you from' and a window is opened to Paradise, and it will be said, 'Look what Allāh prepared for you' so he will see them both.

As for the corrupt soul, it is quite the opposite. When it is time for it to depart, black-faced angels descend, with embalmment from Hell and a grave cloth from Hell. They sit as far from him as he can see, then the angel authorized to withdraw the soul comes closer and extracts the soul. He says: "Come out, O evil soul that was in an evil body. Come out blameworthy, and receive the tidings of boiling water and the discharge of dirty wounds,' and other torments of similar kind, all together."

The soul scatters in the body, so he pulls it from the depths of the body, cutting veins and nerves like thorns pulled from wet wool. When he takes it, he does not leave it in his hand for a moment, and it comes out like the foulest stench of a corpse. It is embalmed with that embalmment, wrapped with that cloth and cursed by every angel between heaven and earth. Then it is ascended to heaven, and permission is requested for it, but it is denied. Then the call comes from the Lord of the Worlds: "Preserve his record in *sijjīn*, and return him to Earth." Thus, his soul is thrown down, and it witnesses him being prepared, covered in grave cloth and carried. It says: 'Woe to me! Where are you taking me?'

When the body is put in the grave, the soul returns to it. Then the two angels come and ask him about his Lord, religion and prophet, so he stammers and says: 'I do not know.' They reply: 'Neither did you know nor did you take the guidance [by reciting the Qur'ān].'[796] Then they beat him and he will scream a scream heard by everything except the two classes [of man and *jinn*]. Then his grave is narrowed so much so that his ribs are squeezed together. His grave is furnished with fire, and a window to Paradise is opened, and it is said to him: 'Look what Allāh took from

[796] An alternative translation of this sentence is "Neither did you know nor did you follow those who did."

you' and a window to Hell is opened, and it is said to him: 'Look at your seat in Hell.' He sees them both, and a blind, deaf and mute is appointed to him. He says: 'Who are you? Your face is an ominous one.' He says: 'I am your bad deeds.'

The believer basks in pleasures in his grave according to his deeds, and the wicked is tortured therein according to his deeds.

Every organ is tortured in a specific way according to the sins committed by that organ. The lips of backbiters, who tear the flesh of others and slander their honour, are champed by nippers of fire. The bellies of those who devour the property of orphans unjustly are lit on fire. Those who consume usury are fed stones and swim in rivers of blood, just as they swam in foul earnings. The heads of those who sleep during the time of obligatory prayer are bruised with a great stone. The mouth corners of the great liars are incised with iron grapples and hooked to the backs of their neck, the same is done for their noses and eyes, just as his lie incised people's lives. Adulteresses are hanged by their breasts, and adulterers and adulteresses are imprisoned in the heated furnace and the locations of their sin, the lower parts, are tortured.

Worries, grieves, sorrows and mental anguishes are empowered over the corrupt souls that were distracted with amusement, play and trivialities, creating pains in their souls as vermin and worms do to their bodies, until Allāh [the Exalted] permits the time of the world to come to an end, so heavy thick rain, like male sperm, falls on the earth for forty days, so people grow from their graves, as the trees and grass grow.

When the fetuses are completed, the mother becomes near, and it is time for birth, Allāh [the Exalted] commands Isrā'fīl to blow

in the horn the blow of resurrection, which was preceded by the blow of death, which was preceded by the blow of terror. Then, the earth breaks away and they emerge standing, looking on. The believer will say:

«الحمد لله الذي أحيانا بعد ما أماتنا واليه النشور».

"Al-ḥamdu lil-lāhil-ladhiaḥyānā ba'da mā amātanā wa ilaihin nushur"—"Praise is due to Allāh, Who gave us life after our death and unto Him is resurrection."

The disbeliever will say:

يَٰوَيۡلَنَا مَنۢ بَعَثَنَا مِن مَّرۡقَدِنَاۜ هَٰذَا مَا وَعَدَ ٱلرَّحۡمَٰنُ وَصَدَقَ ٱلۡمُرۡسَلُونَ ﴿٥٢﴾

"O woe to us! Who has raised us up from our sleeping place. This is what the Most Merciful had promised, and the Messengers told the truth."

[*Yasīn* (36): 52][797]

They are led to the place of gathering, barefoot, naked, uncircumcised and speechless. Every soul has a driver who drives it and a witness who testifies for or against it. They are either happy or calling for their own destruction, laughing or crying.

وُجُوهٞ يَوۡمَئِذٖ مُّسۡفِرَةٞ ﴿٣٨﴾ ضَاحِكَةٞ مُّسۡتَبۡشِرَةٞ ﴿٣٩﴾ وَوُجُوهٞ يَوۡمَئِذٍ عَلَيۡهَا غَبَرَةٞ ﴿٤٠﴾ تَرۡهَقُهَا قَتَرَةٌ ﴿٤١﴾

"[Some] faces, that Day, will be bright—Laughing, rejoicing at good news. And [other] faces, that Day, will have upon them dust. Blackness will cover them."

[797] The author referenced this verse as [*Yasīn* (36): 53] but this is a mistake.

[*'Abasa* (80): 38-41]

When their number is complete, and they are all on the face of the earth, the skies split open, the stars are scattered, the angels of the heaven descend and surround them, and then the angels of the second heaven descend and surrounded them, and so on.

Thereupon, the Lord of the World comes to arbitrate, the Earth shines with the Glory of its Lord, the criminals are separated from the believers, the scale is established, the record is brought, witnesses are recalled, and the hands, tongues, legs and skin testify that day.

Disputes will be presented before Allāh [the Exalted], until even the soul and the body dispute each other. The body says: 'I was an inanimate object who could not understand, hear or see. You were the one that could see, hear and understand. You controlled me to where you desired.' The soul replies: 'And you were the one that committed the sin and the transgression!'

Thereupon, Allāh [the Exalted] sends to them an angel to arbitrate, who says: 'You are like a crippled person who can walk, and a blind person who can see. They entered an orchard, and the crippled person said: "I can see the fruits but cannot reach them" and the blind person said: "I can get up but I cannot see them." The cripple said: "Carry me so that I can reach them and they did." So [the angels ask] who shall be punished?"

They [body and soul] replay: 'Both of them.' He [angles] says: 'So are you.'

Allāh [the Exalted] judges between His servants with His judgment, on which all residents of the heavens and the earth praise

him, including each pious and wicked, each believer and disbeliever.

وَتُوَفَّىٰ كُلُّ نَفْسٍ مَّا عَمِلَتْ

"And every soul will be fully compensated for all its actions."

[*al-Naḥl* (16): 111]

And said:

فَمَن يَعْمَلْ مِثْقَالَ ذَرَّةٍ خَيْرًا
يَرَهُۥ ﴿٧﴾ وَمَن يَعْمَلْ مِثْقَالَ ذَرَّةٍ شَرًّا يَرَهُۥ ﴿٨﴾

"So whoever does an atom's weight of good will see it,
And whoever does an atom's weight of evil will see it."

[*al-Zalzalah* (99): 7-8]

Then a caller will call: 'Let each nation follow what they worshipped.' So the worshippers of idols go with their idols, people of the cross go with their cross, and anyone who associated anything with Allāh goes with what they worshipped, and cannot abstain, until they fall in Hell.

The monotheists [those who believe in the oneness of Allāh] remain, so they are told: 'Will you not go where others went?' They say: 'We parted with people when we needed them the most. We have a Lord, for Whom we are waiting.'

They are told: 'Is there a mark with which you will recognize Him?'

They say: 'Yes. There is nothing like unto Him.'
Thereupon Allāh reveals Himself to them in an image unlike the one they know, and says: 'I am your Lord.'

They say: 'We seek refuge in Allāh from you. This is our place until our Lord comes. When He does come, we shall recognize him.' Thereupon He reveals Himself to them in the image they saw the first time, laughing, and says: 'I am Your Lord.' They say: 'Yes. You are our Lord' and they fall down in prostration, except those who did not pray in this life, or did pray only to be seen by people, for they are prevented from prostration.

Then He [the Exalted] sets out, and they follow him. The bridge is established, and people are driven to it; it is slippery and dark, and cannot be traversed without light. When they reach it, light is distributed among them according to the light of their faith, sincerity and deeds in the worldly life. Some will have lights [as strong] as the sun, others as the star, and others as the lamp.

The trust and kinship are placed on either side of the bridge; no traitor shall pass nor a severer of his kinship.

Their passing on the bridge differs according to their uprightness on the right path in the worldly life. Some of them pass [as fast] as lightening, some as wind, some as birds, some as good horses, others will pass running, others will pass walking and others will pass crawling.

On each side of it, hooks are placed whose size is only known by Allāh, to hinder the people passing as much as they were hindered by the worldly life from obeying Allāh, pleasing Him and worshipping Him. Some Muslims will be saved, some will be scratched, some will be injured, and some will be thrown in Hell. The lights of Hypocrites are turned off on the bridge, when they need it most, as it was turned off inside their hearts in the worldly life. They are given, unlike the infidels, a superficial light, just as their

belief was superficial. They say to the believers:

نَقْتَبِسْ مِن نُّورِكُمْ

"Wait for us that we may acquire some of your light."

to pass with. The believers will reply:

ٱرْجِعُوا۟ وَرَآءَكُمْ فَٱلْتَمِسُوا۟ نُورًا

"Go back behind you and seek light."

[*al-Ḥadīd* (57):13]

It is said that the meaning is: 'Go back to the worldly life and seek light in belief, as the believers did.'[798] Another view is that the verse means: Go back to where the lights were distributed, and seek light to help you pass. Then, 'a wall will be placed between them with a door, its interior' on the believers' side:

فِيهِ ٱلرَّحْمَةُ وَظَٰهِرُهُۥ

"Containing mercy, but on the outside of it..."

And on the disbelievers side:

مِن قِبَلِهِ ٱلْعَذَابُ ﴿١٣﴾ يُنَادُونَهُمْ أَلَمْ نَكُن مَّعَكُمْ ۖ قَالُوا۟ بَلَىٰ وَلَٰكِنَّكُمْ فَتَنتُمْ أَنفُسَكُمْ وَتَرَبَّصْتُمْ وَٱرْتَبْتُمْ وَغَرَّتْكُمُ ٱلْأَمَانِىُّ حَتَّىٰ جَآءَ أَمْرُ ٱللَّهِ وَغَرَّكُم بِٱللَّهِ ٱلْغَرُورُ ﴿١٤﴾ فَٱلْيَوْمَ لَا يُؤْخَذُ مِنكُمْ فِدْيَةٌ وَلَا مِنَ ٱلَّذِينَ كَفَرُوا۟ ۚ مَأْوَىٰكُمُ ٱلنَّارُ ۖ هِىَ مَوْلَىٰكُمْ ۖ وَبِئْسَ ٱلْمَصِيرُ

"...is torment. The hypocrites will call to the believers:

[798] See al-Ṭabarī on the authority of Ibn 'Abbās (*raḍiyAllāhu 'anhumā*), 27/224 and *al-Durr al-Manthūr*, 14/270-271

> 'Were we not with you?" They will say: 'Yes, but you afflicted yourselves and awaited [misfortune for us] and doubted, and wishful thinking deluded you until there came the command of Allāh. And the Deceiver deceived you concerning Allāh. So today no ransom will be taken from you or from those who disbelieved. Your refuge is the Fire. It is most worthy of you, and wretched is the destination."
>
> [*al-Ḥadīd* (53): 13-15]

When the believers pass the bridge, which only the believers can, they are safe from entering Hell. They are held on an arch between Paradise and Hell, so that the complaints among them from this life are settled. When they are polished and purified, they are permitted to enter Paradise.[799]

After residents of Paradise settle there and the residents of Hell settle there, death is brought in the form of a white ram with black head, and then a caller calls: 'O residents of Paradise!' They look, worried, and then the caller calls: 'O residents of Hell!' They look, hopeful. The caller says: 'Do you recognize this?' They say: 'Yes' and they all recognise it. The caller says: 'This is death' and it is slaughtered between Paradise and Hell, and the caller says: 'O residents of Paradise! Eternity [is for you] and no death. O people of Hell! Eternity [is for you] and no death.'[800]

This is the last stage of this sperm-drop that is the beginning of humans. Between this beginning and this end are stages and states that the Exalted in Might, the Knowing decreed for men to move between, until he reaches his end of either happiness or misery.

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[799] Bukhārī, #2440 on the authority of Abū Sa'īd al-Khudrī (*raḍiyAllāhu 'anhu*)
[800] Bukhārī, 8/429 and Muslim, 4/2188

قُتِلَ ٱلْإِنسَٰنُ
مَآ أَكْفَرَهُۥ ﴿١٧﴾ مِنْ أَىِّ شَىْءٍ خَلَقَهُۥ ﴿١٨﴾ مِن نُّطْفَةٍ خَلَقَهُۥ فَقَدَّرَهُۥ ﴿١٩﴾ ثُمَّ
ٱلسَّبِيلَ يَسَّرَهُۥ ﴿٢٠﴾ ثُمَّ أَمَاتَهُۥ فَأَقْبَرَهُۥ ﴿٢١﴾ ثُمَّ إِذَا شَآءَ أَنشَرَهُۥ ﴿٢٢﴾
كَلَّا لَمَّا يَقْضِ مَآ أَمَرَهُۥ ﴿٢٣﴾

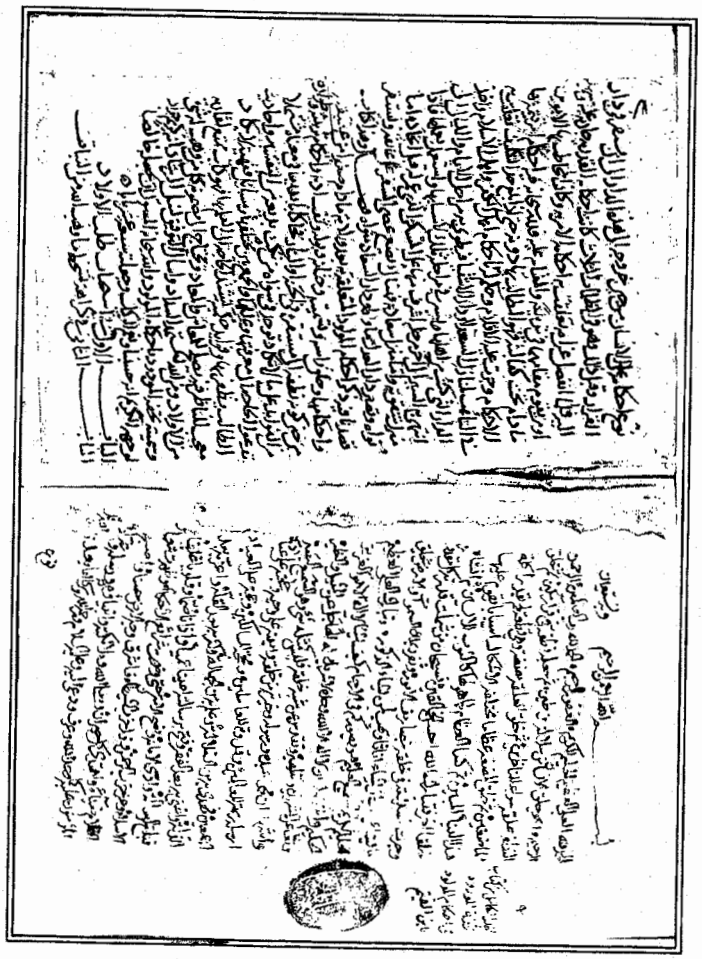
"Cursed is man; how disbelieving is he. From what substance did He create him? From a sperm-drop He created him and destined for him: Then He eased the way for him: Then He causes his death and provides a grave for him. Then when He wills, He will resurrect him. No! Man has not yet accomplished what He commanded him."

[*'Abasa* (80): 17-23]

Therefore, we ask Allāh the Most Great, Lord of the Noble Throne to make us of those for whom the best reward has preceded from Him, and to not make us of those whose wretchedness overcame them, and they lost both this world and the Hereafter; He is the Hearer of supplication, He is Sufficient for us, and [He is] the best Disposer of affairs.

All praise is due to Allāh, Lord of the worlds.
May Allāh bestow His blessings and peace upon
our master, Muḥammad, his Family, Companions,
continuously until the Day of Judgment.

The Original Manuscript Picture



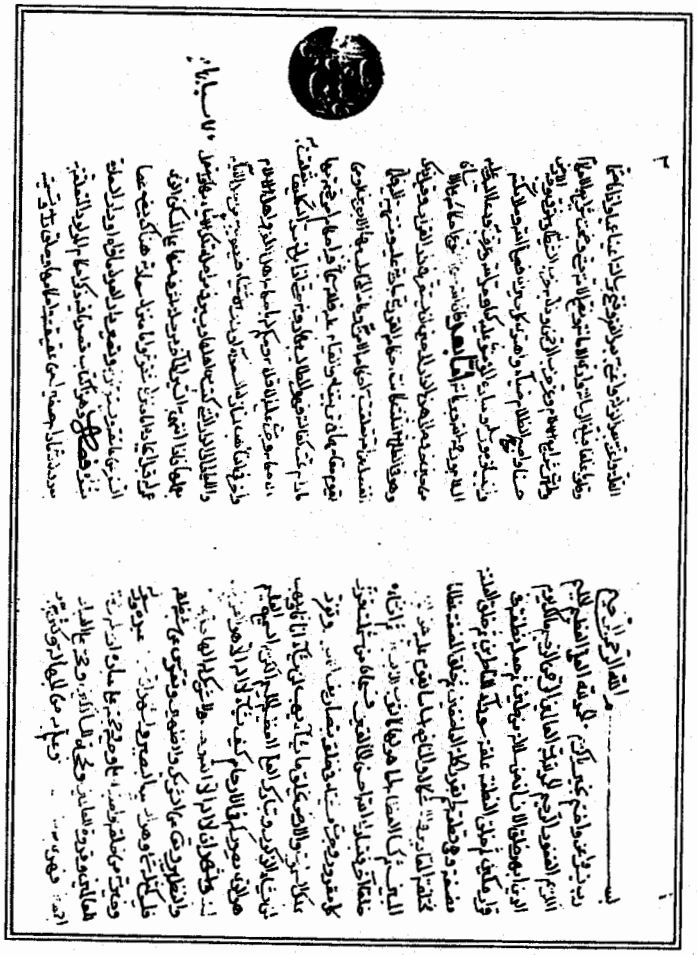
الورقة الأولى من نسخة المحمودية بالمدينة النبوية

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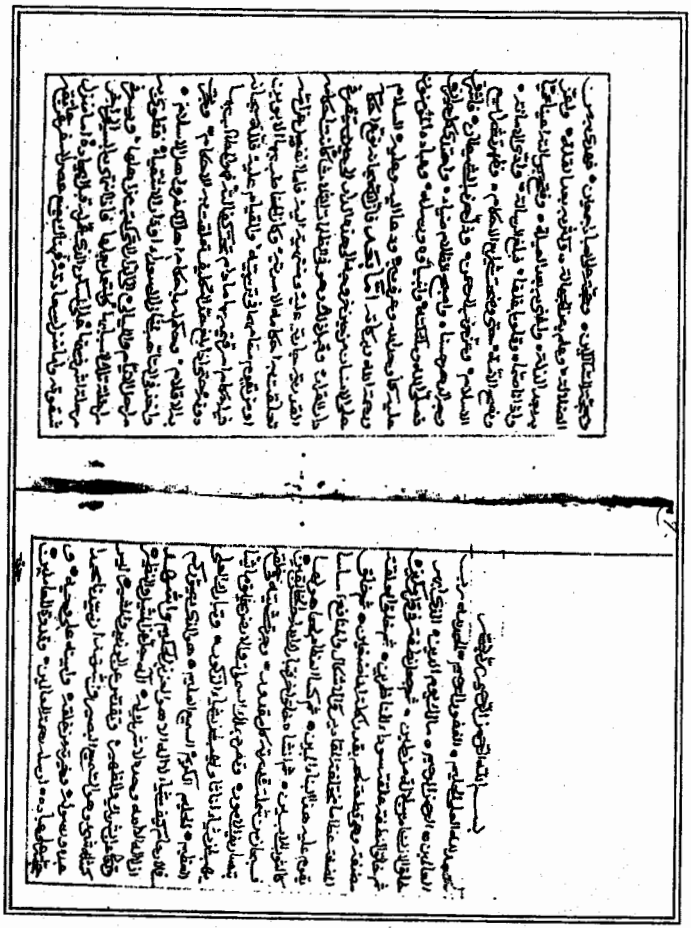
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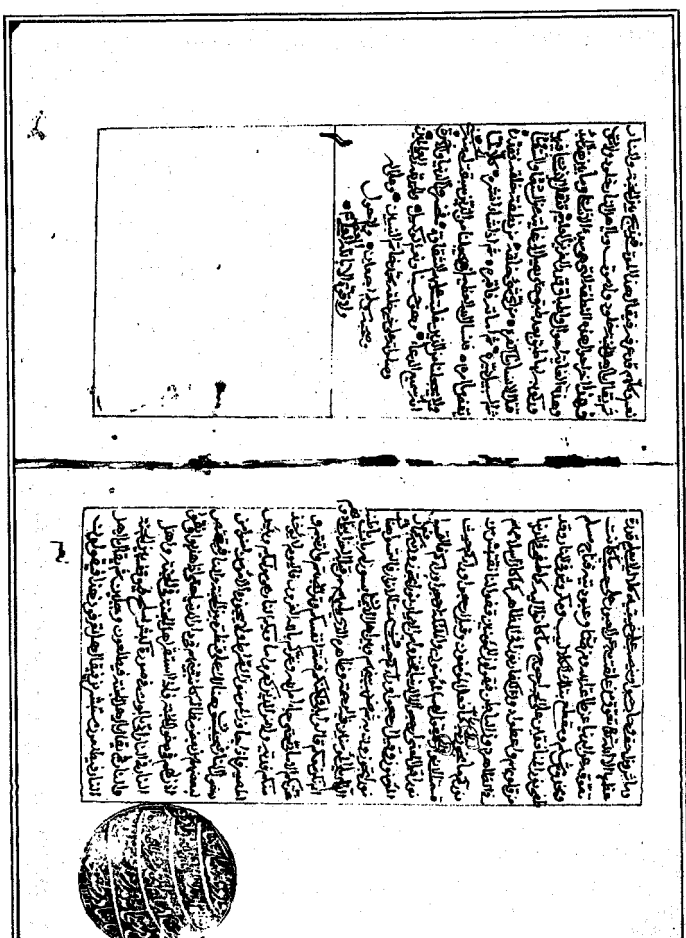
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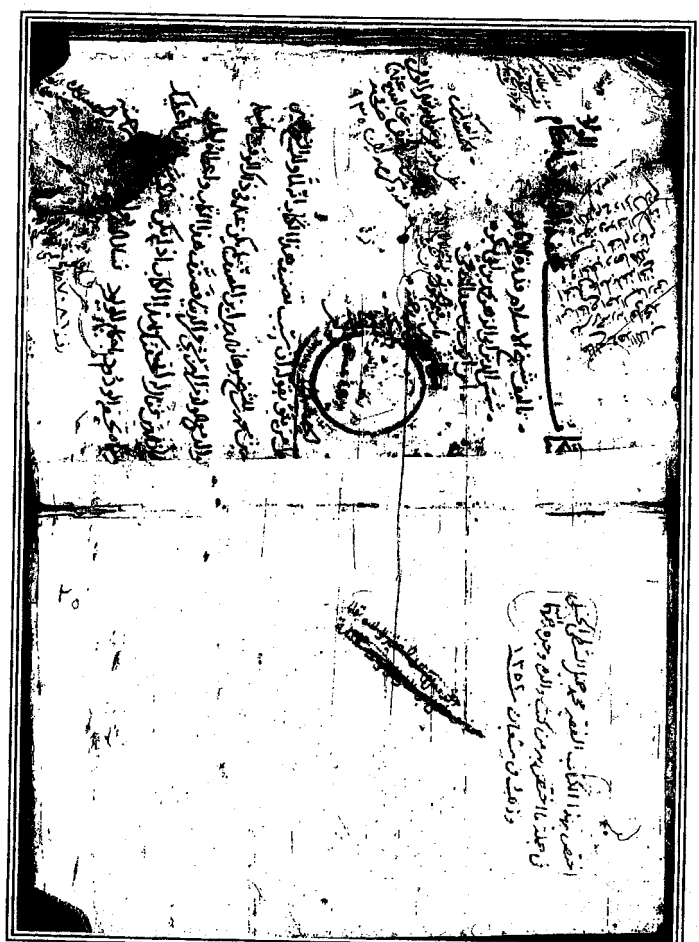
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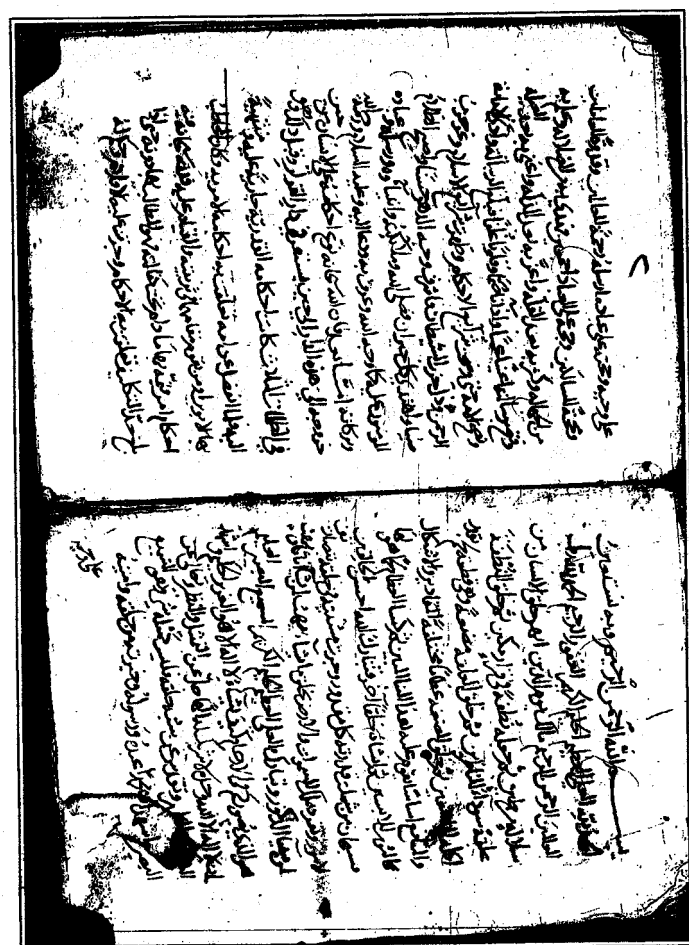
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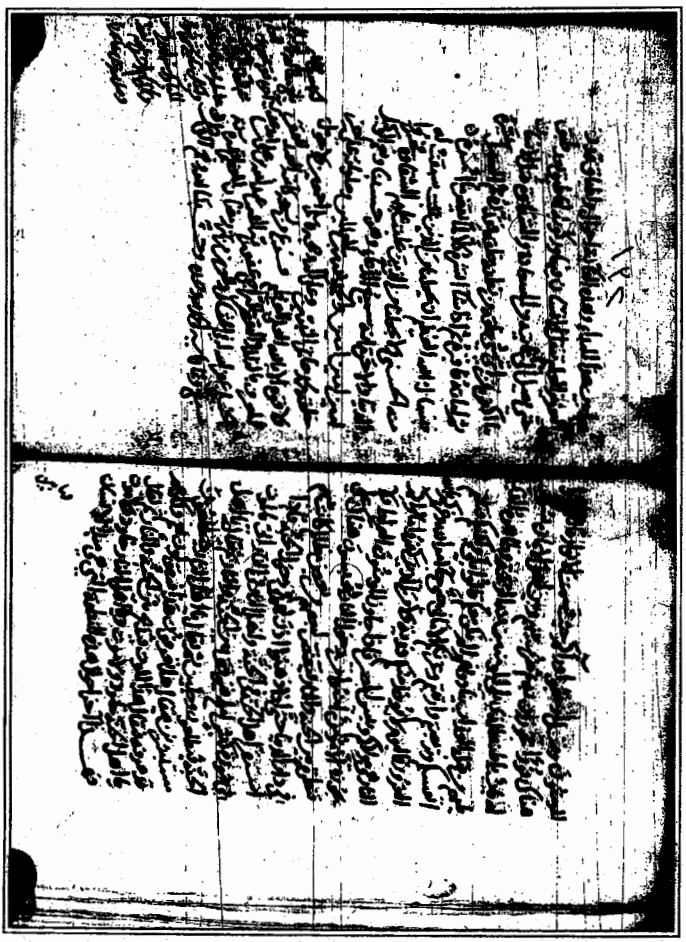
ورقة عنوان نسخة المكتبة الظاهرية

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الورقة الأولى من نسخة الظاهرية

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الورقة الأخيرة من نسخة الظاهرية

Glossary of Arabic Terms

Awliyā': plural of *walī*; friend, ally, loyal companion. From the word *wilāyah* meaning loyalty and closeness, the opposite of enmity.

Barzakh: barrier, isthmus, A barrier that is erected between the deceased and this life preventing him from returning and a generic reference to the life that commences after death.

Bidʿah: innovation, that which is newly introduced into the religion of Allāh.

Ḍaʿīf: weak; the ḥadīth that is neither ṣaḥīḥ nor ḥasan because it fails to meet one of their requirements. It is of varying degrees of severity, the most severe of which being mawḍūʿ, fabricated.

Dhikr: remembrance, recollection, technically referring the remembrance of Allāh.

Duʿā: supplication, invocation, it is an action of worship that may only be directed to Allāh. It is of two types, supplication through worship (*duʿā ʿibādah*) and supplication of request (*duʿā masʾalah*). The first type of *duʿā* can be understood when

one understands that every act of worship is done with the unstated plea that Allāh accept that action of worship and the desire to draw closer to him; and hence attain His pleasure. Hence every action of worship is a type of request to Allāh. The second type of *duʿā* is whereby one explicitly asks his Lord of something such as 'O Allāh! Grant me good in this world and the Hereafter.' The second type includes the first type and the first type necessitates the second type.

Ḥadīth: A text attributed to the Prophet (ﷺ) describing his actions, words, descriptions and tacit approvals. It consists of two portions, the body of the text (*matn*) and the *isnād.* Rarely the term is also used to refer to a text attributed to a Companion or a *Tābiʿī.*

Ḥāfiẓ: pl. *ḥuffāẓ.* Ḥadīth Master, commonly referred to one who has memorised at least 100,000 ḥadīths.

Ḥasan: good, fair. A ḥadīth whose *isnād* is continuously linked of just, morally upright narrators but whose precision (*ḍabṭ*) falls short of the requirements of the ṣaḥīḥ ḥadīth; containing no irregularity (*shādh*) and no hidden defect (*ʿillah*). A ḥadīth can be ḥasan in and of itself, or contain a defect but still be ruled to be so due to supporting evidences.

Ḥudūd: limits, boundaries. The limits ordained by Allāh, prescribed punishments.

Iḥsān: beneficence, excellence. To worship Allāh as if one is seeing Him, and knowing that even though one sees Him not, He sees the servant.

Ikhlāṣ: sincerity, to strip oneself of worshiping any besides Allāh such that everything one does is performed only to draw closer to Him and for His pleasure. It is to purify ones actions from any but the Creator having a share in them, from any defect or self-desire. The one who has true *ikhlāṣ* (*mukhliṣ*) will be free of *riyā'*.

'Ilm: knowledge.

Īmān: The firm belief, complete acknowledgement and acceptance of all that Allāh and His Messenger have commanded to have faith in, submitting to it both inwardly and outwardly. It is the acceptance and belief of the heart that includes the actions of the heart and body, therefore it encompasses the establishment of the whole religion. This is why the Imāms and Salaf used to say, 'Faith is the statement of the heart and tongue, action of the heart, tongue and limbs.' Hence it comprises statement, action and belief, it increases through obedience and decreases through disobedience. It includes the beliefs of faith, its morals and manners and the actions demanded by it.

Islām: submission, submitting to the will of Allāh through following His law as revealed upon the tongue of the Messenger (ﷺ).

Isnād: support. The chain of authorities on which a narration is based, linking the end narrator of a narration to the one it is attributed to, be it the Prophet (ﷺ) or anyone else, narrator by narrator.

Ittibā': following, technically referring to following the Sunnah of the Prophet (ﷺ).

Jāhiliyyah: Pre-Islāmic Ignorance. Technically this refers to the

condition of a people before the guidance of Allāh reaches them, or the state of a people that prevents them from accepting the guidance of Allāh.

Jahl: ignorance.

Kalām: speech, discourse. Technically used to refer to dialectics and scholastic theology.

Kufr: denial, rejection, hiding, technically referring to disbelief. It can be major (removing a person from the fold of Islām) or minor (not removing a person from the fold of Islām).

Majhūl: unknown. A reference to a narrator from whom only one narrator narrates (*majhūl al-ʿain*) or whose state of precision (*ḍabṭ*) is unknown (*majhūl al-ḥāl*), such a narrator makes the *isnād ḍaʿīf.*

Matrūk: abandoned. A narrator who is accused of lying, or makes many mistakes, or makes mistakes in aḥādith that are agreed upon, or narrates from famous narrators that which those narrators do not know.

Munqaṭiʿ: that ḥadīth from which the narrator just before the Companion has been omitted from its *isnād.*

Mursal: disconnected. A ḥadīth whereby a *Tābiʿī* narrates directly from the Prophet (ﷺ) without mentioning the Companion. In the view of the majority of Scholars it is a sub-category of ḍaʿīf.

Muṣḥaf: text of the Qurʾān

Qadr: Divine Decree and Destiny.

Qur'ān: The actual Word of Allāh revealed to the Prophet (ﷺ) in the Arabic language through the medium of the Angel Gabriel and the greatest miracle bestowed him. It consists of 114 chapters commencing with al-Fātiḥah and ending with an-Nās.

Ṣaḥīḥ: correct, authentic. A ḥadīth which has a continuously linked *isnād*, of just, morally upright and precise narrators; containing no irregularity (*shādh*) or hidden defect (*'illah*). Hence five conditions have to be met: the *isnād* being continuously linked; the justice (*'adl*) of the narrator; the precision (*ḍabṭ*) of the narrator; its not being *shādh*; and its not containing an *'illah*. The ḥadīth can be ṣaḥīḥ in and of itself, or it can contain a defect but still be ruled to be ṣaḥīḥ due to supporting evidences.

Salaf: predecessors. Technically used to refer to the best generations of Muslims, the first three generation: the *Ṣaḥābah*, the *Tābi'ūn* and the *Tab' Tābi'ūn* due to the ḥadīth, "The best of people are my generation, then the one that follows, then the one that follows."

Shādh: irregular, odd. A ḥadīth narrated by a trustworthy and precise narrator that contradicts the narrative of other narrators or the narration of one more trustworthy and precise than him, provided that a reconciliation is not possible.

Shirk: association, technically referring to directing a right that is due to Allāh Alone to another object of creation, either completely or partially. It can be major (removing a person from the fold of Islām) or minor (not removing a person from the fold of Islām).

Sunnah: way, path. The actions, words, descriptions, commands, prohibitions and tacit approvals of the Prophet (ﷺ).

Tābiʿūn: The generation following that of the Companions.

Tabʿ Tābiʿūn: The generation following that of the *Tābiʿūn.*

Tadlīs: deceit. An action of a narrator whereby he makes out that he heard something from a particular narrator what he did not hear or conceals the identity of the one he is narrating from. In order to do so, he will use terms that are vague such as 'such-and-such said' and 'on the authority of such-and-such.' The first type of *tadlīs* is blameworthy and constitutes a defect in the *isnād.* The second is dependant upon exactly what was done and the motives of the narrator, it can be blameworthy or not.

Taqwā: the basic meaning of which is setting a barrier between two things. This is why it is said that one *ittaqā* with his shield, i.e. he set it as a barrier between him and the one who wished him evil. Therefore it is as if the one who has taqwa (*muttaqī*) has used his following the commands of Allāh and avoiding His prohibitions as a barrier between himself and the Punishment. Hence he has preserved and fortified himself against the punishment of Allāh through his obeying Him.

Tawḥīd: unification, monotheism, the belief in the absolute Oneness of Allāh. It is to believe that Allāh Alone is the creator, nourisher, and sustainer of the worlds; it is to believe that Allāh Alone deserves to be worshipped; and it is to believe that He has unique and perfect Names and Attributes that far transcend anything that one can imagine.

Yaqīn: certainty. It is to faith (*Īmān*) what the soul is to the body, it is the soul to the actions of the heart which in turn formulate the souls to the actions of the limbs and through it one attains the rank of Ṣiddīq. From *yaqīn* does *tawakkul* (absolute reliance in Allāh) sprout and through *yaqīn* is all doubt, suspicion and worry dispelled and the heart filled with love, hope and fear of Allāh. *Yaqīn* is of three levels, that which arises from knowledge (*'ilm al-yaqīn*), seeing (*'ain al-yaqīn*) and actual experience (*ḥaqq al-yaqīn*).